

Temporary Assistance for Needy Families Policy Manual





TANF POLICY MANUAL

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Please email all out of state inquiries for SNAP and/or TANF to:
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Subject line should read: 'Out of State Inquiry from 'name of state'.

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South Carolina Department of Social Services
Temporary Assistance for Needy Families (TANF) Policy Manual
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Chapter**1**

Chapter 1

Introduction to Temporary Assistance for Needy Families (TANF)

1.1 Legal Basis and Program Purpose

The South Carolina Family Independence Act of 1995 forms the legal basis for the establishment of Temporary Assistance for Needy Families (TANF), the current welfare program in the State.

1. Federal Funding

Federal funding for the TANF Program is provided through the Personal Responsibility Work Opportunity Reconciliation Act (PRWORA), Title I, Temporary Assistance for Needy Families (TANF) and the Deficit Reduction Act of 2005.

TANF funds are provided to meet four specific purposes. These are:

- A. To provide assistance to needy families so that children may be cared for in their own homes or in the homes of relatives.
- B. To end the dependence of needy parents on government benefits by promoting job preparation, work, and marriage.
- C. To prevent and reduce the incidence of out-of-wedlock pregnancies and establish annual numerical goals for preventing and reducing the incidence of these pregnancies.
- D. To encourage the formation and maintenance of two-parent families.

2. Primary Goals of TANF

The primary goals of TANF are to:

- A. Reform welfare so that disadvantaged individuals can be prepared for employment and find jobs.
- B. Remove barriers for clients and assist them in finding employment.

3. Program Purpose

It is the mandate of the Department of Social Services (DSS) to assist all eligible individuals

in maximizing their strengths and abilities in order for families in poverty to become socially and economically independent.

A common goal must exist between those who receive benefits and the taxpayers of the State. This goal requires an emphasis on employment and training, which assists families in achieving and maintaining self-reliance.

1.2 Objectives of the TANF Program

DSS and the recipient must enter into a reciprocal agreement outlining a plan to assist families to become self-reliant.

DSS is mandated to assist the recipient in obtaining the tools necessary to achieve and maintain economic independence, and to deter abuse of the system through fair and meaningful sanctions.

The TANF Program consists of three main elements:

- A. Work requirements
- B. TANF cash benefits
- C. Support services

Child support, Supplemental Nutrition Assistance Program (SNAP) and Medicaid may also play an important part in the family achieving self-reliance.

Types of TANF Cases

In order to serve the whole family through enhanced case management, the TANF program includes the following types of TANF cases

- A. Families receiving cash benefits
- B. Families eligible for or receiving Transitional Support Services (TSS)
- C. Families receiving case management services following TSS ([see 16.10](#))

1.3 Basic TANF Program Elements

1. Work Requirements

TANF Work Requirements focus on helping the recipient achieve self-reliance and must be met by all Work Eligible Individuals (WEI)s, adults and minor parent head-of-households, in a TANF Benefit Group (BG).

2. Benefit

The TANF cash benefit is the money payment a recipient is eligible for when meeting all eligibility criteria of the TANF Program.

3. Support Services

Support Services are types of assistance, such as but not limited to, child care and transportation, which are provided to promote self-reliance.

4. Child Support

The Child Support Services Division (CSSD) is a separate organizational unit within DSS responsible for the administration of the child support program. Cooperating with CSSD and providing minimum information on any absent parent (AP) of a child(ren) in the BG are requirements for initial and continuing eligibility.

Applicants and recipients (A/R's) must provide specific information on any absent parent(s) of a dependent child(ren).

5. Supplemental Nutrition Assistance Program (SNAP)

In most situations, a TANF eligible BG is also eligible for SNAP, and eligibility for SNAP is usually determined during the TANF application process. SNAP assistance helps in meeting the nutritional needs of the needy families.

6. Family Eligibility

An eligible family must contain a dependent child(ren) related to a caretaker within a specified degree of relationship.

7. Minor Parent

Minor parent, under the age of 18, and is unmarried must live with a parent or guardian, with certain exceptions.

8. Financial Eligibility

Each BG must meet established resource and income criteria.

9. Initial Job Search (IJS)

An initial job search must be completed by WEIs prior to approval of the TANF case, with certain exceptions.

10. TANF Agreement

Each WEI in the BG must sign an agreement with DSS outlining a plan to become self-sufficient.

11. School Attendance

Full-time attendance for all recipients under age 18 is required.

12. Family Life Skills

Each WEI must attend Family Life Skills training classes if deemed necessary.

13. Time Limits

The receipt of TANF cash benefits is limited to 24-months in a 10-year period, and 60 months lifetime, with certain exceptions.

14. SNAP and TANF Cases with same BG Composition

For SNAP BGs consisting solely of individuals included in the TANF BG, the TANF policies are used for the SNAP eligibility determination. SNAP policies apply for budgeting and benefit issuance.

15. SNAP and TANF Cases with different BG Composition

When there are non-TANF individuals living with TANF individuals and they make up one SNAP BG, the SNAP policies must be used for SNAP determinations.

1.4 Limited English and Sensory Impaired Individuals

It is the policy of DSS to require and embrace a strong commitment to providing services to, and ensuring program accessibility in participation and benefits for all eligible families. There shall be no distinction based on the previous categories either in eligibility determination or accessibility to programs and services. This policy applies to all agency units and to all agency services provided, including our Limited English Proficient (LEP) and Sensory Impaired clients, whether services are delivered by DSS staff or by contracted vendor.

1. Responsibility of Initial Contact

DSS staff who are responsible for the initial contact with the client are responsible for determining the language and mode of communication preferred by the client. The local Client Special Services Coordinator (CSSC) must assure that the client is informed of his/her right to an interpreter, to other auxiliary aids, or to other resources at no cost to the client.

2. Client Special Services Coordinator

DSS will use its Client Special Services Coordinator (CSSC) position in the State office as the primary point of contact for situations involving LEP and sensory impaired clients at the state level. Each county will designate a local CSSC for each office from which client services are provided. The local CSSC, along with the county director, are responsible for ensuring that the county office complies with the Americans with Disabilities Act and other federal laws that guarantee service access to all eligible individuals. The State office CSSC will keep an active list of all local CSSCs.

3. Client History Information Profile (CHIP) Coding

CHIP screen INRD must be coded to indicate if an A/R does not speak English and needs an interpreter. One of the following codes should be entered into the "Interpreter Needed For" field:

AR – Arabic
 CH - Chinese
 OT - Other
 RU - Russian
 SL - Sign Language
 SP - Spanish
 UK - Ukrainian
 VN - Vietnamese

4. Use of Interpreters

Clients cannot use family members or friends as interpreters. Agency policy for use of qualified interpreters is set forth in the Civil Rights Toolkit available with the Office of Individual and Provider Rights.

Anyone accompanying the client for the purpose of interpreting may, upon client's request, serve the client in the role of advocate while the agency uses a qualified interpreter to facilitate communication at no cost to the client. The client must still be advised that a free interpreter will be

made available at his/her request. Whenever possible, a qualified bilingual employee should be used to facilitate bilingual communication.

5. When to Provide Information

The Economic Services Worker must provide the A/R with a DSS Form 2416, Know Your Rights, at each application and redetermination.

6. Case Record Documentation

The ES Worker should document that a brochure has been provided to the A/R by notating it on the Documentation Tool or in Folder Notes. The DSS Form 1672, Interview Documentation Form for Applications/Recertifications/Redeterminations, can be used if the Documentation Tool is not accessible.

7. Time Frame

The Appeals Unit must inform the Applicant/Recipient (A/R) and the worker of the disposition made within 14 working days of receipt of the complaint and summary.

8. Display of Poster

Each county office must display the USDA “And Justice for All” as well as the DSS Posters 2660, Do You Need an Interpreter or Other Reasonable Accommodations, and 2661, Interpretation Services Available.

9. Legal Rights of Adults with Learning Disabilities

Individuals with Learning Disabilities have the right to:

- A. Equal access to programs, services and jobs for which they are qualified
- B. Reasonable accommodations in job programs or service activities
- C. Disclosure or non-disclosure of disabilities; however, the choice to not disclose is basically a waiver of accommodations

1.5 Confidentiality and Program Compliance

Federal and state laws and regulations limit the use and disclosure of confidential information concerning Applicants/Recipients of economic assistance programs to purposes directly related to the administration of these programs.

1. Agency Volunteers

Agency volunteers (non-DSS employees) may be used in non-certification related activities such as:

- A. Helping with outreach
- B. Assisting in program promotion
- C. Teaching nutrition education
- D. Providing transportation to the county office
- E. Assisting in completing the application.

2. Public Information

County offices are required to maintain program policy handbooks/manuals and make them available for examination by the public upon request. The public has the right to examine:

- A. Rules and regulations governing eligibility
- B. Need/benefit tables
- C. Recipient rights and responsibilities
- D. Types of services offered.

3. Confidential Case Information

The following case information is considered confidential and must be safeguarded:

- A. All information obtained in the course of interviews with the A/R
- B. All information obtained while verifying eligibility for the A/R
- C. Name, address, and Social Security Number (SSN) of the A/R
- D. Information on the economic, social or medical circumstances of the A/R
- E. The TANF benefit amount received by the recipient.

4. Disclosing Confidential Information

Confidential information may be disclosed in the following situations:

- A. **Verification** – When the ES Worker is attempting to verify eligibility and must disclose a minimum of information limited to the facts required to determine eligibility.
- B. **Federal Assistance** – When another agency administering a federal or federally assisted program, which provides needs-based assistance directly to individuals is attempting to assist an A/R and requests information directly related to that agency's programs.
- C. **Audit** – When a legislative body or designated audit body certifies the information is needed for audit purposes.
- D. **Federal Program Investigation** – When any investigation, prosecution, or criminal/civil proceeding is being conducted in connection with the administration of federal programs administered by DSS.
- E. **Child Abuse/Neglect** – When child abuse and/or neglect is suspected
- F. **Foster Care** – When information directly related to the administration of the IV-E Foster Care and Adoption Assistance Programs is requested.
- G. When the A/R or his/her authorized representative request to view information in the A/R's case file.
- H. **Fugitive Felon** – When any state or local law enforcement officer requests the address of a fugitive felon the requesting officer must provide the recipient's name and SSN and demonstrate that:
 - 1. The recipient is a felon

2. The location or apprehension of the felon is within the officer's official duties
 3. The request is made in the proper exercise of these duties
- I. **Criminal History Results** – The State criminal history results (SLED checks) can be shared with potential employing agency/work site. Counties are required to keep a secondary log of all re-disseminations of the State criminal history results to these work sites that required SLED checks. The result given to the work site must be disseminated timely (within 60 days) and **used only for the purpose** for which the record was requested. Clients should be made aware, in writing, that their criminal history results may be shared with requesting work sites.
 - J. **Memorandum of Understanding (MOU)** - When DSS has a contract or Memorandum of Understanding with an agency or entity that provides services to recipients to enable them to become independent and self-sufficient.
 - K. **Subpoena** - When a county receives a subpoena to obtain information from an A/R case record, the county attorney should be contacted for advice on what should be done about providing confidential information.

5. Retention of Records

All records must be retained for audit and review purposes through the current federal fiscal year and three additional fiscal years.

NOTE: *The federal fiscal year is October 1 through September 30.*

6. Conflicts of Interest

As Economic Services (ES) workers, it is important to be aware of situations in which a conflict of interest exists.

Economic Services workers should not take action on any case involving a person related to him/her or any case where a conflict of interest exists. This includes the worker's own case and the cases of relatives, friends, co-workers, known associates and people in which the worker has a conflict of interest. If the Economic Services worker discovers a case while in South Carolina Office Scanning Application (SCOSA) or interview rotation that falls under this rule, the worker must notify his/her supervisor of the potential conflict of interest so that the appropriate action can be taken. To clarify, an Economic Services worker cannot take the following actions (please note that this list is not all inclusive):

- Accessing the case for any reason including to review it;
- Updating the address;
- Carcing the case to anyone;
- Making any change that affects the eligibility determination;
- Making case notes; and
- Making collateral contacts.

An Economic Services worker is a worker in one of the following positions:

- Administrative
- Case management
- Certification/Eligibility
- E&T
- Workforce Consultant
- Any other personnel who has access to any Economic Services system, database or web platform used in the determination of eligibility for public assistance programs.

7. Lifeline Assistance Program

The Lifeline Assistance Program offers reduced prices to qualified low-income consumers with voice telephony service or broadband Internet access.

The Lifeline Assistance Program provides a discounted on the monthly telephone bill. TANF, SNAP, and Medicaid recipients may qualify for Lifeline assistance. TANF or SNAP recipients may complete the Application/Verification for Lifeline Assistance (DSS Form 12113) at any DSS office or apply directly with the telephone company. The Lifeline application will serve as verification that the individual is receiving TANF or SNAP and that the telephone service is listed in the recipient's name. The telephone company will determine the discount available to the applicant.

Some phone companies may not accept the DSS Form 12113. Therefore, the ES Worker should complete the form provided by the phone company when applicable.

1.6 Civil Rights Procedure

In the event an A/R expresses an interest in filing a discrimination complaint (in writing or verbally), the worker must assist the individual in completing a DSS Form 2601, Civil Rights Discrimination Complaint Form. The DSS Form 2601 is then forwarded along with a summary of the complaint to the Office of Civil Rights for investigation. Refer to the Civil Rights [Chapter 22](#) for additional information.

NOTE: The Appeals Unit must inform the Applicant/Recipient (A/R) and the worker of the disposition made within 14 working days of receipt of the complaint and summary.

Chapter**2**

Chapter 2

TANF Application Process

2.1 General Application Process

The application process for TANF cash benefits begins with the filing of a signed DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application; Supplemental Nutrition Assistance Program (SNAP) Application; Refugee Cash Assistance (RCA) Application, being interviewed, verifying required eligibility criteria, and ends with the notification of the BG's eligibility or ineligibility for the program.

NOTE: *An inquiry does not constitute an application.*

1. Non-Discrimination Compliance

DSS employees, including TANF Economic Services Workers (ES Workers) and TANF Case Managers (CM) must not discriminate against an applicant/recipient (A/R) in any aspect of program administration for reasons of

- A. Race
- B. Age
- C. Sex
- D. Handicap
- E. Religious creed
- F. National origin
- G. Political beliefs
- H. Ancestry
- I. English language proficiency
- J. Sensorial or visual impairment

For additional information, refer to Chapter 22 - Civil Rights.

2. Required Application Forms

To apply for TANF benefits, applicants must complete the DSS Form 3800, Temporary Assistance for Needy Families (TANF) Application; Supplemental Nutrition Assistance Program (SNAP) Application; Refugee Cash Assistance (RCA) Application.

3. Application Covers All DSS Program Areas

In the application process, applicants may be evaluated for TANF and SNAP without filing separate applications. All programs must be explained to each applicant. An applicant may apply for TANF and/or SNAP by checking the appropriate box on the DSS Form 3800 after this explanation has been provided.

4. Availability of Application

The county office must make the application readily available to potentially eligible households and to interested groups and organizations. Any person expressing an interest in applying for TANF must be given an application form to complete.

5. Legal Document Uses

The signed application forms are the county's legal documents that:

- A. Provide the county office with sufficient information to begin an accurate determination of eligibility or ineligibility.
- B. Advise the applicant of his/her rights and responsibilities.
- C. Advise the applicant of the policy on exchange of client information with other government agencies and serve as a release of information to non-governmental agencies.
- D. Inform the applicant that the toll-free number shown on the DSS Form 3800 may be used to obtain the address and phone number of any DSS office to report changes in circumstances if calling from outside their local calling area (e.g., long distance).
- E. Inform the applicant of his/her responsibility to provide complete and accurate information.
- F. Provide a document that may be introduced as evidence in court when fraud is suspected.
- G. Inform the applicant that at the time of application or redetermination, information that is available through the Income and Eligibility Verification System (IEVS) will be requested and used. If discrepancies are found, the information will be verified. Such information may affect the BG's eligibility and level of benefits. [\(See 7.2\)](#)

6. Filing an Application

Each individual has the right to file an application on the same day he/she contacts any DSS office.

7. Application Submission

The application must be submitted to any DSS office either:

- In person
- Through an authorized representative
- By fax or other electronic submission
- By mail or

- By completing an on-line electronic application.

8. Application Submission to County of Non Residence

Each individual has the right to file an application at any DSS office. The individual does not need to be a resident of the county just to file an application.

9. Validity

Any application, even if incomplete, is valid as long as it contains the name and address of the applicant and is signed by a responsible BG member or the BG's authorized representative.

[\(See 2.1.15\)](#)

10. Recording Filing Date

The county office must record on the application the date it is received in the county. The filing date is the date a valid application is presented/received in any county office.

11. Application Not Filed in County of Residence

Applications can be registered by any county regardless of the BG's county of residence.

12. ES Worker Interview

The interview by the ES Worker will occur after the application is registered. Interviews may be conducted over the telephone, at any DSS county office or other mutually acceptable location excluding the household's residence. The agency must grant a face-to-face interview to any applicant/recipient that requests one. The applicant or recipient may be represented at the interview by an individual of his/her choice.

EXCEPTION: The ES Worker will go to the domestic/family violence shelter or to a mutually agreed upon safe setting to conduct the interview if the applicant would be at risk if required to come to the DSS office to apply.

13. Mailing Application

If the applicant contacts the county office by telephone or mail but does not wish to come to the office to file the application, he/she may request the application be mailed. The county office must mail an application within one working day of the date the written request or telephone call is received. The individual must be advised that the application will not be considered filed until it is received in the county office.

14. Assisting Applicant

The Agency will provide assistance, as needed, to complete the application and will ensure that all applicants or recipients have or promptly apply for and obtain a Social Security number.

15. Authorized Representative (AR)

An Authorized Representative is an individual who is acting for the applicant with his/her knowledge and consent and who has knowledge of the applicant's circumstances. The applicant may be represented by an individual of his/her choice in the application process.

DSS Form 1632, Authorized Representative Designation Form, is used to designate the authorized representative. Designation may also be accomplished by completing the Authorized Representative section on the DSS Form 3800.

16. Possible Benefits

An applicant/recipient (A/R) potentially entitled by law to other cash benefits, e.g. Social Security Survivors benefits, VA benefits, retirement, unemployment compensation, workers' compensation, etc., must apply for these benefits. ([see 7.4](#))

2.2 Special Application Situations

The following chart gives special TANF application situations and how they should be treated:

Type	Special Treatment
Incompetent or incapacitated individual	An application may be made by someone acting responsibly for the applicant/recipient (A/R) with or without his/her consent. Benefits are issued only to the protective payee. (See 11.3)
Foster child returned home	An application must be made in the county where the child now lives. Duplicate foster care and TANF cash benefits must not be issued in the same month.
Foster child prior to return home	An application may be made if DSS has custody or a voluntary placement agreement. An application is made in the child's county of residence by the parent/caretaker relative. Child Welfare Services (CWS) worker verifies in writing that plans are being made to return the child home. ES Worker verifies all TANF criteria except living in the home and notifies HSW by memorandum of eligibility. HSW returns child to his/her home and notifies ES Worker in writing within five days. ES Worker certifies the case within five days. Benefits are effective the date of return to the home.
Special Needs Applicants	DSS staff should utilize available resources in their county to help applicants with special needs. If additional help is needed, contact local Client Special Services Coordinator (CSSC) for guidance and resources. (See 1.4.2)
Limited English Proficiency Applicants	DSS staff should utilize available resources to help applicants with language barriers. Contact local CSSC for additional guidance and resources. CHIP screen INRD must be coded to indicate if an applicant does not speak English and needs an interpreter. One of the following codes should be entered into the "Interpreter Needed For" field: AR – Arabic CH – Chinese OT – Other RU – Russian SL – Sign Language

	SP – Spanish UK – Ukrainian VN – Vietnamese <u>(See 1.4.2)</u>
Applicant is being sheltered by a Domestic Violence Advocate (DVA) or safe home	DSS staff may go to the domestic/family violence shelter to take the application if the applicant would be at risk if required to come to the DSS office to apply. <i>NOTE: If the DVA does not allow this, then a mutually agreed upon safe setting for the interview shall be identified.</i>

2.3 Requirements of an Interview

1. The Interview

The interview may be conducted by telephone, at any DSS office or a mutually agreed upon location. The interview should be a confidential discussion of the household circumstance. [\(See 22.2\)](#)

2. Required Explanations During Interview

The interview must include an explanation of:

- A. An overview of the TANF
- B. The TANF eligibility requirements [\(See Chapter 4\)](#)
- C. The timeliness standards [\(See 2.7.3\)](#) [\(See 2.8.3\)](#)
- D. The applicant's rights and responsibilities as stated on the application
- E. The Income and Eligibility Verification System (IEVS) [\(See IEVS Process 7.3\)](#)
- F. The requirement that the BG must cooperate in obtaining verification and completing the application [\(See 2.19\)](#)

CAUTION: The ES Worker must allow the applicant at least 10 days from the initial request to provide the requested information.

- G. The applicant's rights under the National Voter Registration Act (NVRA) [\(See 2.13\)](#)
- H. The requirement that the A/R report the following changes within 10 days:
 - 1. BG composition
 - 2. Residence/address
 - 3. Employment status (obtaining or losing a job)
- I. The requirement that applicants must provide proof of age appropriate immunizations for their child(ren) [\(See 9.8.5\)](#)

CAUTION: TANF cash benefits cannot be denied for failure to comply with this requirement.

- J. The requirement that limits the amount of time a BG receives TANF cash benefits to 24 months, with certain exceptions. [\(See 10.1.5\)](#)
- K. The requirement that, with certain exceptions, an incremental increase in TANF cash benefits is not granted to a BG when a family cap child is born to a BG member 10 or more months after a month in which the BG received TANF cash benefits. [\(See 8.5\)](#)
- L. The requirement that all adult BG members, all minor parents, and all teen parents, whom the CM determines would benefit by attendance, participate in Family Life Skills training classes. Failure to participate in Family Life Skills is sanctionable, only when listed on the Employment Plan. [\(See 15.2.3\)](#)
- M. The requirement that, with certain exceptions, as a condition of eligibility, an applicant who is required to participate with TANF Work Requirements must also complete an initial job search. A minimum of five employer contacts are required. [\(See 2.6\)](#)
- N. The availability of Applicant Support Services for potentially eligible families in order for the adult to conduct the initial job search, obtain employment, or maintain employment. [\(See 2.4\)](#)
- O. The requirement that all adult BG members, all minor parents and all teen parents, identified as WEIs, must participate as required with the TANF Work Program.

NOTE: *The ES Worker must inform all A/R's of the following elements:*

- a. Program activities/requirements***
 - b. Available support services***
 - c. Participant's rights and responsibilities***
 - d. DSS' rights and responsibilities***
 - e. A/R's right to a fair hearing regarding TANF Work Requirements***
- P. The requirement that any WEI BG member that is sanctioned due to SSN requirements or child support non-cooperation is also required to comply with the TANF Work Requirements. [\(See 12.2\)](#)
 - Q. The requirement that all WEIs must undergo an assessment by Case Manager. [\(See Assessments 13.1\)](#)
 - R. The prohibition against a work program sanction when appropriate child care is unavailable. [\(See Legal Cause Criteria 17.2\)](#)
 - S. Some of the rules for receiving TANF may not apply to the applicant if he/she is a victim of domestic/family violence. These rules include time limits, Work Program requirements, or helping the State collect child support. The ES Worker must review the TANF Domestic Violence Information Notice, DSS Form 3733, with the applicant and must discuss the information contained in the brochure "TANF Application Information" DSS Form 3735. [\(See Referrals for Additional Services 13.12.7\)](#)

NOTE: *If an applicant is identified as being a victim of domestic/family violence, code "Y" to indicate domestic/family violence case on CHIP screen INRD.*

- T. The availability of the Lifeline Program for discounted telephone service for one phone listed in the applicant's name.

- U. A basic Learning Disability screening must be completed as appropriate for A/R's.
- V. The requirement that a minor parent applicant must live with a parent/legal guardian or meet an exception. ([see 3.6.3 Living Arrangement of Minor Parents](#)).

2.4 Applicant Support Services

DSS is committed to providing support services for applicants to assist in completing the required initial job search or to obtain or maintain employment.

Applicant support services may include childcare and work-related expenses needed to secure or maintain employment and expenses to ensure family stability while employed.

NOTE: *It is the responsibility of the ES Worker to assist the applicant with their request and need for Applicant Support Services.*

For other support services, during the application period, counties should utilize resources available within their community. Other support services, such as non-recurring or one-time short-term assistance may be considered upon approval of the TANF application.

NOTE: *Non-recurring, one-time short-term assistance is:*

- 1. Designed to deal with a specific crisis situation or episode of need***
- 2. Not intended to meet recurring or ongoing needs.***
- 3. Not to extend beyond four months within a 12-month period.***

Such types of assistance include, but are not limited to rent, utilities, overdue bills, etc.

1. Eligibility Criteria for Applicant Support Services

The ES Worker must consider the following concerning eligibility for Applicant Support Services:

- A. Applicant must complete the initial interview and appear to be eligible for TANF cash benefits, and in need of services to conduct the initial job search, obtain or maintain employment.

NOTE: *This determination is based on information known to the ES Worker and supplied by the applicant. For individuals that are employed, the CHIP mini budget, AFMB, should be completed.*

- B. If the applicant obtains a job during the application period and the income from the job prevents TANF eligibility, support services can be granted for up to four months, as needed (excluding child care ([see 2.5](#)) for child care guidelines)
- C. An applicant who finds employment between the time the application is filed and before he/she is interviewed may also be eligible for up to four months of support services (excluding child care).
- D. An applicant must be told that if Applicant Support Services funds are improperly used, DSS will make every effort to recoup the money expended.

- E. An applicant who is curing a sanction can receive services if needed to obtain or maintain employment.

2. Victims of Domestic/Family Violence

Victims of domestic/family violence who need support services to obtain safe shelter, and/or obtain assistance from an agency which specializes in providing support to victims of domestic/family violence, may also be eligible for applicant support services.

NOTE: Victims of domestic/family violence are required to appear eligible for TANF when applicant support services are needed; however, these services do not have to be needed in order to obtain or maintain employment.

3. Guidelines For Applicant Support Services

General guidelines for Applicant Support Services are as follows:

- A. State procurement guidelines specified in the Administration Policy and Procedures Manual, Chapter 13, must be followed when making payments to providers.
- B. Applicant Support Services may not extend beyond four months from the point employment began or date of TANF application, if working when the application is filed.
- C. Applicant Support Services are not intended to meet recurring or ongoing needs.

Please refer to the procurement guidelines outlined in the Administrative Policy and Procedure Manual, Chapter 13.

4. Prohibited Use of Applicant Support Services

Applicant Support Services cannot be used for the following purposes:

- A. To make direct payments to a DSS employee
- B. To match other federal funds
- C. To make child care payments for any purpose directly to the applicant, to anyone in the applicant's BG, or to anyone who has legal responsibility for the child(ren)
- D. To pay expenses, such as parking or traffic violations, or any other prohibited or unauthorized expense

5. Authorization/Approval Process

The authorization and approval process for Applicant Support Services is as follows:

- A. When the applicant appears to be eligible for and in need of services, the ES Worker will assist in providing funds for Applicant Support Services as needed by sending a Request for Support Services, DSS Form 1269, to the Support Services Specialist (SSS) or designee. The authorization period begins on the first day services are needed and ends in four months or less, depending on circumstances.

- B. The county will establish procedures to be used for Applicant Support Services. Procurement guidelines must be followed. The county has complete authority to grant approval for expenditures.
- C. The ES Worker must follow the county procedures to request funds. The county bookkeeper processes payment of Applicant Support Services following the instructions in the DSS Manual of County Office Accounting.
- D. The ES Worker must complete a DSS Form 1269 and forward it to the Support Services Specialist (SSS) for input into the Family Independence Financial System (FIFN) for reimbursement to be made to the county.

NOTE: If the Support Service is needed to cure a sanction, the CM must indicate on the DSS Form 1269 that this service is only needed for this 30-day period.

6. Completion of the DSS Form 1269

The ES Worker must complete the DSS Form 1269 to include the following:

- 1. Program type
- 2. Participant's name, address and telephone number
- 3. Case number
- 4. SSN
- 5. Service begin date
- 6. Actual end date
- 7. Type of service
- 8. Name of county as the provider
- 9. Amount of the check written for services

The SSS or designee must use the DSS Form 1269 to create an Authorization and Payment Invoice, DSS Form 3713, in order for the county to be reimbursed.

2.5 Applicant Child Care (ACC) Services

General guidelines for Applicant Child Care Services are as follows:

- A. Child Care may be provided for the applicant to conduct the initial job search, obtain employment, or maintain employment. Payment for applicant child care cannot exceed the 30-day application period.

- B. Applicant child care funds are to be used to make payments directly to the child care provider upon billing. Payments must not be made to the participant.
- C. Payments must not exceed the prescribed local market rates. The maximum rates for child care must be prorated for child care services provided on an hourly or daily basis for job search activities.

1. Eligibility Criteria for Applicant Child Care Services

The ES Worker must consider the following concerning eligibility for Applicant Child Care Services:

- A. Applicant must complete the initial interview and appear to be eligible for TANF cash benefits, and in need of child care to conduct the initial job search, obtain or maintain employment.

NOTE: This determination is based on information known to the ES Worker and supplied by the applicant. For individuals that are employed, the CHIP mini budget, AFMB, should be completed.

EXCEPTION: Victims of domestic/family violence are required to appear to be eligible for TANF when applicant childcare service is needed, however the service does not have to be needed in order to obtain or maintain employment.

- B. If the applicant obtains a job during the application period and the income from the job prevents TANF eligibility, applicant child care can be granted for up to 30 days, as needed.
- C. An applicant who finds employment between the time the application is filed and before he/she is interviewed may also be eligible for up to 30 days of child care service.
- D. An applicant must be told that if Applicant Support Service funds are improperly used, DSS will make every effort to recoup the money expended.
- E. An applicant who is curing a sanction can receive services if needed up to 30 days.

2. Applicant Child Care (ACC)

Applicant Child Care (ACC) funds are available for up to one week to assist an applicant of the TANF Program while he/she conducts the initial job search. A registration fee may not be paid for this type of arrangement. It is recommended that the SSS or designee discuss with the local service provider the availability of drop-in rates.

NOTE: Payments must not exceed the established maximum weekly rates. The maximum rates for childcare must be prorated for child day care services provided on an hourly or daily basis (hours less than 15).

3. Applicant Child Care (Up to 30 Days)

If child care is needed for the applicant to obtain or maintain a job during the application period, applicant child care may be paid for up to the 30-day application period. A registration fee may be paid in this situation. The ES Worker should make the SSS aware if the TANF case is within one week of being approved. This information is vital so that the registration fee is not paid twice, (once

by DSS and secondly by the Child Care Scholarship Program). If the case is within one week of being approved, the SSS should discuss with the child care provider that the registration fee will be paid through the Child Care Scholarship Program under the TANF child care eligibility category.

4. Authorization/Approval Process for ACC

The authorization and approval process for Applicant Child Care (ACC) is as follows:

- A. When the applicant appears to be eligible for and in need of services, the ES Worker will assist in providing funds for ACC as needed by sending a Request for Support Services, DSS Form 1269, to the Support Services Specialist (SSS) or designee. The authorization period begins on the first day services are needed and ends in four months or less, depending on circumstances.
- B. The county will establish procedures to be used for ACC. ACC funds must be maintained in accordance with the DSS county office Accounting Policy and Procedure Manual. A separate "fund" account must be maintained for the applicant child care funds. A separate "checking" account is not required to separate applicant child care funds from other funding such as applicant transportation. Procurement guidelines must be followed.
- C. The ES Worker must follow the county procedures to request funds. The county bookkeeper processes payment of Applicant Support Services following the instructions in the DSS Manual of County Office Accounting.
- D. The ES Worker must complete a DSS Form 1269 and forward it to the Support Services Specialist (SSS) or designee for input into FIFN for reimbursement to be made to the county.

5. Completion of the DSS Form 1269

The ES Worker must complete the DSS Form 1269 to include the following:

1. Program type
2. Participant's name, address and telephone number
3. Case number
4. SSN
5. Service begin date
6. Actual end date
7. Type of service
8. Name of county as the provider
9. Amount of the check written for services

The SSS or designee must use the DSS Form 1269 to create an Authorization and Payment Invoice, DSS Form 3713, in order for the county to be reimbursed.

2.6 Initial Job Search

All applicants (including adults added to open TANF cases), age 18 or older, and not attending high school or equivalent, with the exception of those who meet the sanction exemption criteria must conduct an initial job search.

TANF applicants should be referred to the Department of Employment and Workforce (DEW) for a listing of job leads. The ES Worker will recommend this during the initial interview. The applicant(s) must make and document a minimum of five employer contacts during the application process. It should be indicated to the applicant that the job search be completed within two weeks, although extensions will be given until the end of the application pending period. Applicants already employed at the time of application must also complete the initial job search. ([see 4.11](#)) Failure to complete the initial job search during the application process will result in the denial of the application.

2.7 Processing Period

The processing period for TANF begins the day after a signed application is filed. When additional information is requested from the applicant and is not provided timely, the ES Worker must allow the full processing time to elapse before the application can be denied for failure to provide needed information.

1. Delay Cause

The reason for any delay in processing the application beyond the timeliness standards must be documented in the case file as either:

- A. Applicant caused delay
- B. Agency caused delay

2. New Resident

When a TANF recipient from another state moves to South Carolina and applies, the ES Worker must verify any TANF months received in another state(s) but must not delay action on the application due to the other state's failure to notify this state of their termination date and/or the number of TANF months received in the other state. ([See 10.5](#))

During the application process, ask the applicant, and document, if he/she or any adult member of the BG lived in another state or US Territory since October 1996 and if so, if they received any federal TANF assistance.

3. Timeliness Standard

To meet the timeliness standard, no more than 30 days must elapse between the date of application and:

- A. The date the first TANF benefit is authorized
- B. The date the notice denying the application for benefits is sent to the BG

EXCEPTION: A timeliness standard of 35 days is allowed when a BG is curing a full family sanction. When processing the application between the 30th and 35th day, an untimely code of "SC" (sanction code) will need to be entered on CHIP screen AFED.

4. Prompt Application Processing

DSS encourages the completion of application processing as soon as all required verification has been received. The timeliness standard period is not to be used as a waiting period before granting benefits.

5. Exceptions to Timeliness Standards

The only exceptions allowed for failure to meet the timeliness standards are the following:

- A. Necessary information regarding eligibility was requested untimely and there is evidence that information will be received in the near future.
- B. Needed information was not received, and the delay was caused by an administrative error or an emergency which could not be prevented.

NOTE: If the 30th day is a weekend or holiday, the timeliness due date becomes the next working day.

6. Required Action

Failure to meet the timeliness standards requires the actions given in the following chart:

Type of Delay	Instructions and Action Required
Applicant Caused Delay	Applicant has failed to complete the application process and DSS has taken all possible action to assist him/her. In this instance, the BG: • Loses its entitlement to benefits from the date of application. • Is sent a notice of denial on the 30th day following the application date. • Is eligible for prorated benefits from the date required information is received following the denial reason "FP" (failure to provide information), provided the verification is received within the second 30-day period (time period subsequent to the initial 30-day period). This is the <u>only</u> denial reason in which the BG receives a second 30-day period to provide verification. A benefit pro-ration date and a prorate reason of "VR" (Verification) must be entered on APMA. • Must file a new application after 60 days from original filing date in order to have eligibility determined.
DSS (ES Worker) Caused Delay	ES Worker failed to process the application within the initial 30 days from the date the application was filed and/or failed to take all possible action to assist the BG. In this instance, the ES Worker must: • Take immediate corrective action. Do not deny application. If approval is anticipated beyond the 30th day, override the automatic denial on CHIP screen INRD.

	• Notify the BG by the 30th day following application that the application is still pending. Include any action that DSS has overlooked and the applicant must take to complete the application process. The applicant is entitled to at least 10 days to provide the required information. • Provide the BG with benefits from the date of application if the application is approved.
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2.8 Disposition of Application

Each decision regarding eligibility or ineligibility determined by the ES Worker will be supported by facts in the applicant's or recipient's case record.

All applications must be disposed of by a finding of eligible or ineligible unless the applicant:

- voluntarily withdraws his/her application,
- could not be located, or
- died.

1. Eligible

The applicant has been determined to meet all eligibility criteria and the application is approved.

2. Ineligible

The applicant failed to meet all eligibility criteria and the application is denied.

3. Auto-Denial

CHIP will automatically deny the application on the 30th day following the application date if:

- An interview has not been completed or the interview date has not been acknowledged by entering a "Y" on CHIP screen INRD
- After the interview has been completed, the ES Worker did not approve or deny the application **and** did not override the auto denial process

2.9 Notice Standards

Written notification of eligibility or denial must be sent to the applicant by the 30th day following the application filing date, or the 35th day when an application is taken to cure a full family sanction.

1. Approval Notice

The notice of eligibility must include:

- Prorated benefit amount for first month
- Full monthly benefit amount

2. Denial Notice

The notice of denial must include the denial reason.

2.10 Accrual Rights

Accrual rights are an applicant's/recipient's right to benefits based on the date of application or change in situation.

When an applicant meets all of the eligibility criteria, the right to TANF cash benefits starts the date of application or the date requested verification was provided if received within the 2nd 30-day period following the application date, when a BG fails to provide the required information within the first 30-day application period. Failure to provide information (FP) during the first 30-day application period is the only denial reason in which the BG has a 2nd 30-day period to provide the verification and receive prorated benefits. ([See 8.4](#))

1. Ineligible First Month

Due to anticipated changes, the BG may be ineligible for the month of application but eligible for the subsequent month, when a BG has returned all verification within the first 30-day application period. If this occurs, benefits will begin the first day of the second month. The benefit pro-ration date must be changed to the first day of the second month on CHIP screen, APMA. A benefit prorate reason of "OT" (Other) must be entered. The ES Worker must send CHIP Notice A113, Eligible 2nd Month-Ineligible 1st Month. The BG does not have to reapply to be eligible the subsequent month (second month).

2. Eligible First Month – Ineligible Subsequent Months

Due to anticipated changes, the BG may be eligible for the month of application, but ineligible for the subsequent month. The application should be approved for the month of application and closed for the subsequent month. The ES Worker must send an approval notice for the 1st month and a closure notice for the 2nd month. A 10-day notice requirement is not needed for this situation.

2.11 Benefit Use

Use of TANF cash benefits cannot be limited or restricted by policy. A/R's have the right to make their own decisions and to manage their own finances. However, States receiving TANF grants are required to maintain policies and practices as necessary to prevent assistance provided under the State program funded under TANF from being used in any electronic benefit transfer transaction in any liquor store; any casino, gambling casino, or gaming establishment; or any retail establishment which provides adult-oriented entertainment in which performers disrobe or perform in an unclothed state for entertainment.

EXCEPTION: *When TANF cash benefits are not used in the best interest of the child(ren), a protective payee should be considered.* ([See 11.3](#))

2.12 Time Limit

A BG may only receive cash benefits from the TANF Program for 24 months in a 10 year period and 60 months in a lifetime.

2.13 Voter Registration

The National Voter Registration Act (NVRA) requires that voter registration services be provided to all A/R's at application, redetermination and when a change of address is reported. These services include:

1. Distributing voter registration forms;
2. Providing assistance in completing voter registration forms;
3. Accepting completed voter registration application forms and sending them to the county board of voter registration and elections; and
4. Providing State of South Carolina Voter Registration by Mail applications to clients who specifically request a mail-in application.

Local DSS county offices will forward completed paper voter registration forms weekly (or as scheduled) to the local Election Commission office.

When providing voter registration services, the Agency must not:

1. Seek to influence an individual's political preference or party registration
2. Express or display any political preference or party allegiance
3. Discourage the individual in any manner from registering to vote
4. Indicate or imply that registration or non-registration will influence the availability or amount of DSS assistance or benefits.

PROCEDURE

At initial application and annual redetermination, the interviewer should ask the client if he/she is registered to vote and record the answer in the appropriate field on the documentation tool. If the client is not registered to vote, the following should occur:

1. The interviewer should ask the client if he/she wants to register to vote.
2. If the PI indicates that he/she does not wish to register, CHIP Screen ADDR should be coded “D”; (declined to register) in the PI Voter Status Field.
3. If the PI indicates that he/she does wish to register, the interviewer will inform the client that:
 - a. An Agency-based Application for Voter Registration (Form 210) will be mailed to the client; **or**
 - b. If the client does not want to use the Form 210 to register to vote, the worker can mail the client a South Carolina Voter Registration – Mail Application (which can be located at the website <https://www.SCvotes.gov/> since this is not a DSS form).
4. CHIP screen ADDR should be coded “A” (registering) in the PI Voter Status Field. If the client indicates that he/she wishes to register to vote through DSS, the worker will mail the client the Agency-based Application for Voter Registration (Form 210) for completion.

5. CHIP screen ADDR should be coded "C" (registration by mail given) in the PI Voter Status field if the client indicates that he/she wishes to complete the mail-in registration form to register to vote. The worker must mail the South Carolina Voter Registration application (which can be located at the website <https://www.SCvotes.gov>) to the client for completion.

2.14 Confidentiality

Federal and State laws and regulations limit the use and disclosure of confidential information concerning A/R's of economic and medical assistance programs to purposes directly related to the administration of these programs.

2.15 Social Security Number Requirement

As a condition of eligibility, the A/R must provide or apply for a SSN for each BG member.

2.16 Child Support Assignment

DSS is required to take action to collect child support and established spousal support monies from responsible Absent Parents (APs) whose child(ren) is receiving TANF cash benefits. If an SSI child is a dependent child, the child support referral needs to be completed on the SSI child's absent parent. If parental rights have been terminated, a referral to CSSD should not be made.

DSS may take action to collect support from the child(ren)'s maternal and paternal grandparents if:

1. The child(ren)'s parent(s)/caretaker relative(s) receives TANF cash benefits;
2. The child(ren)'s parent(s) is unmarried; and
3. At least one parent is under 18 years of age. [\(See 5.1.5\)](#)

When the A/R accepts TANF cash benefits, support monies are assigned to DSS. Action to collect child/spousal support from the AP(s) and/or grandparent(s) will be taken with or without the participant's permission. The participant may be called as a witness if court action is necessary to secure child support. DSS will retain collected child support up to the amount allowed under federal regulations.

1. Cooperation Requirements

The A/R must cooperate in locating the parent(s) of, establishing the paternity of and obtaining support for the child(ren) in the BG.

2. Failure to Cooperate

Failure to cooperate may make the recipient and his/her child(ren) ineligible for cash benefits.

3. Good Cause

If the recipient claims good cause, he/she may not be required to cooperate, provided DSS decides that the recipient's claim of good cause is justifiable. The ES Worker must provide the brochure "TANF Application Information" DSS Form 3735 during the application process.

2.17 Work and Training Requirements

Every WEI must meet TANF work/training requirements as a condition of eligibility for TANF cash benefits. Failure to meet the requirements may cause the recipient and his/her BG to lose TANF cash benefits.

2.18 Collateral Contacts

A DSS representative may contact other people including the A/R's neighbors, banks, employers, and federal agencies, etc., in order to verify the A/R's circumstances:

- a. Income
- b. Checking/savings accounts
- c. Non-citizen status
- d. Insurance/disability/retirement benefits (SSA/SSI/VA, etc.)
- e. Medical history
- f. Other facts relevant to the A/R's eligibility for participation in programs administered by DSS

2.19 Verification

Information the A/R gives DSS is subject to being verified by staff members of the county and state offices. The A/R may be asked to verify information and the ES Worker will assist, if necessary, in obtaining the verification. The A/R must cooperate fully with all DSS workers.

2.20 TANF Fraud Penalties

The A/R may be subject to prosecution for fraud if the A/R knowingly gives false, incorrect, or incomplete information in order to receive, try to receive, or help someone else receive TANF benefits. The A/R may be required to repay TANF benefits that the recipient was not entitled to receive even though the benefits were received through no fault of the recipient (Agency Error).

If the A/R misuses or ineligibly receives any support services benefits, the recipient may have to repay the benefits.

Child Support Fraud Penalties

The A/R may be subject to prosecution for fraud if the A/R knowingly gives false, incorrect or incomplete information concerning the identity of any non-custodial parents/grandparents who are or may be legally responsible for providing child support for any minor child(ren) included in the BG.

2.21 Reporting Requirements

The applicant must report facts which may affect the eligibility determination. The following changes must be reported within ten days:

- A. Employment Status (starting or losing a job)
- B. Unearned income (amount or source)
- C. Change in residence or address
- D. Change in BG composition

1. Method of Report

Applicants may report changes during the application process in the following ways:

- A. In person
- B. By phone
- C. In writing
- D. Online

2. Failure to Report

Failure to report facts and/or changes in circumstances which may affect eligibility within ten days as required is considered to be withholding of information. The BG will be responsible for any overpayment of TANF benefits caused by failure to report any of the above changes.

2.22 Fair Hearing Rights

If the A/R does not agree with the decision made on any matter concerning his/her case, he/she has a right to ask for a fair hearing.

1. Method of Requesting Fair Hearing

The A/R can make this request in writing or verbally to any DSS office. DSS will notify the A/R of each action it takes in the case.

2. Time Frame for Requesting

The A/R has 60 days from the time he/she is notified of an action to request a fair hearing.

2.23 General Verification and Documentation Criteria

In order to determine eligibility for the TANF Program, various pieces of information must be verified during the application process. Verification may include documentary evidence, third party information, or in some instances, a client statement.

If during the interview, the applicant indicates that a BG member has any of the following, or if there is evidence to the contrary, verification of the amount must be provided:

- 1. Resources
- 2. Unearned Income
- 3. Earned Income

The following nonfinancial criteria must be verified for all BG members. Unless questionable, a client statement may be used, as a last resort, after all other means of verification have been exhausted for those marked with an asterisk:

- 1. Residence
- 2. BG composition *
- 3. Identity of applicant
- 4. Date of Birth/Age *
- 5. SSN
- 6. Relationship *
- 7. US Citizenship*
- 8. Non-citizen status
- 9. Living with specified relative *

NOTE: *Non-applicants and ineligible BG members are not required to provide SSNs, information about citizenship, immigration status or other nonfinancial criteria required for persons applying for benefits.*

Depending on the BG composition and other case specific circumstances, the following must be verified:

1. Student status of the dependent child(ren)
2. Work program requirements
3. Minimum child support information
4. Assignment of right to child support
5. Initial job search contacts

2.24 Immunization Verification

The ES Worker must request proof of a child(ren)'s immunizations at the application interview. Sources of verification include, but are not limited to, a physician's statement, health department immunization card, or certificate of immunization.

NOTE: *If a child(ren) has attended five-year old kindergarten or a higher grade in South Carolina, or attends a licensed day care center, the ES Worker may assume the child(ren) has been appropriately immunized and no proof is necessary.*

2.25 Verification Responsibility

The A/R and the ES Worker are responsible for verifying the elements of eligibility. Verification on file must be used unless information is inconsistent, inaccurate, or incomplete.

The ES Worker must not deny an application solely because of the failure of a non-BG member to cooperate in providing needed verification.

NOTE: *An A/R who is a victim of domestic/family violence and is being sheltered in a safe home or other residence, may not be able to obtain documentary evidence to establish eligibility. The ES Worker should assist with the verification to the extent possible. The application should not be denied solely on the basis of failure to provide verification.*

1. Documentary Evidence (Primary)

The preferred method of verification for all elements of eligibility is documentary evidence, a written confirmation of a BG's circumstance. Documentary evidence can be supplied in person, through the mail or by an authorized representative. When documentary evidence cannot be obtained or is insufficient, the ES Worker must use alternative sources of verification, such as collateral contacts.

2. Collateral Contact (Secondary)

A collateral contact is not restricted to a particular individual. However, the collateral is advised of the necessity to reveal his/her identity to the A/R on request if the information provided results in

an adverse action. If the collateral does not agree to have his/her identity revealed, the information obtained is considered as a lead toward securing other evidence and no case action is taken.

3. Collateral Documentation (Secondary)

Verbal information from a collateral requires the ES Worker to document the case file with the following:

- A. Collateral's name, address and/or telephone number
- B. Relationship to A/R
- C. Date of contact
- D. Statement made

2.26 Identification of Pregnant Individuals

A TANF applicant/recipient (A/R) who is pregnant may be eligible for services through the Women, Infants, and Children (WIC) Program. WIC is administered by the Department of Public Health (DPH) and provides nutritional assistance to women, infants, and children who are at nutritional risk and who have income below 185% of the Federal Poverty Limit. Many TANF recipients meet eligibility criteria for WIC services.

1. CHIP Procedures

CHIP has been modified to include a field to indicate whether the A/R is pregnant. The ES must enter a "P" for pregnant under the Special Category (SPCAT) field on CHIP screen SSDO for any TANF recipient who is pregnant.

EXCEPTION: *If the individual is also disabled, the ES Worker must enter a "D" for disabled instead of "P" for pregnant in the TANF field.*

The "P" code is for identification only; it has no effect on TANF eligibility or participation rate calculation.

2. Monthly File – DPH

A monthly file of individuals coded as pregnant will be sent to DPH for use in their outreach efforts.

Chapter 3

Benefit Group/Family Composition

3.1 Benefit Group Definition

The Benefit Group (BG) is a group of individuals whose income, resources, and/or needs impact eligibility and the amount of TANF cash benefits. BG members include sanctioned and disqualified individuals, as well as, family cap children. Same sex spouses must be considered as married and part of the benefit group for TANF eligibility purposes due to the U.S. Supreme Court ruling in June 2015, which legalized same sex marriages in all 50 states.

Possible Benefit Groups

The following are possible types of BGs:

- A. Child(ren) and biological, adoptive parent or legal parents
- B. Child(ren) and caretaker relative(s) other than parent
- C. Dependent child(ren) only
- D. Parent/caretaker relative(s) only when the child(ren) receives SSI, subsidized adoption or guardianship payments, or federal, state or local foster care payments.
- E. Major parent, minor parent and child(ren) of minor parent

NOTE: *Caretaker relative(s) other than a parent has a choice as to whether he/she is included in the BG.*

3.2 Required BG Members

In order for the BG to be eligible, an application *with respect to the dependent child in the home*, must also include the following individuals, if living in the same household and otherwise eligible for assistance:

- A. Parent(s) of the dependent child(ren). The parent may be a biological, legal, or an adoptive parent.
- B. Stepparent(s) of the dependent child(ren). The parent and stepparent must be legally married.

CAUTION: *Common-law marriages are not recognized in South Carolina when establishing TANF BGs.*

- C. Any minor blood-related or adoptive brother or sister including those of half-blood.
Exception: The needs of disqualified non-citizen siblings are not considered in determining the eligibility and payment of an otherwise eligible child.

NOTE: *This does not include step-siblings when a caretaker relative applies for benefits. [\(see 3.1\)](#)*

1. BG Composition Verification

A client statement may be used as verification unless contradictory information becomes known to DSS. When further verification is needed, the DSS Form 1665, Household/Benefit Group Composition Verification Form, may be used.

2. Minor Parent

A minor parent(s) under the age of 18 in the home and is unmarried may make application for himself/herself and child(ren) only if the major parent is not receiving TANF cash benefits for the minor parent's sibling(s).

Deemed parents (DP= Family Affiliation Code), are not considered BG members although a portion of their income is deemed to the minor parent. [\(See 8.9\)](#)

3. Optional BG Members

The following individuals are optional BG members:

- A. When a parent is not in the home, the BG may also include a caretaker relative who resides in the home, meets the eligibility requirements and chooses to be in the BG. If so, and if living in the home, the spouse and/or dependent child(ren) of the caretaker relative must also be included in the budget.
- B. When a minor parent is included as a dependent child, the minor parent's child may or may not be included at the discretion of the A/R.

4. Prohibited BG Members

When determining which individuals may or may not be in the BG, be aware that certain individuals are prohibited from being included due to State or Federal requirements.

NOTE: *When the only child in the BG is sanctioned or disqualified, the entire family is ineligible for TANF benefits.*

The following individuals are not allowed to be included in the BG:

- A. Relative(s) other than parent of dependent children
Participation code = OU on SEPA

EXCEPTION: *Eligible caretaker relative(s) when no parent is in the home may be included.*

- B. Non-relative(s) Participation code = OU on SEPA
- C. Child(ren) receiving subsidized adoption or guardianship payments
Participation code = SS on SEPA
- D. SSI recipient(s) Participation code = OU on SEPA

EXCEPTION: Child(ren) receiving SSI payments. Participation code = SS (See [5.1.4 Caution.](#))

- E. Individual(s) not meeting the citizenship/non-citizen status. Participation code = DI AL on SEPA ([See 4.4.4](#))
- F. Fleeing felon(s) Participation code = DI FF on SEPA ([See 4.14.2](#))
- G. Foster child(ren) receiving foster care payments Participation code = SS on SEPA

NOTE: This includes children receiving kinship care payments.

- H. Individual(s) sanctioned for:
 - 1. Failure to meet SSN requirements. The participation code = DI SS on SEPA ([See 4.7.6](#))
 - 2. Failure to comply with child support requirements. The parent or caretaker relative (if included in the BG) and the child(ren)'s (for whom the non-cooperation applies) participation code = DI CS on SEPA ([See 5.1.3](#))
 - 3. Failure to comply with school attendance requirements. Participation code = DI DS on SEPA ([See 4.12](#))
- I. Individual(s) convicted of a controlled substance felony for a violation which occurred after August 22, 1996. Participation code = DI DC on SEPA ([See 4.13](#))
- J. Child born to a TANF BG, 10 or more months after a month in which the BG received TANF cash benefits. Participation code = DI CB on SEPA

NOTE: If the only child in the BG is a family cap child, the family is ineligible for TANF benefits. (See [8.5.2](#))

- K. Individual(s) convicted of fraudulently misrepresenting his/her residence in order to receive benefits in more than one state or county. The individual will be disqualified for 10 years.

NOTE: To process the disqualification on CHIP the following data must be entered into the system:

1. ***Participation code = DI RE on SEPA***
2. ***Enter date of conviction as month and year***
3. ***If disqualification causes ineligibility for TANF, deny/close using code DR***
4. ***If date of conviction needs to be changed it can be accessed by a supervisor on the CHIP Client Maintenance (CLMA) screen***

5. If individual is granted a presidential pardon or if the conviction is overturned, the date of conviction should be removed

- L. The biological parent, whose parental rights have been terminated through the adoption process, cannot receive benefits for that child. ([See 3.1](#))
- M. Unborn Child

3.3 Right to Choose Other Programs

An individual who is eligible for either TANF cash benefits or SSI benefits has the right to elect in which of these programs he/she wishes to participate.

- a. The individual may participate in only one program; it is usually more advantageous to receive SSI.
- b. The individual is free to apply for both SSI and TANF
- c. An approval under either program may affect the eligibility determination under the other.

1. TANF Recipient Approved for SSI

When a TANF recipient applies for and is approved for SSI, the SSA will contact the county office to:

- 1. Advise of the recipient's SSI eligibility
- 2. Determine the first month in which TANF will terminate
- 3. Request written confirmation of the termination date if given orally
- 4. Obtain information as to the amount of TANF paid for each month the recipient is eligible for SSI.

2. Rebudget Required

The CM will take appropriate action to remove the SSI individual and adjust the TANF cash benefit, or close the case and confirm the action in writing to the SSA office.

3. Termination Date

SSA considers a recipient removed from the BG effective with and based on the TANF cash benefit termination date provided orally by the county office. If the termination date given by the county office differs from the actual termination date, a TANF overpayment will occur and it must be recouped.

3.4 Relationship

In order to receive TANF, a dependent child must live with one of the following relatives:

- 1. Any relation by blood, marriage or adoption within the fifth degree of kinship to the dependent child. Blood relatives such as father, mother, brother, sister, uncle, aunt, first cousin, first cousin once removed, nephew or niece. This includes a blood relationship to a person denoted by the prefix of grand, great, great-great, great-great-great, and those of half-blood.

The appropriate caretaker relative must be a parent (1st degree), grandparent (2nd degree), sibling (2nd degree), great-grandparent (3rd degree), uncle or aunt (3rd degree), nephew or niece (3rd degree), great-great grandparent (4th degree), great-uncle or aunt (4th degree), first cousin (4th degree), great-great-great grandparent (5th degree), great-great uncle or aunt (5th degree), or a first cousin once removed (5th degree).

Example: First cousins share a grandparent. A child of one's uncle or aunt is his/her first cousin.

Example: A first cousin once removed is a child of one's first cousin or one's parent's first cousin. The term removed means there is a difference of one generation.

2. Stepparent, stepbrother or stepsister.
3. Legally adoptive parent or other relative whose relationship to the child's parent is established by legal adoption. Adoption establishes a legal relationship to a new set of relatives. The adoptive relatives may qualify to receive benefits for an adoptive child.
4. Spouse, including same-sex spouse, of any person in the above groups even after the marriage ended in death or divorce.

EXCEPTION: *Policy concerning required BG members supersedes the requirement that the caretaker relative be related to the child within the specified degree. For example, a grandmother may receive cash benefits for her grandchild and the grandchild's half-siblings, even though the grandmother is not related to those half-siblings. (See 3.2)*

1. Legal Guardian

Unless related to the child within the specified degree, a legal guardian/custodian cannot be payee.

2. Emergency Exception

If an emergency situation arises such as the sudden death, desertion, or physical or mental illness of a parent/caretaker relative and other plans for a child's care cannot be made immediately, a change of payee may be made to an unrelated person in place of the parent or relative. [\(See 9.7.1\)](#)

3. Relationship Verification

The relationship of the applicant/recipient (A/R) to the dependent child must be verified. If the A/R is a specified relative other than the parent, the relationship of the specified relative to the parent must also be established.

Sources of relationship verification include, but are not limited to:

- A. Birth Certificate
- B. DSS Form 3249, Newborn Verification of Application for Social Security Number, completed and signed by a hospital official.

- C. Insurance records
- D. DSS Form 1223, Request for Information from School Records
- E. Marriage Certificate
- F. Court action which provides relationship information

CAUTION: A Deed to Child transfers only custody to a child; it is not an adoption decree and cannot be used to establish relationship.

- G. Baptismal records
- H. Census records
- I. Age verification that specifies relationship
- J. Affidavit of physician, midwife or unrelated person who attended the birth
- K. If other sources of verification are not readily available and there is no contradictory information, a client statement may be used.

CAUTION: Verification for which there is a fee charged to DSS must not be used.

NOTE: When a caretaker relative is applying as an adoptive relative and the A/R is the person involved as the parent in the adoption, he/she must provide verification of the adoption. A statement from the A/R is not sufficient verification in this situation. If the A/R is not involved as the parent in the adoption, he/she may not have access to adoption records and a statement from the A/R will suffice as verification of the relationship.

3.5 Establishment of Paternity

Establishment of paternity in the TANF program solely for the purpose of determining the relationship to the child's alleged biological father and paternal relatives can be affected by the following methods:

1. Mother Available

If the mother is available to give a statement, the person she names is considered to be the child's father, unless denied in a written statement by the alleged biological father.

2. Mother Unavailable

If the mother is not available, (i.e. deceased, whereabouts unknown, etc.), paternity can be established as follows, unless denied in a written statement by the alleged biological father:

- A. The child's birth certificate listing the father's name
- B. A written statement from the alleged father acknowledging paternity
- C. Written evidence that paternity has been proven in a judicial proceeding (e.g., divorce decree, child support orders, etc.)

- D. The subsequent marriage, ceremonial or common-law, of the alleged father to the mother and his acknowledgment that he is the father of the child.

CAUTION: Common-law marriages are not recognized in South Carolina when establishing TANF BGs.

- E. Prior case file documentation of the mother's statement of paternity, including DSS Form 3816C, Child Support Referral Custodial Parent Data, or other statements signed by the mother
- F. Prior case file documentation of the alleged father's acknowledgment of paternity, including DSS Form 1216, Voluntary Child Support, or other statements signed by the alleged father
- G. SSA records showing that benefits are being paid on the alleged father's account for the child
- H. Court records showing the mother had, under oath, asserted the father's identity, unless the court determines the man is not the father.

3.6 Living Arrangements

1. Case Consolidation

The ES Worker must explore the living arrangement of the individuals who are applying to determine the appropriate composition of the BG. Cases must be consolidated when an individual living in the household is required to be in two or more BGs; however, consolidation of cases that may legitimately receive benefits as separate BGs under TANF policy is not required. The ES Worker should set BGs up to the advantage of the individual unless the individual requests otherwise.

2. Special BG Situations

The following chart gives special situations and how they should be treated:

Living Arrangement	Treatment
Parent is in and out of the home where the caretaker relative and the child(ren) live.	Document the parent's failure to demonstrate an intent to establish a home for the child(ren). The caretaker relative will be the payee; the parent is excluded.
Parent lives in the home with child(ren) and a caretaker relative who has custody of the child(ren).	Include parent in BG. If it is not in the best interest of the child(ren) for the parent to be the payee, the relative with legal custody will be the protective payee. (See 11.3)
Parent is temporarily absent from the home due to school attendance.	Include parent in BG as long as his/her permanent residence remains that of the TANF Family.
Parent incapable of money management and lives in the home with the child(ren).	Appoint a protective payee. (See 11.3)
Both parents live in the home – child(ren) in common (living in the home).	Include both parents in one BG. If parents are not married and the mother was legally married to someone else when the child(ren) was born, include the alleged biological father unless the legal father is also in the home. CAUTION: Include both parents in the BG even if the child is a family cap child.

Multiple sets of children living in the same home	When the household consists of more than one group of children, the determination of which child(ren) will comprise one benefit group is based on legal responsibility. Child(ren) for whom the applicant has legal responsibility will make up one benefit group. All other children in the home will make up the second benefit group.
Multiple parents living in the same home – child(ren) in common.	Include all parents and the child(ren) in one BG.
Two parents live in the home – no common child(ren)	Unless married to each other, include each parent in a separate BG.
Stepparent lives in the home.	Include the stepparent in the BG.
Minor parent is a dependent child in a BG with siblings.	If an application is made for the minor parent's child(ren), add him/her to the major parent's BG.
Minor parent, head-of-household	Must live in the home of his/her parent, legal guardian, other adult relative or in an adult supervised supportive arrangement to be eligible to receive TANF unless certain circumstances exist. (See 3.6.3 Living Arrangement of Minor Parent)
Individual(s) who receives federal, state or local foster care payments.	Exclude the individual(s), his/her income, resources and foster care board payments in determining benefits for other BG members. (Treat the same as an SSI child).
Individual(s) for whom subsidized adoption or guardianship payments are received lives with adoptive parent(s).	Exclude the individual(s), his/her income, resources and subsidized adoption or guardianship payment.
Adoptive child(ren) returns to the home of the biological parent(s).	The biological parent(s) is not eligible for benefits for the child because the parental rights have been terminated through the adoption process. CAUTION: Once a child has been adopted, relationships to all blood relatives are severed along with the birth parents.
Child(ren) lives in the home with the biological parent(s) and the adoptive parent(s).	The biological parent(s) is a non-BG member. The adoptive parent(s) is the mandatory BG member and the biological parent cannot be included. EXCEPTION: If the biological parent is also a dependent child of the adoptive parent, he/she must be included as a dependent child.
Child(ren) lives in a joint custody situation.	If short, alternating periods of custody (i.e., every other day, week, month), child(ren) must reside with the A/R 51% of the time. If extended, alternating periods of custody (i.e., three months or more), child(ren) must reside with the A/R when the case is approved.

Caretaker relative and spouse live in the home and receive for child(ren).	Include caretaker relative and spouse if the caretaker chooses to be in the budget; exclude both if caretaker relative chooses not to be in budget.
SSI recipient lives with BG.	Exclude the SSI recipient, his/her income, resources and SSI payments in determining benefits for other BG members. The individual has the option to receive benefits under either program. <i>NOTE: If an SSI child is the only child in the home, include the parent(s) as the only BG member.</i>
Child(ren), whose cash benefits were terminated due to time limits in parents' BG, has been placed in the home of a caretaker relative by Child Welfare Services (CWS).	Child(ren) is eligible for TANF cash benefits. If the caretaker relative is to be included in the BG, code AF (alternative to Foster Care) on CHIP screen FAIP. ES Worker must have written confirmation from CWS on DSS Form 1600, Human Services, TANF and SNAP Communication Form, that DSS is involved in the placement of the child(ren) with the caretaker relative.
Child(ren), whose cash benefits were terminated due to time limits in parents' BG, has been abandoned and is living with another caretaker relative who makes application for TANF. <u>(See 10.1.5, Time Limit Exceptions)</u>	Child(ren) is eligible for TANF cash benefits when abandonment has been determined. If the caretaker relative is in the BG, code AF on FAIP. Obtain a signed statement from the caretaker relative which includes the circumstances under which the child(ren) was left with the caretaker relative. Verify these circumstances to the fullest extent possible. If a parent(s) has voluntarily abandoned a child(ren), the parent(s) must be referred to CSSD.
Child(ren), whose cash benefits were terminated due to time limits in parents' BG, has been abandoned and is living with the other parent who makes application for TANF.	Child(ren) is eligible for TANF cash benefits when abandonment has been determined. Obtain a signed statement from the new custodial parent which includes the circumstances under which the child(ren) was left with the parent. Verify these circumstances to the fullest extent possible. If the former custodial parent has voluntarily abandoned a child(ren), the parent must be referred to CSSD.

3. Living Arrangement of Minor Parent

A minor parent (unmarried) under age 18 must live in the household of a parent, legal guardian, other adult relative or in an adult supervised living arrangement in order to receive TANF cash benefits. DSS will assist the minor parent in obtaining the necessary verification if one or more of the following exceptions exist:

- a. The minor parent has no living parent or legal guardian whose whereabouts is known.

- b. No living parent or legal guardian of the minor parent allows the minor parent to live in his/her home.
- c. The minor parent lived apart from his/her own parent or legal guardian for a period of at least one year before either the birth of the dependent child(ren) or the minor parent's having applied for benefits.
- d. The physical or emotional health or safety of the minor parent or dependent child(ren) would be jeopardized if they resided in the same residence with the major parent or legal guardian.

NOTE: *The ES Worker will determine if this allegation is justified.*

- e. There is otherwise good cause for the minor parent and dependent child(ren) to receive assistance while living apart from the major parent, legal guardian, another adult relative or an adult supervised supportive living arrangement.

CAUTION: *Documentation of good cause includes, but is not limited, to written statements from at least two corroborating persons showing that it is not in the best interest of the minor parent to live with his/her parents or legal guardian or in an adult supervised supportive living arrangement. One of these corroborating persons should be a professional, such as a school counselor, social worker or mental health professional.*

When this living arrangement is required for a minor parent under the age of 18, and his/her dependent child(ren), the TANF cash benefits must be paid when possible, to a protective payee.

3.7 Temporary Absence

All BG members must maintain a common place of residence. There may be times where a BG member is temporarily absent from the residence for purposes such as vacationing, visiting, hospitalization, convalescing, and school attendance. Temporary absence from the home is a circumstance in which one or more members of a household are not currently residing in the home shared by other household members, but they have not established residency elsewhere.

The Agency will not provide TANF cash assistance for a minor child or parent/caretaker relative who has been or is expected to be absent from the home for a period of 30 consecutive days or more; however, the ES Worker may extend the absence for up to an additional 60 days if it is determined that a longer absence would serve the best interests of the family. If the BG member does not return home within 30 days, DSS must be notified within ten days of the change. ([See 9.8.2](#))

3.8 Institutionalization

A person temporarily out of the home and living in an institution may be eligible for TANF, based on the institution and the type of care he/she is receiving. It is necessary to determine the type of facility and care the institution provides in order to determine TANF eligibility.

NOTE: In a situation where the parent and child(ren) remain together while undergoing treatment or rehabilitation in an institution, the BG will be eligible for TANF the month of admittance and the following month only.

1. Public Institutions

An individual who is an inmate of a public institution, such as a correctional institution, juvenile detention facility, etc., is ineligible for TANF benefits.

2. Medical or Mental Institutions

An individual admitted to a medical or mental facility is eligible for TANF the month of admittance and the following month. Afterwards, he/she must be removed from the BG if he/she remains in the institution. Examples include hospitals, convalescent homes, and maternity homes.

NOTE: The above policy refers to TANF recipients only - not applicants.

If an individual applies for TANF while hospitalized, or for medical reasons, has to leave a new baby for extended care, it is the interviewer's responsibility to reasonably anticipate the applicant's or baby's release date by requesting information from the physician or hospital. If the release date is within the 30-day period of the application file date, an interview should be granted based on the anticipated release date. If the applicant or new baby is not released within a 30-day time frame of the application date, the application would be denied.

3. Drug or Alcohol Treatment Facilities

An individual admitted to an alcohol or substance abuse treatment facility is eligible for TANF the month of admittance and the following month. Afterwards, he/she must be removed from the BG if he/she remains in the institution. Examples include rehabilitation centers, residential treatment or group homes.

NOTE: The above policy refers to TANF recipients only - not applicants.

3.9 Sanctions and Disqualifications

Individuals may be subject to sanctions or disqualifications for failure to meet TANF program requirements. Sanctions are curable; however, disqualifications are not curable.

1. Sanctioned Due to Work Requirements

Failure of an adult or minor parent head-of-household to comply with the TANF Work Requirements can result in an individual sanction or full family sanction.

2. Sanctioned BG Receiving SNAP

SNAP benefits will not increase if an individual or full family sanction is imposed. The SNAP benefits will be calculated using the benefit amount the BG would have received if the TANF benefit had not been decreased due to non-compliance with TANF Requirements. [\(See 17.13\)](#)

3. TANF Case Closed Due To Full Family Sanction

When the full family sanction denial/closure reason is entered on AFED/AFPD (FA), CHIP will automatically enter an income of "SA FI" on UNIN. The TANF benefit amount received in the last month of eligibility will continue to count on UNIN.

4. Sanctioned Other than Work Requirements

Individuals are sanctioned due to:

- A. Failure to meet SSN requirements
- B. Failure to comply with child support requirements
- C. Failure to comply with school attendance requirements

5. Individual Sanction Imposed In TANF Case

To impose an individual sanction, code the individual "DI WP" on CHIP screen SEPA. The ES Worker must determine the amount by which the TANF benefit has been reduced due to removal of the individual. The benefit amount prior to sanction minus new benefit amount = "RB" income. (Enter the "RB" code and amount on UNIN and reauthorize SNAP case.)

NOTE: When changes occur after an individual sanction has been imposed and "RB" income has been budgeted, the ES Worker must determine what the TANF benefit amount would be based on the reported change without the sanction to determine the benefit amount prior to sanction.

6. Disqualification Reasons

Individuals are disqualified due to:

- A. Ineligible or questionable non-citizen/citizenship status
- B. Fleeing felon status
- C. Drug conviction status
- D. Conviction for fraudulently misrepresenting residency or identity in order to receive benefits in more than one state or county

7. Action Taken on Disqualified or Sanctioned Individuals

The disqualified or sanctioned member is not included when determining the BG's size.

NOTE: The resources, income and deductions for disqualified or sanctioned individuals may affect the TANF benefits.

8. Notification for Disqualification or Sanction

If cash benefits are reduced/terminated, a timely notice must be issued which informs the BG:

- A. Individual/family is being disqualified or sanctioned
- B. Reason for the disqualification or sanction
- C. Eligibility and benefit level of remaining BG members
- D. Actions the BG must take to end the sanction

3.10 Striker Definition

A striker is anyone involved in a strike or concerted work stoppage by employees, including a stoppage by reason of the expiration of a collective bargaining agreement. Any concerted slow down or other concerted interruption of operations by employees is also included.

1. Non-Striking Individual

The following individuals are not considered strikers:

- A. Employee affected by a lockout
- B. Striking individual exempt from work requirements.

2. Special Striker Policies

Participation in a strike does not constitute good cause to leave employment or to refuse to seek or accept employment.

TANF cash benefits are denied to any family for any month in which the natural or adoptive parent included in the BG with whom the child(ren) is living is participating in a strike.

A recoupment is required for any month in which benefits were received and a parent participated in a strike on the last day of the benefit month.

NOTE: Striker policies are not applicable to caretaker relatives.

3.11 TANF Family Definition

The TANF Family includes all of the following individuals, if living in the household:

- A. BG members
- B. Biological, legal, adoptive or same sex parent(s) of a dependent child in the BG not included in the budget, such as the SSI parent
- C. Caretaker relative(s) of a dependent child in the BG not included in the budget, such as grandmother/grandfather
- D. Minor siblings of a dependent child in the BG, such as the SSI sibling
- E. Deemed parent

1. FI Affiliation CHIP Coding

The FI Affiliation indicates the individual's role in the TANF Family. [\(See Reference Guide\)](#) Each household member's primary role must be identified on the CHIP screen FIAF (FI Affiliation). The following affiliation codes are entered on the FIAF screen to identify each household member's primary role in the TANF Family:

- A. PA, CR and TA are codes for adults in the TANF Family. These codes can be used regardless of the individual's participation code on SEPA.
 - 1. PA - parent/adult - must be 20 years of age or older
 - 2. TA - teen parent/adult and minor parent head-of-household - must be under 20 years of age

3. CR - caretaker relative

- B. DP is the code for a major parent when the minor parent is head-of-household in the TANF BG. The deemed parent must have a participation code on SEPA of DP and must be 20 years of age or older.
- C. DC and PD are codes for dependent children in the TANF Family. Dependent children must be 18 years of age or younger.
 - 1. DC - dependent child
 - 2. PD - dependent child who is a parent of a child in the TANF Family
- D. NF is to be used for household members who are not included in the TANF Family. These individuals must have a TANF participation code of "OU" on SEPA.

2. Identifying Parent(s)/Caretaker Relative(s)

The parent(s) or caretaker relative(s) of each dependent child (affiliation code = DC or PD), must be identified on the FIAF screen. Beside each household member coded DC or PD, enter the position number of his/her parent(s) in the parent column (parents include biological, adopted or stepparent in the household). If no parent exists in the home, enter the position number of his/her caretaker relative(s) in the caretaker relative column.

Chapter**4**

Chapter 4

Eligibility Requirements

4.1 Residency

1. A resident is a person living in the State voluntarily with the intention of making his/her home there and not for a temporary purpose. The reason he/she entered the State will only be used to determine if he/she is here voluntarily or temporary.

a. No residency requirement will be imposed.

EXCEPTION: An individual cannot receive assistance in more than one state, county or case simultaneously.

b. Individuals (including children) solely in the State for any temporary purpose are not considered residents. Temporary purposes may include (but are not limited to) vacationing, visiting, hospitalization, convalescing, and school attendance.

2. An individual is still a resident if he/she is away from the TANF BG temporarily.

a. The temporary absence may not exceed 30 days.

b. Absence from the TANF BG for a period of 30 days or longer will result in ineligibility.

NOTE: The absence may be extended, in extenuating circumstances, for up to an additional 60 days if it is determined that a longer absence would serve the best interests of the family.

c. A child that is temporary absence from the TANF BG for more than 30 days due to a joint custody situation, will not be considered as a member of the TANF BG during the time the other parent has physical custody of the child.

3. Residence must be verified and documented at each application. Verification of residence is not required at redetermination unless a change has occurred. Refer to the Verification Matrix for sources of verification.

4.2 New Resident

When a TANF recipient from another state moves to South Carolina and applies, the Economic Services Worker (ES Worker) must:

- A. Not delay action on the application due to the other state's failure to notify this State of their termination date.
- B. Contact the other state to determine the number of countable TANF months used.
- C. Change the benefit pro-ration date on CHIP to the first day of the following month if the client received benefits in the other state during the month of application in SC.

1. Residence Verification Requirement

Residence must be verified and documented at each application. Verification of residence is not required at redetermination unless a change has occurred.

2. Residence Acceptable Verification

Residence must be verified with the use of documents or a statement from an individual who knows the applicant's address. Appropriate documents include, but are not limited to:

- A. Current SC driver's license
- B. Current highway department ID card
- C. Non-relative landlord's statement
- D. Rent/mortgage receipt showing the residence address
- E. Utility bills
- F. Employer's statement
- G. Current voter registration card.

4.3 Identity Verification Requirement

The identity of the person making application must be verified. Where an authorized representative applies on behalf of a BG, the identity of the authorized representative and the applicant will be verified. Documents that verify identity include, but are not limited to:

- A. Driver's license
- B. Highway Department ID card
- C. Any other picture ID
- D. Birth Certificate
- E. Voter registration card
- F. Immigrant Community Access Point (ICAP) Identification Card
- G. Government issued ID card

NOTE: *The ICAP card may be used for identification purposes only, and does not provide verification of any other information, including the immigration status.*

4.4 Citizenship Requirement

In order to receive TANF benefits, the dependent child, the parent, or the caretaker relative must be a citizen of the United States (U.S.) or a qualified non-citizen.

NOTE: Ineligible non-citizens are not required to provide SSNs, information about citizenship, immigration status or other non-financial criteria required for person applying for benefits.

1. U.S. citizens include the following people:

- a. A person born in the U.S.;
- b. A naturalized citizen;
- c. A person born outside of the U.S. but whose parents (both mother and father) are U.S. citizens;
- d. A person born outside of the U.S. who is over 18 years of age, but who has at least one parent who is a U.S. citizen. The person must either have a certificate of U.S. citizenship or meet one of the following criteria:
 - i. Born on or after December 24, 1952, and prior to November 14, 1986, and their citizen parent was physically present in the U.S. or its outlying possessions for 10 years or more, at least five of which were after age 14;
 - ii. Born on or after November 14, 1986, and their citizen parent was physically present in the U.S. or its outlying possessions five years or more, at least two of which were after age 14.
- e. A child born outside of the U.S. who is under 18 years of age and has at least one parent who is a U.S. citizen. The child is residing in the U.S. in the legal and physical custody of the citizen parent pursuant to a lawful admission for permanent residence;
- f. A person lawfully adopted by U.S. citizens;

The U.S. is defined as:

- a. The 50 states
- b. The District of Columbia
- c. Puerto Rico
- d. Guam
- e. U.S. Virgin Islands
- f. Northern Mariana Islands (Saipan, Tinian, Rota and Pagan)
- g. American Samoa Nationals
- h. Swains Island Nationals

2. Eligible Non-Citizens

Prior to the Personal Responsibility and Work Opportunity and Reconciliation Act (PRWORA) of 1996, an individual could be potentially eligible for TANF benefits by being a U.S. Citizen or a legal

non-citizen who entered the U.S. before August 22, 1996. However, PRWORA substantially restricted immigrants' eligibility for means-tested benefit programs including TANF. In particular, with few exceptions, PRWORA restricts eligibility for such programs to "qualified non-citizens." Currently the statute limits eligibility for Federal TANF welfare benefits to a select group of legal immigrants.

In addition to U.S. citizens, certain "qualified" non-citizens may also be eligible for benefits. Veterans of the U.S. Armed Services or persons on active duty and their spouse and their unmarried dependent children are eligible to receive benefits if they meet all other eligibility requirements. A discharge certificate (Form DD-214) may be used as verification.

NOTE: After one year, most refugees and asylees are eligible for Lawful Permanent Resident (LPR) status. Refugees and Asylees remain eligible for TANF benefits after they attain LPR Status. They are exempt from the LPR five-year residency requirement.

3. Qualified Non-Citizen Eligibility

The following groups of non-citizens may receive benefits if all other requirements are met, for up to five years from either the date of entry or the date the status is granted. These "qualified" non-citizens are defined by PRWORA, as amended, and include:

Qualified Non-Citizen	Documentation
<u>Refugee</u> A person who is admitted into the U.S. as a refugee under section 207 of the Immigration and Nationality Act (INA).	I-94 indicates "Refugee" per Section 207 of the INA" or I-551 stamped RE-6, RE5, RE7, RE8, RE9
<u>Asylee</u> A non-citizen in the United States or at a port of entry who is found to be unable or unwilling to return to his or her country of nationality, or to seek the protection of that country because of persecution or a well-founded fear of prosecution.	I-94 stamped "Granted Asylum under Section 208 of the INA." or I-551 or a court letter showing asylum has been granted
<u>Cuban/Haitian Entrant</u> Any individual granted parole status as a Cuban/Haitian entrant or granted any other special status subsequently established under the immigration laws for nationals of Cuba or Haiti, regardless of the status of the individual at the time assistance or services are provided; and Any other national of Cuba or Haiti who is not subject to a final, non-appealable	I-94 stamped "Cuban/Haitian Entrant" I-94 Arrival/departure code with a stamp showing paroled into the U.S. or showing Status Pending CHS Adjustment code on the I-551, Permanent Resident Card Cuban or Haitian passport with a {212(d)(5) stamp dated after 10-10-80 (passport may be expired)

and legally enforceable removal order and who meets the following criteria: Is in removal proceedings under the Immigration and Nationality Act; or Has an application for asylum pending with USCIS	DHS Form I-862, Notice to Appear; DHS Form 220-A, Order of Release on Recognizance, DHS Form I-221S, Order to Show Cause and Notice of Hearing and Warrant for Arrest; DHS Form I-122, Notice to Applicant for admission detained for hearing before an Immigrant judge. EOIR-26, Notice of Appeal, date stamped by the Office of the Immigrant Judge I-766 Employment Authorization Document (EAD) with code C08 or C10; or I-688B Employment Authorization Document, showing that application for suspension of deportation/cancellation of removal submitted. DHS receipt for filing Form I-589 (Application for Asylum and Withholding of Removal)
<u>Amerasian</u> A person fathered by a U.S. citizen and born in Vietnam between January 1962 and January 1, 1976 and close family members admitted as immigrants.	I-94 stamped: "Processed for I-551" with codes AM1, AM2 or AM3, or I-551 is stamped with codes AM6, AM7 or AM8.
<u>Deportation Withheld</u> A person whose deportation is withheld under Section 241(b) (3) or 243(h) of the INA.	I-688B: Employment Authorization Card; or I-766: Employment Authorization Document (EAD)
<u>Victims of severe forms of trafficking</u> A person forced into prostitution, slavery, and forced labor through coercion, threats of physical violence, psychological abuse, torture and imprisonment.	Victims of trafficking will have a letter of certification from the Office of Refugee Resettlement, Washington D.C. or I-94: stating admission under Section 212(d)(5)
<u>Veterans and active duty servicemen and their families</u> A person who served in the active military, naval, or air service and who was discharged under conditions other than dishonorable; full-time servicemen who	A discharge certificate (Form DD-214) Military ID card

work on a military base and can be deployed at any time, and their families.	
<u>Iraqi and Afghan Special Immigrants</u> Non-citizens granted Special Immigrant Status under section 101(a)(27) of the Immigration and Nationality Act (INA) who are eligible for the same benefits available to refugees admitted under section 207 to the same extent, and for the same periods of time, as such refugees. Principal applicant, spouse, or unmarried Child Under 21 Years of Age, Iraqi or Afghan Special Immigrant Principal Applicant, spouse, or unmarried Child Under 21 Years of Age of Iraqi or Afghan Special Immigrant in P6 Category Iraqi or Afghan Special Immigrant Principal Adjusting Status in the U.S.	Iraqi or Afghan passport with an immigrant visa stamp noting that the individual has been admitted under IV (Immigrant Visa) Category S11 and DHS stamp or notation on passport or I-94 showing date of entry DHS Form I-551 (“green card”) showing Iraqi or Afghan nationality (or Iraqi or Afghan passport), with an IV (immigrant visa) code of S16
<u>Afghan Humanitarian Parolees (Non-SI Parolees)</u> Individuals paroled into the United States under section 212(d)(5) of the INA (8 USC 1182(d)(5)) • Afghan citizens and nationals paroled into the US between July 31, 2021 and September 30, 2023; • their spouses or children paroled after September 30, 2022; and	Form I-94 with COA codes – “OAR”, “OAW”, “PAR”, “DT”, “PAROLED” or Humanitarian Parole (per INA section 212(d)(5)(A)) Foreign passport with DHS/CBP admission stamp with COA codes “OAR”, “OAW”, “PAR”, “DT”, “PAROLED” or Humanitarian Parole (per INA section 212(d)(5)(A)) Interim Notice Authorizing Parole (INAP), noting parole under INA 212(d)(5)(A) Form I-765 Employment Authorization Document (EAD) receipt notice with code C11

• their parents or guardians paroled after September 30, 2022, if the Afghan citizen or national is an unaccompanied child. <i>NOTE: Eligible to apply for TANF until March 31, 2023, (or the term of parole, whichever is longer)</i>	Form I-766 Employment Authorization Document (EAD) with the code C11
<u>Ukrainian Humanitarian Parolees</u> Individuals paroled into the United States under section 212(d)(5) of the INA (8 USC 1182(d)(5)). They are eligible for TANF benefits and services until the end of their parole term. • Citizens or nationals of Ukraine (or persons who last habitually resided in Ukraine) paroled into the U.S. between February 24, 2022 and September 30, 2023; • their spouses or children paroled after September 30, 2023; and • their parents, legal guardians, or primary caregivers paroled after September 30, 2023, if the Ukrainian citizen or national is an unaccompanied child. <i>NOTE: Ukrainian humanitarian parolees who entered the U.S. between February 24, 2022 and May 21, 2022, have a TANF eligibility date of May 21, 2022. If they entered or will enter the U.S. after May 21, 2022, their date of TANF eligibility is their date of parole.</i> <i>CAUTION: If a Ukrainian humanitarian parolee displaced from Ukraine applies for and obtains TPS, he or she can continue to receive TANF benefits until the end of his or her parole term. TPS does not cancel out the benefits eligibility granted in the Additional Ukraine Supplemental Appropriations Act, 2022 (Public Law 117-128). However, an individual with</i>	Form I-94 noting humanitarian parole (per INA section 212(d)(5) or 8 U.S.C. § 1182(d)(5)) Foreign passport with DHS/CBP admission stamp noting “DT” Foreign passport with DHS/CBP admission stamp noting Uniting for Ukraine or “U4U” Foreign passport with DHS/CBP admission stamp noting Ukrainian Humanitarian Parolee or “UHP” Form I-765 Employment Authorization Document (EAD) receipt notice with code C11 Form I-766 Employment Authorization Document (EAD) with the code C11

only TPS (and not granted parole) is not eligible for TANF federal assistance and may not be eligible for other federal benefits.

The following groups of non-citizens must meet the **five-year residency** requirement and are not eligible for benefits for their first five years of U.S. residency. **After** being a U.S. resident for five years, they may be eligible to receive benefits.

Non-Citizen Category	Documentation
<u>Lawful Permanent Resident (LPR)</u> A person lawfully admitted for permanent residence under the INA; and has 40 qualifying quarters under Title II of the Social Security Act. Qualifying work quarters includes • <i>quarters the non-citizen worked</i> • <i>quarters credited from the work of a parent of the Non-citizen while the non-citizen is under the age 18</i> • <i>quarters credited from the work of a spouse of the non-citizen during their marriage if they are still married or the spouse is deceased</i> No qualifying quarter of coverage that is creditable under Title II of the Social Security Act for any period beginning after December 31, 1996, may be credited to a non-citizen for the quarter if the parent or spouse of the non-citizen received any Federal means-tested public benefit.	I-551, Permanent Resident Card, or I-327, Re-entry Permit
<u>Conditional Entrant</u> A person granted conditional entrant refugee status before April 1, 1980.	I-94 is stamped “Refugee Conditional Entry” and cites INA Section 203(a)(7)
<u>Parolee</u> A person granted parole for at least one year under Section 212(d)(5) of the INA. A parolee refers to any non-citizen who is under the supervision of the U.S. Department of Homeland Security (DHS). Any non-citizen who is inadmissible to the	I-94 with stamp showing admission for at least one year under Section 212(d)(5) of the INA

United States may apply for advance parole (Form I-131), which is also known as "humanitarian parole," for humanitarian reasons or for public benefit, and when granted allows the non-citizen to stay in the country until the document expires. Humanitarian parole is granted only in exceptional circumstances and on a case-by-case basis at the discretion of DHS.	
<u>Battered non-citizens</u> A person (whose child or parent) has been battered or subjected to extreme cruelty in the U.S. but no longer resides in the same household as the abuser. The person must show there is a substantial connection between the battery or extreme cruelty and the need for the public benefit sought.	I-551, Permanent Resident Card The battered non-citizen must show that he/she has an approved or pending petition which makes a prima facie case for immigration status in one of the following categories: 1) Form I-130 (Petition for Alien Relative) filed by their spouse or the child's parent; 2) Form I-130 petition as a widow(er) of a U.S. citizen; 3) a self-petition under the Victims of Trafficking and Violence Protection Act of 2000 (including those filed by a parent on behalf of an abused child); or 4) an application for cancellation of removal or suspension of deportation filed as a victim of domestic violence.

4. Ineligible Non-Citizen Exclusion

An ineligible non-citizen is excluded from the BG (participation code on SEPA = DI AL), but may receive benefits for a child(ren) in his/her case if the child meets all eligibility requirements. The income and resources of ineligible non-citizens may affect eligibility.

NOTE: Non-citizens who are "Not qualified" are barred from receipt of "Federal Public Benefits; therefore, they are not required to provide SSNs, information about citizenship, immigration status, or other non-financial criteria required for persons applying for benefits.

4.5 SAVE Program

The Systematic Alien Verification for Entitlements (SAVE) Program provides a secure and efficient verification service, for federal, state and local agencies that provide benefits, to verify an applicant's immigration status. SAVE is administered by the U.S. Citizenship and Immigration Services (USCIS).

All non-citizen applicants must either provide documentation of lawful admittance to the U.S. or documentation that can provide immigration status. The Agency is then required to verify the validity of these documents through the SAVE Program.

Each county has a designated “SAVE User”, who will access the SAVE Program and follow set procedures for providing requested verification of non-citizen applicant’s immigration/citizenship status.

4.6 Sponsor Definition

A sponsor is any person and his/her spouse (if living in the home), any agency or organization that has signed an agreement that guarantees financial support of a non-citizen (Affidavit of Support; USCIS Form I-864 - effective 12/19/1997) as a condition of the non-citizen’s entry into the United States.

NOTE: After December 19, 1997, most noncitizens are required to submit USCIS Form I-864 that has been signed by a sponsor.

1. Sponsor Contributions

Non-citizens may have been granted a permanent resident status to enter and reside in the United States because of a sponsor. Counting the sponsor’s income and resources toward the sponsored non-citizen is called deeming. Deeming may be required for non-citizens whose sponsor signed an Affidavit of Support (USCIS Form I-864).

The deeming requirement applies only to LPRs whose sponsors executed the I-864 Affidavit.

2. Non-Citizens Exempt from Sponsor Deeming

A. The following non-citizens are exempt from sponsor deeming:

- Children under age 18
- LPRs who applied for an immigrant visa at a consular office or adjustment of status to LPR before December 19, 1997;
- LPRs who adjusted from refugee or asylee status (refugees and asylees are not subject to the deeming provisions);
- Qualified aliens who are sponsored by an organization or who are not LPRs and who are not required to have a sponsor (e.g., refugees, asylees, parolees, and Cuban and Haitian entrants);
- Victims of severe forms of trafficking, who are not required to have a sponsor, and are required to be treated like refugees for purposes of eligibility for Federally funded or Federally administered public benefit programs
- LPRs entering in employment or other nonfamily categories, such as the diversity category, where a sponsor did not have to sign Form I-864;
- Non-citizens who earned, or can be credited with, 40 qualifying work quarters of coverage as defined under title II of the Social Security Act;
- Non-citizens, including US nationals, who do not have sponsors; and,
- Non-citizens whose sponsors signed affidavit(s) of support **other than** the I-864 Affidavit of Support.

B. The deeming requirements of a sponsor would not apply for a 12-month period if it has been determined that the sponsored immigrant or his/her family member(s):

- Has been a victim of domestic violence or extreme cruelty.
- Would be unable to obtain food and shelter without government assistance (Indigent).

3. Sponsor Deeming

Deem a portion of the sponsor's income and resources to the non-citizen, regardless of whether the income or resources are paid to the non-citizen. More than one person may sponsor a non-citizen by signing an Affidavit of Support (I-864). If there are joint sponsors, the deemed income and resources of all sponsors would be counted for the non-citizen.

It is the non-citizen's responsibility to provide information/documentation regarding the sponsor and to obtain cooperation from the sponsor. Information must be provided at application, and redetermination. The non-citizen will have up to the 30th day of application processing to provide the required verification. If it is not provided within the correct time frame, the sponsored non-citizen(s) will be ineligible, and benefits will be determined for the remaining BG members.

4. Deeming of a Sponsor's Resources

The deemed resource amount is determined as follows:

- Add all of the sponsor's and non-citizen's allowable resources
- Subtract \$1,500
- Divide by the number of sponsored non-citizens. If the number is not known, the entire amount counts
- The result is the deemed resource amount per sponsored BG member

5. Deeming of a Sponsor's Income

The deemed income amount is determined as follows:

- Add earned income.
- Subtract 20% of the earned income or \$175 (whichever is greater).
- Add unearned income.
- Subtract the gross monthly income limit for the sponsor's household size and any other person who is claimed or could be claimed as a dependent for Federal income tax purposes.
- Subtract any amounts paid by the sponsor or any such spouse to individuals not living in the household who are claimed by the sponsor as dependents for purposes of determining the sponsor's Federal personal income tax liability.
- Subtract any payments of alimony or child support to individuals not living in the household.
- Divide by the number of citizens sponsored. If the number is not known, the entire amount will count.
- The result is the deemed unearned income amount per sponsored BG member.
- No income is deemed to children under age 18.

Money actually paid to the non-citizen by a sponsor is not income to the non-citizen unless the amount paid exceeds the deemed amount. Consider any excess paid as unearned income contribution to the non-citizen.

6. Expiration of Sponsor Deeming

The deeming period ends when the sponsored immigrant:

- becomes a U.S. citizen
- has earned (or can be credited with) 40 qualifying work quarters,
- Permanently departs the U.S.
- Dies

NOTE: Any mention of a sponsor will automatically include his/her current spouse - if living in the home.

4.7 Social Security Number (SSN) Requirement

Enumeration is the procedure established by SSA to assign SSNs. As a condition of eligibility, each BG member must provide an SSN (or numbers if more than one has been issued) or application for SSN.

The SSN is used by DSS to prevent duplicate payments, to facilitate mass changes, and to determine the accuracy of client-provided information. Interfaces provide workers with benefit information and indicators of potential sources of earned and unearned income. The tool by which these sources are matched to DSS clients is the SSN.

1. Multiple SSNs

If any BG member has more than one SSN, all numbers must be provided. The ES Worker must decide with the A/R which SSN to enter into CHIP. The ES Worker should use the SSN associated with previous employment. Refer the A/R to the SSA to resolve multiple numbers. The ES Worker should research all SSNs in CHIP at application and at redetermination for possible benefits.

2. Methods of Application

A BG member may apply for an SSN in one of the following ways:

- A. Completion of the SS-5 form at a DSS office.

The SS-5 form can be found at the following website: <https://www.ssa.gov/forms/ss-5.pdf>

The worker may assist the A/R with completing the SS-5, if the A/R requests assistance.

- B. Application at the SSA office.

The applicant may also go to the local SSA office to complete the SS-5.

- C. Requesting SSN for newborn at the Hospital.

When the mother of a newborn child chooses to request an SSN through the enumeration at birth process while in the hospital, the ES Worker should:

- Require verification that the SSN application was made at the hospital

- Inform the BG of the responsibility to report receipt of SSN no later than the next redetermination or six months, whichever comes first
- Set an alert on CHIP for six months from the date of SSN application
- Determine if the SSN has been reported when the alert appears, and if not, obtain the SSN from the BG if it has been received.

CAUTION: *In these cases, the ES Worker must not complete an SS-5 as this could result in a child being issued duplicate SSNs.*

Once an application for an SSN have been made, the BG must provide one of the following documents as proof that the application for an SSN was completed:

- SSA-2853, Message from Social Security Form, is a receipt that the hospital representative gives to the parent as proof that he or she elected to have a SSN assigned to his or her child through the enumeration at birth process.
or
- DSS Form 3249, Newborn Verification of Application for Social Security Number. This certifies that a Social Security Number was requested.

3. CHIP Processing

On CHIP screen SSDO, in the SS-5 date column, the ES Worker must enter the date the birth registration form was signed by the parent, or when the SSA-2853 or DSS Form 3249, was signed by the hospital official. CHIP will alert the ES Worker at the approximate time the SSN should be received by the parent.

4. Application Time Frame

If the parent of a newborn child does not choose to apply for the child's SSN while the child is in the hospital, the parent must apply for the child's SSN before the first day of the second month after the child's birth or before the first day of the second month after the mother's discharge from the hospital.

5. ES Worker Responsibilities

When verification of an application for an SSN is recorded, the ES Worker should:

- A. Inform the A/R of the responsibility to report receipt of the SSN card within 10 days.
- B. Set an alert on CHIP for 30 days from the date of application.
- C. Contact the A/R when the alert appears/generates by sending CHIP Notice C007 in order to:
 1. Obtain the SSN if it has been received
 2. Remind the A/R of the reporting requirement if the SSN has not been received

NOTE: *If the SSN has not been recorded on CHIP within 6 months, an alert will be system generated.*

6. ES Worker Action for Non-Cooperation

The ES Worker must explain to the A/R that failure to provide or apply for an SSN for each BG member will result in a sanction. The person for whom the SSN is not furnished is disqualified until

the requirements are met or good cause is established. The person should be coded DI SS on CHIP screen SEPA.

The income and resources of the individual disqualified for failure to comply with SSN requirements will be counted.

4.8 SSN Validation Methods

Verification of the SSN is accomplished through the SSA process which is done at the end of each month on IEVS Federal Inquiry Screen - Option 5 (SSN Validation). A valid SSN will have a "Validation Code" of "V".

If the process returns a response other than "V", the ES Worker must take appropriate action to correct each identified error within 30 days of receipt of the alert by:

- Researching the case file to determine if the information has been entered correctly in CHIP or
- Requesting the A/R to submit a completed SS-5 and original verification to SSA for correction of name, date of birth or other critical information

Re-enter data in CHIP after it is verified as correct

4.9 New SSN Assignments

SSA will assign an individual and his/her child(ren) a new SSN when evidence shows that the individual(s) has been harassed, abused or endangered and if the original SSN played a role in the harassment, abuse or life endangerment.

Use of SSN in CHIP

When an individual indicates that the use of his/her SSN plays a role in the domestic/family violence to which he/she is subjected or has been subjected, the ES Worker will document the SSN in the case record to show that the A/R met the requirement to furnish an SSN and will enter the SS-5 date in CHIP on the SSDO screen. The A/R will be advised to go to the Social Security Office to apply for a new number.

4.10 Age Requirements

A dependent child must be unmarried and under the age of 18 unless he/she is a full-time student in a primary or secondary school or equivalent. Secondary school includes high school or schools with equivalent levels of vocational or technical training.

If a child is otherwise eligible and is a full-time student in a primary or secondary school, he/she may receive benefits until age 19. A dependent child under age 18 that has attained a high school diploma, General Equivalency Diploma (GED) or certificate of completion remains eligible until age 18. [\(Also See Education Requirements 4.12\)](#)

Required Age Verification Documents

Documents that verify age include, but are not limited to:

- A. Birth Certificate

- B. DSS Form 3249, Newborn Verification of Application for Social Security Number
- C. Baptismal record
- D. Confirmation papers
- E. Hospital records
- F. School records
- G. Immigration or naturalization records
- H. Adoption records
- I. State or federal census records
- J. Family Bible
- K. Physician's records
- L. Vaccination or health department record, if over one year old
- M. Records from other agencies dated one or more years before application
- N. Midwife's record of birth or affidavit
- O. Affidavit from an unrelated person giving substantial evidence that person has personal knowledge of individual's age
- P. A physician's written statement estimating age of child. If there is conflicting information concerning age, it must be resolved

4.11 Initial Job Search Requirement

All adult BG members (including adults added to open TANF cases), identified as Work Eligible Individuals (WEI)s, must conduct an initial job search, with certain exceptions.

1. Individuals not required to complete Initial Job Search

The following groups of individuals are not required to complete the initial job search:

- A. Ineligible non-citizens
- B. Child only cases
- C. Individuals required in the home (medical statement needed)
- D. Only parent with a child under age one (YCP's age 18 or older must complete IJS)
- E. Pregnant (seventh month)
- F. Incapacitated (verified by physician)
- G. Teen Parent Adult in high school or equivalent
- H. Victims of family domestic violence (prevents IJS)
- I. Individuals that reapply to cure a sanction within sixty days after the closure
- J. Refugees

2. Minimum Expectations

The applicant must contact a minimum of five potential employers during the initial job search and must provide evidence to DSS of a listing of the businesses contacted.

3. Failure to Complete Initial Job Search

Failure to complete the initial job search, will result in denial of the application.

4. Documentation

To document the initial job search contacts, the applicant may submit DSS Form 3708 (Initial Job Search) or a written or typed statement that contains the name of the business contacted, the business or website address, contact type, name of person contacted, the date of the contact, and the business telephone number. The document must also include the applicant's signature and date. The ES worker may verify any questionable contacts and may require additional job contacts if necessary.

4.12 Education Requirement

Dependent children under age 18 of TANF applicants and recipients, must be enrolled in primary or secondary school and maintain satisfactory attendance as defined by the local school district as required by the South Carolina Department of Education (SCDE), as a condition of eligibility for benefits. If not enrolled or attending at application, the dependent child should be enrolled within 30 days to be included in the BG.

NOTE: *Dependent children under age 18 that have attained a high school diploma, GED or certificate of completion remain eligible until age 18. [\(Also See Age Requirements 4.10\)](#)*

BG members who are not enrolled in a primary or secondary school or who are enrolled but do not maintain satisfactory attendance will have their needs removed from the BG (participation code DI DS on SEPA screen) until compliance with the school attendance requirement is met, unless a physical or mental disability prevents attendance.

Close attention must be given to children experiencing difficulties in school in order to correct the identified problems and ensure attendance and satisfactory progress.

TANF minor parent applicants under the age of 18 without a high school diploma, GED or Certificate, must be enrolled in school or willing to enroll in order to receive benefits. If not enrolled or attending at application, the minor parent should be enrolled within 30 days. The county must assist the minor parent in their effort to reenter school. If not enrolled or attending school within 30 days from date of application, the application will be denied.

If approved for benefits, enrollment must continue in compliance with the Individual Employment Plan (IEP). If attending high school, the minor parent must meet satisfactory attendance as defined by the local school district as required by South Carolina Department of Education (SCDE). If enrolled in Adult Education, the minor parent must meet attendance requirement set by the Adult Education site.

NOTE: *Secondary education or equivalent level of vocational or technical training approved by the South Carolina Department of Education (SCDE) includes education programs which*

lead to high school diploma, certificate of completion, or GED. This includes high schools, career and technology centers, alternative schools, Adult Education, etc.

1. Home Schooling

If the A/R states that he/she is home schooling the child(ren), verification must be provided. Verification from the local school district that the child is being home schooled, or verification of membership in the South Carolina Association of Independent Home Schools or other home school association must be provided.

2. Secondary Education or Equivalent

Secondary education or equivalent level of vocational or technical training approved by SCDE includes education programs which lead to a high school diploma, certificate of completion, or GED. This includes high schools, career and technology centers, alternative schools, Adult Education, etc.

3. Suspended Students

A child who has been suspended from school may still be eligible to be included in the TANF budget. A suspension is normally for a specified period of time with the expectation that the child will return.

4. Expelled Students

A child under age 18 who has been expelled from school must have his/her needs removed from the BG (participation code of DI DS on SEPA) until he/she is enrolled in and maintaining satisfactory attendance in a secondary school or equivalent.

5. School Dropouts

An A/R under the age of 18 who has dropped out of school will not be included in the BG. A school dropout is a BG member under age 18 who has not graduated from high school or received a GED and:

- A. Is not registered in school
- B. Withdraws from school
- C. Fails to attend school as required by SCDE

4.13 Drug Conviction Policy

Any individual convicted of a felony for a violation which occurred after August 22, 1996, which is due to possession, use or distribution of a controlled substance, is ineligible to be included in the TANF benefit. A guilty plea is the legal equivalent of a conviction after trial. Therefore, any individual who pleads guilty to a felony drug charge is ineligible to be included in the TANF benefit.

1. Chip Coding

Individuals ineligible due to a felony drug related conviction must be coded DI DC on SEPA. If this results in the BG's ineligibility for TANF, use closure code CD.

NOTE: *Do not enter a date in the "Date of Conviction" field on SEPA. This field applies only to conviction for misrepresenting residency in order to receive duplicate benefits.*

2. Method of Determination

During the interview, the ES Worker must ask if any BG member has been convicted of a drug related felony due to a violation which occurred after August 22, 1996, and may accept the response of the A/R as verification. The response must be documented in the case record.

NOTE: *If the conviction is overturned or expunged from the client's record, or the client is pardoned in state or federal court, the disqualification ends.*

3. ES Worker Actions

If the A/R is convicted of a felony drug related offense which occurred after August 22, 1996, the ES Worker will take the following actions:

- A. Disqualify the individual, allowing timely notice. The income of the disqualified individual is counted in its entirety, less the earned income disregard, if applicable, in determining the eligibility of the remaining BG members.
- B. Set up a protective payee if the individual is the parent/caretaker relative. [\(See 11.3\)](#)
- C. Notify Child Welfare Services (CWS) of the conviction on DSS Form 1601, Referral to Human Services.
 - For initial application, a referral should be made to Child Welfare Services if the client has a felony drug related conviction which occurred after August 22, 1996.
 - If it is determined during the certification period that the client has a disqualification but a referral has not been made to Child Welfare Services, the referral must be made at the time of discovery.
 - For reapplication and redetermination, a referral should be made to Child Welfare Services if there is an indication of a new conviction or violation; or if there is no documentation of a referral to Child Welfare Services at the initial application for an existing conviction or violation.

4.14 Fleeing Felons, Probation and Parole Violators

Any individual meeting the definition of fleeing felon, probation violator or parole violator may not be included in the TANF BG.

NOTE: *The disqualification ends if the individual is granted a pardon for the conduct by the President of the United States.*

1. Fleeing Felon

An individual fleeing to avoid prosecution, or custody or confinement after conviction of a felony.

2. Probation

A punishment for committing a crime that allows an individual to spend less time in jail or avoid jail time altogether by meeting certain rules, which may include:

- a. keeping appointments with his/her probation officer,
- b. passing drug tests,

- c. paying ordered fines or restitution or,
- d. avoiding association with certain people

A probation violator is an individual who breaks one or more of these rules.

3. Parole

The release of a prisoner temporarily (for a special purpose) or permanently before the completion of a sentence, on the promise of good behavior.

Inmates released on parole are given a list of conditions they are not supposed to violate, which may include:

- a. restrictions on where he/she can live,
- b. who he/she can live with,
- c. where he/she can work, and
- d. who he/she can live with

A parole violator is an individual who violates the conditions of his/her conditional release from prison. Failure to keep these conditions result in the person being re-incarcerated.

4. Method of Determination

During the interview, the ES Worker must ask if any BG member is avoiding prosecution or custody, or is in violation of probation or parole. The response of the A/R may be used as verification. The response must be documented in the case record.

5. ES Worker Action and CHIP Coding

If a written or verbal response to the question “Are you or anyone who lives with you a fleeing felon or probation/parole violator” is “yes”, the Agency will contact the National Crime Information Center (NCIC) at (803) 734-9301 to verify if the client is a fleeing felon or a probation/parole violator.

Upon verification from NCIC through the Department of Probation, Parole, and Pardon Services (PPP) that the individual is a fleeing felon or probation/parole violator, the following action must be taken:

A. For a one-person BG, the ES Worker must code the individual “DI FF” on CHIP SEPA screen and close the case by using the denial/closure reason “FF” - Fleeing Felon. A notice of adverse action must be sent to the BG to state the reason for closure. If the BG can provide information that shows he/she is not a fleeing felon during the 10-day notice of adverse action period, the case should be reverted to open on CHIP and benefits continued.

B. For a BG with more than one person, the ES Worker must remove the individual from the TANF budget by coding the individual “DI FF” (Disqualified - Fleeing Felon) on the CHIP SEPA screen. A probation or parole violator would also be coded “DI FF” on the CHIP SEPA screen. A notice of adverse action must be sent to the BG to notify them of the decrease in benefits. If the BG can provide information that shows the BG member is not a fleeing felon or probation/parole violator during the 10-day notice of adverse action period, the individual should be added back to the TANF budget.

NOTE: No action should be taken on cases where the NCIC verifies that the A/R is not a fleeing felon or probation/parole violator.

- C. Set up a protective payee if the individual is the parent/caretaker relative. (See
- D. Disqualify the individual, allowing timely notice. The income of the disqualified individual is counted in its entirety, less the earned income disregard, if applicable, in determining the eligibility of the remaining BG members.
- E. Notify Child Welfare Services of the situation on DSS Form 1601, Referral to Human Services.

Chapter**5**

Chapter 5

Child Support

5.1 Child Support

For TANF cases, when one or both parents are absent, TANF eligibility requires that each parent/caretaker relative assign support rights and cooperate in child support procedures.

1. Termination of Parental Rights (TPR)

A court action that terminates parental rights of either or both parents severs the legal relationship of the child to the biological parent(s). When this occurs, a referral to CSSD should not be made on the parent(s) whose rights were terminated.

2. Assignment of Rights

By applying for, accepting and receiving TANF benefits, the parent/caretaker relative automatically assigns to the State any rights he/she has to child support monies and already established spousal support monies.

3. Child Support Cooperation Requirement

The ES Worker must explain to the parent/caretaker relative that cooperation in obtaining child support is required, and failure to cooperate without good cause will result in a sanction.

If the parent/caretaker relative fails to cooperate with the child support requirement and subsequently expresses a desire to cooperate, the ES Worker will refer the parent/caretaker relative to CSSD. CSSD will notify the ES Worker by letter when the individual has complied.

4. Minimum Parent/Caretaker Relative Requirements

The parent/caretaker relative must provide the following information for whom assistance is being sought:

- A. The first and last name of the AP or putative father and any known licenses which might be subject to revocation.

NOTE: A putative father is a man whose legal relationship to a child has not been established, but claims to be the father, or who is alleged to be the father of a child who is born to a woman to whom he is not married at the time of the child's birth.

B. At least two of the following sub-items on each absent parent (AP) and each putative father named.

1. Date of birth (if exact date is not known, age or year of birth may be accepted)
2. Social Security Number (SSN)
3. Last known home address (or specific directions to that address)
4. Last known employer's name and address (or specific directions to that address)
5. Either of the AP's parents' name and address (or specific directions to that address)

CAUTION: *The parent of a family cap child or SSI child will be required to provide the minimum child support information on the AP and otherwise cooperate with the Child Support Services Division (CSSD).*

EXCEPTION: *If a grandparent or other non-parent is the specified relative of the dependent child, the above information must be provided on the AP to whom the caretaker is related. Obtain information on other AP's when available.*

An applicant or recipient who fails to provide the minimum information **or** who provides the names of two putative fathers, both of whom are excluded from paternity by genetic testing, is ineligible for assistance for himself/herself and the child(ren), from whom parental information was not provided, unless the applicant or recipient asserts, and the Department verifies, there is good cause for not providing the information.

5. ES Worker Action on Grandparent Information

When a child(ren) is born to parents, either or both of whom are unmarried and under age 18, the ES Worker must explain to the parent/caretaker relative that information regarding the child(ren)'s grandparents will be gathered during the interview and forwarded to CSSD for pursuit of support.

This information will be gathered on the DSS Form 27176, Grandparent Referral Form, and forwarded manually to CSSD. Unlike capturing information on the AP, there are no minimum reporting requirements. Any information gathered will be forwarded to CSSD without the threat of sanction.

6. Legal Paternity

Upon legal establishment of paternity of the child in question, TANF benefits may be established or reinstated if all other eligibility requirements are met. The biological father is also the legal father of the child if:

- A. The father and mother were married at the time of the child's birth
- B. Paternity has been established by court action.

7. Additional Parent/Caretaker Relative Requirements

The parent/caretaker relative is also required to cooperate with CSSD in:

- A. Identifying and locating the AP
- B. Establishing the paternity of a child(ren) born out of wedlock
- C. Obtaining support payments due the parent or child(ren)
- D. Paying to CSSD any child support payment covered by the assignment
- E. Appearing as a witness in court hearings or proceedings as necessary
- F. Submitting to blood test requirements
- G. Obtaining any other payments or property due the parent/caretaker relative and the child(ren)

8. Third Party Liability Requirements

The parent/caretaker relative is required to cooperate with third party liability by:

- A. Identifying any third party who may be liable to pay for medical care and services
- B. Providing relevant information to assist in pursuing any potentially liable third-party resources

5.2 Good Cause Claim for Child Support

The parent/caretaker relative has the opportunity to claim a valid reason, or "good cause", for failing to provide required information or refusing to cooperate.

The following chart provides circumstances which should be considered for good cause and verification sources:

Good Cause Circumstances	Evidence/Verification
Physical and/or emotional harm to the child.	Court, medical, criminal, Child Welfare Services (CWS), social services, psychological or law enforcement records indicating the possibility of physical or emotional harm by the absent parent (AP)
Physical and/or emotional harm to the parent/caretaker relative limiting his/her capacity to adequately care for the child, or where providing such information would endanger the parent/caretaker relative.	Medical records indicating emotional history and current emotional health status of the A/R. Court, medical, criminal, CWS, social services, psychological or law enforcement records indicating the possibility of physical or emotional harm by the AP. NOTE: If the parent/caretaker relative is in a domestic/family violence situation, and unable to obtain this verification, the parent/ caretaker relative can provide a signed statement that he/she is a victim of domestic/family violence.
Child conceived as a result of incest or rape.	Medical or law enforcement records indicating conception resulted from incest or rape.
Legal adoption proceedings are pending in court.	Court documents indicating that adoption is pending in court.

Public or private social agency is assisting the parent in the decision whether to keep the child or release him/her for adoption and discussion has not exceeded three months.	Written statement from the public or private social agency assisting the parent.
Physical or mental incapacity which prevents the parent/ caretaker relative from having sufficient knowledge to provide required information.	Documentation from health care professional and/or social service agency which indicates limitations severe enough to preclude specific knowledge concerning the AP.
The caretaker relative making application is not the parent of the child.	The caretaker relative must provide required information on the parent to whom the A/R is related, and must provide any known information on the other AP.
All of the previous good cause circumstances.	Sworn statements from individual(s) with knowledge of good cause claim circumstances.

1. ES Worker Responsibility (Good Cause Child Support)

If an applicant or recipient claims good cause for refusing to cooperate with child support requirements, the Department's determination of good cause is to be made within thirty days from the day the good cause is made. The good cause determination is reviewed and made by the ES Workflow Unit. The ES Worker responsibilities include the following:

- A. If necessary, request additional information or evidence from the parent/caretaker relative and notify the parent/caretaker relative to provide evidence within 10 days from the date the claim was made.
- B. Review all information and available evidence.
- C. Prior to sending the case to the Workflow Unit for good cause determination, a due date for requested verification must be entered in the "PEND" field if a code of "GC" for good cause is entered in the "COOP" field under "Good Cause" on the CHIP SPRD screen.
- D. Email the DSS Form 3816-C (completed by client), the DSS Form 3734 (section I and II completed by ES worker) and evidence/verification to ESWorkflow@dss.sc.gov prior to transmitting information to the Child Support Services Division (CSSD).
- E. Workflow staff will review the information and provide a determination (usually within two business days) of whether or not good cause exists.

NOTE: Prior to receiving a decision from the Workflow Unit, the worker must not enter any information in CHIP on the absent parent for whom good cause is being claimed.

- F. The ES worker will be notified and instructed on how to code the case in each field on CHIP SPRD screen.
- G. Document in SCOSA if the good cause claim has been approved or denied.
- H. Notify the parent/caretaker relative of one of the following final decisions:

- a. Good cause claim approved. CSSD will not proceed to establish paternity/obtain support.
- b. Good cause claim denied. CSSD will establish paternity/obtain support without the A/R's cooperation; the A/R has the choice to cooperate, withdraw the application, have the cash benefits terminated, or receive benefits (for eligible BG members) without cooperating and not being included in the budget.

NOTE: *If an applicant is identified as being a victim of domestic/family violence, the Domestic Violence field on CHIP INRD screen must be coded "Y" to indicate domestic/family violence.*

2. CSSD Responsibility (Good Cause Child Support)

The CSSD responsibilities are:

- A. Review the good cause decision made by the ES Worker
- B. Make recommendations if necessary
- C. Participate in any hearing concerning good cause
- D. Attempt to establish paternity and collect support if there is no risk to the A/R and child(ren)

5.3 Automated Referral to CSSD

Coordination with the Child Support Services Division (CSSD) for TANF cases with a referral reason of continued absence is accomplished through the automated child support referral. This process includes:

- A. DSS Form 3816A, Child Support Referral Child Data, for each child, if not completing an interactive interview
- B. DSS Form 3816B, Child Support Referral Absent Parent Data, for each AP, if not completing an interactive interview
- C. DSS Form 3816C, Child Support Referral Custodial Parent Data, for the Custodial Parent (CP)

NOTE: *A copy of DSS Form 3816C is used as a transmittal form to send any information to CSSD; however, the original DSS Form 3816C will remain in the case file.*

- D. Completing the required data elements and entering into CHIP

CHIP Actions on Child Support Referral Situations

The following chart identifies referral situations and the required CHIP entry actions:

Situation	Required Actions
Both parents are absent.	Complete a referral on each parent. (See 5.1.4)

Parent/caretaker relative thinks the AP is deceased but ES Worker cannot verify death.	Complete a referral indicating that AP may be deceased. <i>NOTE: If death is verified, do not complete a referral.</i>
Disabled parent receives SSA disability benefits but his/her alleged child(ren) does not receive SSA benefits on his/her record.	Complete a referral on the disabled parent. Refer parent/caretaker relative to SSA to apply for benefits for the child(ren).
Situation	Required Actions
Disabled AP receives SSI benefits.	Complete a referral on the disabled parent.
Specified relative changes.	Complete a new DSS Form 3816C signed by new payee. <i>NOTE: CHIP screens must be updated as necessary.</i>
TANF cash benefit case is closed and then reopened.	Complete an updated DSS Form 3816C and update CHIP screens.
A child(ren) is added to an TANF budget or a family cap child is born to a BG.	Complete a referral and have payee sign DSS Form 3816C.
Parent/caretaker relative refuses to cooperate.	Complete a referral with as much information as possible. Inform parent/caretaker relative that CSSD will apply child support requirements unless good cause is established. If good cause is established, send copy of DSS Form 3816C with documentation to CSSD.
AP data changes.	After original referral, enter only the information that has changed on the DSS Form 3816B and update the AP referral data screens on CHIP.
Parental rights are terminated.	The parent whose parental rights are terminated should not be referred to CSSD. Parental rights must be terminated through legal system.

5.4 Child Support Sanction

Child Support sanction reasons include the following:

- A. Failure by the parent or caretaker relative to provide minimum required information about the AP ([See 5.1.4](#))
- B. Non-cooperation with CSSD as determined by CSSD

1. ES Worker Action on Child Support Sanction

When the sanction is imposed, code the parent or caretaker relative (if included in the BG) and child DI CS on CHIP screen SEPA.

NOTE: *If the child for whom assistance is being sought is the child of a minor parent, under the age of 18, and the major parent or caretaker relative is making application for a three-person BG, there are no eligible children if the required information is not provided.*

2. Minimum TANF Cash Benefit Reduction

When a child support sanction is imposed, the TANF cash benefits will be reduced by a minimum of 25% in accordance with federal guidelines. The reduction is automatically calculated when the sanction is imposed.

3. Third Party Liability Sanction

Failure to provide required information about the third-party results in a sanction for the parent/caretaker relative and child(ren) of the AP, unless good cause is established. [\(See 5.1.8\)](#)

4. ES Worker Determination Of Non-Cooperation

To determine non-cooperation at application, when adding a newborn, or providing the minimum child support information for a family cap child, the ES Worker must:

- A. Attempt to secure more information about the AP when the minimum child support information has not been provided by the client.
- B. Document in the case file the reason given for the lack of information.
- C. Evaluate the explanation and determine if non-cooperation exists. If non-cooperation does exist, impose the sanction by removing the parent and child(ren) for whom paternity is being sought from the TANF budget.

5. Fair Hearing Requests

Fair Hearing requests for failure to provide basic information about the AP are processed by the ES Worker, and the ES Worker will represent DSS at the hearing. Fair Hearing requests based on actions taken by CSSD will be processed by the ES Worker. It will be necessary for the ES Worker to coordinate the completion of the DSS Form 2633, Request for Fair Hearing, with the Parent Locate Specialist (PLS) or the Child Support Specialist who referred the recipient for sanction. The PLS or CSS will represent DSS at the hearing.

6. Blood Test Denies Paternity

If the named AP denies paternity and requests a blood test or genetic test, the test results are reported to CSSD. If the results indicate the named AP is not the father, CSSD will allow the recipient to review the test results and to name another AP.

If a new AP is not named, the ES Worker will be notified by CSSD to impose a sanction. If a new AP is named, CSSD will email the ES Worker the following information:

1. Recipient name
2. CHIP number
3. Name of excluded AP
4. Name and date of birth of child

5. Name of new AP

The ES Worker will meet with the recipient to complete a referral. The recipient must provide required information for the new AP and sign a DSS Form 3816C. The ES Worker will enter the AP data into CHIP. [\(See 5.1.4\)](#)

CAUTION: Blood tests or genetic tests which exclude the alleged AP as the father of a child are considered to be 100% accurate. The sanction may not be waived if the recipient contends the blood test or genetic test was inaccurate.

If the putative father named during the second opportunity is excluded through a blood test or genetic test, CSSD will notify the ES Worker and the recipient and the child(ren) will be sanctioned until the State establishes paternity for the child(ren). The sanction must be imposed after sending a Notice of Adverse Action. The sanction will continue until the ES Worker is notified by CSSD that paternity has been established.

7. Action Prior to Sanction Request

Prior to a sanction request, CSSD will take the following actions:

- A. Provide the recipient an opportunity to provide the requested information
- B. Allow the recipient to provide good cause for failure to keep a scheduled appointment or appear in court proceedings

8. Sanction After Blood Test

When non-cooperation based on blood test or genetic test results has been made, the parent/caretaker relative and child(ren)'s needs are excluded from the benefit determination.

9. CSSD Sanction Request

A sanction for non-cooperation may be imposed when CSSD-sends a sanction request based on the parent/caretaker relative's failure to:

- A. Provide sufficient information to CSSD to establish paternity/secure support
- B. Provide requested information/documentation to CSSD
- C. Keep a scheduled appointment with CSSD
- D. Appear in court proceedings

10. When to Lift a Sanction

The sanction period is lifted when:

- A. The parent/caretaker relative complies with child support requirements
- B. The involved child(ren) leaves the BG
- C. The involved child(ren) is not a BG member when the ES Worker receives the non-cooperation referral
- D. Paternity is established and support is secured without the recipient's cooperation as long as child support is received for all children of the AP

NOTE: *Add the recipient's (parent and/or child) needs to the BG effective the month after compliance, if otherwise eligible.*

11. Cooperation With CSSD

If the reason for sanction is failure to cooperate with CSSD after referral, and the parent/caretaker relative subsequently expresses a desire to cooperate, the ES Worker must refer the parent/caretaker relative to CSSD. CSSD will notify the ES Worker by letter when compliance is met.

5.5 Definition of Non-TANF Child Support Cases

Non-TANF child support cases are those cases in which the Custodial Parent (CP) does not receive TANF cash benefits. These cases include:

- A. Closed TANF cash benefits cases
- B. Voluntary cases initiated by CPs who complete and send DSS Form 2700-1, Custodial Parent's Application for Child Support Services, with the appropriate fee to CSSD.

NOTE: *This form is available in the county office. County staff should emphasize that the CP's SSN must be included on the DSS Form 2700-1.*

CSSD will continue to provide all child support and medical support enforcement services without an application, unless the CP requests in writing that CSSD discontinue services or provide only medical support enforcement services if the CP receives Medical Assistance Only (MAO).

Application Procedures for Non-TANF Child Support

When a non-TANF child support recipient applies for TANF, the ES Worker will apply the following child support procedures:

- A. Obtain as much child support information as possible from applicant.
- B. Obtain copies of any child support documents (e.g., court orders, CSSD application, etc.) from applicant.
- C. Verify and budget child support received through family court or directly from AP.
- D. Enter child support referral into CHIP with a notation that this is a non-TANF child support case through CSSD.
- E. Send copy of DSS Form 3816C and child support documents to CSSD.

CAUTION: *Upon receipt of referral, CSSD will file the assignment and notify the ES Worker when to remove the child support income from the TANF budget.*

Chapter**6**

Chapter 6

Resources

6.1 Resource Types

Resources are cash or other assets that are owned by a person(s) and can usually be turned into cash. Resources are classified as either:

- A. Liquid
- B. Non-liquid

6.2 Resource Value

The value of the benefit group's (BG's) total countable resources is used to determine if the resources are within the eligibility limits. Resources are counted unless specifically excluded by TANF policy, or determined to be inaccessible to the BG.

6.3 Equity Value

Equity value is the current fair market or cash value of a resource, less any indebtedness, and is counted toward the resource limit.

6.4 Maximum Resource Limit

The resource limit for TANF is \$2,500 per BG.

6.5 Resources to Count

Income and resources are considered available both when actually available and when the applicant or recipient has a legal interest in a liquidated sum and has the legal ability to make such sum available for support and maintenance.

Count the total value of resources owned by [\(See 3.1\)](#) [\(See 3.9\)](#):

- A. BG members (including Family Cap Child(ren))
- B. Disqualified individuals
 - 1. Ineligible non-citizen parents

2. Illegal non-citizen

C. Sanctioned individuals

6.6 Treatment of Liquid Resources

The following chart describes types of liquid resources and how they are treated.

Type	Counted	Special Treatment
Bank/financial accounts	Y	Exclude current month's income. (See Jointly Owned Resources 6.11)
Burial insurance (cash value)	N	
Cash	Y	Exclude current month's income.
Cash from sale of real property	Y	If property has been excluded, cash received is excluded in month of sale; money remaining the month following sale is counted as a resource.
Cash received from estate settlements	Y	
Child Tax Credit Payment	N	<i>NOTE: Advance Child Tax Credit payments are early payments from the IRS of 50 percent of the estimated amount of the Child Tax Credit that an individual may properly claim on his/her 2021 tax return during the 2022 tax filing season. Payments are excluded as resources for a period of 12 months from receipt date.</i>
Deferred compensation pension funds	N	Exclude until the employee withdraws funds.
Earned Income Credit (EIC) or Earned Income Tax Credit (EITC)	N	Exclude EIC/EITC payments as resources. <i>NOTE: Rebates or advance payment of tax credits such as the Cares Act payments of 2020 are excluded as resources for a period of 12 months from receipt date.</i>
Federal/State Income Tax Refunds	N	Exclude as income and resources permanently, effective January 2012
Individual Development Account (IDA)	N	A savings account owned by a recipient and designated by the recipient as an IDA which has a value of \$10,000 or less is excluded. A savings account owned prior to application, with a value of \$2500 or less may be converted to an IDA.

		A lump sum payment of ten thousand dollars or less deposited in an IDA within thirty days will not be counted as income. Funds in an IDA in excess of \$10,000 are counted against the \$2500 resource limit.
Individual Retirement Account or Arrangement (IRA)/Simple IRA/Simplified Employee Pension (SEP) IRA/Keogh	Y	Total cash value of an IRA, Simple IRA, SEP/ SEP IRA, or Keogh account minus the early withdrawal penalty is counted. <i>NOTE: If an individual withdraws funds from an IRA, Keogh, or other retirement account before reaching age 59½, the early withdrawal is subjected to an additional 10% tax penalty unless an IRS exception applies.</i> If the Keogh Plan contains a contractual agreement with a non-BG member, it is totally inaccessible and excluded.
Interest earned on a loan	Y	Count as resource except in the month received
Life insurance (cash value)	N	
Lump sum payments	Y	Retroactive lump sum SSI and TANF payments are disregarded. *If an optional BG member receives a lump sum and requests to be removed from the TANF BG, this resource will no longer be attributed to the remaining BG members. *If the lump sum includes a payment for the current month, the amount of that payment must be deducted from the lump sum before it is counted as a resource. *A resource coded as a lump sum should be updated to reflect the appropriate resource type, i.e., savings account, checking account, etc. at the next review. *If the addition of another resource makes the BG ineligible, the BG should be asked to update the value of the lump sum resource before closing the case due to excess resources. *Earmarked lump sum payments designated for a specific purpose are disregarded for 60 days. If not expended within 60 days, without good cause, count as resource.

		*Exclude amount deposited into Individual Development account (IDA) within 30 days of receipt; deposit cannot exceed \$10,000.
Prepaid burial contract	Y	Exclude up to \$1,500 equity value plus any interest accrued per BG member.
Refunds of security deposits	Y	
Revocable trust account	Y	
Saving certificate	Y	If jointly owned; count the value unless inaccessibility can be proven.
Stocks/bonds	Y	
Technical items of assistance	N	Technology for a handicapped person required to develop or maintain life or work skills (such as power wheelchair or computer) will not count against the \$2,500 resource limit. Adaptive items added to a car or van will not increase its book value.
Vacation pay	N	Treat as income.

6.7 Treatment of Non-Liquid Resources

The equity value of non-liquid resources is counted toward the resource limit.

The following chart describes types of non-liquid resources and how they are treated.

Type	Counted	Special Treatment
Vehicles	See Remarks	See Treatment of Vehicles. (See 6.9)
Building(s) not associated with homestead	Y	Count the value of the building(s) on the property other than the homestead residence and its normal outbuildings. (See 6.10)
Non-homestead property	Y	Count equity value unless there is a good faith effort to sell. (See 6.10)
Lifetime rights to property	N	Exclude the value of lifetime rights; count the income derived by holder of rights as income.
Income-producing property	N	Exclude the value of property if rental/lease income is consistent with prevailing rate of return for similar property in the area.
Property essential to employment or self-employment	N	Exclude if property is being used in an employment situation.

CAUTION: *If a non-liquid resource is converted to a liquid resource (cash), it retains its status as a resource.*

6.8 Treatment of Vehicles

1. Ownership

Once ownership of a vehicle(s) has been determined, a decision must be made as to the fair market and equity value of the vehicle. It also must be determined whether or not the vehicle is totally exempt.

2. Vehicle Exemption

One licensed/registered automobile per licensed driver in the BG (passenger car or other motor vehicle) is excluded.

3. Determining Fair Market Value

The fair market value of a vehicle(s) will be determined by the wholesale value (Trade-In) of the vehicle as listed on NADA.com or equivalent publication such as Kelley Blue Book (kbb.com). Using “add” or “deduct” factors cannot change the basic value of a vehicle.

Any A/R who claims the National Automobile Dealers Association (NADA) or equivalent publication value does not apply to his/her vehicle must be given the opportunity to obtain verification of the true value from a reliable source. The value may be less than that stated in the NADA or equivalent publication due to condition of the vehicle.

4. Leased Vehicles

A leased vehicle is excluded as a resource as the owner retains the title. At the point in time that the A/R actually buys the vehicle, it becomes a resource for the BG. Any dollar value accrued in the lease is counted as a lump sum at the point in time it is refunded to the A/R.

5. Valid License and Registration

In order to receive this exemption, both the license and registration must be issued in South Carolina. If an A/R moves to South Carolina from another state, they must apply for a SC driver's license and must register their vehicle in SC. An A/R with a valid driver's license issued by another state will be given 90 days to obtain a South Carolina driver's license. The A/R will be given 45 days to transfer their out of state vehicle registration to South Carolina.

NOTE: Military personnel from out-of-state are not required to obtain a current SC Driver's License or registration.

6. Additional Vehicle Exclusions

The following vehicles are also excluded:

- A. Registered vehicles owned by or used to transport a disabled person
- B. Vehicles essential to self-employment
- C. Income producing vehicles
- D. Vehicles used as a home

NOTE: A BG member may own more than one vehicle as long as the number of vehicles does not exceed the number of licensed drivers. A learner's permit is not considered a valid driver's license.

7. Non-Excluded Vehicles

If the BG owns an unlicensed/unregistered vehicle, or any other non-exempt vehicle, the equity value of the additional vehicle(s) is applied to the resource limit.

8. Entering Vehicles on CHIP

When entering more than one vehicle on CHIP, the vehicle with the highest equity value should be the vehicle excluded.

NOTE: *For each vehicle in the BG, enter the vehicle use code as appropriate. If a vehicle is countable for TANF, key the Vehicle Use Code as “FC” on CHIP VEHI screen. Once the appropriate Vehicle Use Code is keyed, the “enter key” on the keyboard must be pressed twice in order to count the value of the vehicle towards the resource limit for TANF eligibility.*

6.9 Treatment of Excluded Resources

The total value of the resources listed in the following chart is excluded in determining eligibility unless otherwise specified:

Resource Type	Treatment
Homestead Property	The home and surrounding property not separated by intervening property. Exclude if temporarily uninhabitable, unoccupied due to employment, training for future employment or illness, if the BG intends to return to the home. Public right-of-ways do not change a property's status as homestead property.
Household/personal goods	Exclude. Examples are furniture, appliances, clothing, jewelry, etc.
Indian lands	Exclude. If held jointly with the tribe, or land can be sold only with the approval of the Bureau of Indian Affairs.
Livestock, poultry and home produce	Exclude if produced for home consumption or is income producing.
Earmarked government payment	Exclude if used for its intended purpose, e.g., restore home or replace damaged contents due to a disaster.
Burial plot	Exclude one burial plot for each BG member. Conventional gravesite, crypt, mausoleum, urn or other repository used for the remains of a deceased person.
Property being sold	A good faith effort to sell real property at current market value of other property in the same geographical area must be demonstrated (does not apply to personal property).
Federal disaster funds to farmers	Exclude.
USDA Settlement to African American Farmers	Exclude as income and resources.
Family Self-Sufficiency (FSS) escrow accounts	Exclude accounts established by Housing and Urban Development (HUD) and any interest paid on them until the funds are paid to the BG.
Property used for vehicle maintenance	Only if directly related to the maintenance or use of a vehicle that is income producing or

	used to transport a physically disabled BG member.
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CAUTION: *An excludable resource when converted to cash retains its character as an excludable resource in the month of conversion. Any converted cash remaining in any subsequent month is applied to the resource limit.*

Federal Payments Excluded as Resources

The payments/benefits received from the following are excluded as resources by federal law:

- A. Benefits paid under Title II of the Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970.
- B. Grants or loans to any undergraduate student for educational purposes made or insured under any program administered by the Secretary of Education except the programs under the Carl D. Perkins Vocational and Applied Technology Education Act. (see (Q) in this section).
- C. Any funds distributed per capital to or held in trust for members of any Indian tribe under Public Law 92–254 or Pub. L. 94–540.
- D. Any benefits received under Title VII, Nutrition Program for the Elderly, of the Older Americans Act of 1995, as amended.
- E. Support Services payments or reimbursements of out-of-pocket expenses made to volunteers serving as foster grandparents, senior health aides or senior companions; and to persons serving in the Service Corps of Retired Executives (SCORE), Active Corps of Executives (ACE), Older American Community Services Programs and National Volunteer Programs to assist small businesses.
- F. Payments to applicants or recipients participating in the Volunteers in Service to America (VISTA) Program, except that this disregard will not be applied when the Director of ACTION determines that the value of all such payments, adjusted to reflect the number of hours such volunteers are serving, is equivalent to or greater than the minimum wage then in effect under the Fair Labor Standards Act of 1938, or the minimum wage under the laws of the States where the volunteers are serving, whichever is greater. (Section 404(g) of Pub. L. 93–113, as amended by Section 9 of Pub. L. 96–143).
- G. The value of supplemental food assistance received under the Child Nutrition Act of 1966 as amended, and the special food service program for children under the National School Lunch Act, as amended.
- H. Pursuant to Section 15 of Pub. L. 100–241, any of the following distributions made to a household, an individual Native, or a descendant of a Native by a Native Corporation established pursuant to the Alaska Native Claims Settlement Act (ANCSA) (Pub. L. 92–203, as amended):
 - (a) Cash distributions (including cash dividends on stock from a Native Corporation) received by an individual are never counted as income or resources to the extent that such

cash does not in the aggregate, exceed \$2,000 in a year. Cash which, in the aggregate, is in excess of \$2,000 in a year is not subject to the income and resources disregards;

(b) Stock (including stock issued or distributed by a Native Corporation as a dividend or distribution on stock);

(c) A partnership interest;

(d) Land or an interest in land (including land or an interest in land received from a Native Corporation as a dividend or distribution on stock); and

(e) An interest in a settlement trust.

- I. Benefits paid under the Low-Income Home Energy Assistance Act of 1981
- J. Effective October 17, 1975, pursuant to Section 6 of Pub. L. 94–114 (89 Stat. 577, 25 U.S.C. 459e), receipts distributed to members of certain Indian tribes which are referred to in Section 4 of Pub. L. 94–114 (89 Stat. 577, 25 U.S.C. 459d).
- K. Indian judgment funds that are held in trust by the Secretary of the Interior or distributed per capita to a household or member of an Indian tribe. Pursuant to Section 7 of Pub. L. 93-134, as amended by Section 4 of Pub. L. 97-458
- L. All funds held in trust by the Secretary of the Interior for an Indian tribe and distributed per capita to a household or member of an Indian tribe. Pursuant to Section 2 of Pub. L. 98-64.

NOTE: This disregard does not apply to proceeds from the sale of initial purchases, subsequent purchases made with funds derived from the sale or conversion of initial purchases, or to funds or initial purchases which are inherited or transferred.

- M. Any student financial assistance provided under programs in Title IV of the Higher Education Act of 1965, as amended, and under Bureau of Indian Affairs education assistance programs.
- N. Wartime Relocation payments. Any payments made as restitution to an individual under Title I of Public Law 100–383 (the Civil Liberties Act of 1988) or under Title II of Public Law 100–383 (the Aleutian and Pribilof Islands Restitution Act).
- O. Disaster Relief and Emergency Assistance Amendments of 1988 and comparable disaster assistance provided by States, local governments and disaster assistance organizations.
- P. Agent Orange payments

CAUTION: Veterans benefits authorized under the Agent Orange Act of 1991 are not excluded as a resource.

- Q. Student financial assistance made available for the attendance costs under programs in the Carl D. Perkins Vocational and Applied Technology Education Act. Attendance costs are: tuition and fees normally assessed a student carrying the same academic workload as determined by the institution, and including costs for rental or purchase of any equipment, materials, or supplies required of all students in the same course of study; and an allowance for books, supplies, transportation, dependent care and miscellaneous personal expenses for a student attending the institution on at least a half-time basis, as determined by the institution.

R. Radiation Exposure Compensation Act

6.10 Types of Inaccessible Resources

Resources that are inaccessible to the BG are not counted toward the resource limit. If the resource becomes accessible to the BG member, it is then counted.

The following resources may be excluded as inaccessible:

A. **Security Deposits** being held on rental property or by utilities.

B. **Resources in Litigation**

1. Property in probate or awaiting probate (include property of individuals who die without a will/intestate).

CAUTION: *Licensed vehicles that the BG is prevented from selling due to a court injunction or probate may be excluded from countable resources during the period of time that the BG is legally prevented from selling the vehicle.*

2. Property in Chapter 13 bankruptcy is inaccessible unless exempted from bankruptcy proceedings by the Bankruptcy Court and the Trustee in Bankruptcy.

C. **Equitable Trust**

Property in Equitable or Existing Trust is where a BG member holds the title of property but a non-BG member pays the purchase price, including monthly payments, and is responsible for the general upkeep of the property. The titleholder must prove that such arrangement exists and that he/she does not possess ownership of the property. This principle applies to both liquid and non-liquid resources.

D. **Resource used as Collateral**

Any non-liquid resource, such as land, crops, buildings, farm equipment or machinery, which is used for collateral to secure a business loan if the loan agreement stipulates that the BG is prohibited from selling the resource until such time the loan is paid in full.

E. **Unknown Resource**

A resource, which is unknown to the BG, is considered inaccessible for the period the BG can prove that no BG member was aware of its existence. Once the BG discovers the resource, it must be counted.

F. **Irrevocable Trusts**

Irrevocable trusts are inaccessible resources. Count any money paid to the BG from an irrevocable trust as income in the month received.

G. **Jointly Owned Bank Accounts**

Jointly owned bank accounts are considered available to each owner unless inaccessibility can be proved. To determine ownership, the ES Worker should request information from the A/R and the financial institution, which includes:

1. Name(s) of owner(s) of the account

NOTE: *If the names on the account are joined by "or", the account is accessible to each person. If the names are joined by "and", accessibility must be determined.*

2. SSN used to report interest
3. Any restriction for redemption or withdrawal
4. Statement from the other owner(s) regarding ownership participation
5. If inconclusive, statement from A/R regarding ownership participation

H. Accessibility of Jointly Owned Property

The value of property jointly owned by separate BGs is considered available to each BG unless inaccessibility can be proven. In that case, only the amount accessible can be counted.

Property in probate proceedings, divorce litigation or subject to a legal separation agreement is considered inaccessible.

Divide the equity value of the property by the number of owners to determine the BG's pro rata share unless inaccessibility is established. To determine inaccessibility, the A/R must provide verification that the other owner(s) refuses to sell the property or buy out the A/R's interest.

I. Resources of Battered Women

Resources jointly owned by residents of shelters for battered women/children and members of their former household are considered inaccessible if access to the value of the resources is dependent on the agreement of the joint owner.

6.11 Reasons for Disqualification/Transfer of Resources

A BG that has transferred countable resources may be ineligible for up to one year if:

- A. The resource(s) was transferred within the three-month period immediately preceding the application filing date and was transferred for the purpose of qualifying for benefits.
- B. The resource(s) was transferred at any time after approval for benefits.

1. Determining Disqualification Periods

The length of the disqualification period is based on the amount by which non-exempt transferred resources, when added to other countable resources, exceed the allowable resource limits.

For applicant households, the disqualification period would begin with the month of application. For participating BGs, the disqualification period would begin the month after the timely notice expired.

The following chart is used to determine the disqualification period:

Amount in Excess of the Resource Limit	Period of Disqualification
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\$0 - \$249.00	1 month
\$250 - \$999.99	3 months
\$1,000 - \$2,999.99	6 months
\$3,000 - \$4,999.99	9 months
\$5,000 - and up	12 months

2. Reasons for Non-Disqualification/Transfer of Resources

Transfer of resources will not result in a disqualification in the following circumstances:

- A. The resource(s) would be excluded.
- B. The resource(s) was sold or traded at the approximate fair market value.
- C. The resource(s) was transferred to another eligible or disqualified BG member.
- D. The resource(s) was transferred for a reason other than qualifying for benefits.

NOTE: *If an A/R spends a resource, this is not considered a transfer of resources.*

6.12 When to Verify Resources

Ownership and value of resources must be verified at application or when a new resource is reported. At redetermination, resources must be re-verified if the value has changed or is questionable.

Sources of Verification

The following chart details verification sources for resources and vehicles:

Liquid/Non-Liquid Resources	Vehicles
Contracts	NADA Used Car Guide
Court records	Department of Motor Vehicles (DMV)
Current bank statements	Registration
Employer	Statement from a reliable car dealer
Internal Revenue Service (IRS) match	Vehicle registration
Real estate company records	Tax receipt
Refund checks	
Tax receipt	
Tax forms	

A client statement is acceptable verification, unless contradictory information is known to the agency.

NOTE: *Verification for which there is a fee charged to DSS must not be used.*

Chapter

7

Chapter 7

Income and Exclusions

7.1 Definitions of Income Sources

Income is money received by a BG member (s) from any source. Money received is classified as either earned, unearned income or in-kind income/benefits. In-kind income/benefits received by the BG is excluded.

The following chart describes various sources of income and their definitions:

Term	Definition
Earned Income	WAGES—All money earned by a BG member(s) through receipt of wages, salary, tips or commissions as an employee. SELF-EMPLOYMENT—Income earned directly from one's own business, trade or profession rather than from a salary or wage paid by an employer.
In-Kind Income/Benefits	Any gain or benefit not in the form of money given to a BG member, such as meals, clothing, home produce, public housing, etc.
Unearned Income	Any income not defined as earned income

NOTE: *Earned and unearned income may be garnished. Garnished income is money due to a BG member which is diverted, under court proceeding or by provision of law, to a third party as payment on a debt.*

7.2 Income and Eligibility Verification System (IEVS)

Income and Eligibility Verification System (IEVS) is the automated system by which the following types of income are matched with other state and federal agencies:

1. Types of Income Matched

A. Wages

- B. Unemployment compensation
- C. Special benefits
- D. SSA and SSI benefits

2. IEVS Matching Situations

All BG members must be matched at the following times:

- A. Any interview for application/reapplication
- B. Any interview for redetermination
- C. Any system generated notification (alerts or disposition listings)
- D. As necessary to determine eligibility and income changes

3. Certification Process Not Delayed

The certification process must not be delayed beyond the processing standards if the IEVS data is not available. If information is received after certification, the ES Worker must take immediate action to effect any changes.

NOTE: *Use information provided by the individual if more current and/or accurate than available IEVS information.*

7.3 IEVS Process

The following chart describes the process for using IEVS data as verification:

Information	Benefit Types
Information considered verified by IEVS	SSA and SSI benefits Unemployment Compensation Benefits (UCBs)
Information not considered verified by IEVS data (lead information)	Unearned income reported by SSA from other sources. Wage information from SSA and Department of Employment and Workforce

1. Verification

Income and benefit information not considered verified upon receipt of IEVS data must be verified through other sources. The ES Worker must obtain independent verification by either:

- A. Contacting the applicant/recipient (A/R) in writing about the information which was received and requesting the A/R to respond within 10 days
- B. Contacting the appropriate source verbally or in writing to secure verification

2. Recipient Notification

Upon receipt of the independent verification, the ES Worker must properly notify the A/R of any action to be taken on the case. If the A/R fails to respond timely, the ES must send the A/R a timely notice for failure to cooperate in establishing continued eligibility.

3. IEVS Time Frame

The ES Worker must initiate and complete case action(s) on IEVS information within 45 days of the information. Procedure for case actions include:

- A. Reviewing the information and comparing it to case file information
- B. Contacting the A/R and/or appropriate source to resolve discrepancies for all new or previous unverified information
- C. Notifying A/R of pending adverse action

4. IEVS Matches

The following chart describes the IEVS matches:

Benefit Type	Method(s) of Access
SSA	CHIP automatically requests information from the Beneficiary & Earnings Data Exchange (BENDEX). Data is returned to the county office through CHIP screens.
Department of Employment and Workforce (DEW)	Applicants-query for all possible wages or benefit information prior to approval. Do this for all household members and any individual living in the household who may affect benefits. Recipients-check the SCDEW match of wages, benefits and special benefits. Take appropriate action if necessary.

7.4 Requirement to Apply for Possible Benefits

Any BG member who is potentially entitled by law to other cash benefits, e.g. Social Security Survivors benefits, VA benefits, retirement, unemployment compensation, workers' compensation, etc., must apply for these benefits prior to approval and take all actions necessary to obtain the benefits.

The BG member must also cooperate in the determination process and accept the benefits for himself/herself for continued eligibility. Failure to meet this condition of eligibility will result in ineligibility of the entire BG.

NOTE: *Individuals who are eligible for both TANF and SSI benefits can elect in which of these programs they wish to participate. [\(See 3.3\)](#)*

1. ES Worker Assistance

The ES Worker must assist the A/R in any way possible to apply for other benefits. Assistance at a minimum requires a written referral to the appropriate agency. CHIP Notice A000, Possible Benefits, may be used to make the referral.

2. When the A/R Must Apply for Other Possible Benefits

An A/R must follow the criteria listed below:

- A. Applicant BGs must apply for possible benefits readily available to them at the time of application or prior to TANF approval.
- B. Recipient BGs must apply within 30 days from the time they become potentially entitled to possible benefits.

Failure to meet this condition of eligibility will result in ineligibility of the entire BG.

3. Social Security Disability

If an absent parent (AP) is disabled and receiving SSA benefits, the ES Worker must refer the parent/caretaker relative to SSA to apply for Social Security benefits for the ~~TANF~~ child(ren).

7.5 Counting Individual's Income

The income of the following individuals is counted when determining eligibility and benefit level:

Individual	Special Instructions
Dependent child(ren)	Earned income of a dependent child(ren) is excluded.
Minor Parent	Earned income is included if the minor parent is the head-of-household. Earned income is excluded if the minor parent is included as a dependent in the TANF BG.
Teen Parent Adult	All earned and unearned income of the teen parent adult is counted unless specifically excluded.
Parent(s) in the home	All income is counted unless specifically excluded.
Caretaker relative other than child's parent	Count income if needs are included in the benefit calculation unless specifically excluded. If married, and caretaker relative is included in BG, both spouse and caretaker relative living in the home must be included in the BG.
Stepparent in the home	All income is counted unless specifically excluded.
Disqualified or sanctioned BG member(s)	The income of any disqualified/sanctioned individual is counted, with allowable disregards, when budgeting TANF cash benefits for the remaining BG member(s). Income which is exempt from the budgeting process continues to be exempted for a disqualified/sanctioned individual.

1. Budgeting Cash Payments/Shared Living Arrangement

If a BG receives cash payments from any non-BG members who share responsibility for the BG expenses through an informal arrangement, the cash payment designated for household expenses is

not counted as income to the BG. This policy also applies when two or more BGs living in the same household have a shared living arrangement.

2. Verification

If a shared living arrangement is questionable, the BG and the non-BG member must sign a statement(s) indicating that household expenses are shared. A statement(s) secured for SNAP purposes will be acceptable.

3. Obligated SSI Payment

- In situations where a non-BG member who receives SSI is also obligated to pay rent, usually under a third-party agreement, and gives that specified portion to the BG to pay the landlord, that obligated amount will not be counted as income to the TANF recipient.
- Any amount given to the BG that exceeds the SSI recipient's obligated portion will be counted as unearned income. A copy of the agreement showing the obligated amount for each party must be in the case file.

EXCEPTION: *When the SSI recipient is a parent or child who would be in the BG if not receiving SSI, the policies stated above do not apply. All SSI income is disregarded in these situations.*

7.6 State Directory of New Hires

The State Directory of New Hires (SDNH) will provide information received from the Department of Employment and Workforce (DEW) on individuals who have recently become employed and are receiving TANF benefits. New Hire match is a part of the Comprehensive Inquiry in IEVS.

The information detailed on NEHI is as follows:

- Process Date
- SSN
- Source (listed as Federal or State)
- Chip Name
- DOB (as listed on CHIP)
- Hire Name
- DOB (as listed with Employer)
- Address (as listed with Employer)
- Hire Date
- Employer Number
- Employer
- Address (Employer)
- Phone Number (Employer)

Staff should access this information for all applications, reapplications, redeterminations, and when adding a person to the case.

1. Verification

The new hires information cannot be considered information verified upon receipt. Income and benefit information not considered verified upon receipt must be verified through other sources. The ES Worker must obtain independent verification by:

- A. Contacting the A/R in writing about the information which was received and requesting the A/R to respond within 10 days
- B. Contacting the appropriate source verbally or in writing to secure verification

2. Notification

Upon receipt of the independent verification, the ES Worker must properly notify the A/R of any action to be taken on the case. If the verification is not received timely, the ES Worker must send the A/R a timely notice for failure to cooperate in establishing continued eligibility.

3. SSN/Name Discrepancy

A situation may occur where the interface shows our A/R's SSN and someone other than the A/R's name on the NEHI screen. It is possible that the employer may be using an incorrect SSN for their employee.

In these situations, the ES Worker must send a DSS Form 1245, Request for Wage Information, to the employer indicated on NEHI requesting that the employer verify whether the A/R is employed and asking them to resolve any discrepancies in the SSN. Dependent upon the verification supplied by the employer, the ES Worker may need to contact the A/R for additional information regarding employment or may need to re-verify the SSN. If it is found that both individuals are using the same SSN, the A/R must be instructed to contact SSA to resolve this.

7.7 Sources of Income

The following chart details various sources of income and how they are to be treated in the TANF budget:

Income	Type	Count	Remarks
Adoption subsidy	Unearned	N	Exclude the child(ren)'s income and resources
Advances (on wages)	Earned	Y	
Advances, travel meals	Unearned	N	
Agent Orange payments made by Aetna Life and Casualty	Unearned	N	Exclude Federal Income CAUTION: Veterans' benefits authorized under the Agent Orange Act of 1991 are not excluded as income.
Agriculture payments	Earned	Y	Count total amount (annualize for self-employed BG).

Alaska native claims	Unearned	N	Exclude Federal Income-Alaska Native Claim Settlement Act
Alimony (spousal support)	Unearned	Y	
Blood (sale of)	Earned	Y	Self-employed
Board Payments	Earned	Y	Self-employed - Deduct verified actual costs of providing room and/or board and add remainder to other earned income. (See 8.8.8)
Bonuses	Earned	Y	Count as income if reasonably anticipated.
Capital gains (from sale of self-employment goods or equipment)	Earned	Y	Any capital gains income derived from the sale of raw material or machinery used by the self-employment enterprise is calculated by counting the amount of the capital gains, minus depreciation, as income. Add capital gains income to other self-employment income (averaged or anticipated).
Capital gains (other)	Unearned	Y	
Cash contributions	Unearned	Y	
Census income (temporary)	Earned	N	
Charitable donations (based on need from private nonprofit charitable organizations)	Unearned	N	
Child Care Scholarship payments for providing child care	Earned	Y	Child Care Scholarships paid to a provider on behalf of a BG member is not considered income to the client.
Child support/direct	Unearned	See Remarks	A BG may receive either voluntary or court ordered support directly from an absent parent (AP) or through the court. The amount of the support, excluding any court cost, is counted as unearned income. Child support paid to a BG member for a non-BG member—Count as unearned income for the BG except that amount

			given/expended for the non-BG member. - Child support paid to a non-BG member in the household for a BG member—Count as unearned income. NOTE: If Child Support is intended for a BG member and a non-BG member, the portion for the non-BG member should not be counted. - Child support paid to a non-BG member not in the household—Count only that portion made available to the BG. CAUTION: Child support arrearages are not considered in the calculation of prospective income unless the court has ordered the AP to pay the arrearage in increments added to the current month's obligation. Child support arrearages would then be counted in the month received.
Child support Gap payments issued by Child Support Services Division	Unearned	N	
Child Tax Credit Payment	Unearned	N	NOTE: Advance Child Tax Credit payments are early payments from the IRS of 50 percent of the estimated amount of the Child Tax Credit that an individual may properly claim on his/her 2021 tax return during the 2022 tax filing season.

College Assistance Migrant Program (CAMP) for student whose families are engaged in migrant and seasonal farm work	Unearned	N	Exclude Title IV Income
Senior Community Service Employment Programs under Title V of the Older Americans Act including but not limited to: *Green Thumb *Experience Works *American Association of Retired Persons *National Association for Spanish Speaking Elderly *National Council on Aging *National Council on Black Aging *National Council of Senior Citizens *National Urban League *U.S. Forest Service	Earned	N	
Community Service	Unearned	N	
Disability and Special Need Family Support Benefit	Unearned	N	
Disaster Relief and Emergency Assistance Amendments of 1988	Unearned	N	Exclude Federal Income
Domestic Volunteer Services Act of 1973, Title I	Earned	N	See also VISTA
Domestic Volunteer Services Act of 1973, Title II including but not limited to: *Foster Grandparents Program *Retired Senior Volunteer Program **Senior Companion Program Income	Earned	N	
Earned Income Credit (EIC) or Earned Income Tax Credit (EITC)	Earned	N	Tax refunds are excluded as income. This includes rebates or advance payment of tax credits such as the CARES Act payments of 2020.
Educational Assistance: Includes loans, grants, scholarships, fellowships, assistantships, work study, and veterans' educational benefits (federal and state). Does not include government issue (GI) Educational Benefits.	Unearned	N	Grants or loans to any undergraduate student for educational purposes made or insured under any programs administered by the Secretary of Education, except the programs under the Carl D. Perkins Vocational and

			Applied Technology Education Act, are excluded. Any student financial assistance provided to undergraduate, graduate or professional students under Title IV of the Higher Education Act of 1965, as amended, and under Bureau of Indian Affairs student assistance programs and used for educational purposes is excluded. Title IV aid includes (but is not limited to): Pell Grants, Stafford Loans, Plus Loans, Federal Direct Loans, Federal work study income, Bureau of Indian Affairs Grant Program, etc. Student financial assistance made available for the attendance costs under programs in the Carl D. Perkins Vocational and Applied Technology Education Act is excluded. Attendance costs are: tuition and fees normally assessed a student carrying the same academic workload as determined by the institution, and including costs for rental or purchase of any equipment, materials, or supplies required of all students in the same course of study; and an allowance for books, supplies, transportation, dependent care and miscellaneous personal expenses for a student attending the institution on at least a half-time basis, as determined by the institution.
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			<i>NOTE: Educational assistance obtained and specifically earmarked for current living expenses are not excluded.</i>
Family Self-Sufficiency (FSS) escrow accounts	Unearned	See Remarks	Exclude these accounts and any interest paid on them until the funds are paid to the BG.
Farm income	Earned	Y	Considered self-employment income if the farmer/fisherman is not an employee
Farmers Home Administration utility reimbursements	Unearned	N	
Federal Disaster Fund to farmers	Unearned	N	
Food assistance (value of) under Child Nutrition Acts	In-kind	N	
Food assistance (value of) under National School Lunch Act	In-kind	N	
Food commodities	In-kind	N	
Foster Care payments (including accelerated board payments)	Unearned	N	Exclude the child(ren)'s income and resources.
Gap payments	Unearned	N	
Garnished income	Earned or Unearned	Y	Earned from wages/salaries. Unearned from all other sources.
GI Educational Benefits	Unearned	See Remarks	Exclude cost of tuition and mandatory fees and count the remainder.
Gifts (of cash)	Unearned	See Remarks	Exclude if non-recurring and less than \$100/qtr.
Governmental rent/housing subsidies	Unearned	N	
Guardianship Subsidy	Unearned	N	Exclude the child(ren)'s income and resources
Home Energy Assistance payments	Unearned	See Remarks	Exclude payments or allowances including: *Energy assistance provided under any federal law *Federal or state one-time assistance for weatherization or emergency repair or replacement of heating or cooling devices *Energy assistance payments provided through the

			Department of Health and Human Services' (DHHS) Low-Income Energy Assistance Program and the Community Services Administration's Energy Crisis Assistance and the crisis Intervention Program.
Housing and Urban Development (HUD) payments	Unearned	N	
In-kind income/benefits	Unearned	N	
Income maintenance insurance (including disability insurance)	Unearned	Y	
Indian assistance from the Bureau of Indian Assistance, better known as Higher Education Grant Program or Scholarship Grant Program	Unearned	N	
Indian Claims Commission to the Confederated Tribes and Bands of the Yakima Indian Nation or the Apache Tribe of the Mescalero Reservation	Unearned	N	
Indian assistance from the Maine Indian Claims Settlement Act of 1980	Unearned	N	
Indian assistance from the disposition of funds to the Grand River Band of Ottawa Indians	Unearned	N	
Indian assistance awarded to the Red Lake Band of Chippewa Indians	Unearned	N	
Indian assistance for relocation to the Navajos and Hopis	Unearned	N	
Indian assistance awarded to the Assiniboine Tribe of the Fort Belknap Indian Community and the Assiniboine Tribe of the Fort Peck Indian Reservation	Unearned	N	
Interest, dividends and royalties	Unearned	Y	Up to \$400 per BG annually is excluded. Income above \$400 must be averaged over the period of the remaining 12 months.

Irregular or infrequent gifts or income	Unearned	See Remarks	Any non-recurring income not exceeding \$100 per quarter is excluded.
Jury duty	Unearned	Y	
Job Corps	Earned	N	
Job Creation (WtW)	Earned	Y	
Kinship Care	Unearned	N	Exclude the child(ren)'s income and resources.
Life Scholarships	Unearned	N	
Loans	Unearned	See Remarks	Any bona fide loans, from private individuals and commercial institutions, are disregarded in the eligibility and benefit determination.
Lost Wages Assistance Program	Unearned	N	Payments provided through the authority of section 408(e)(2) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act are excluded.
Lump sum payments	Unearned	See Remarks	Disregarded as income. See 6.7 Lump Sum Payments Liquid resources.
Military allotments	Unearned	Y	
Military payments	Earned or Unearned	See Remarks	Military housing and subsistence allowances are counted as earned income if shown on the individual's wage statement.
National and Community Service Trust Act (NCSTA) payments for: *AmeriCorps-NCAA *AmeriCorps-USA *Learn and Serve programs *The Senior Corps *The Youth Corps	Unearned or In-kind	N	
Non-recurring lump sum	Unearned	N	Treat as a resource.
On-the-Job Training (DSS)	Earned	Y	
On-the-Job Training (WIOA)	Earned or Unearned	See Remarks	Type of income must be verified. Dependent child: Disregard earned and unearned income. <i>CAUTION: A minor parent must be included as a dependent child to be eligible for this disregard.</i>

			*Count earned income with appropriate disregards. *Disregard unearned income payments for training expenses. *Case file must contain written verification from WIOA for the reason payments are made.
PASS-Amounts necessary for fulfillment of a plan for achieving self-support (PASS) under Title XVI of the Social Security Act	Unearned	N	
Payments for Indian tribes	Unearned	See Remarks	Exclude up to \$2,000 per year of income received by individual Indians that is derived from interests in trust.
Payments to protective payee	N/A	N	
Pension	Unearned	Y	See also Retirement Pay
Personal property (sale of car/boat, etc.)	Unearned	See Remarks	Exclude as income: treat as resource.
Radiation Exposure Compensation Act	Unearned	N	
Recoupments	Unearned	See Remarks	Money withheld from any income source to repay a previous overpayment from the same source is excluded.
Refugee Matching Grant (Lutheran Services and World Relief)	Unearned	See Remarks	Ineligible for TANF for 120 days from entry into country. NOTE: Cannot receive TANF and the Matching Grant simultaneously
Reimbursements	Unearned	See Remarks	Reimbursements for past and future expenses are excluded unless the reimbursement is for normal living expenses such as rent, mortgage, personal clothing and food eaten at home. If the reimbursement exceeds the expense, the gain or profit is counted as unearned income. Excludable reimbursements include, but are not limited to: 1. Reimbursements for job or training related expenses

			2. Reimbursements to volunteers for out-of-pocket expenses incurred in the course of their work 3. Medical or dependent care reimbursements 4. Non-federal reimbursements to students for specific educational expenses 5. Reimbursements received to pay for services provided by Title XX of the SSA.
Relocation assistance payments	Unearned	N	
Rent payments (directly engaged in management of property less than 20 hours per week)	Unearned	Y	Deduct cost of doing business (if appropriate).
Rent payments (directly engaged in management of property 20 or more hours per week)	Earned	Y	Deduct cost of doing business and appropriate earned income deductions. Count as self-employment.
Representative payee (client) funds received for care and maintenance of non-BG member	Unearned	See Remarks	Portion retained by representative payee for his/her benefit is counted as income. See SSA Benefits
Retirement Pay (Railroad Retirement, Civil Service, etc.)	Unearned	Y	
Retroactive payments (SSA, VA, etc.)	Unearned	N	Treat as a lump sum resource
Self-employment income	Earned	Y	Deduct cost of doing business and earned income deductions.
Severance pay	Unearned	See Remarks	Treat as a lump sum
Sick pay benefits paid by employer	Earned or Unearned	See Remarks	Count as earned income if the employee is to return to work. If not, count as unearned
Sick pay benefits from a non-employer	Unearned	Y	
SNAP benefits (value of)	In-kind	N	
SSA benefits	Unearned	See Remarks	Count gross amount. This includes Medicare premium

			but does not include recoupments. SSA benefits paid to a representative payee: *Secure and file a signed statement from the representative payee verifying the amount available to the BG in the case file. *Count only that portion actually paid to or used on behalf of the beneficiary by the representative payee. CAUTION: When a TANF payee is a representative payee for a non-BG member, the SSA benefits are excluded as income in the benefit computation unless the representative payee retains a portion of the funds for his/her personal use. The case file must contain a signed statement from the representative payee and the SSA beneficiary verifying the amount made available to the beneficiary.
Social Security (SSA/RSDI): employee's share of taxes paid by employer	Earned	Y	
SSI benefit	Unearned	See Remarks	Exclude the SSI recipient, his/her income, resources and SSI payments in determining benefits for other BG members.
Strike pay or benefits	Unearned	See Remarks	Any BG in which the parent (natural or adoptive) is involved in a strike is ineligible for TANF.
Sub-marginal Land Bill held in trust by the US	Unearned	N	Exclude Federal Income

Subsidized federal, state or local adoption or guardianship payments	Unearned	See Remarks	Exclude the child(ren), his/her income, resources and subsidized adoption payment or guardianship payment.
TANF payments	Unearned	N	
Third party/vendor payments	Unearned	Y	All vendor payments are excluded as income in the TANF Program except: 1. Wages earned by a BG member that are garnished or diverted by an employer and paid to a third party for a BG's expense are counted as income. 2. Trust funds paid to a third party are counted as unearned income if the BG can receive the funds directly, but requests payment to the third party.
Trade readjustment allowance	Unearned	Y	Count the same as unemployment compensation benefits (UCB).
Training allowances	Earned	N	
Training allowance - Work Experience, Work Training Allowance (WTA)	Unearned	N	
Transitional Child Care (TCC) paid to provider.	Earned	Y	
Travel advances	Unearned	N	
Tribal Development Assistance Revolving Loan Program	Unearned	N	
TRIO Grants (to organizations or institutions for students from disadvantaged backgrounds): *Upward Bound (some benefits go to students) *Student Support Services *Robert E. McNair Post-Baccalaureate Achievement Income	Unearned	N	
Unemployment compensation benefits (UCB)	Unearned	Y	This includes Pandemic Emergency Unemployment Compensation and/or Pandemic Unemployment Assistance.

Uniform Relocation Assistance and Real Property Acquisition Policies Act of 1970	Unearned	N	Exclude Federal Income
USDA Settlements to African American Farmers	Unearned	N	Treat as a lump sum payment
Vacation Pay	Earned	Y	Count actual/anticipated vacation pay in the month it is to be received.
Veterans Administration (VA) benefit	Unearned	Y	CAUTION: Exclude VA benefits when used for educational purposes to cover the cost of tuition and mandatory fees.
Victim's Compensation	Unearned	See Remarks	Disregard victim's compensation paid by the State Office of Victim's Assistance, (including any lump sum payment) for the first six months of receipt. EXAMPLE: Victim receives a lump sum in August for June, July and August and then receives a monthly amount. DSS will disregard all payments, including the lump sum received August through January.
VISTA, University Year for Action and Urban Crime Prevention Program (Title I of Domestic Volunteer Service Act of 1973 payments)	Earned	N	
Vocational Rehabilitation (VR) payments	Earned/Unearned	See remarks	Count earned income received for VR-OJT. Count earned income for work training. Allowance received for job readiness classes is excluded.
Wages, salaries, commissions and tips	Earned	Y	CAUTION: The earned income of a dependent child(ren) or a minor parent (included as a dependent) in the BG will be excluded.
Wartime relocation payments Income	Unearned	N	
Work Experience Program (WEP)	Unearned	N	

Work Training Allowance (WTA)- (DSS)	Unearned	N	
Workers' Compensation	Unearned	Y	
Workforce Innovation and Opportunity Act	Earned or Unearned	See Remarks	Dependent child: Disregard earned and unearned income CAUTION: A minor parent who is not a dependent child will not be eligible for the disregard of unearned income. Earned income of dependent children is disregarded. Adult: Count earned income with appropriate disregards. CAUTION 1: Disregard income payments for training expenses. CAUTION 2: Case file must contain written verification for the reason payments are made.

Chapter**8**

Chapter 8

Budgeting Procedures

8.1 Prospective Eligibility and Budgeting

All factors of eligibility shall be determined prospectively, and the monthly amount of assistance will be computed based on a best estimate of income and circumstances which will exist in the benefit month. This estimate shall be based on the Department's reasonable expectation and knowledge of current, past, or future circumstances.

The calculation of prospective income is based on the combination of the income received in the previous four consecutive weeks and any changes, which have occurred or are expected to occur in the BG's income up to the point of certification. Do not round at any step of the TANF calculation.

The ES Worker will use the following budgeting procedures to determine prospective income:

To determine representative income, verify all income received in the past 30 days (four consecutive weeks) prior to the file date. The file date is the date an application (initial or reapplication), redetermination form or reported change of income is received. If the pay for one or more of these weeks is not representative, disregard that week(s) of income. This would include pay dates in which the BG received income, which is significantly higher or lower than usual. Such a break or difference in income might be due to illness, a death, vacation, emergency, overtime, etc.

NOTE: The ES Worker must determine if non-receipt of income in the four-week period is representative.

A. Best Estimate

If it is impossible to verify the income, a signed and dated statement from the A/R may be used as a "best estimate". Document the case file with the reason this income verification is not available.

B. Receipt Date

To determine the number of times this income was received, use income receipt date (not pay period ending date).

C. Determining Average Income

Add the weeks of representative pay and divide the total income by the number of representative pay dates to obtain the average income per pay date.

D. Conversion Procedures

Multiply the average income per pay date according to the frequency of receipt:

Weekly income x 4.33

Biweekly income x 2.16

Semimonthly income x 2

Monthly income x 1

E. Income Intended to Cover One Year

Annualize the income and average over 12 months. For information regarding self-employment earnings ([See 8.8](#)) Earned Income/Self Employment

F. Income Intended to Cover Less than One Year

Income intended as support for periods less than a year but received less often than monthly, must be prorated over the period the income is intended to cover. For information regarding self-employment or contracted employment ([See 8.8](#)) Earned Income/Self Employment.

8.2 Change in Income

If the BG had no income in the previous four weeks and begins receiving income or has a change in circumstances, the ES Worker must determine and document a best estimate of monthly income based on the following actions:

1. Application/Reapplication

For application/reapplication, use actual or anticipated actual income for any month in which less than a full month of income is received. If a full month of income is anticipated, use conversion procedures. Use income received from the new source to determine average income and convert based on anticipated frequency of receipt.

2. Redeterminations

For redeterminations, a new source of income will not affect the month of report. Use averaged and converted income in the following months.

3. Changes During Receipt of Benefits

For reported changes, a new source of income will not affect the month of report. Use averaged and converted income in the following months, beginning with the month following the month in which the Notice of Adverse Action expires.

4. Concurrent Changes

If there is more than one change occurring at the same time resulting in a decrease in benefits, the change should not be made until the month following the notice of adverse action.

8.3 Determination of Benefits

A. Gross Income Limit. Gross monthly countable earned and unearned income of the TANF benefit group must not exceed 185 percent of the need standard by family size. The gross income limit is an initial screen of eligibility for assistance.

B. Earned Income and Unearned Income

1. Earned income means gross earned income prior to any deductions for taxes or for any other purposes. Such earned income may be derived from an applicant's or recipient's own employment, such as a business enterprise, or farming; or derived from wages or salary received as an employee. It includes earnings over a period of time for which settlement is made at one given time, as in the instance of the sale of farm crops, livestock, or poultry.
2. With reference to commissions, wages, or salary, earned income means the total amount, irrespective of personal expenses, such as income-tax deductions, lunches, and transportation to and from work, and irrespective of expenses of employment which are not personal, such as the cost of tools, materials, special uniforms, or transportation to call on customers.
3. With respect to self-employment income, earned income means the total profit from a business enterprise, farming, etc., resulting from a comparison of the gross receipts with the business expenses (i.e., expenses directly related to producing the goods or services and without which the good or services could not be produced). The profit shall be as determined using Internal Revenue Service methods. ([see 8.9 Self-Employment](#))
4. With regard to the degree of activity, earned income is income produced as a result of the performance of services by a recipient; in other words, income which the individual earns by his own efforts, including managerial responsibilities, would be properly classified as earned income, such as management of capital investment in real estate. Conversely, in the instance of capital investment wherein the individual carries no specific responsibility, such as where rental properties are in the hands of rental agencies and the check is forwarded to the recipient, the income would not be classified as earned income.
5. Unearned income is any income that does not meet the definitions of earned income above, such as direct child support, social security benefits, interest, dividends and gifts.
6. Unemployment compensation benefits are treated as unearned income in the budgeting process.

8.4 Verification

Verification of income is determined as follows:

1. Earned Income

Use available pay stubs, if representative or contact the employer to verify the following if pay stubs are not available:

- A. Hourly pay rates
- B. Pay dates/frequency of pay

C. Number of hours BG is expected to work each pay period

NOTE: *Under some circumstances, employers charge a fee for income verification. DSS does not pay for this verification. If no other source is available, an A/R statement may be used.*

2. Unearned Income

Use available verification (e.g., award letter, copy of check, etc.) if income has been received or contact income source to verify the following if verification is not available:

- A. Estimated amount
- B. Frequency of receipt

3. Terminated Income

If the BG reports income from a terminated source, the ES Worker must determine monthly income based on the actions in the following chart:

Reported	Treatment
Application/reapplication	Count actual income received in the month of application/reapplication, provided this is the last month the income will be received. Count converted income in the month of application/reapplication, if income from the terminated source will be received an additional month. Count any actual income to be received in the month following application.
Redetermination	A terminated source of income will not affect the month of report. Count any actual income to be received in the following month.
Changes	A terminated source of income will not affect the month of report. Count any actual income to be received in the following month.

8.5 Added Individual Treated as Applicant

An individual added to an eligible BG is considered an applicant in all respects, **except** for accrual rights. An application must be reviewed/signed before adding the individual. The income of the individual being added is budgeted prospectively.

CAUTION: *The ES Worker must test for prospective eligibility prior to inclusion of the individual in the new BG. The individual cannot be added to the new BG until he/she has been removed from the old BG (if appropriate).*

1. Budgeting an Added Individual

Add the individual's needs, income and resources in determining the BG eligibility effective the month following the month the change was reported or discovered.

2. Overpayment

If income and/or resources of the added individual causes an overpayment or ineligibility, recoupment is required for any month in which an overpayment or ineligibility occurred.

3. SSN Requirement

If the parent/caretaker relative refuses to cooperate with the SSN requirement or agrees but fails to follow through, benefits for the added individual begin on the date the requirement is actually met.

4. Accrual Rights

An individual required to be a BG member accrues rights to benefits as of the month following the month the change is reported or discovered and all other eligibility criteria are met.

8.6 Definition/Family Cap Child

A family cap child is a child born to a BG 10 or more months after a month in which the BG received TANF cash benefits.

The child's presence will not result in an increase in the TANF cash benefit; see "Exceptions to Benefit Cap" later in this section.

NOTE: *If a child is born to a TANF family member who is not included in the BG due to receipt of SSI, that child may also be considered a family cap child if born 10 or more months after a month in which the BG received TANF cash benefits.*

To determine if a child is subject to a family cap, the child's month of birth should be counted as month 10, and count backwards to month zero. If the BG received benefits in month zero, that child is not eligible for cash benefits. The DSS Form 1647, Family Cap Child Screening Tool, may be used to determine if a child is subject to a family cap.

EXCEPTION: *If the child was premature, the month of conception must be verified by a doctor's statement to determine if the BG received benefits. Month 0 will be less than 10 months.*

i.e. The child was born prematurely in August and a doctor verified the conception month was December. If the BG received benefits in December (month 0), the child is a Family Cap child.

NOTE 1: *If the family received benefits in month zero, and a child was born to a caretaker relative who was not included in the BG in month zero, the baby would not be considered a family cap child.*

NOTE 2: *If the BG received benefits in another state in month zero, that child is not a family cap child in South Carolina.*

NOTE 3: *If the BG was totally ineligible for month zero and the TANF cash benefits are being recouped, then that child is not considered a family cap child.*

1. Identifying Family Cap at Application

The ES Worker must determine if the child is subject to the family cap policy at application.

2. Family Cap Child Considered TANF Recipient

The family cap child will be considered a TANF recipient and processed as a mandatory BG member for all purposes except for money payments. Code DI CB in the participation field on SEPA.

NOTE: *If a family cap child is the only child in the home, the cash benefits should be terminated because no eligible child exists in the home. Use closure code CB.*

If a child support sanction is imposed for a family cap child, code the child DI CS in the participation field on SEPA.

3. Use of Vouchers

Vouchers may be used to pay for goods and services and support the needs of the child, in order to permit the custodial parent to participate in education, training and employment-related activities.

4. Exceptions to Benefit Cap

The benefit cap will not apply in the following instances:

- A. The child was conceived as a result of verifiable rape, sexual assault or incest.
- B. The child was conceived in a month when the TANF cash benefit case was closed.
- C. The child is the first-born (including all children in the case of a multiple birth) of a minor parent included in a BG.
- D. Parental custody of the child has been legally transferred. This includes:
 - 1. Legal transfer of custody or guardianship sanctioned by a state court
 - 2. Voluntary private placement of a child by his/her parent(s), which resulted in a legal transfer of custody or guardianship
 - 3. Placement made by DSS
- E. The child is no longer able to live with his/her parent(s) as a result of the following:
 - 1. Incapacity of the child's parent(s) as documented by a physician, such that the parent(s) cannot care for the child
 - 2. The custody of the child is legally transferred to another individual
 - 3. The child is no longer cared for by the parent or caretaker relative due to abandonment

8.7 Prospective Eligibility - Removing an Individual

When removing an individual from a BG, the ES Worker must test to see if the BG remains prospectively eligible based on the new BG's situation.

1. Budgeting – No Reduction in Benefits

If the removal of a BG member does not cause a reduction in benefits, remove the member and his/her income and deductions the month following the month of the reported change. The ES

Worker must send an increase or no change in benefits notice (whichever is appropriate) to verify receipt of the change.

2. Budgeting – Reduction in Benefits

If the removal of a BG member will reduce the benefits, a timely notice must be sent. The ES Worker must remove the member and his/her income effective the month following the reported change. If this is not possible, a claim must be established.

CAUTION: *If the change was not reported timely, a claim may need to be established for additional months.*

8.8 Child Support Income

Child support paid directly to the BG is budgeted in the TANF case until verification is received indicating that the absent parent is court ordered to pay the child support to CSSD. At this time, the court should begin sending the child support payments to CSSD.

1. Child Support Distribution

Payments on a support obligation collected by CSSD are distributed to the custodial parent (CP) of a TANF case in accordance with child support regulations. This distribution includes the calculation and payment of a Gap payment.

CAUTION: *If a BG is receiving child support through CSSD at TANF application, the amount distributed should not be counted as income. The automatic CHIP/CS interface will budget child support collected and distributed by CSSD as appropriate.*

2. Prospective Ineligibility/Child Support

When the BG starts receiving child support income through CSSD, the CSSD computer system interfaces with CHIP to determine “prospective eligibility” for TANF according to the amount collected by CSSD. If the BG’s total net income, which includes the “collected child support” amount, is greater than the need standard, the ES Worker will receive the alert, "Ineligible Due to CS Income". This alert means that the TANF case is prospectively ineligible according to CHIP, which will result in the closure of the TANF case.

3. Ineligibility Procedure

If the case appears to be prospectively ineligible, the ES Worker must take the following actions:

- A. Evaluate case situation
- B. Review prospective child support income on UNIN screen(s)
- C. Send timely notice as required
- D. Close case, if appropriate

4. Cash Benefits Terminated Due to CSSD

When TANF cash benefits are terminated due to information from CSSD-and the child support payment is not received, the case may be reinstated effective the month of closure.

5. Reinstatement Procedures

The ES Worker will take the following actions:

- A. Contact CSSD Financial Services to determine if a child support payment was issued.
- B. If the child support payment was not issued, review last application with the individual to ensure all information is current and correct.
- C. Reinstate case on CHIP.

CAUTION: *If change in income occurs, enter new/changed income on prospective screens and evaluate for continued eligibility.*

8.9 Self-Employment

Earned income from self-employment is the total profit from a business enterprise as calculated by subtracting the cost of doing business from gross income receipts.

1. Income Received Less Often than Monthly

Self-employment income received less often than monthly is annualized and averaged over 12 months. Individuals receiving self-employment income from a farm operation but who incur irregular expenses to produce such income have the option of annualizing these expenses.

NOTE: *1. No change in actual circumstances: Use last year's tax return or other source of verification and annualize to determine anticipated amount of income to be counted.*

NOTE: *2. Substantial increase/decrease in business: Use earnings from four weeks prior to application amount of income to be counted.*

2. Income Intended to Cover Less than One Year

Contracted or self-employment income intended as support for periods less than a year must be prorated over the period the income is intended to cover provided the income from the contract is not received on an hourly or piecework basis.

3. Capital Gains

Any capital gains income derived from the sale of raw material or machinery used by the self-employment enterprise is calculated by counting the amount of the capital gains, minus depreciation, as income. Add capital gains income to other self-employment income (averaged or anticipated).

4. New Business – Less than a Year

Average the income received from a business enterprise that has been in existence less than a year over the period of time the business has been in operation.

5. Budgeting Net Income/Self-Employment

To arrive at the net income to be budgeted, the ES Worker must consider any cost of producing the self-employment income by the BG.

6. Allowable Self-Employment Costs

The following list details allowable costs but is not limited to:

- A. Identifiable cost of labor (i.e., salaries, employer share of Social Security Insurance)
- B. Stock, raw materials, seed, fertilizer and feed for livestock
- C. Cost of feed for work stock
- D. Rent and costs of building maintenance
- E. Business telephone cost
- F. Cost of operating a motor vehicle required in connection with the operation of the business
- G. Interest paid to purchase income-producing property

CAUTION: *Principal is not an allowable cost.*

- H. Insurance premiums and taxes paid on income producing property
- I. Interest access fees incurred for businesses selling their goods through the internet
- J. Any other self-employment expense allowed by the Internal Revenue Service (IRS)
<https://www.irs.gov/pub/irs-pdf/p535.pdf>

7. Non-Allowable Self-Employment Costs

The following list details costs not allowed, but is not limited to:

- A. Payment on the principal portion of the purchase price on income producing real estate and capital assets, equipment and machinery
- B. Net losses from previous providers
- C. Cost of producing home produce intended for family consumption
- D. Family living expenses
- E. Entertainment expenses
- F. Personal debts
- G. Depreciation expenses (except those reported on a federal tax return)

8. Self-Employment Income from Boarders/Roomers

BGs that are in the business of taking in boarders, roomers, or who operate commercial boarding homes are considered self-employed. Treat the income as follows:

- A. Verify boarder/roomer payment
- B. Deduct verified actual costs of providing room and/or board
- C. This is the net self-employment income

NOTE: *If the ES Worker cannot determine that the A/R is in the business of providing boarding or lodging, count the income as a cash contribution with no earned income disregards.*

8.10 Treatment of Minor Parent Cases

Minor parents (unmarried) under the age of 18 are permitted to file applications for themselves and their child(ren) only if they meet the criteria outlined in “Benefit Group/Family Composition”. These BGs may consist of the minor parent and their child(ren) only. ([See 3.2.2](#))

NOTE: All earned or unearned income received by the minor parent must be considered when budgeting the case unless specifically excluded. (See 7.5)

1. Living Arrangement of Minor Parent

A minor parent (unmarried) under age 18 must live in the household of a parent, legal guardian, other adult relative or in an adult supervised living arrangement in order to receive TANF cash benefits. DSS will assist the minor parent in obtaining the necessary verification if one or more of the following exceptions exist:

- a. The minor parent has no living parent or legal guardian whose whereabouts is known.
- b. No living parent or legal guardian of the minor parent allows the minor parent to live in his/her home.
- c. The minor parent lived apart from his/her own parent or legal guardian for a period of at least one year before either the birth of the dependent child(ren) or the minor parent's having applied for benefits.
- d. The physical or emotional health or safety of the minor parent or dependent child(ren) would be jeopardized if they resided in the same residence with the major parent or legal guardian.

NOTE: The ES Worker will determine if this allegation is justified.

- e. There is otherwise good cause for the minor parent and dependent child(ren) to receive assistance while living apart from the major parent, legal guardian, another adult relative or an adult supervised supportive living arrangement.

CAUTION: Documentation of good cause includes, but is not limited, to written statements from at least two corroborating persons showing that it is not in the best interest of the minor parent to live with his/her parents or legal guardian or in an adult supervised supportive living arrangement. One of these corroborating persons should be a professional, such as a school counselor, social worker or mental health professional.

When this living arrangement is required for a minor parent under the age of 18, and his/her dependent child(ren), the TANF cash benefits must be paid when possible, to a protective payee.

2. Budgeting Income for the Minor Parent

Income in minor parent cases is budgeted as follows if the minor parent is under age 18 and unmarried:

A. Living with Parent / Deemed Income

Income of the parent(s), including stepparents, must be deemed to the minor parent BG. To calculate the amount to budget:

1. Add total gross income of the major parent(s)

2. Subtract the total amount of child support paid outside the home
3. Subtract gross income limit for the family size minus the minor parent and minor parent's child(ren)

NOTE: *The family size includes all dependents of the deemed parent(s) living in the home. Dependents temporarily absent may affect the family size.*

4. Add income remaining from the deeming computation to minor parent's countable income

CAUTION: *Remove the income deemed from the parent effective the month following the month the minor parent turns 18 years of age or gets married.*

B. Not Living with Parent

1. Verify and document any money received from parents, relatives or friends
2. Secure written, signed statements from potential contributors
3. Count cash contributions as unearned income

3. Special Minor Parent Budgeting Procedures

The following procedures must be followed for minor parents, under the age of 18.

- A. If the parent of the minor parent is an SSI recipient, do not deem the income of the parent
- B. If the parent of the minor parent has a child receiving SSI, that child is included in the family size in the deeming process

8.11 Child Support Deduction

The amount of child support an adult pays to an individual outside the household will be deducted as income to the BG if coded on CHIP screen EXNS.

1. Budgeting Child Support

Any child support paid outside the home will be subtracted from the gross earned income after any other budget calculations on CHIP.

If the BG has no earned income, the amount of child support paid will be deducted from any unearned income budgeted toward the BG.

2. BG with No Income

If the BG has no income, no child support deduction will be given.

8.12 Earned Income Disregards

1. Fifty Percent Disregard

Recipients may be entitled to a disregard of 50% of their earned income.

Recipients are eligible for the disregard for four months in a lifetime, provided they pass the gross income test. The disregard begins the first month earned income is budgeted for each individual in

CHIP, and is granted for the first four months that earned income is budgeted, regardless of the month of earnings.

NOTE: *Overpayments or underpayments due to incorrect months being given the 50% disregard will not be recalculated.*

2. Benefits Less than \$10

The disregard is considered received even when a benefit of less than \$10 results in no benefit.

3. Disqualified or Sanctioned Individuals

Disqualified or sanctioned individuals will have the disregard applied to any earned income budgeted.

4. \$100 Disregard

Recipients are eligible for a \$100 earned income disregard following the fourth month of the 50% disregard. This is a continuing disregard for all future months of eligibility in which earned income is budgeted.

5. Option to Refuse Disregard

Recipients will have the option to refuse the application of an earned income disregard in the budgeting procedure if the absence of disregards would result in termination of cash benefits. Termination of cash benefits for this reason would allow for eligibility of the same transitional services as if the cash benefits were terminated due to increased earned income.

NOTE: *This is not an option for the initial month of benefits.*

6. Receipt In Another State

Receipt of any disregards in another state does not affect the eligibility for the disregards in this State. Therefore, TANF recipients, who move to South Carolina from another state, may be eligible to receive the fifty percent and/or \$100 disregard in SC, even if they have received earned income disregards in another state.

8.13 Income Treatment for Disqualified /Sanctioned Individuals

The countable income of any disqualified/sanctioned individual is budgeted, with allowable disregards, when determining TANF cash benefits for the remaining BG member(s). Income, which is exempt from the budgeting process, continues to be exempted for a disqualified/sanctioned individual.

EXAMPLE: *A 17-year-old dependent child is employed, but has been sanctioned for not attending school. The earned income of the dependent child is excluded.*

8.14 CHIP Calculation

CHIP will calculate the amount of prorated benefits for the initial month.

1. Proration of Initial Month

The benefit amount for the initial month is prorated from the date of application. Proration also applies to individuals added to the budget. If the prorated benefit amount is less than \$10, no benefit will be paid.

2. Manual Proration Calculation

To calculate the prorated amount manually, use the formula below:

Prorated Benefit Equals (# of days in application month + 1) (- application date) (x full TANF benefit amount) (divided by # of days in application month)

Example:

Application date 10/08/2024
(31 days in October) 31+1= 32
32-8 (application date) = 24
24x344 (full TANF benefit amount for 2 persons) = 8256
8256 divided by 31(# days in month of application) = 266
\$266 is the prorated amount for initial month

8.15 Need Standard Table

The gross income limit, need standard and payment standard for TANF are revised each October 1st to reflect the annual adjustment to the Federal Poverty Guidelines. The current figures are prescribed in the table below.

Number in Benefit Group	Annual Federal Poverty Guidelines 2025	Monthly Federal Poverty Guidelines	200% Monthly Federal Poverty Guidelines	Need Standard (50% of poverty)	Gross Income Limit (185% of Need)	Payment Standard (40.46% of Need with no income)
1	\$15,650	\$1304	\$2608	\$652	\$1206	\$263
2	\$21,150	\$1762	\$3524	\$881	\$1629	\$356
3	\$26,650	\$2220	\$4440	\$1110	\$2053	\$449
4	\$32,150	\$2679	\$5358	\$1339	\$2477	\$541
5	\$37,650	\$3137	\$6274	\$1568	\$2900	\$634
6	\$43,150	\$3595	\$7190	\$1797	\$3324	\$727
7	\$48,650	\$4054	\$8108	\$2027	\$3749	\$820
8	\$54,150	\$4512	\$9024	\$2256	\$4173	\$912

NOTE: For family sizes over 8, \$229 is added to the need standard for each additional person. To determine the Gross Income Limit, multiply the Need Standard by 1.85 and drop the cents. To determine Payment Standard, multiply the Need Standard by .4046 and drop the cents.

NOTE: To be eligible, the BG must pass the gross income test and not exceed the need standard for the number of persons in the BG after budgeting earned income disregards.

8.16 Manual Benefit Calculation

Occasionally, it may be necessary for the ES Worker to manually calculate a BG's monthly benefits. The following procedures must be used when manually calculating TANF cash benefits:

- A. Determine the gross earned income (from employment and self-employment) of each person in the BG.
- B. Exclude the earned income of each dependent child and minor parent included as a dependent child BG member.
- C. Subtract from each person's income, 50% of any earned income, provided the person is eligible for this disregard.
- D. Subtract from the remaining earned income of any adult, the amount of actual child support paid outside the home.
- E. Add together the net earned income of each person included in the BG.
- F. Subtract from the unearned income, child support paid by any adult not deducted from the earned income in Step D.
- G. Determine the remaining unearned income of all persons in the BG and add it to the Income subtotal in Step E to arrive at the total net monthly income.
- H. Compare total net income to the total need standard for the number of persons in the BG.
 1. If net income is less than the total need standard, go to Step I.
 2. If net income is equal to or greater than the total need standard, send a denial notice.
- I. Subtract the total net monthly income in Step H from the total need standard for the number of persons in the BG, multiply the result by the percentage of need. No TANF cash benefits are made for less than \$10, unless when combined with a TANF supplemental payment the two total \$10 or more.

Chapter**9**

Chapter 9

Redeterminations and Changes

9.1 Definition/Redeterminations

A redetermination is a review of factors affecting eligibility and payment amount. Every TANF benefit group must have eligibility reestablished through an annual redetermination.

9.2 Redetermination Process

Redeterminations will be selected annually by CHIP. An interview must be conducted for each BG once every 12 months in order to complete the redetermination process.

Annual Redetermination Actions

The following describes actions required by the ES Worker on annual redeterminations:

1. The CHIP System generates a DSS Form 3807A, Notice of Expiration, to the client.
2. The client is required to complete and return the DSS Form 3807A to DSS by the specified due date (during month of redetermination).

NOTE: The client may come into the any county office, to complete a DSS Form 3807A, however, a DSS Form 3800 may be accepted in place of a 3807A.

3. When the DSS Form 3807A is received by DSS, the form will be registered in South Carolina Worker Input Network and Support (SCWINS) system and scanned into the Case Activity-Combo/TANF Annual Recertification/Redetermination folder.
4. Once the application is registered, the CHIP system will generate Interview Notice X095, TANF REDETERM/SNAP RECERT INTERVIEW, informing the client to call within 10 days.
5. A date set ten days out from the application file date will be automatically entered on CHIP INRD screen in the INTERVIEW DATE field. When the interview is conducted, the ES Worker should acknowledge the completion of the interview by coding CHIP INRD screen with a “Y” in the interview completed field and ensure the INTERVIEW DATE field reflects the actual date that the interview was completed.

6. When the interview is conducted, the worker will document information using the Interview Documentation Tool located in SCWINS. If SCWINS is unavailable, the DSS Form 1672, Interview Documentation Form for Applications/Recertifications/Redeterminations, will be used.

If a client visits any county office and requests a face-to-face redetermination interview, clerical will assign the interview to the next available worker in the county office. The interview may be conducted by:

- a. Allowing the worker to contact the client on an agency telephone, if available; or
- b. granting a face-to-face interview, if space is available.

7. Any information requested by the ES Worker during the Interactive Interview will be documented in the Documentation Tool in SCWINS.

8. The ES Worker will re-verify all eligibility requirements subject to change and any questionable information.

9. Update CHIP as required.

10. Send CHIP notification to recipient if additional information is needed.

11. Notify recipient of change reporting requirements

12. Explain and mail the required/appropriate pamphlets to recipient. If the client is interviewed in the county office, give and explain the required/appropriate pamphlets.

9.3 Authorized Representative

An authorized representative of the recipient's choice may represent him/her in the eligibility aspect of the redetermination process.

9.4 Failure to Comply with Interview

If the BG fails to file an application for annual redetermination, the CHIP System will automatically close the case at the end of the certification period using closure code CE (Certification Ended).

If the BG files an application for annual redetermination but fails to complete the interview process, the CHIP System will automatically deny the application using denial code FC (Failed to Complete Interview) and will generate a Failure to Complete TANF Interview Notice.

Once the cash benefits are terminated, the applicant may reapply at any time.

9.5 Review of Good Cause Domestic/Family Violence Waiver at Redetermination

A review of a good cause domestic/family violence waiver must be completed every six months. If

the individual is a victim of domestic violence, the CM should:

- A. Staff the case with the DVA
- B. Determine continued eligibility for waiver for the following program requirements:
 - 1. Work program requirements
 - 2. Child support requirements
 - 3. Time limit requirements

NOTE: *The determination of whether or not there is sufficient evidence to grant good cause for child support requirements will be made by the Economic Services Workflow Unit at initial application.*

9.6 Change of Payee

The ES Worker must take the following actions when a change of payee is required:

- A. Complete actions required under Annual Redeterminations
([See 9.2](#))
- B. Verify and document relationship requirements of child(ren) to new payee
- C. Determine if new payee should be included in the BG, and if so determine appropriate work requirements ([See 12.2](#))
- D. Complete child support referral process

NOTE: *If previous payee died and was eligible for an un-cashed check, the check may be endorsed "without recourse" to the payee's spouse or nearest adult relative by the county director. ([See 11.4](#)) Contact the Division of Finance for additional procedures when benefits are issued through ePAY. ([See 11.2.7](#))*

Change of Payee – Emergency Non-Relative

When it appears that a non-relative must be made the payee due to an emergency situation, the following actions must be taken by the ES Worker:

- A. Determine existence of emergency situation: sudden death, desertion or physical/mental illness of parent/caretaker relative
- B. Determine what plan is being made for the child (notify Child Welfare Services) ([See 13.12](#))
- C. Make change of payee to the unrelated caretaker pending final determination of child's placement

CAUTION: *The following conditions must exist:*

- 1. *The child is a recipient at the time the emergency arises*

2. *Payments are made only for a period of time necessary to carry out the development of a plan for the child's continuing care, usually no more than three months*

9.7 Reporting Changes

All recipients must report certain changes in their circumstances. A change may be reported to the ES Worker or the CM. A change in circumstances may require a recomputation of the prospective income to determine a best estimate of income anticipated to be received in future months. ([See 8.1](#))

NOTE: *For TANF recipients required to file a Mailed Recertification Form (MR) for SNAP purposes, treat the MRF as a change report for TANF purposes. Follow up on reported changes, verify information, if required, and enter changes into CHIP.*

1. Changes Which Must be Reported

Change in TANF cases must be reported within 10 days. The BG is only required to report a change in:

- A. BG composition
- B. Residence or address
- C. Employment status (starting or losing a job)
- D. Unearned income (amount or source)

2. Acting on Changes

Any changes in circumstances resulting in an increase in benefits must be made effective the month following the month the change is reported. Any changes in circumstances resulting in a decrease or ineligibility must be made effective the month following the expiration of the timely notice period.

The following chart describes changes and actions required by the ES Worker or CM:

Change	Required Action
Increased/Decreased Income (See 8.2)	Verify change in income. Enter changes into CHIP as appropriate and send notice of change of benefit level if benefits increase/decrease.
Addition of person to BG (See 8.4)	List new person on current or new application. Have recipient sign/re-sign and date application. Update most current application and verify all eligibility requirements. Complete DSS Form 3816C, Child Support Referral Custodial Parent Data, if appropriate. Determine Work Program requirements. Add new data to CHIP and send appropriate notice.
Removal of person from BG	Verify and document reason for removal. Determine effect of removal on remaining members' eligibility. Update CHIP as appropriate. Send appropriate notice and initiate recoupment, if appropriate.

Changes in BG composition: parent returns to home, marriage of payee, BG moves into another household	Document the date the change occurred/is reported. Verify and document the reported change. Update CHIP. Send appropriate notice and initiate recoupment, if appropriate.
Address change	Verify and document new address and BG composition. Update CHIP and send appropriate notice.
Approval for SSI	Verify SSI approval. Update CHIP to remove the SSI recipient from the BG and send appropriate notice.
Moving out of state	Determine if recipient is visiting or has abandoned residency. If recipient has abandoned residence: Update CHIP. Notify recipient of proposed closure and the ability to apply in the new state. If contacted by the new state, inform them of the date of closure. If recipient is visiting (See 3.7)
Closing the case	Verify closure reason. Obtain statement from recipient if he/she requested closure. Update CHIP. Send appropriate notice. Initiate recoupment, if appropriate.

3. Definition/Mass Changes

Changes initiated by the state or federal government, which may affect the entire caseload or significant portions of the caseload, are defined as mass changes.

Mass changes that may affect the TANF Program include, but are not limited to:

- A. Adjustments to net income eligibility standards
- B. Adjustments to income deductions
- C. Annual adjustments to SSA
- D. Periodic adjustments to TANF payments
- E. Other changes in the eligibility criteria based on legislative or regulatory actions

4. Verification at Redetermination

Elements of eligibility that have changed, as well as all questionable information, must be verified at redetermination. ES Worker must verify all information on IEVS. Accurate codes for Work Program requirements must be determined and re-entered. The ES Worker must also request proof of age-appropriate immunizations if not previously provided.

9.8 Notification Requirements

The ES Worker is required to notify recipients in writing when there is:

- A. A request for information to determine eligibility (the BG must be allowed at least 10 days from the initial request to provide the requested information)
- B. An increase in benefits
- C. A reduction in benefits
- D. A termination of benefits
- E. A change in the manner or form of payment to a protective payment

1. Timely Notice

A timely notice is a notice which must be mailed at least 10 days before the date the proposed action is to be effective when benefits are to be reduced or terminated.

The 10-day count is a strict calendar day count beginning the day after the notice is mailed. (Notices are not mailed on Saturdays, Sundays or holidays.)

NOTE: If the timely notice period ends on a weekend or holiday, a fair hearing request is timely if received the next working day.

Content of Timely Notice

The notice must contain the following information:

- 1. The proposed action
- 2. Reason for the proposed action
- 3. Fair hearing rights
- 4. Telephone number and name of person to contact for additional information

2. Adequate Notice

An adequate notice informs recipients of a reduction or termination no later than the date they receive or would have received their benefits.

A. Content of Adequate Notice

The notice must contain the following information:

- 1. The proposed action
- 2. Reason for the proposed action
- 3. Fair hearing rights
- 4. Telephone number and name of person to contact for additional information

B. Adequate Notice Situations

The BGs in the following situations must be notified of the reduction or termination of cash benefits no later than the date they receive or would have received their benefits:

1. The ES Worker has factual information confirming the death of the recipient or the TANF payee when there is no relative available to serve as the payee
2. The ES Worker receives a clear written statement signed by a recipient that he/she no longer wishes assistance
3. The recipient gives information, which requires termination or reduction of cash assistance, and the recipient has indicated in writing that he/she understands that this must be the consequence of supplying such information. This includes the cancellation of a check returned by a recipient when he/she requests in writing that his/her cash benefits be terminated
4. The recipient has been admitted or committed to an institution in which the individual is not eligible for TANF cash benefits
5. The recipient has been placed in skilled nursing care, intermediate care or long-term hospitalization
6. The recipient's whereabouts are unknown and DSS mail directed to him/her has been returned by the post office indicating no known forwarding address. The recipient's check must be made available if his/her whereabouts become known during the payment period covered by a returned check.
7. The recipient has been accepted for benefits in another state and that fact has been established by the county office previously providing benefits
8. An TANF child has been removed from the home as a result of a judicial determination or voluntarily placed in foster care by his/her legal guardian
9. The recipient will receive an increase in benefits.
10. When changes in either state or federal law require automatic benefit adjustments for classes of recipients, adequate notice of such benefit adjustments should be provided and includes a statement of:
 - a. The intended action
 - b. The reason(s) for such intended action
 - c. A statement of the circumstances under which a hearing may be obtained and benefits continued
11. When the Agency obtains facts indicating that assistance should be terminated or reduced because of the probable fraud of the recipient, and, where possible, such facts have been verified through collateral sources.

9.9 Reinstatement Situations

TANF benefits may be restored in the following situations:

- A. An application was denied in error
- B. Cash benefits were terminated in error
- C. A hearing decision determines that the BG was eligible
- D. The recipient begins compliance to cure a full family sanction during the month the CM initiates a full family sanction and the recipient completes the 30-day compliance period
- E. A case action review determines that the cash benefits were denied or terminated in error
- F. Requested information is provided or a request for a fair hearing is received within timely notice period
- G. Reinstatement procedures will also be used to restore cash benefits when a TANF cash benefit is terminated due to information from the Child Support Services Division, but the BG does not receive the child support payment in the month of termination of cash benefits

Chapter 10

Chapter 10 Benefit Time Limits

10.1 Types of Time Limits

TANF recipients in South Carolina have to meet both federal and state time limit requirements to be eligible for assistance. The federal and state time limit requirements have been in effect since TANF funding began October 1, 1996.

The Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA) requires states to limit the number of months a family receives assistance paid through the Temporary Assistance for Needy Families (TANF) block grant. South Carolina's time limit requirements are outlined in the Family Independence Act.

The months counted towards a family's time limit will be based on the adult (or minor parent head of household) in the BG who has received the most countable months of assistance. Changes in household composition may affect the family's time limit.

NOTE: *Months received as a dependent child do not count against the state or federal time limit if the individual applies as an adult.*

Special Time Limit Situations

Caretaker Relative	If the caretaker relative who is included in the BG reaches the time limit and is not eligible for an extension, remove the caretaker relative from the BG and continue benefits for the child(ren).
Minor Parents	Minor parents under the age of 18 receiving as a dependent child, whose benefits are terminated due to time limits, may apply for and receive benefits for themselves and child(ren).
Dependent Children	Dependent children, who have received benefits and whose cash benefits are terminated due to an adult reaching the time limit, may not receive cash benefits in the case of another caretaker relative unless determined to be abandoned. Months counted towards time limits as a dependent child do not count toward the individual's time limit as an adult.

10.2 Federal Time Limit

The federal TANF requirement has a five-year (60 months) time limit on all families containing an adult in the BG, with a 20% limit on those families who can be extended beyond the five years.

- A. Months in which the recipient is disqualified due to non-citizen status, fleeing felon, drug conviction, or misrepresenting residence does not count toward the federal time limits. Sanctioned individuals in an open case count toward federal time limits.
- B. Any TANF assistance paid in another state must be counted towards the TANF time limit.
- C. A minor parent, under the age of 18, in an adult's case may apply for benefits independently even though the adult's cash benefits terminated due to time limits. The federal time limit starts when the minor parent begins receiving his/her own TANF benefits, turns 18 or graduates from high school, whichever comes first.
- D. Individuals or BGs may be under one or both time limits simultaneously, and may lose eligibility based on either state or federal time limits, whichever occurs first. When a family is ineligible for TANF cash benefits due to federal time limits, use the closure code of "FL" on CHIP screen AFED.
- E. Any month in which a family cap voucher or transportation is paid to an unemployed TANF family not receiving TANF benefits due to less than 10 dollars, counts toward the federal time limit only. The following tracking codes must be used:
 - 1. Use tracking code "TO" on CHIP screen FITL when the case is open but zero benefits were issued and transportation assistance was provided.
 - 2. Use tracking code "FC" on CHIP screen FITL when the case was open but zero benefits were issued and a family cap voucher was provided.

Federal Hardship Exceptions

TANF legislation allows for up to 20% of the State TANF caseload to be extended beyond the federal 60 months, due to hardship or if the family includes an individual who has been battered or subjected to extreme cruelty.

If one or more of the following criteria are met, an extension beyond the 60th month should be given:

- A. A family member is a victim of family/domestic violence. In order to be eligible for this extension, a TANF family member must be in a program supervised by a recognized Domestic Violence Advocate. (CHIP extension code "HV")
- B. The family has an open case with Child Welfare Services. (CHIP extension code "HA")
- C. As a result of the Family Plan, an adult BG member is active in a recognized substance abuse treatment program. (CHIP extension code "HA")

- D. The family has reached the federal time limit but has not reached the State 24-month time limit due to months benefits were received in another state. Benefits may be extended to allow DSS to continue to work with the family in the Work Program until the State time limit is reached. (CHIP extension code "HA")

NOTE: This is an extension reason only. If an applicant is ineligible in another state due to a federal time limit, he/she must meet a SC time limit exception to become eligible for TANF.

- E. An adult in the BG is working a full-time job (30 or more hours a week) but is still eligible for a TANF cash benefit. (CHIP extension code "HA")

10.3 State Time Limit

The Family Independence Act limits certain BGs (those not meeting the state time limit exception criteria) receiving benefits from the TANF Program to 24-months in a 10-year period. These BGs may be eligible for a time limit extension.

When a family is ineligible for TANF cash benefits due to state time limits, use the closure code of "TL" on CHIP screen AFED.

Unless meeting a time limit exception, months in which the recipient is disqualified due to non-citizen status, fleeing felon, drug conviction, or misrepresenting residence count toward the state time limit. Sanctioned individuals in an open case count toward state time limits.

State Time Limit Exceptions

BGs are granted an exception to the State 24-month time limit for the following reasons:

- A. An adult TANF Family member is determined to be mentally or physically disabled, and the disability is expected to last 90 days or more (FAIP code DI). This exception is effective at the point in time the disability was diagnosed. If more than one adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household on FAIP unless he/she meets another exception reason. This also applies to a two-parent family with one SSI parent.

NOTE: A disability may be physical or mental, and must be verified by a physician or other health professional which include: Physician Assistants, Nurse Practitioners, Psychologists, Psychiatrists, Physical Therapists, and other professionals qualified to make a clinical diagnosis.

The medical incapacity is subject to reevaluation at intervals that are specific to each recipient's circumstances, at a minimum, at annual redetermination. (FAIP code DI, DC, or RH).

- B. An adult TANF Family member is providing full-time care for a disabled family member living in the home, whose disability and need for care have been verified by a physician or other health professional. (FAIP code RH.) If more than one adult is in the TANF

Family, code the other adult(s) AE-Adult in Exempt Household unless he/she meets another exception reason.

- C. The minor parent under the age of 18, has not completed high school and receives benefits for a child(ren). This also applies if both parents are minors in a two-parent household. Code the minor parent "MM" on FAIP until he/she turns 18 or completes high school. Once he/she turns 18 or completes high school, code "AD" on FAIP unless meeting another time limit exception. Assistance will be provided for a period of up to 24 months after the parent turns age 18 or completes high school, whichever occurs first.

NOTE 1: *The time limit does not apply to dependent children. If the minor parent is a dependent child, use FAIP code "CI".*

NOTE 2: *In a two-parent household if one of the parents does not meet the above criteria (or any other time limit exception), code him/her as "AD".*

- D. A BG member is a victim of family/domestic violence. To be eligible for this exception, the BG member must be in a program supervised by a recognized Domestic Violence Advocate.
- E. The caretaker relative is not the parent of the dependent child and is not included in the TANF cash benefits.

NOTE: *If the caretaker relative who is included in the BG reaches the time limit and is not eligible for an extension, remove the caretaker relative from the BG and continue benefits for the child(ren).*

- F. An adult TANF Family member is providing a home for and caring for a child(ren) whom the State has determined to be abandoned by his/her parents and for whom the alternative placement is foster care. (FAIP code AF.) If more than one adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household unless he/she meets another exception reason.
- G. Child Care or transportation is not reasonably available for participation in meeting work requirements. (FAIP codes CC and LT).
- H. An adult TANF member is involved in an approved training program which will not be completed by the 24th month may receive up to a six-month extension of benefits. No extension may be granted beyond the thirtieth month except with the express permission of the county director.

NOTE: *Any month in which the benefit is not paid due to it being less than \$10 will not count against the 24-month time limit.*

10.4 Benefits Received in Another State

TANF assistance received in another state does not count toward SC's 24-month time limit but does count toward the Federal 60-month time limit. A family that received benefits in another state but has not reached the Federal 60-month time limit may receive benefits up to 24 months in SC if otherwise eligible.

If the case closes for any reason after reaching the federal 60 months, but State 24 months have not been exhausted; the family is ineligible for any additional State months, unless the family meets a time limit exception.

Verification of TANF Benefits from Another State

During the application process, ask the applicant, and document, if he/she or any adult member of the BG lived in another state or US Territory since October 1996 and if so, if they received any federal TANF assistance.

1. Negative Response

If the applicant states that he/she or any adult member lived in another state or US Territory and the response is “**no**” during an initial application to indicate that TANF benefits were not received in the other state(s) or US Territory:

- A. Do not count any out-of-state TANF assistance months for this BG.
- B. Document the case record accordingly.
- C. Send DSS Form 1262, Benefits Inquiry, or contact the appropriate agency for verification of benefits. Do not delay case approval beyond 30 days while awaiting a response.

2. Positive Response

If the applicant states that he/she or any adult member lived in another state or US Territory and the response is “**yes**” during an initial application to indicate that TANF benefits were received in the other state(s) or US Territory:

- A. Ask in which county and state the assistance was received.
- B. Send DSS Form 1262 or contact the appropriate agency to determine the number of months benefits were received. Do not delay case approval beyond 30 days while awaiting a response.
- C. Enter countable federal time limit months as appropriate on CHIP screen FTTL using tracking code "AS" when verification is received.

3. Ongoing Cases

If an active BG is currently receiving TANF cash benefits in this State and it appears that an adult in the case may have received countable TANF months in another state any time after October 1996, send the DSS Form 1262 or contact the other state for verification.

4. CHIP Coding

Enter countable federal time limit months as appropriate on CHIP screen FTTL using tracking code "AS".

10.5 Tracking Codes

Tracking codes are entered on CHIP screen FAIP by the ES Worker to track the 24-month State time limit and the 60-month federal time limit.

- A. The first month/year the individual participates with the corresponding tracking code is the start month.
- B. The last month/year the individual participates with the corresponding tracking code is the end month.
- C. When no cash assistance was received in SC, the time limit tracking code must be added on CHIP screen "FITL". The FITL screen is accessed from the ELWM menu on CHIP and requires the individual's SSN or Client ID. FITL is also used to change the tracking code or the number of months tracked.

CODE	DESCRIPTION	COUNT STATE	COUNT FEDERAL
AD	Adult NOTE: Code 'AD' is exempt from the federal time limit when SEPA is coded: DI AL, DI FF, DI RE, DI DC	Y	Y
AE	Mandatory Adult (MA) when other adult DI/RH (EMPR must be MS)	Y	N
AF	Alternative to Foster Care	N	Y
AS	Receipt from Another State	N	Y
A1	Mandatory Adult (MA) when other Adult receives SSI benefits	N	Y
A2	Both Adults mandatory in 2 Parent household (EMPR must be MA)	Y	N
A3	RH/DC Adult when other Adult AE/DI (EMPR must be MS/IN)	N	N
CC	Child Care not available	N	Y
CE	Child Exempt	N	N
CI	Child included in BG	N	N
CO			
DI	Disabled Adult	N	N
DP	Deemed Parent	N	N
D1	Director Approval-Extended training extension NOTE: Time limit extension code	Y	Y
EP	Training program extension NOTE: Time limit extension code	Y	Y
FC	Family Cap Voucher only - (No TANF check)	N	Y
FV	Family Violence NOTE: Time limit extension code	Y	Y
HA	Hardship Extension NOTE: Time limit extension code	Y	N
HV	Hardship Violence extension NOTE: Time limit extension code	Y	N

LT	Lack of Transportation	N	Y
MM	Minor Mother	N	Y
RH	Caring for Disabled	N	Y
RM	Restore Month	N	N
RS	Restore State Month	N	Y
SF	State & Federal Extension NOTE: Time limit extension code	Y	N
TO	Transportation Only - (No TANF check)	N	Y

Adjusting Time Limit Tracking Codes

When it is discovered that tracking codes are incorrect on FAIP/FAIH, the tracking code must be corrected for the appropriate months on the FITL screen.

- A. When correcting time limit cases coded in error due to disability, the system should be adjusted (coded DI) back to the point in time that a disability was diagnosed or other exemption verified.
- B. When an application is determined to be denied in error, the case should be reverted to open and benefits authorized from the date of application so that the tracking of months will be accurate.
- C. If a client returns a check to be canceled, the month should be restored. Restoring a month of benefits on CHIP requires a tracking code be changed to "RM" on screen FITL.

10.6 Reapplication Due to Time Limit Exceptions

Individuals who reapply for benefits after a termination of cash benefits due to the 24-month limit may be eligible to receive TANF cash benefits again by meeting and verifying one of the following exception reasons:

1. Disability

An adult TANF Family member is determined to be mentally or physically disabled, and the disability is expected to last 90 days or more (FAIP code DI). This exception is effective at the point in time the disability was diagnosed. If more than one adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household on FAIP unless he/she meets another exception reason. This also applies to a two-parent family with one SSI parent.

A disability may be physical or mental, and must be verified by a physician or other health professional which include:

- A. Physician Assistants
- B. Nurse Practitioners
- C. Psychologists
- D. Psychiatrists
- E. Physical Therapists
- F. Other professionals qualified to make a clinical diagnosis

2. Required in the Home (RH)

An adult TANF Family member is required in the home to provide full-time care for a disabled individual living in the home, whose disability and need for care have been verified by a physician or other health professional. (FAIP code RH.) The medical incapacity is subject to reevaluation at intervals that are specific to each recipient's circumstances, at a minimum, at annual redetermination. If more than one adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household unless he/she meets another exception reason.

3. Caretaker Relative

The caretaker relative is not the parent of the dependent child and is not included in the TANF cash benefits.

NOTE 1: *If the caretaker relative who is included in the BG reaches the time limit and is not eligible for an extension remove the caretaker relative from the BG and continue benefits for the child(ren).*

NOTE 2: *A caretaker/relative caring for children who have been abandoned may be eligible for TANF.*

Use the appropriate time limit tracking code (DI, RH, MM, AE, AF, CC, LT) on CHIP screen FAIP.

4. Domestic/Family Violence Waiver Criteria

Individuals who are victims of domestic/family violence who reapply for benefits after a termination of cash benefits due to the 24-month time limit may be eligible to receive TANF again if all of the following conditions are met:

- A. The domestic/family violence situation is verified in one of the following ways:
 1. Proof of services from or referral by a domestic/family violence agency
 2. A temporary protective order
 3. A law enforcement report of domestic/family violence
 4. Documentation of domestic/family violence from an agency, professional, friend, or relative from whom the individual has sought assistance in dealing with domestic/family violence.

NOTE: *In the absence of documentary evidence it is acceptable to obtain the applicant's signed statement that he/she is a victim of domestic/family violence.*
- B. At least one TANF program requirement is being waived due to a current domestic/family violence situation in the applicant's life. If the waiver is due to non-cooperation with child support for domestic/family violence, the determination of whether or not there is sufficient evidence to grant good cause will be made by the Economic Services Workflow Unit.
- C. A Family Plan is developed which includes the requirement that the individual must cooperate with the Domestic Violence Advocate Agency.

D. DSS Form 3734, TANF Domestic Violence Waiver Assessment, is completed.

NOTE: *In the event an applicant meets one of the time limit exceptions and meets criteria to receive a DV waiver, the 24-month time limit exception policy takes precedence.*

Use CHIP Code FV, "Family Violence" on FAIP for reapplications that occur after the expiration of the 24-month time limit.

10.7 Chip Code Changes During Extension

If the client's status changes during an extension period from being eligible for an extension to meeting an exception to the time limit, it will be necessary to change the extension tracking code to the correct exception code on FAIP.

1. Ineligible After 24th Month for Other Reasons

If the BG is eligible for a time limit extension and becomes ineligible for TANF cash benefits for a reason other than time limits or failure to cooperate with the work requirements, close the case on CHIP using the closure code which best reflects the closure reason.

The closure notice should indicate that the BG's time limit for TANF cash benefits has expired.

2. BG Requests Closure After 24th Month

If the BG requests termination of TANF benefits after the 24th month of time-limited benefits has expired, use the "TL" (State Time Limit) closure code.

10.8 Reapplication After 10-year Time Period

Family Independence Act limits certain BGs (those not meeting the State time limit exception criteria) receiving benefits from the TANF Program to 24 months in a 10-year period, beginning in October 1996. The tracking of the 10-year period is done based on a "rolling" clock. This means that the time calculation for tracking the 10-year time frame (120-month period) may change in any given month. In order to determine if a family is eligible to receive TANF benefits within a 10-year period, the ES Worker must review the FITC screen.

The first potential month of eligibility will be shown on CHIP CAP2 screen for cases that are in a closed status with a TL (time limit) closure code.

Chapter**11**

Chapter 11

Benefit Issuance Procedures

11.1 Benefit Issuance

TANF benefits may be issued in the form of a check or electronically into a payment account. Recipients that are subject to electronic issuance must have specific demographic information available on CHIP for the Primary Informant (PI). If the demographic information is not available for the PI, the recipient will be issued a check.

1. Required Demographic Information for Electronic Payments

The following information is needed by the vendor, Conduent, to establish debit accounts:

- A. PI's name
- B. PI's SSN
- C. PI's mailing and/or residence address
- D. PI's date of birth

2. Identifying Benefit Issuance

Workers will be able to identify the benefit issuance method by reviewing the warrant number on the AFDC Issuance History (AFIH) screen on CHIP. If the warrant number starts with a "C", the benefit was issued to the Electronic Payment Card (EPC). An EPC is a debit card issued and maintained by a third-party brand.

11.2 Electronic Benefit Issuance

An EPC will be setup as the payment method for TANF recipients when required demographic information is available in the CHIP system. [\(See 11.1\)](#). The debit account is called ePAY. Benefits will be deposited monthly into the debit account for eligible recipients. The only deposits allowed in the ePAY accounts are funds deposited electronically by DSS. A debit card will be issued and must be used to access funds deposited into the ePAY account. These ePAY deposit accounts are governed by the FDIC banking regulations.

TANF benefits are deposited into the account 2 days after case approval for newly approved cases. For ongoing cases, benefits are available the 1st of each month.

The following cases are not eligible for Electronic Issuance:

- A. Protective Payee cases – benefits are paid to someone other than the TANF recipient.
- B. Some child only cases – no adult is included in the payment amount.

NOTE: *Child only cases with the required demographic information on the CHIP system will receive benefits electronically.*

1. ePAY Debit Cards

The ePAY debit card is used to access monies which are deposited into an ePAY account by DSS. The ePAY debit cards are plastic and have the MasterCard logo. The ePAY debit cards can be used at location(s) that accepts MasterCard (exceptions apply, [see 11.2.3](#)).

Cards are created and mailed to the recipient within 7-10 business days of case authorization in the following situations:

- A. Initial case approval
- B. New PI has been identified in CHIP
- C. Protective Payee has been removed from CHIP

All ePAY debit cards are mailed from the vendor. The cards that are undeliverable by the US Postal Service will not be forwarded to the county or State DSS offices but will be returned to the vendor.

The ePAY debit card is still valid after the TANF case closes. The card may be used after a case closes and benefits remain in the account. If the client reapplies after case closure, a new ePAY debit card will not be issued unless one is requested by the recipient.

NOTE: *The ePAY debit card has no link to the SNAP EBT card.*

2. ePAY Debit Card Activation

The recipient must activate the ePAY debit card prior to initial use. To activate the ePAY debit card, the recipient must:

- A. Call Customer Service at 1-855-270-4445
- B. Have the ePAY debit card in hand; Must give card number
- C. Know social security number
- D. Know date of birth
- E. Select a 4-digit Personal Identification Number (PIN)
- F. Sign name on back of card in ink. (Signature included as step 2 under activation steps; probably as a measure of reminding clients that without signature, card cannot be used.)

3. ePAY Access

The ePAY account is a debit account and is subject to banking rules. DSS staff will not have access to information regarding individual card usage. Recipients have the right to make their own

decisions on how to use the TANF cash benefits. Due to the Middle Class Tax Relief and Job Creation Act of 2012 (P.L. 112-96) states are required to maintain policies and practices that restrict the access of TANF funds by electronic benefit transaction.

A. TANF benefits are not to be accessed by electronic transaction using a point-of-sale (POS) device, automated teller machine (ATM) or an online system to withdraw funds or process a payment for merchandise or a service at any of the following locations:

- Liquor Stores – this means any retail establishment that primarily sells intoxicating liquor;
- Casinos, gambling casinos, or gaming establishments; and
- Businesses that provide adult-oriented entertainment in which performers disrobe or perform in an unclothed state.

Use of TANF benefits at these locations are subject to South Carolina Penalties.

B. Federal law requires the agency to ensure that clients have adequate access to their TANF benefits. If a client says there is no place other than a prohibited location where they may use or access their TANF benefits, it is the responsibility of the agency to explore options with the client for using and accessing TANF benefits in a transaction. Consideration of the client's strengths and barriers should be noted since adequate access to TANF benefits may vary on a case-by-case basis. If determined that a client does not have adequate access to TANF benefits, a paper check may be issued.

Email the client's name, case number and reason for proposed change in issuance to the Division of Finance.

4. ePAY Transaction Penalties

The use of an ePAY card to withdraw TANF benefits or process a payment for merchandise or service in the locations listed in section 11.2 #3A is prohibited. The transaction amount will be considered an overpayment and a claim must be established against the household and the claim investigated by DSS Benefit Integrity staff. The Benefit Integrity staff work in conjunction with the DSS Law Enforcement agents to obtain required bank transaction records to establish the claim.

When the agency receives a report of access or use of TANF benefits in a prohibited location, the worker is required to:

- A. Complete a DSS Form 1680, Possible Claim Referral Form, and follow referral procedures outlined in Chapter 20, Recipient Claims
- B. Forward a copy of the report to the Division of Finance for additional investigation.

If a client is found to be in violation the recipient's issuance will be changed from an ePAY debit card to a paper check. The Economic Services Worker (ES Worker) will send an appropriate notice to the client indicating how future benefits will be issued.

NOTE: *If it is determined that benefits are not used in the best interest of the child(ren), a protective payee should be considered. [\(See 11.3\)](#)*

5. Non-Receipt of ePAY Debit Cards

If the county receives a report of non-receipt of the ePAY debit card, the ES Worker must research and verify the following:

- A. TANF benefits have been authorized
- B. The mailing address is correct on CHIP
- C. There has been sufficient time between approval and issuance 7-10 business days.

If the research shows that all required actions are correct in the CHIP system, the ES Worker will refer recipients to www.GoProgram.com. Recipients can also contact the customer service helpline for additional assistance, 1-855-270-4445. Fees may apply.

6. Electronic Issuance Notice Requirements

A notice is sent to recipients upon case approval through the CHIP system. The Economic Services Worker will make a selection on the appropriate notice to indicate how benefits will be issued. The notice informs the client when to expect a paper check or the ePAY debit card for electronic benefits.

7. Special Issuance Situations

There are situations where benefits are authorized for a payee but because of circumstances, a change is necessary. Benefits deposited into an ePAY account are governed by banking regulations and cannot follow the cancellation and reissuance procedures outlined in Section 11.4. The ES Worker should contact the Division of Finance for additional procedures when benefits are issued into an incorrect ePAY debit account.

11.3 Protective Payee

A protective payee is an individual, other than the parent or caretaker relative, who is interested in or concerned with the welfare of the recipient and assumes the responsibility to assure that TANF cash benefits are spent for the needs of the family.

1. Protective Payee Situations

The following chart describes the general policies governing protective payments in these situations:

Protective Payee Reason	General Policies
Failure, inability or mismanagement of funds	TANF cash benefits may be paid to a protective payee when the parent/caretaker relative fails to use benefits in the best interest of the child. This occurs when the parent/caretaker relative has misused funds to the extent that a threat to the health or safety of the child exists. The eligible parent/caretaker relative's needs are not removed from the budget. ES Worker/CM must provide the parent/caretaker relative counseling services aimed at

	improving money management. The protective payment is terminated when the parent/caretaker relative is considered able to manage funds. (See 3.6.2)
Minor parent, under the age of 18	When a minor parent under the age of 18 meets the eligibility criteria and is eligible for TANF benefits, the benefit must be paid to a protective payee, whenever possible.
Drug related conviction	When the parent or caretaker relative has a drug related felony conviction, the benefit must be paid to a protective payee.
Fleeing Felon	When the parent or caretaker relative is a fleeing felon, the benefit must be paid to a protective payee.

2. Review of Protective Payment Cases

The representative payee may be removed when the parent/caretaker relative is considered able to manage the benefits. Protective payee cases will be reviewed at least every 12 months to determine if a protective payee should continue.

3. Dual Responsibility

The individual who agrees to act as protective payee for a recipient assumes a dual responsibility to the recipient and to DSS. In accepting an appointment, the protective payee assumes the obligation to see that the TANF payment is spent for the benefit of the family and to work cooperatively with DSS in fulfilling this role.

4. Non-Responsibilities

The protective payee is not responsible for:

- A. Providing eligibility information
- B. Reporting changes
- C. Completing the application

5. Criteria for Selecting Protective Payees

The following chart shows criteria used in selecting individuals to be protective payees:

Criteria	Actions Required by Protective Payee
Interest or concern in the welfare of the family	Demonstrate interest in the well-being of a BG by regular and frequent visits, efforts to help at times of crisis and evidence of friendship beyond that of ordinary neighborly concern.
Ability to help the family make proper use of the benefits	Have ability in ordinary household budgeting, experience in purchasing food, clothing and household supplies within a restricted income, and the knowledge of effective household practices.

Accessibility to the family	Work closely with the recipient in matters concerning the daily needs of the BG. The protective payee must be geographically close or have transportation to maintain close contact with the recipient.
Ability to establish and maintain a positive relationship with the family	Inspire confidence to increase a recipient's ability to manage household affairs adequately. The individual receiving the payment must offer help within the context of a positive relationship, one that motivates a desire for change and the acquisition of new skills.
Good character and reliability	Handle money vital to the BG's well-being and deal with highly confidential family information. The protective payee must be responsible and dependable.

6. Notice Requirement for Protective Payee

Protective payees will be selected by the recipient or with his/her consent to the extent possible. When a decision is made that payment must be made to a protective payee, the recipient must be notified in writing.

7. Opportunity for Fair Hearing

A 10-day advance notice must be given before the form of payment is changed. The recipient must be given the opportunity for a fair hearing both on the determination that payment must be made as a protective payment and the selection of the protective payee.

8. DSS Personnel as Protective Payee

If a DSS staff member is to be the protective payee, it is preferable that a person be chosen from the Child Welfare Services staff.

9. Exceptions

A protective payee may be any person interested in the recipient's welfare except:

- A. The director of the county office
- B. The CM/ES Worker responsible for the case
- C. Any staff member handling fiscal processes related to the individual case
- D. Landlords, grocers or other vendors of goods or services dealing directly with the recipient

CAUTION: A protective payee may not be paid for his/her services or be included in the benefits.

10. Procedures for Assigning Protective Payees

When it is determined that a protective payee is needed, the protective payee and ES Worker must complete and sign DSS Form 1220, Protective Payee Authorization/Agreement, and forward the document to the ES Worker's Supervisor or appointee for approval.

CAUTION: The ES Worker must retain a copy of the DSS Form 1220 in the case file.

11. ES Worker Action to Remove a Protective Payee

If there is a change in household circumstances and the protective payee is no longer needed, the name of the protective payee must be removed from the AFDC Payee field on CHIP screen ADDR. Once this action is completed, CHIP will generate an ePay card with the PI's name. The card will be mailed within 7-10 business days to the address listed on CHIP screen ADDR. The previously identified protective payee will no longer be issued a paper check.

11.4 Endorsement of Checks

There are situations where an individual other than the payee needs to endorse the check. Based on the reason, the following chart shows the procedures, which should be used:

Reason	Procedure
Death of recipient	1. When a TANF payee dies on or before the first day of the month for which a benefit check has been issued, the check may be endorsed "without recourse" to the payee's spouse or nearest adult relative by the county director. 2. Endorsement is accomplished by having the following statement typewritten single spaced on the reverse side of the check in the top 1 ½ inches: (Name of Client)____, died on____(MMDDYY of Death)____therefore, in compliance with S.C. Code, Title 43, 5-200 (1978), is payable to____(Name of Spouse/Relative) without recourse. (Name and Title of County Director)____(Endorsement of Spouse/Relative)____ This statement authorizes the bank to cash the check without liability for doing so.
Emergency situation	When emergency situations arise and the recipient is incapable or unavailable to cash a benefit check (i.e., hospitalized, jailed, etc.) the county probate judge may issue an order authorizing a guardian or other person to endorse the check. When this is not possible, it is necessary to return the check to the State DSS office for re-issuance in the name of the spouse, legal guardian or other responsible person.

1. Cancellation of Check

In the two situations below, the check must be canceled and reissued in the correct amount based on the new situation:

- A. Death, desertion or commitment to a public institution of a TANF payee before the first day of the month for which the check is issued when the new payee is ineligible to be included in the TANF benefit but the child(ren) remains eligible.
- B. Removal of a TANF child from the home before the first day of the month for which the check is issued and his/her placement in foster care when the other child(ren) in the home remains eligible.

2. County Procedures for Check Reissuance

When a check must be canceled and reissued, the county must follow the procedures listed below:

- A. Stamp "cancel" on the face of the check and send a DSS Form 1104, Request for Cancellation of Check, to DSS Treasury.
- B. Make corrections on appropriate CHIP screens when alert message, "MM/YY/AF benefit canceled", is received
- C. Recalculate the benefit month of cancellation and authorize benefits.

3. CHIP Procedure

CHIP will send reissued checks to the current specified relative rather than the previous payee.

If a recipient does not receive a TANF check, or if the check is lost, stolen or destroyed prior to cashing, the ES Worker may authorize a replacement check in the amount of the original check.

4. Time Frames for Replacement

The courts have directed that the recipient must receive a replacement check within 20 days after notification of non-receipt when the check has not been cashed or 30 days if the check has been cashed. The ES Worker must complete the following procedures as soon as possible after the report of non-receipt.

- A. If check is outstanding on CHIP screen AFIH, ES Worker keys in non- receipt information on Screen NORR. This action notifies the Division of Finance to stop payment on the check and automatically requests replacement of the non-received benefits.

EXCEPTION: *Non-receipt can be deleted prior to the close of business the day it is entered, if necessary.*

- B. If screen AFIH indicates check has been redeemed, ES Worker completes and forwards DSS Form 1101, Request of Check Copy, to the Division of Finance.
- C. Division of Finance sends copy of the cashed check and DSS Form 1144 to the county office.
- D. ES Worker contacts recipient to verify endorsement. The ES Worker must impress on the recipient that false statements may constitute fraud for which legal action may be taken. If the ES Worker and recipient agree that the signature is not that of the recipient, a DSS Form 1152A, Client's Affidavit, must be signed by recipient and ES Worker, and must be notarized.
- E. Recipient must file a police report indicating the endorsement is fraudulent and must provide a copy of the report to the ES Worker.
- F. ES Worker sends copy of check, DSS Form 1152A and DSS Form 1144, with Section A completed to the Division of Finance.
- G. Division of Finance sends replacement check and form letter DSS Form 1107 to the county office.

CAUTION: *The ES Worker should not handle returned checks.*

- H. Recipient signs DSS Form 1107 in return for replacement check.
- I. DSS Form 1107 is returned to the Division of Finance
- J. If the ES Worker believes the signature to be that of the recipient, procedures found in Chapter 4 of the Finance Policy and Procedure Manual must be followed.

11.5 Returned Benefits/Undeliverable

When a TANF check is returned to the county office as undeliverable, the returned benefit can be recorded in CHIP on screen RERB (Returned/Redirect Benefits) as returned (RT/UD). If the benefit is then reissued by the county to the client, either in person or by mail, the reissuance (RM-reissued manually) can be recorded on the RERB screen as well.

Chapter 12

Chapter 12

TANF Work Program Requirements

12.1 Purpose of the TANF Work Requirements

The TANF Work Requirements are designed to assist TANF recipients to become employed and increase or improve self-sufficiency.

The TANF Work Requirements are based on a reciprocal agreement between the TANF recipient and DSS. All adults and minor parent head-of-households must complete and sign a Family Plan. All TANF Work Eligible Individuals (WEI's) must also sign an Individual Employment Plan (IEP) which describes the actions he/she must take and the time frame required to become employed. DSS agrees to assist with needed services to aid in the employment process.

NOTE: Refusal or failure of WEI's to cooperate in the development of the Family Plan without good cause will result in case closure. Closure for failure to develop the Family Plan applies to new approvals or re-applications for WEI's. The conciliation process outlined in Chapter 17 must always be followed after the Family Plan has been signed by the WEI.

12.2 WEI-Subject to TANF Work Requirements

All TANF Work Eligible Individuals (WEI) are subject to TANF Work Requirements. A WEI is an adult or minor parent head-of-household receiving assistance under TANF or a disqualified or sanctioned individual living with a child receiving such assistance. These include:

- A. Adults/minor parent head-of-households
- B. Adults/minor parent head-of-households sanctioned due to SSN or child support requirements

- C. Adults/minor parent head-of-households disqualified due to felony drug conviction after August 22, 1996
- D. Adults/minor parent head-of-households identified as a fleeing felon after August 22, 1996

NOTE: *Work Eligible Individuals should begin participation in the TANF Work Program as quickly as possible after case approval. Individuals approved prior to CHIP cutoff count in the TANF denominator for the “full weeks” remaining in the report month after the approval date. If approved after CHIP cutoff the individual will not be included in the participation rate until the next month.*

NOTE: *A “full week” is defined as a complete Sunday through Saturday week as displayed on most calendars.*

The following individuals are excluded from TANF Work Program requirements:

1. A minor parent who is a dependent in the BG
2. A Family with two or more parents in the BG
3. A non-citizen who is ineligible to receive assistance due to his or her immigration status.
4. Individuals with incapacity lasting 90 days or more

NOTE: *The medical incapacity is subject to reevaluation at intervals that are specific to each recipient’s circumstances, at a minimum, at annual redetermination (FAIP code DI, DC or RH).*

5. A parent providing care for a disabled family member living in the home. A medical statement from a physician must support the need for care.
6. While this individual is exempt as work eligible, he/she must be coded “RH” on the EMPR screen and referred to the Case Manager for development of the Family Plan. When coded “RH”, the disability of the person in need of care must be for a minimum of (90) days.

NOTE: *To meet the exception for required in the home, the caretaker must provide written verification from a medical practitioner that they are required to be the caretaker of the disabled family member.*

The following definitions apply when determining who qualifies for the “RH” exclusion:

1. A family member is defined as an individual related to any member of the benefit group by blood, marriage or through legal documents.
2. An adult is defined as an individual age 19 or older or 18 years old if not attending fulltime secondary school or the equivalent or an individual 16 to 18 years old legally emancipated by marriage or legal action.

3. Disability is defined as the inability to engage in any substantial activity because of a physical or mental impairment as certified by a licensed health professional. Disabilities may be short-term or long-term. Long-term is defined as expected to last for a continuous period of not less than 90 days

The DSS Form 1247A, Medical Release/Physician's Statement: Required In-Home, must include all of the following:

1. Identification of the person who is to be cared for.
2. Specifics of the period of disability.
3. A prognosis of the disabled family member's recovery, or the date of reexamination.
4. Description of the amount of time (daily) and the length of time that the caretaker is needed to care for the disabled family member.

12.3 Work Program Compliance

Compliance with TANF Work Requirements is mandatory for initial and continued TANF eligibility. The Economic Services (ES Worker) will refer all new approvals to the TANF Supervisor in the applicant's county of residence. The TANF Case Manager will determine if the applicant must complete a Family Plan and will send the appropriate notice.

1. A/R Notifications

At the time of application/redetermination, the ES Worker must inform all A/R of the following work program elements:

- A. Required program participation
- B. Cooperation with TANF Case Manager
- C. Available support services
- D. Participant's rights and responsibilities
- E. DSS' rights and responsibilities
- F. Time limited benefits
- G. A/R's right to a fair hearing regarding TANF Work Requirements

12.4 EMPR Codes for Work Programs

The following is a list of work program codes to be entered on CHIP. All adults and minor parent head-of-households must be referred to a TANF Case Manager for case management, development of Family Plans and participation in the appropriate program:

- A. TANF Work Program
- B. State funded Challenging Adults Through Rehabilitation, Education and Services (CARES) or Two Parent Program

The Economic Services Worker (ES Worker) should determine which EMPR code is best suited for WEI's based on the individual circumstance as it relates to TANF participation.

The appropriate EMPR code must be entered on the CHIP screen in order for the case to be listed in the Participation and Tracking System (PATS). ([See Reference Guide](#))

The EMPR code may be changed when necessary, but after case approval, the code should remain the same for the entire month. If the individual no longer meets the EMPR code, it must be changed effective the following month.

These codes apply to individuals identified as TANF Work Eligible Individuals (WEIs):

MA	Applies to a WEI for the TANF Work Program - Will need an average of 30 hours per week to meet the All Family participation requirement. <i>NOTE: This code also applies to participants in the State Two Parent Program.</i>
PC	Applies to a WEI who is the only parent/caretaker relative in the TANF family of a child under the age of six. Will need an average of 20 hours per week to meet the All Family participation. This code should also be used if a Young Custodial Parent (YCP) has a child under age one.
PW	Applies to a WEI who is the only parent in a TANF family with a child under age one, personally providing care for his/her child under age one. Parent coded PW is required to participate 20 hours per week but may be excluded from the participation rate calculation for up to 12 months in a lifetime. A PW cannot be sanctioned as he/she is protected by legal cause when unable to comply with the TANF Work Requirements. As long as a single parent has a child under one, he/she should always be coded PW on the CHIP EMPR screen. This does not apply to a young custodial parent (YCP). If the YCP has a child under age one, code "PC" on EMPR.
DC	Applies to a WEI who is a parent providing care for a disabled child attending school. The need for care must be supported by medical documentation
FV	Applies to a WEI who is identified as a victim of Domestic/Family Violence. <i>NOTE: Documentation will be recorded on DSS Form 3734, TANF Domestic Violence Waiver Assessment.</i>
MC	Applies to a WEI who is unable to participate because child care cannot be provided as needed.

The following EMPR codes are used to identify other BG members that are not WEIs and those included in State Funded CARES or Two-Parent Program.

CH	Applies to a child recipient
YP	Applies to a dependent child that is a parent

RH	Applies to an individual providing care for a disabled family member living in the home; that prevents the individual from participating in TANF work activities. The disability of the person in need of care must be for a minimum of ninety (90) days. A medical statement from a physician must support the need for care.
IN	Applies to individuals who are determined to be incapacitated and unable to participate in work activities based on medical documentation. The incapacity must be total and expected to last 90 days or more. Single disabled parent in CARES Program or second parent in the Two Parent Program
DC	Applies to a parent in a two-parent family that is providing care for a disabled child attending school. The need for care must be supported by medical documentation.

While individuals coded “RH” & “IN” are exempt as a TANF WEI, he/she must be referred to the TANF Case Manager. Case management services must be provided to the family, as well as development of the Family Plan.

In a case with two adult BG members, if either adult is coded "IN", "RH" or "DC" on EMPR, the second adult must be coded "MS" (unless a disability or in-home requirement exists for the individual also).

12.5 Non-Custodial Parent Requirements

A court or administrative order for child support or order for contempt for nonpayment of child support being enforced under Title IV-D of the Social Security Act may direct a noncustodial parent who is unemployed or underemployed and who is the parent of a child receiving TANF benefits to participate in an employment training program.

12.6 Additional Family Support Needs

The whole TANF family is served through enhanced case management. When the family is in need of additional services, the CM must make appropriate referrals based on the need. Additional services for family members include services provided by DSS or other agencies.

1. Domestic/Family Violence Safety Plan

A plan will be completed by a Domestic Violence Advocate (DVA) when an A/R requests that certain program requirements be waived when compliance with the requirements would place the A/R at risk of acts of domestic violence. The plan will reflect the DVA's assessment, will outline counseling and support services, and will be designed to lead to work to the extent possible. It will be maintained by the DVA. Continued cooperation with the DVA will be documented on the Employment Plan.

2. School Dropouts

School dropouts will be removed from the BG and be referred to a school dropout intervention program.

3. School Attendance Requirements

Close attention must be given to children experiencing difficulties in school in order to correct the identified problems and ensure attendance and satisfactory progress. Children that are not

performing satisfactorily may be referred for tutoring. The caretaker relative must make every effort to see that all school-aged children attend regularly and make progress in school.

CAUTION: *BG members under age 18 who do not meet satisfactory school attendance requirements will have their needs removed from the BG. The case should remain open if other eligible members are included in the BG.*

12.7 Young Parents (YP) Program

DSS will provide services to TANF Teen Parent/Adults (TA) under age 20, in order to ensure they delay subsequent pregnancies and receive a high school diploma, GED, or Certificate of Completion.

YP CHIP Coding

A teen parent acting in the adult role should be coded with the appropriate TANF Program EMPR code. Teen parent/adults (affiliation code of TA) will be pulled into the PATS system as a TANF category (based on the EMPR code).

The CHIP code YP will only be used on the EMPR screen to identify a dependent child that is a parent.

Chapter
13

Chapter 13

TANF Family Plan

13.1 Assessment Process

The Work Readiness Assessment Tool will be completed for the family of all TANF Work Eligible Individuals (WEI)s. It will be an overall picture of the strengths and growth areas within a family unit. It is the first step for the client after case approval because it is needed to gather information necessary for the development of the Family Plan. The assessment tool should be completed in the first week after approval when possible.

The client assessment will involve gathering and analyzing information on external and internal factors that affect the client to determine the client's current level of employability and assess the needs of the family.

A. Purpose of the Tool

- Standardizes the level of comprehension
- Promotes consistency across Case Managers in terms of identifying untreated barriers among TANF population
- Creates an effective roadmap to guide employment planning for TANF participants
- Ensures accountability among Case Managers

B. The assessment process is used to:

1. Evaluate the strengths and weaknesses of the TANF Work program participant
2. Identify needed services
3. Develop an appropriate family plan for the participant

C. The TANF Case Manager must complete the following for work program participants:

1. DSS Form 1257, TANF Family Success Assessment; and
2. DSS Form 1022, Individual Employment Plan (IEP).

The assessment may be done in the office.

1. Screenings, Evaluation and Assessments

The assessment is used to identify potential barriers that may affect the clients' ability to participate in activities. The results captured during the assessment will be used to refer individuals for additional assessments when indicated.

The following screenings must be completed by the TANF Case Manager as deemed appropriate:

1. Basic Hearing - DSS Form 1321, TANF Hearing Questionnaire
2. Basic Vision - The individual's ability to read the DSS 3800 application and other DSS forms without difficulty.

NOTE: Based on the results of all screenings, the client may be referred for an in-depth assessment or treatment by a qualified specialist. For example, if the DSS Form 1257 shows that the client may have learning disability characteristics, the client should be referred to a qualified psychologist.

A Basic Learning Disability (LD) Screening (DSS Form 1320) is done for TANF applicants by the ES Worker. ([See Reference Guide](#))

NOTE: Do not tell a client they have a learning disability and do not refer to a client as having a learning disability. Only a qualified psychologist can diagnose a learning disability.

2. Assessment Elements

The assessment will focus on conditions of the family that impact the individual's ability to participate in the TANF Work Program. During the assessment, areas to consider include, but are not limited to the following:

- Demographics
- Employment (e.g. skills, history, legal barriers, career interests, language)
- Education (e.g. highest grade level, learning disabilities, other diploma)
- Housing and transportation
- General health
- Mental health
- Substance abuse
- Domestic violence – safety
- Child Care and child well-being

3. Domestic/Family Violence Screening

The DSS Form 3733, TANF Domestic Violence Information Notice, will be completed by the ES Worker at application. However, the CM must discuss domestic/ Family violence issues with the participant when developing the Family Plan. When a recipient requests that certain program requirements be waived because compliance would put the recipient at risk of domestic/family violence, the recipient will be referred to the local Domestic Violence Advocate (DVA) for an assessment which includes completing a safety plan.

NOTE: The safety plan will be maintained by the DVA.

The assessment will evaluate the domestic/family violence situation and determine the extent of counseling and support services needed to safeguard the recipient.

The DVA will make a recommendation to the CM regarding consideration of a good cause domestic violence waiver of a program requirement(s). The DSS Form 3734, TANF Domestic Violence Waiver Assessment, must be completed by the CM.

4. Vocational Screening

The vocational screening conducted by the TANF Case Manager is used to obtain the following information in order to develop the IEP:

- A. Individual's level of functioning
- B. Career interests and abilities
- C. Barriers to employment

The information captured on the DSS Form 1257 provides an evaluation of a participant's vocational interest, work values, and abilities. Vocational tests and inventories, as well as a review of the participant's past work history, may be used to identify potential vocational areas where the participant may be successful in finding and maintaining a job. The CM must explore the participant's ideas and goals regarding self-sufficiency. These ideas and goals must be considered in the development of the IEP. The CM's must consider the following:

1. What are the participant's perceived gifts and talents? Can they be developed for specific types of careers?
2. Are these plans realistic given the time limits of the TANF Program?
3. What are the participant's desires and confidence regarding his/her abilities to overcome many obstacles?
4. The CM's role in helping the participant identify personal strengths, develop realistic plans, and promote confidence in them self and the program is an important first and ongoing step.

5. Reassessment

Assessment is an on-going process and the CM should determine when additional testing is needed. Vocational tests, inventories or surveys may be used when needed to determine the client's skill and ability to secure employment. The CM may also acquire additional information from observation and data provided by the participant. This information allows the CM to better assist the participant in preparing for successful employment.

Reassessment provides the CM and the participant the opportunity to review the participant's progress in the TANF program and address any problems which may present an obstacle to full-time employment. The reassessment will identify the reason the participant was unable to obtain full-time unsubsidized employment and the CM will assist the participant in resolving the identified barriers. The individual's Employment Plan will be revised to reflect this information.

The CM will conduct a reassessment whenever the participant leaves or completes a component. Reassessments may be completed prior to the end of the current component to ensure that participants are placed in new activities immediately after the end of an activity.

13.2 Family Plan

The Family Plan will be completed for the family of all TANF WEIs. It will be an overall picture of the strengths and growth areas within a family unit. Based on educational needs and assessment results, goals will be developed for each household member with specific outcomes relating to protection, health, safety, enrichment, etc. It will contain an IEP for each WEI.

1. Time Frame for Completion

The Family Plan is an on-going process and must be completed. Component activities should be initiated within two full weeks of approval. If an extended assessment has been requested and not completed, the DSS Form 1230 must be developed and the case documented to explain the need for an extended assessment.

The Family Plan includes:

1. DSS Form 1257, TANF Family Success Assessment (TFSA) and
2. DSS Form 1022, Individual Employment Plan (IEP)

2. Update

The Family Plan is a working document that must be updated as changes occur. It may be necessary to adjust time frames, work activities, support services, vocational goals, etc., as necessary. Document only in the area where the change occurred. It will not be necessary to complete the entire WRA in order to update changes.

13.3 Family Evaluation

The DSS Form 1257 is a questionnaire that will be used by the Case Manager to ask questions and gather information on the benefit group and other household members. The Case Manager will document observations, identify the family's need for services, and then make appropriate referrals. This must be done during the first face-to-face meeting with the Case Manager.

13.4 Individual Employment Plan (IEP)

Each WEI involved in the TANF Work Program must complete a DSS Form 1022, Individual Employment Plan (IEP). The IEP is a contract between the client and DSS. It contains the terms and conditions of eligibility to receive TANF. Providing follow-up is a requirement of the TANF program. The client must be actively involved in the development of the IEP. The IEP is an agreement between the recipient and DSS that describes the actions the recipient must take to fulfill his/her vocational goal and the time frames for completing those actions. The agreement also describes the services DSS will provide or coordinate to assist the recipient in becoming self-reliant.

The IEP must take into consideration the physical capacity, skills, education, including the results of the test measuring educational competencies, work experience, health and safety and family responsibilities, and place of residence of the individual; local employment opportunities; child care and supportive services required by and available to the applicant to allow employment opportunities and/or work readiness programs. The plan shall include a strategy for immediate

employment. It should consist of preparing for, finding, and retaining employment consistent, to the extent of the individual's career objectives.

Employment Plans for WEI's should be, "Specific, Measureable, Attainable, Results-oriented, and Time-Limited (SMART)" and should contain:

1. A clearly defined, realistic, and feasible employment goal. The short-term goal must be attainable in the shortest time period consistent with the recipient's skills and interests, as well as, the months remaining in the recipient's time limit. The recipient may also have a long-term goal which may or may not be attainable within the recipient's remaining time with the TANF program.
2. The qualifications or strengths identified during the assessment process.
3. The barriers identified during the assessment process.
4. Clearly defined activities (core or non-core) necessary to achieve the primary goal of economic self-sufficiency for the family.
5. The location and the scheduled weekly hours for each activity.
6. Actions or steps that will help the individual follow through and/or fulfill the requirements of the activities.
7. Realistic time frames for completing each activity on the IEP.
8. Signature of the participant, Case Manager and supervisor.

Information about the available program resources must be discussed along with supportive service(s) needs and local employment opportunities. The recipient should be involved to the maximum extent possible.

1. Identification of Core Service Activity

The Case Manager will discuss jobs generally available in the area, and identify a Core activity to meet TANF participation based on results of the WRA.

2. Partial Plan Completion

If the CM is unable to identify a specific Core activity for an unemployed client at this point, the client may be referred to the job readiness or Employment Preparation Program (EMPP). Staffing should be completed while the client is attending these activities to identify additional Core activities.

3. Supervisory Review

The TANF supervisor must review all IEP'S. The supervisor's signature on the IEP indicates that he/she has reviewed the Family Plan and approves of the IEP. Supervisory approval of the IEP ensures that a strategy for immediate employment, preparing for, finding, and retaining employment is consistent with the individual's career objectives and ability. This strategy should be included in the Family Plan. If the supervisor does not approve of the IEP, it should be revised and updated with the client.

4. Compliance with IEP

Failure or refusal of a WEI to complete the IEP after case approval will result in a case closure. Use "IS" closure code on CHIP when a case is closed due to the recipient's failure to sign the Family Plan or to cooperate in the development of the IEP. Use of this closure code for failure to develop the Family Plan applies only to new approvals or re-applications for WEI's. After the IEP is developed and signed by the WEI, failure or refusal to comply with TANF work program requirements or with activities documented on the IEP will be a basis for sanction. The good cause/conciliation process must be completed prior to imposing a sanction. [\(See 17.7\)](#)

CAUTION: *State law prohibits certain categories of individuals with Legal Cause from being sanctioned. (See 17.2)*

5. Vocational Objective

When developing the IEP, a short term vocational objective will be identified. The short term vocational objective will be based on the participant's interests and abilities, and will maximize his/her previous education, training and work history.

It is the responsibility of the CM, in conjunction with the participant, to set a reasonable, attainable short term vocational objective to be listed on the IEP. A participant may also have a long term vocational code listed on the DSS Form 1022. The long-term goal may or may not be attainable within the recipient's remaining time on the TANF program.

Only one short term vocational objective will be established; services will only be provided which will assist the participant in attaining that objective. The vocational objective can be changed, as circumstances warrant, with supervisory approval documented in the case record.

CAUTION: *Considering the 24-month time limit, it is critical that the identified goal is attainable and that jobs are available in that field for placement.*

6. Plan Updates

The IEP may be updated at any time. Any substantive changes (in activities, services, or time frames) must be signed and dated by the participant.

7. Documentation

Each family must be given a copy of the IEP. Documentation must be recorded in case notes in SCOSA, as appropriate.

13.5 Job Ready Determination

A Determination of job ready or non-job ready will be made during the family evaluation. If an individual is considered job ready, the CM must also determine the level of job readiness; Level 1 or Level 2.

1. Job Ready Levels

A. Level 1 job ready participants:

1. Are at least 18 years of age;
2. Have graduated from high school or achieved a GED;

3. Have been employed in the last 12 months in a job lasting at least five months; and
4. Show no signs of physical, emotional, or other family problems which may interfere with job readiness activities.

B. Level 2 job ready participants:

1. Are those job ready individuals who do not meet the level 1 criteria.
(Example: High school graduate with no work experience); or
2. A person who has worked 12 months in the last 24 months, but all jobs has lasted less than three months.

2. Job Ready Client Referral

The following referrals may be appropriate for Job Ready clients:

A. Employed full-time

1. Career advancement activities
2. Referral to the Workforce Consultant (WFC)
3. Referral to other TANF work components as deemed appropriate

B. Employed part-time or Unemployed

1. TANF activities to assist in gaining full-time employment and/or meet full TANF participation
2. On-the-Job Training (OJT)
3. Work Experience (WKEP)
4. Community Service
5. Referral to WFC
6. Referral to Job Readiness or EMPP activities
7. Referral to other TANF work components as deemed appropriate

3. Non-Job Ready Referrals

The following referrals may be appropriate for non-job ready clients:

- A. Individuals currently enrolled in education or training activities must be given options of part-time employment, EMPP, WKEP, OJT or Community Service activities needed to meet TANF participation requirements.
- B. Individuals not enrolled in countable activities should be referred to appropriate component activities as identified. A participant who is assessed to be limited in English proficiency to the extent that it is identified on the IEP as a barrier to employment will be referred to adult education or area technical colleges for an English as a Second Language course.

13.6 Limited English Proficiency

A participant who is assessed to be limited in English proficiency to the extent that it is identified on the IEP as a barrier to employment will be referred to adult education or area technical colleges for an English as a Second Language course.

13.7 Educational Goals for Young Custodial Parents

Young custodial parents (YCP), under age 25 without a diploma, GED, or Certificate of completion, should participate in educational activities that will help eliminate or minimize employment barriers. The YCP participant should be referred to and enroll full time in a local accredited school or adult educational classes.

NOTE: *For TANF participation, schools offering distance education must be accredited by one of the following:*

- A. South Carolina Department of Education (SCDE) if located in SC*
- B. Department of Education of any other state in which the program is located*
- C. US Department of Education*

1. Educational Goals/ Under Age 20 Without High School Diploma

Teen Parent/adults (TA) mandatory for the TANF Work Program, under the age of 20, without a high school diploma, GED, or Certificate of Completion must participate full-time at an educational institution as his/her work activity; unless a physical or mental disability prevents successful participation. Any exceptions should be discussed with the Office of Economic Services.

NOTE: *As a condition of eligibility, TANF applicants and recipients under age 18 must be enrolled in school or be willing to enroll in school in compliance with TFSA Young Parent Supplement, unless they have attained a high school diploma, GED or certificate of completion. If attending high school, the teen parent/adult must maintain satisfactory attendance as defined by the local school district as required by SCDE. If enrolled in Adult Education, the teen parent/adult must meet attendance requirement set by the Adult Education site.*

2. Educational Goals/ Age 20 - 25

A TANF Work Program participant without a high school diploma, GED or Certificate of Completion and under the age of 25, may maintain full-time attendance at an educational institution designed to achieve a high school diploma or GED. Clients enrolled and wishing to participate in an educational activity should not be prohibited from doing so; however, they must be informed that this activity does not meet the TANF participation requirements. Additional activities must be assigned to meet TANF participation that do not interfere with the educational activity. The following criteria should be used to determine the suitability of an educational activity:

- A. Participants identified as being presently involved with substance abuse and where referrals to a substance abuse program would be more appropriate than current school attendance.

NOTE: *Upon successful completion of the substance abuse program, the participant must participate in an appropriate activity.*

- B. Participants who have been determined by an expert resource, (e.g., physician, Vocational Rehabilitation counselor or psychologist), to be mentally or physically disabled to the extent that continuation in educational activities will not lead to a reasonable expectation of employment or self-reliance.

13.8 TANF Participants with Legal Cause

The SC Family Independence Act allows certain individuals to claim legal cause for not meeting TANF Work Program participation requirements. These individuals are included in the TANF work eligible denominator and impact the monthly participation rate. Appropriate case documentation and case management efforts should be used to identify these individuals. They are expected to participate in countable work activities when possible. The Family Plan, including the IEP, must be developed with these individuals. The Case Manager must provide on-going case management to ensure the individual is participating in work activities unless their situation prevents participation.

13.9 Referral for Vocational Rehabilitation

WEIs who experience a physical or mental incapacity that interferes with employment should be referred to Vocational Rehabilitation (VR), for rehabilitative services.

Types of services available at SC Vocational Rehabilitation

A. Restoration Services

SCVRD may provide medical or other services to help clients meet physical or mental disability needs that require attention before employment goals can be reached. These services are based on individual need.

B. Job Readiness classes

Job readiness classes help clients prepare for employment which include:

Classes that address how specific disabilities affect work ability. Pre-employment classes on how to fill out job applications, develop interview skills and develop an understanding of an employer's expectations.

Employment classes for "job ready" clients include job-seeking groups, advanced interview skills and other topics

C. Job Readiness Training

Job-readiness training helps develop positive work behaviors and the physical stamina needed for successful adjustment to a new job. This training involves working on outsource contracts at an SCVRD work training center. Individuals are paid for work performed.

Services vary at each SCVRD work training center. Local staff must contact the SCVRD training center to determine the type of service provided.

D. VR On-the-job training

On-the-job training can be provided by a prospective employer. A "job ready" client works for an hourly rate of at least minimum wage while learning the skills of the job.

If the training is successful, the client is expected to be employed in the same or a comparable position.

E. Post-Secondary training

Assistance with post-secondary training leading to an associate or baccalaureate degree may be provided if it is in an area of study leading to an appropriate career field.

13.10 DAODAS Referral

If a participant refuses to take a pre-employment drug test or subsequently fails a test, the CM should update the IEP and refer the participant to the Department of Alcohol and Other Drug Abuse Services (DAODAS) for an assessment. The CM should also advise the participant that some employers use random drug screenings as a continuing employment requirement.

13.11 Referral Form/Work Components

The participant must be referred to components which will help eliminate or minimize employment barriers. Each identified barrier must be addressed. The CM must complete the DSS Form 1234, Client Referral/Communication Form, and forward it to the appropriate staff person or provider.

1. Estimated Time Frame

When a participant is referred for services to minimize an employment barrier, an estimated time frame must be established for successful completion. Services will be provided and job placement efforts made on an individual basis.

2. Documenting Time Frame

Time frames for establishing self-reliance will be documented on the IEP; however, time frames for each component can be adjusted at any time as long as the participant makes satisfactory progress within the component.

CAUTION: *Time frames must be established to assist the family to achieve self-reliance within the 24-month time limit.*

13.12 Referrals/Need for Additional Services

The CM must be aware of the recipient's need for various services and must provide these services or refer the individual to an appropriate source. The CM continually assesses the family relationships and the condition of the child(ren).

1. Referral to Protective Services

One of the most important referrals a CM may make is to the Protective Services Unit. If the CM suspects that any BG member may have been abused or neglected, the CM must immediately refer the case. The CM is a mandated reporter; abuse and neglect does not have to be proven prior to referring the case to Child Welfare Services.

2. Referral Process

Referral to Child Welfare Services may be made through DSS Form 1601, Referral to Human Services. This form will give the economic services case name, address, information on BG members and the reason for referral.

The CM will file a copy of the form in the case record and forward the original to Child Welfare Services for action.

3. Communication with Child Welfare Services

If there is an active Child Welfare Services (CWS) case, the CM must notify CWS of any changes in a family or child's situation using the DSS Form 1600, Human Services, TANF and SNAP Communication Form.

The DSS Form 1600 provides a flow of information required between both program areas and should be maintained in the manner required by state statute and federal regulations. All DSS records are confidential and access is regulated.

The DSS Form 1600 is also used to inform Child Welfare Services of any closures, approvals or any other pertinent information. The CWS Worker will use the form to relate information on removal of a child(ren), placement of a child(ren) in an open case or any other pertinent information.

The CM will work closely with the CWS worker in resolving problem situations and preserving the family unit whenever possible; however, the CM will not be responsible for performing any other duties related to an open CWS case.

NOTE: If the CM is notified that a CWS referral/report is unfounded, all pertinent information about the CWS case must be removed from the TANF case record and destroyed.

4. Special Needs Adults and Elderly

The needs of any elderly or special needs adult living in the home should be evaluated and addressed. Any signs of neglect, abuse or exploitation of the adult should be immediately referred to the Adult Protective Services (APS) Unit within the county. Other needed services for this population can also be coordinated with Adult Services and local providers.

5. EPSDT Services

The Early and Periodic Screening, Diagnosis and Treatment (EPSDT) Requirements provides comprehensive and preventive health services, including immunizations, to eligible participants under age 21. EPSDT is provided through the SC Department of Health and Human Services (DHHS).

6. Critical or Emergency Situations

The CM should access available community and DSS resources to aid the family in resolving critical problems. County Social Services Block Grant (SSBG) flex funds are available to pay for some emergency situations.

Funds must be used to preserve the family unit. Payments may be made for items such as rent, electric bills and other critical needs. Participants must meet all flex fund guidelines.

7. Referral to DVA

When a member of the family discloses to the CM that he/she is a victim of domestic/family violence, and voluntarily requests assistance, the CM will provide the individual with the phone number of the Domestic Violence Advocate which serves his/her county, and assist the individual in making this call if asked to do so.

A. Waiver of Work Program Requirements Based on Domestic Violence

A waiver of Work Program requirements based on domestic violence must not be longer than six months without a review of the situation to determine a continued need for the waiver.

B. DVA Responsibilities

The Domestic Violence Advocate will conduct an assessment of the individual's current situation and develop a Domestic Violence Safety Plan. In addition, the DVA will provide crisis counseling and follow-up.

NOTE: Prior to waiver of any TANF program requirements, the DVA and the CM must staff the case with the recipient.

8. Referrals for Pregnant and Parenting Adolescents

Pregnant and parenting adolescents (dependent children) are not included in the TANF denominator but need access to a wide range of services and providers to help meet the challenges they face.

In addition to services which may be available within DSS, referrals to other providers must be made to supplement the needs of the pregnant or parenting child. Due to different resource needs and availability, each county must be responsible for identifying available resources with local providers.

Chapter

14

Chapter 14

TANF Participation Rates

The work participation requirements are designed to meet the needs of participants, assist participants in achieving self-sufficiency and to meet the federal work participation rate. In some respects, the TANF work program requirements are different from the federal TANF requirements regarding work participation rate calculations.

Work participation requirements are the hours of participation required to positively impact the participation rate. The requirements are not necessarily the same hourly requirement outlined on the IEP. Participation rates are calculated for each report month. The current participation rate is 50% of the TANF denominator of WEIs. If the State fails to meet either minimum work participation rate for a fiscal year, it is subject to a severe financial penalty. ([See Chapter 15](#))

14.1 Federal Participation Rate Requirements

A participation rate is a ratio. The federal work participation rate represents who is participating in work activities out of all those expected to participate.

To count toward the numerator of the monthly participation rate, a TANF recipient must be in an allowable activity for at least a minimum average number of hours per week:

- A. 20 hours per week for single parents with children under 6
- B. 30 hours per week for all other families

1. Families Included in the All-Family Participation Rate

TANF families which include at least one adult member that is a WEI is included in the All Family participation rate with the following exceptions:

If the only adult in the BG is an only parent of a child under one and the parent did not meet the hourly participation requirement, the family may be excluded in the participation rate calculation even though he/she is expected to participate 20 hours per week. There is a 12-month lifetime limit on this exception. After the participant has used this 12-month lifetime limit, he/she will then be included in the All-Family Participation Rate. At any time this parent has another child under one, he/she will always be coded “PW” on the CHIP EMPR screen, and will be expected to participate

20 hours per week. However, he/she will have good cause if unable to comply with the TANF Work Program Requirements and cannot be sanctioned.

Federal and State Time Limits continue to count even when the client is excluded from the All-Family Participation Rate.

NOTE: *The “PW” coding on the CHIP EMPR Screen does not apply to Young Custodial Parents (YCP’s). If the YCP is the only parent in the TANF family and has a child under age one, he/she must be coded “PC” on the CHIP EMPR Screen and must be sanctioned if he/she does not comply.*

2. Newly Approved Cases

Newly approved TANF families that meet the criteria for All Family will be included in the participation rate for the report month. The report month is the month of approval if the approval occurs before CHIP Cutoff. Cases approved after CHIP Cutoff will be included in the participation rate for the report month following the approval month.

EXAMPLE: *For a TANF application approved 10/10; the family will be included in the participation rate for October. For a TANF application approved 10/25, the family will not be included in the participation rate for October, but will be included in November's rate.*

3. Participation Requirements for New Approvals

Newly approved families, approved prior to CHIP Cutoff, meet the participation requirements for the report month. The report month is the approval month, if the family meets the minimum hourly requirement for the "full weeks" remaining in the report month after the approval date. Only hours for the "full weeks" after the approval date are countable toward the participation requirement. The total hours for the "full weeks" are divided by the number of "full weeks" remaining in the report month to determine if the family averaged the required weekly hours.

NOTE: *A "full week" is defined as a complete Sunday through Saturday week as displayed on most calendars.*

EXAMPLE: *A TANF application approved on 10/10 has two "full weeks" remaining after the approval date - the weeks of 10/15-10/21, 10/22-10/28. If the family is required to participate an average of 30 hours per week and the total hours of participation in the two "full weeks" is 60 or greater, the family meets the participation requirement.*

NOTE: *TANF families approved after CHIP Cutoff will not be included in the participation rate until the next report month.*

4. All Family Participation Requirement

Minimum required participation in TANF countable work components for all families is an average of 30 hours per week.

NOTE: *In order to meet the minimum 30-hour per week criteria, more than 30 hours per week should be scheduled for the component.*

5. Exceptions to All Family Participation Requirement

The only parent/caretaker relative of a child under the age of six, as identified on EMPR with codes of PW or PC, must average only 20 hours per week.

Teen parent/adults (TA's) must average 20 hours per week in education directly related to employment or be satisfactorily attending secondary school or its equivalent. PATS Coding: Satisfactory participation for TAs should be keyed as 20 hours per week or actual hours if greater than 20 hours.

14.2 Legal Cause Criteria for TANF Work Program Participation

The SC Family Independence Act allows certain individuals to claim legal cause for not meeting TANF Work Program participation requirements. Some individuals are included in the TANF work eligible denominator and impact the monthly participation rate. Appropriate case documentation and case management efforts should be used to identify these individuals. They are expected to participate in countable work activities when possible. The Family Plan, must be developed with these individuals. The Case Manager must provide on-going case management to ensure the individual is participating in work activities unless their situation prevents participation.

The following individuals will have legal cause when unable to comply with TANF Work Program requirements listed on the Employability Plan and cannot be sanctioned.

NOTE: *A staffing should be scheduled to discuss participation and time limits when these individuals fail to comply with work program requirements.*

Individual's Status	Legal Cause Criteria
Only Parent in TANF Family with Child under age one	Parent personally providing care for his/her child under age one will be expected to participate, but cannot be sanctioned if this is the only parent in the TANF family, as he/she is protected by legal cause if unable to comply with the TANF Work Requirements. As long as the single parent has a child under one, he/she is eligible to be excluded from the TANF participation rate calculation for 12 months in a lifetime. A parent personally providing care for his/her child under one will always be coded PW on the CHIP EMPR screen, regardless if he/she is excluded from the TANF Participation Rate or not. This does not apply to a Young Custodial Parent (YCP) . The CHIP EMPR screen will be coded "PC" if the YCP has a child under age one.
Pregnant	Verified pregnancy beginning in the seventh month and continuing until six weeks after the birth of the child.
Incapacitated	Incapacitated or disabled and unable to participate in TANF work activities. The verified incapacity must be total and expected to last 90 days or more.
Required in the home to care for incapacitated	Parent providing care for a disabled family member living in the home. A medical statement from a physician must verify the need for care.

family member. (In or out of school)	
Unavailable Child Care/Transportation	Individual is unable to participate because child care and/or reasonable transportation cannot be provided as needed. CHIP Coding: The EMPR registration codes are "MC" - if mandatory but child care unavailable; "MT" - if mandatory but transportation unavailable.
A/R is identified as a Victim of Domestic/Family Violence	A signed statement by the A/R that he/she is a victim of domestic family violence is acceptable verification for a temporary deferral from participation in TANF Work Program requirements. NOTE: Documentation will be recorded on DSS Form 3734, TANF Domestic Violence Waiver Assessment. A/R will be referred to the local Domestic Violence Advocate (DVA) for an assessment and safety planning. The assessment determines that the A/R cannot participate in Work Program requirements because compliance would put the A/R at risk of further domestic/family violence. A case staffing must be held when determining the extent to which Work Program requirements will be waived. CHIP Coding: "FV" code on EMPR should be used when the A/R is exempt from participation in the TANF Work Program due to domestic/family violence. Also add a "Y" to indicate that a waiver was granted on CHIP screen INRD.

The Case Manager must not rely on the EMPR code to determine if an individual meets the Legal Cause criteria and not subject to sanctioning. The determination to allow Legal Cause must be based on the family situation and documentary evidence in the TANF case management file.

NOTE: The medical incapacity is subject to reevaluation at intervals that are specific to each recipient's circumstances, at a minimum, at annual redetermination.

Possible Change of Status Reasons

The BG's legal cause status may change due to circumstances such as, but not limited to, the following:

- A. Additional BG members
- B. Loss of BG members
- C. Change in health conditions of the participant or family member

If the change results in a change in the recipient's TANF work status, the CM must document the change in the case record and notify the ES Worker to make appropriate changes in CHIP. The Participation and Tracking System (PATS) must be updated effective the following month.

Chapter 15

Chapter 15 TANF Work Activities

TANF Reauthorization regulations clearly define the 12 acceptable work activities allowed that are considered in the TANF participation rate. Of the 12 activities, nine are considered Core work activities or components. Core Components are allowable TANF activities that may completely satisfy the TANF participation requirement. **At least 20 hours per week of participation must come from Core Components.** Vocational Education and Job Readiness are two Core Components that have restrictions on the amount of time each can be counted as TANF participation. Participation in all activities must be supervised and verified to count in the TANF participation rate. Listed below are the components identified by TANF as Core Components:

15.1 Employment (EMPL)

1. Unsubsidized Employment

Unsubsidized employment includes all paid employment in which no government funds are used to directly subsidize the individual's salary. Full-time employment is employment of 30 hours per week or greater. A participant employed at least 30 hours per week and earning at least minimum wage is not required to participate in any other TANF assignment, but the participant must respond to all correspondence from the Case Manager and keep all scheduled appointments for redeterminations.

2. Part-Time Employment

Part-time employment is employment of at least 10 hours, but less than 30 hours per week. This includes "in-kind" or "barter income" in exchange for property or services. A participant working part-time must be assigned to a concurrent program activity in order to meet the 20 or 30 hour participation requirement.

NOTE: *College work study is part time employment although the income may be excluded from the budget.*

3. Self-employment

If a participant becomes self-employed, the participant must provide documentation to show he/she is legitimately engaged in self-employment. The information could include, but is not limited to the following information: the kind of business, location, hours of operation, source of funding, prospective customer base, earnings, business license, if applicable, and lease or agreement if space is rented.

If a participant enters the TANF program and states he/she is self-employed and has been self-employed for less than a year, the participant must provide the above documentation including copies of rent receipts, appointment books or any other documentation that will show the participant is engaging in a legitimate business. If the participant states he/she has been self-employed for a year or more, a copy of the previous year's income tax return will suffice to show that the participant is engaged in a legitimate business. If the tax return is provided and the worker is satisfied with the documentation, the up-front job search can be waived if the participant is engaged in self-employment for 30 or more countable hours of self-employment per week. For self-employment to be a countable activity for TANF, the participant need not earn minimum wage. Countable weekly hours for self-employment are determined by the actual self-employment income (gross income less business expenses) divided by the Federal minimum wage.

4. Subsidized Employment Timeframe

Subsidized employment will generally be limited to a period of 6 to 12 months, unless a longer period is identified as beneficial to the individual. An extension of the time limit must be based on an individual needs assessment.

5. On-the-Job Training (OJT)

Training in the public or private sector that is given to a paid employee while he or she is engaged in productive work that provides knowledge and skills essential to the full and adequate performance of the job.

Participants in DSS/OJT are compensated at the same rate of pay, including benefits and periodic increases as other employees performing the same job function. DSS/OJT participants must earn at least the Federal Minimum Wage.

In return for providing intensive supervision and training for the participant, the employer will receive a wage subsidy to compensate for the additional employment costs and the trainee's nonproductive time. Fifty percent of the trainee's gross wages for the period of the contract will be reimbursed to the employer. At the end of the contract period, the employer should have a well-trained and "experienced" employee. The DSS Form 3767, On-The-Job Participant Agreement, must be signed by the participant.

On-the-job training (OJT) can be provided by Vocational Rehabilitation (VR). Prospective employers outsource work to participants at VR. Individuals that a VR "job ready" category work for an hourly rate of at least minimum wage while learning the skills of the job. If the training is successful, the client is expected to be employed in the same or a comparable position.

6. DSS/OJT Timeframe

A DSS/OJT contract is generally approved for a period of 6 months or 24 weeks. If an extension is needed it must be based on the complexity of the job and the extent of the training process, but no more than an additional 30 days. The participant must have achieved satisfactory performance on the DSS form 3769, On-The-Job Training Invoice and Attendance/Performance Record, and had no more than one absence without good cause in order to be considered for an extension. The employer must request a contract extension and sign a new agreement with the Workforce Consultant or other county representative.

15.2 Job Search and Job Readiness Assistance (JOBR)

Job Search and Job Readiness Assistance activity is limited by statute to 240 hours or to 360 hours in a 12-month period, which is the equivalent of **20 hours per week for a single-parent with a child under age six and 30 hours for all other Work-Eligible Individuals** (no more than four consecutive weeks may count toward the work participation rates). The four “consecutive” week limitation will be measured on a weekly basis. A week is defined as 7 consecutive days. In other words, any hours of participation in JS/JR during the course of a 7-day period triggers a week for the 4-week limit. Once an individual has 4 consecutive weeks of participation, that individual’s participation in JS/JR may not count for 1 week, i.e., 7 consecutive days. These limits will no longer be based upon the federal fiscal year. The year will begin when a client starts the job readiness/job search activity.

Supervised job search is an organized and monitored job seeking activity. There is an initial orientation with the participant to provide an overview of available job search resources, followed by frequent check-in (no less than weekly). Individuals in this activity must maintain and submit a DSS Form 1319, Supervised Job Search Log/Job Search Verification, as evidence of employer contacts.

Job search and job readiness may be assigned as appropriate and recorded in PATS, but the combined hours of job search and job readiness assignments will count toward the work participation rate for no more than 4 consecutive weeks. Only actual time spent doing job search will be counted in PATS. Assignments to any additional hours, of job search and/or job readiness which are allowed in a 12-month period, should be made in conjunction with other program activities, when appropriate or necessary, so that both the core work activity requirement and the overall participation requirement are met. A total of 240 hours or 360 hours of job search and/or job readiness assistance are allowed in a 12-month period.

1. Job Search Contacts

All participants must register with the nearest One-Stop Center (SCDEW) during the job search activity. Registration with the One-Stop Center will be considered as one employer contact.

The participant will report to the CM during the job search period and must sign the Supervised Job Search Log/Job Search Verification, DSS Form 1319, attesting to the number of employer contacts made and the time spent doing the job search. The CM may contact any employer listed on the Supervised Job Search Log to verify that the participant made a contact.

To qualify as an employer contact, five conditions must be met:

- A. The participant must present himself/herself to an employer as being available for work;
- B. The place of employment must be geographically accessible to the client on a regular basis. Contact with an employer located in another community or state out of commuting range from the client’s place of residence will not count as an employer contact;
- C. The employer must ordinarily employ persons in areas of work for which the participant is reasonably qualified by means of experience, training or ability;
- D. The participant cannot count the same employer more than once during a given job search period unless she applies for different positions.

Employer's signatures are not required on the TANF Supervised Job Search Log.

2. Types of Job Search

There are two types of recipient job search: Group Job Search, and Individual Job Search. They are both supervised daily.

- A. Group job search brings participants together for group activities and/or classroom instruction related to job search and job retention. Classroom instruction provides the participant with sound skills for finding and keeping employment. The participant in group job search is bound by the participation requirements of the specific group activity.

The number of weeks and employer contact hours required of a participant in group job search cannot be less than the requirements of individual job search.

- B. Individual Job Search is job search carried out by the participant. For individual job search to be successful, it is necessary for the CM and/or WFC to assist the participant in understanding the elements of a successful job search. At a minimum, the WFC should assist the client in developing a resume, in learning how to accurately complete a job application, and in utilizing proven job seeking methods and interview techniques.

3. Job Readiness Activities

The purpose of job readiness training is to prepare the participant for employment or program component participation so that the client can be competitive and succeed in the labor market. Job readiness training may be offered before, in conjunction with or after the job search assignment. Job readiness training includes activities to assist the participant by helping him/her recognize and overcome personal and family problems which may be a barrier to accomplishing his/her employment and training goals.

Job readiness activities also prepare the participant for work by assuring that he/she is familiar with general work place expectations, work behaviors, and attitudes necessary to compete successfully in the labor market. Job readiness should also address the economic benefits of going to work. These include wages above the TANF grant, and the Federal Earned Income Tax Credit.

Job readiness topics may include, but are not limited to, communication skills, life skills, motivational training, problem solving, assertiveness, nutrition, money management, time management training and other activities that enhance specific work place expectations and behaviors.

Life skills training, including basic life skills that helps participants to succeed in the workforce will be offered. Activities consist of: balancing life and work; budgeting; household management; interpersonal skills; decision making skills; and time management.

Job readiness training may be conducted through treatment programs, other providers, as well as, through one-on-one counseling.

- A. Treatment, detoxification or therapy that is determined to be necessary will be considered job readiness assistance. A health care provider must complete a DSS Form 1247C, Certification of Necessary Treatment, that describes the nature of treatment or

therapy and includes a certification that such treatment or therapy is necessary for the person to be able to participate in current or future activities.

- B. Mental health services, including medical or mental health treatment, therapy, counseling, and other services to address mental or emotional disorders that can interfere with an individual's ability to work or look for work will be considered job readiness assistance.

These services are provided by qualified medical/mental health professionals who determine the necessity and modality of treatment.

- C. Rehabilitative services that provide medical or other rehabilitative services to address clients' physical or mental disability before employment goals can be reached will be considered job readiness assistance. These services are offered by SCVR based on individual need.

Job readiness training may be conducted through workshops or seminars, such as, the TANF Employment Preparation Program (EPP) and through treatment programs, as well as, through one-on-one counseling.

15.3 Employment Preparation Program Description (EMPP)

The Employment Preparation Program (EPP) is a 4-week job readiness activity sponsored by DSS. The curriculum provides activities that enhance job readiness and life skills. Services can be accessed on an individual basis according to need.

The training agenda is composed of two weeks of employment assistance services designed to enable participants to have the necessary skills to secure and maintain employment. Topics covered include: career plans, vocational assessment, understanding the labor market, superior resumes and cover letters, effective interview skills, networking tactics, interpersonal and teamwork skills, job skills to help keep the job and get promoted, and accurate employment applications.

Two weeks will cover life skills activities, - a continuum of knowledge and aptitudes that are necessary for a person to function independently and to avoid interruptions of the employment experience. The training plans are devised to provide advanced training for those people who are preparing to go to work, but need further training to be successful on the job. Topics covered include: Social Skills, Family Responsibilities, Problem Solving, Communication Skills, Transportation, and Health issues. The intent of life skills activities is to help clients develop skills and attitudes that are part of the standard expectations for the workplace and for successful daily living. The recommended schedule for EPP class is 30 hours per week.

Referrals to Employment Preparation Program

TANF participants may be referred to EPP based on their need for services. EPP may serve as a prerequisite for participation in TANF Core components such as Work Experience, OJT and Community Service. It is recommended that all non-Job Ready participants be referred to EPP prior to referral to the WFC or Supervised Job Search.

15.4 Vocational Educational Training (VOCE)

Vocational educational training consists of organized educational programs that are directly related to the preparation of individuals for employment in current or emerging occupations requiring training including postsecondary study leading to a baccalaureate degree.

Vocational Education may be short or long term but cannot be counted for more than 12 months with respect to any recipient. Vocational educational training programs are limited to activities providing knowledge and skills to perform a specific trade, occupation, or other particular vocation.

Vocational educational training programs are provided by employment and training providers contracted by the South Carolina DSS. They may also be provided by accredited vocational-technical schools, certificate programs at accredited secondary, proprietary schools, non-profit organizations, secondary schools that offer vocational education, post-secondary educational institutions, colleges, universities, or through distance learning at accredited Internet-based institutions intended to prepare the participant for specific occupations.

See the list in the reference section of this chapter as a tool to help identify Types of Vocational Education Available to TANF Clients and in Chapter 16. This list does not include all types of vocational education training available to recipients.

15.5 Work Experience (WKEP)

A work activity, performed in return for welfare which provides an individual with an opportunity to acquire the general skills, training, knowledge, and work habits necessary to obtain employment. The purpose of work experience is to improve the employability of those who cannot find unsubsidized employment. Participants in work experience activities must be compensated according to the Fair Labor Standards Act (FLSA). Work Experience Program participants who sustain an injury at a work site are subject to established workers' compensation guidelines.

Work Experience Time Frame

Work Experience placements are limited to a total of six (6) months or 24 weeks. At the end of 90 days, the client must be evaluated to determine if he/she will benefit by continuing at the site or needs additional training. The bi-weekly performance and attendance report should be reviewed by the CM to address any issues identified by the work site supervisor. Close follow-up is needed to determine if the participant is ready for OJT, subsidized or unsubsidized employment. The participant maybe allowed an additional four (4) weeks if the provider and DSS agree that the participant will be employed with additional training.

Placement in private for profit businesses must be limited to a maximum of 3 months (90 days). A Work Experience participant who has completed a for-profit assignment may be assigned to another for-profit work site or to a private nonprofit or public work site for an additional 3 months (90 days).

15.6 Community Service Programs (COSP)

Structured programs in which TANF recipients perform work for the direct benefit of the community under the auspices of public or nonprofit organizations.

Community service programs must be limited to projects that serve a useful community purpose in fields such as health, social service, environmental protection, education, urban and rural redevelopment, welfare, recreation, public facilities, public safety, and child care. Community service programs are designed to improve the employability of recipients not otherwise able to obtain employment. Participants in work experience activities must be compensated according to the Fair Labor Standards Act (FLSA).

Community Service Programs fall under FLSA guidelines. The following self-initiated Community Service Programs are allowable but exempt from FLSA guidelines.

- A. Student teaching
- B. Student nursing
- C. Internship or practicum for participants enrolled in higher education
- D. Court Ordered Community Service Placements

Community Service Time Frame

Community service placements are limited to a total of 6 months or 24 weeks. At the end of 3 months (90 days), the client must be evaluated to determine if he/she will benefit by continuing at the site or needs additional training. The bi-weekly performance and attendance report should be reviewed by the CM to address any issues identified by the work site supervisor.

15.7 Work Experience & Community Service Referral/Placement

Work Experience and Community Service placement offers the following benefits for the participant:

- A. Opportunity to obtain on-the-job experience and training
- B. Improvement of his/her employability in the competitive job market
- C. Knowledge of basic work habits
- D. Application of skills learned in classroom training
- E. Acquisition of on-the-job experience to create recent work history with references
- F. Determination of suitability for a given job category

The CM uses the DSS Form 1234, Client Referral/Communication Form, to refer a suitable candidate to the WFC and/or designated TANF staff member who will consider all available resources in the community.

Work Experience assignments can be at public, private nonprofit and private for-profit agencies, businesses or institutions. The WFC will be the primary contact person for all providers of Work Experience slots.

Community Services assignments must be in structured programs at public or nonprofit organizations.

1. Participant Agreement

A participant agreement is completed with the participant's signature indicating agreement with the assigned placement. The WKEP or COSP site supervisor must agree to submit a biweekly report, DSS Form 1246, Work Experience Agreement, or DSS Form 12119, Community Service Agreement, on performance and attendance to DSS.

2. WKEP/COSP Workers' Compensation

WKEP/COSP participants who sustain an injury at a work site are subject to established Workers' Compensation guidelines. The following steps should be taken when an injury occurs.

- A. The WKEP/COSP participant must report the injury immediately to the WKEP/COSP site supervisor who is responsible for completing the attendance and performance report.
- B. The WKEP/COSP site supervisor should immediately contact the local DSS office to report the injury.
- C. The local DSS Human Resource representative must be informed of the injury and make a report to CompEndium according to the SC DSS Personnel Administrative Policy and Procedures Manual.

3. Compensation for Work Experience and Community Service

Although WKEP and COSP are unsalaried, the federal Fair Labor Standards Act (FLSA) requires that welfare recipients who are required to participate in WKEP or COSP be compensated for the hours of participation. FLSA allows compensation to be provided in the form of certain benefits a family might receive due to their economic status.

NOTE: *The TANF assistance and benefits that work experience or community service participants (WTA) receive are not considered wages for Social Security purposes, nor are they considered taxable income for purposes of the federal income or the Earned Income Tax Credit.*

4. Work Training Allowance (WTA) Calculation Procedures

WEP and CS participants will be paid a (WTA) if the number of monthly hours of WEP or CS participation multiplied by the federal minimum wage exceeds the combined dollar value of SNAP and TANF benefits for the month of WKEP/COSP participation. If the family is entitled to a WTA allowance, it must be provided as a supplemental TANF benefit. The automated **TANF WTA Budget Sheet in Excel** must be used to calculate the WTA allowance. The automated work sheet is designed to calculate the WTA in the following manner.

- A. Determine number of Work Experience or Community Service hours for the report month of participation based on verification from provider. Participation data should be available by the 10th of the month following participation on the appropriate verification.
- B. Multiply hours of participation in WKEP/COSP by federal minimum wage to determine the total WTA compensation due. Excused absences and holiday hours cannot be used in the WTA calculation.
- C. Determine the gross SNAP allotment for the month of participation. Check the "AMT" field on FSBH.

NOTE: If two TANF BG members are participating in WKEP/COSP for the same month, the amount of SNAP benefits needs to be divided by two to determine the amount to be applied to each WKEP/COSP participant.

- D. Check CHIP screen FSBH for the TANF case number. If no SNAP allotment exists for the month of WKEP/COSP participation, research by the participant's SSN to determine if the participant received SNAP in an associated case number.
- E. If the TANF BG does not match the SNAP BG, follow these instructions:
 1. If a member of the SNAP BG is a SNAP E&T participant involved in SNAP Work Experience for the month of WKEP/COSP participation, disregard the SNAP allotment from the WTA calculation since the entire putative
 2. SNAP allotment is used in determining the SNAP E&T participation hours.

NOTE: For WTA calculation, the TANF family includes: a cap child, sanctioned or disqualified individual whose income and resources must be included in the TANF benefit calculation.

3. If no member of the SNAP BG is a SNAP E&T participant involved in Workfare, SNAP Work Experience or Voluntary Services for the month of WKEP/COSP participation, divide the SNAP allotment by the BG size on FSBH. Multiply that amount by the BG size on AFBH to determine the amount of SNAP benefits which can be used in calculating the WTA amount.
- F. Determine the gross TANF benefit amount for the month of WKEP/COSP participation. Check the "AFDC Amount" field on AFBH.

NOTE: If two TANF BG members are participating in WKEP/COSP for the same month, calculate the WTA separately for each adult. The TANF benefits need to be divided by two to determine the amount to be applied to each WKEP/COSP participant.

- G. Determine the total amount of benefits received for the month of WKEP/COSP participation. Add the SNAP and TANF amounts.
- H. Subtract the total amount of benefits received from the total WE/CS compensation due to determine the amount of the WTA. If the amount of benefits received is equal to or greater than the total WKEP/COSP compensation due, a WTA should not be issued. At this step, round to the nearest dollar amount. (.50 -.99 round up, .01 -.49 round down).
- I. Enter the WTA amount on CHIP screen UNAU in the "WEP AMT" field. Enter the month of WKEP/COSP participation in the "ERROR MONTH" field. The WTA supplemental must be authorized by the last day of the month following the WKEP/COSP participation month.

NOTE: The WTA amount must be counted in SNAP budget only.

15.8 Providing Child-Care Services to an Individual who is Participating in a Community Service Program

Providing child care services to an individual who is participating in a Community Service Program is a structured program in which individuals provide child care for recipients in approved TANF community service program activities.

NOTE: South Carolina does not plan to use this work activity at the present time.

15.9 TANF Non-Core Activities

“Non-Core” activities are activities which can be included in the federal participation rate calculation once a minimum 20 hour assignment to a core activity has been made if the total hours equal the federal requirement.

Listed below are the acceptable TANF secondary (non-core) components.

1. Job Skills Training Directly Related To Employment (JSTL)

Training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or adapt to the changing demands of the workplace.

Job skills training is generally provided in a work place atmosphere with limited classroom activity.

Such activities may include both customized and general training to prepare an individual for employment, including literacy and language instruction. Job Skills Training must be directly related to a specific job.

Such activities would be short term (less than 3 months) and may include, but not limited to the following:

- A. Business machine operations
- B. Fork lift operator
- C. Safety/First Aid classes
- D. Food preparation

2. Education Directly Related To Employment (EMED or TAEE)

Education related to a specific occupation, job, or job offer.

Participants should make “good or satisfactory progress” as determined by the standard of the institution or program. Basic remedial education and ESL maybe counted under Education Directly Related to Employment. Examples of Education Directly Related to Employment may include, but not limited to the following:

- A. Key board
- B. Short term computer training
- C. Basic child development
- D. Graphics
- E. Multi-Media presentations

F. Auto maintenance

NOTE: For a teen parent/adult (TA's) 20 hours of participation in this activity meet the TANF participation requirement. For all other adults this is considered a non-core activity.

3. Satisfactory Attendance at Secondary School or in a GED Program (TASS or SSSA)

Regular attendance, in accordance with the requirements of the secondary school or course of study, at a secondary school or in a course of study leading to a certificate of general equivalence, in the case of a recipient who has not completed secondary school or received such a certificate.

NOTE: Teen Parent/Adults who are satisfactorily participating in secondary school attendance (according to the Department of Education) will be considered to meet satisfactory participation.

Enter 20 hours per week or actual hours of participation, whichever is greater, on the PATS components screen for high school (TASS/ HISC), adult education (TASS/ADED) or GED program (TASS/GEDP).

A teen parent/adult meets the participation requirement by satisfactorily attending school as defined by the SCDE. This activity must be supervised on an ongoing basis no less frequently than daily.

4. Non-Countable Work Activities (WANC)

The TANF Program is designed to promote the self-sufficiency of participants through intensive and continuous engagement in various program activities until the client finds employment. This may result in periods during which a client may be referred or assigned to a needed service or activity that promotes self-sufficiency but the activity is not countable in the TANF participation rate. The need for the service or activity is determined through assessment and development of the Family Plan.

15.10 Types of Vocational Education Available to TANF Clients

There are a variety of types of vocational education programs that would be allowed under the definition of vocational educational training (core activity 20 hours per week) job skills related to employment, and education related to employment non-core (10 hours per week).

These include:

1. Vocational associate degree programs

These programs consist of both academic and vocational for credit course work that usually requires about 60 credits. Completion of these programs can provide an associate of arts (AA), associate of science (AS) or associate of applied science (AAS) degree in fields defined as vocational. Common fields of study include: agricultural business and production, business, computer and information science, engineering, health-related professions, communication technologies, personal services, protective services, construction, automotive technology, and transportation.

Associate degree programs can take two or more years to complete. Because they generally combine coursework with actual work, some portion could be counted as vocational educational training, while some could be counted as on-the-job training (if paid) or work experience (if unpaid).

2. Instructional certificate programs

These programs are generally programs designed to upgrade job related skills. These programs generally require about one year to complete and, compared to associate degree programs, involve far less, if any, academic courses. However, certificates can be of varied duration and can be earned for quite diverse activities. Examples range from a floral arranging program lasting only a few weeks to a two-year certificate program in airframe and power plant. Like associate degree programs, these certificates are awarded by institutions based on credits accumulated.

3. Industry skill certifications

These programs are industry-developed certificates for students who demonstrate specific skills, often through a test. Preparation for these tests includes self-study and courses offered at postsecondary institutions and other training providers.

4. Noncredit course work

This course is designed to accommodate those who want specific job-related skills. For example, this could include: Introduction to Windows 98 (3 hours), Introduction to Fiber Optics (20 hours), Catering and Food Preparation (96 hours), and Real Estate License Exam Preparation (20 hours). The amount of time to complete the coursework for a specific skill can vary significantly and can consist of stand-alone courses or sequenced courses in a non-degree-granting program.

5. Illustrative Offerings of Vocational Associate and Certificate Programs

Associate in Science	Vocational Certificate
Accounting	Airframe and Power Mechanics
Architectural Design	Auto Collision Repair
Automotive Service Management	Automotive Machine Shop
Aviation Operations	Automotive Service Technician
Building Construction Technology	Barbering
Business Administration	Brick Masonry
Business Marketing Management	Carpentry
Civil Engineering Technology	Child Care Center Operator
Computer Engineering	Corrections Officer
Criminal Justice Technology	Cosmetology
Culinary Management	Credit Union Service Marketing
Dental Hygiene	Dental Assisting
Drafting and Design	Electricity
Early Childhood Management	Facials Specialty
Electronic Technology	Massage Therapy
Graphic Design Technology	Medical Secretary
Interior Design	Nails Specialty
Legal Assisting	Network Support Services
Medical Laboratory Technician	Office Systems Specialist
Nursing, Registered Nurse (RN)	Paramedic
Radiography	Plumbing
Respiratory Care	Practical Nursing
	Teller Training

	Travel Agency Operations
	Webmaster and Web Development

Chapter
16

Chapter 16

Verification, Monitoring and Supervision

16.1 Verification, Monitoring and Documentation

1. Work Verification Plan

In response to the Deficit Reduction Act of 2005 and the HHS interim final TANF regulations issued June 29, 2006, new rules were established for TANF policy on work activities. As part of the interim TANF regulations, states are now responsible for providing the federal government with a "Work Verification Plan" -- a document containing status verification and updates on recipient participation in work activities. On February 5, 2008, we received the Final TANF Regulation. The final version made several changes to the rules contained in the interim version. The information contained in this chapter of the manual reflects verification requirements according to SC's Work Verification Plan. Failure to adhere to the Work Verification Plan will negatively impact the TANF participation rate and the amount of federal funds received by the State.

2. Supervision, Verification and Documentation

Supervision, verification and documentation are key elements in meeting TANF participation requirements. The Case Manager (CM) must monitor the client's participation to verify and document all activities of the Work Eligible Individual (WEI) and family members. This includes, but is not limited to, follow-up on referrals and updates to the Family Plan. This continuous evaluation process will allow the CM to provide valuable counseling, guidance and support to recipients. The CM is responsible for the verification and documentation in the case record to support the electronic documentation in PATS. All work program activities must be verified and documented appropriately in the case file and in the PATS system in order to count in the participation rate.

3. Employment Plan Compliance

Monitoring of compliance with the Employment Plan begins when a recipient is referred to a component and begins participating. Time frames for components completion are established at the time the Employment Plan is developed. The CM will monitor the participant's attendance and progress in the assigned component, and ensure that the time frame established is reasonable.

4. Subsequent Components

A participant completing an assigned component should be referred to subsequent components, as appropriate. The Employment Plan is updated periodically through personal contact with the recipient as his/her participation is reassessed. Changes to the Family Plan should be documented on the appropriate section and PATS should be updated to indicate dates that the Family Plan changed.

5. Monitoring Requirements

The CM is responsible for verifying and recording client participation in components, activities, and their progress on an ongoing basis, while providing encouragement to those demonstrating good progress and counseling to those showing deficiencies.

6. Documentation of Weekly Attendance

In order to monitor program participation, the CM will be responsible for documenting each participant's weekly attendance in the assigned activity and entering this information monthly into PATS.

7. Employment and OJT

When participants become employed or involved in OJT, a county designee will obtain verification of hours and income from the employer. (A designee may be the Case Manager or the WFC.) Once verified the hours may be entered in PATS for up to six (6) months per verification. If the CM becomes aware of changes in hours, he/she must obtain new verification and update the PATS system. After six months of activity, hours must again be verified.

NOTE: *The CM must key the countable hours each month during the six month period.*

8. Training Activities

Participants in training activities such as Work Experience, Community Service and Vocational Education must be supervised daily by the site supervisor. The CM will obtain verification of hours from the supervisor a minimum of every two (2) weeks. Satisfactory progress applies to these training programs. Progress is evaluated to assure that the training programs offered will result in an increase in the participant's skills and competencies.

9. Educational Activities

Participants involved in educational activities must demonstrate satisfactory progress in order to receive continuing benefits/support services. Satisfactory progress is defined as a standard that includes a qualitative element (e.g., grade progression, grade point ratio) and a quantitative element (i.e., time frame for completion of the program or course of study and attendance requirements).

NOTE: *Educational activities count as a core activity for individuals coded as Teen Parent/ Adults (TAs), without a high school diploma, GED or certificate of completion.*

10. Failing to Comply

Participants failing to meet satisfactory progress requirements are subject to good cause, conciliation and sanction procedures.

16.2 Rebudgeting and Follow-Along

Once a participant is placed in employment, the ES Worker will rebudget the case. Should the cash benefits terminate, the CM may make periodic contact to help prevent and/or eliminate problems the participant may experience after becoming gainfully employed.

16.3 Purpose of a Case Staffing

The staffing is the method used to gather key individuals together to review, discuss and monitor the Family Plan and the family's status in movement toward a goal of self-reliance.

A staffing is needed while a client is participating in a core activity or as the client progresses from one activity to another to determine whether the Employment Plan needs to be revised, or whether additional services are needed. Staffing is also needed when a client fails to participate in an activity as required. Staffing can be held at any other point it is determined to be necessary for the client's progress.

The CM, ES Worker, Supervisor, Human Service Worker, WFC and any other individual involved with the family may participate in a staffing. If an allied agency is involved in the case, a representative should be invited to participate in the staffing. The CM must meet with the recipient(s) following the staffing to discuss recommendations for the family and to complete or update the Family Plan as needed.

1. Required Staffings

TANF Families with an adult or minor parent head-of-household BG member must be staffed at least three times during the first 24 months the family receives TANF cash benefits. Other staffing can be held at any other point it is determined to be necessary for the client's progress.

The required staffing times are:

- A. Upon approval for TANF, after the completion of the Family Evaluation, but prior to the development of the Employment Plan.
- B. In conjunction with the annual redetermination of eligibility (12th month of the 24 month time period).
- C. Prior to closure/extension of TANF due to the time limit.

NOTE: Families exempt from time limited benefits will continue to be staffed at annual redetermination.

A summary of all mandatory staffing activities will be documented on DSS Form 3707, TANF Staffing Summary. During the initial staffing, the following should occur:

1. Review the family situation as identified through the family evaluation process
2. Identify all barriers to the achievement of family self-reliance.
3. Document recommendations for the family that are realistic based on the screenings and assessments conducted.

4. These recommendations should be directed to removing barriers and moving a work program participant to the desired vocational objective;
5. Determine support services needed by the family.

For the initial staffing, complete the TANF Staffing Summary, DSS Form 3707.

At the 12-month staffing the case must be reviewed by the CM, supervisor and anyone else involved with the participant to determine the following:

- A. If the participant is on track with goals outlined in the Employment Plan
- B. If months toward the time limit have been counted correctly
- C. If tracking codes and component activities are up-to-date
- D. Document any recommended changes to the Family Plan

For the 12-month staffing, complete the TANF Staffing Summary, DSS Form 3707.

By the end of the twenty-two (22nd) month of eligibility, a two-step staffing must be completed to determine if the recipient meets the criteria for an extension of benefits.

The two-step staffing process involves:

Step 1 - A case review in the 21st month involving the completion of the DSS Form 3707, TANF Staffing Summary, including the 21st month review section.

Step 2 - A face-to-face interview in the twenty-two (22nd) month to review extension criteria and ongoing eligibility requirements, or to review with the recipient his/her plans (including the future well-being of the children) after the TANF benefit ends. Completion of the 22nd month case staffing section on the DSS Form 3707.

If the recipient does not respond to the appointment notice for the twenty-two (22nd) month staffing, a personal contact (telephone call or written correspondence) must be made in an attempt to reschedule the appointment.

If the recipient fails to participate in the 22nd month staffing, an extension cannot be considered and the TANF cash benefits will terminate at the end of the 24th month due to time limits.

NOTE: *If it is determined that the recipient's whereabouts are unknown, the cash benefits should be terminated for that reason, not due to time limits.*

2. Domestic/Family Violence Staffing

When an A/R requests a waiver of program requirements due to being a victim of domestic/family violence and is referred to the DVA for assessment and counseling, the CM will staff the case with the DVA prior to granting approval of the waiver. **(See 12.1.3) (13.12.7)**

NOTE: *Due to the distance between a county DSS office and a DVA, this staffing can be done over the phone.*

A. Who Should Attend a Staffing?

The ES Worker, CM, Supervisor, Human Service Worker, WFC and any other individuals involved with the family may participate in a staffing. If an allied agency is

involved in the case, a representative should be invited to participate in the staffing. The CM must meet with the recipient(s) following the staffing to discuss recommendations for the family and to complete or update the Family Plan as needed.

B. CWS Case Staffing

For families receiving DSS Child Welfare Services (CWS) a coordinated staffing will be held to include appropriate staff from each county.

C. Communication Process with CWS

In order to assist in the staffing process each county should develop a communication procedure to ensure participants for each program are identified. DSS Form 1600, Human Services, TANF and SNAP Communication Form, may be used.

D. Joint TANF/CWS Staffings

To ensure effective communication and planning takes place with clients who are served by both TANF and Child Welfare Services (CWS), joint staffings will be held when the following situations occur: [\(See 13.1\)](#)

1. An HS treatment plan is being established.
2. A family court action is being planned or has been initiated due to an emergency.
3. A child is removed from the home, placed with relatives or returned to the home.
4. The need of a referral for a drug and alcohol assessment has been identified.
5. A Family Plan is being developed.
6. A conciliation is scheduled prior to a full family sanction.
7. The TANF 22-month staffing is scheduled.

16.4 Monitoring Requirements

The CM is responsible for verifying and recording client participation in components, activities, and their progress on an ongoing basis, while providing encouragement to those demonstrating good progress and counseling to those showing deficiencies. The CM should monitor the participant's activities on a weekly basis.

1. Failing to Comply

Participants failing to meet participation and/or satisfactory progress requirements are subject to good cause, conciliation and sanction procedures.

2. Progress Reports

An individual progress report is needed for each participant. Progress report must be given monthly by providers for each activity. The report should be reviewed by the CM to determine if satisfactory progress is being made and then filed in the case record.

3. Good Cause/ Conciliation

If it is determined that satisfactory progress is not being made, the CM will determine good cause. A good cause determination may result in the referral to a more appropriate component if, for

example, the participant has a learning disability. If good cause does not exist, the CM will begin the conciliation process.

4. Completed Activities

Just prior to the completion of any major activity, the CM should schedule a meeting with the participant to discuss what the next step in the Employment Plan will be.

5. Subsequent Activities

The participant should be assigned to the next required activity with no break in services. Referrals to subsequent activities will follow the same procedure as initial referrals to activities. The participant will be evaluated and reassessed on a continuing basis. This reassessment process will allow the CM to provide valuable counseling, guidance and support to every participant.

6. Documentation of Weekly Attendance

In order to monitor program participation, the CM will be responsible for documenting each participant's weekly attendance in the assigned activity and entering this information monthly into PATS. An individual timesheet is required for participants in group activities. The signed timesheet must be maintained in the participant's file.

7. Gathering Information Consistently

Counties are responsible for establishing consistent methods for gathering information about attendance and participation hours.

8. Supervisory Monitoring and Case Reviews

County supervisors are responsible for ensuring that the TANF Program is operated in compliance with State and Federal policies and regulations. The supervisor is expected to review all case management actions as mandated to assist TANF recipients in obtaining the tools necessary to achieve and maintain economic independence. The supervisors must ensure services are provided in a manner that is fair and meaningful to all recipients.

The Supervisory Case Review Guide will be used to ensure that Case Managers:

- A. Develop with the TANF participant's in-put, an appropriate client specific plan for the individual to participate in actions needed to obtain gainful employment to achieve self-reliance within 24 months.
- B. Verify and record client participation in components, activities, and document their progress on an ongoing basis.
- C. Monitor client participation and provide encouragement to those demonstrating good progress.
- D. Counsel and conciliate participants that show deficiencies or are not participating as required.
- E. Record all client activity in PATS

Note: Supervisory Case Reviews must be completed on all cases prior to imposing a sanction and all cases before the 22 month time limit staffing.

9. Recording Supervisory Reviews

Supervisor Case Reviews should be recorded in PATS on the documentation screen by using the “Supervisory Review” type. Supervisors can document in the system that the case was correct or indicate corrective actions needed by the Case Managers.

Supervisor Case Reviews are critical to managing the TANF Program. The reviews validate our system and reported data while ensuring that supervisors and Case Managers understand the program.

County Directors and Supervisors can monitor cases reviewed through the following PATS reports:

FI 501 – Cases Reviewed During the Month

FI 502 – Open Cases Not Reviewed in Six Months

FI 503 – Case Review Summary by Caseload

FI 504 – Case Review Summary by County

16.5 Definition/Scheduled Hours

Scheduled hours are defined as the number of hours per week the recipient is expected to participate in a specific component. Educational and training institutions define scheduled hours based on the specific activity (e.g., literacy classes, GED classes or nurse's aide training). Scheduled hours of other components, such as the Employment Preparation Program are based on the curriculum established for each component.

1. PATS Entry

Actual hours of participation for **each week** in the report month must be entered on the Units of Service (UOS) screen in PATS.

Actual verified hours for employment and OJT must be **entered monthly** for up to 6 months. Hours must be re-verified at the end of six months.

NOTE: Changes in hours will be recalculated based on TANF budget policy. When attendance in secondary education for teen parent/adults, coded TASS/GEDP and TASS/HISC is verified, enter 20 hours per week or actual if greater than 20 hours.

2. Calculating Weekly UOS

If a client participates in different components during the same week, total the daily hours for each component separately then enter weekly hours for each component on PATS.

3. Time Frames

Each activity will have a specific time frame. The CM and participant shall discuss the time frame. If the participant's time frame for completion needs to be extended, the Employment Plan will be updated and signed.

16.6 Methods of Verification and Documentation

The following information defines the allowable TANF work activities and the methods South Carolina will use to count and verify participation hours, as well as the type and frequency of supervision required to meet the TANF Work Verification requirements.

1. Unsubsidized Employment

Unsubsidized Employment includes all paid employment that is not subsidized by TANF or any other public program. This includes self-employment when money is earned for work performed. Individuals may be employed and earn less than the Federal Minimum Wage.

Part-time employment is employment of at least 10 hours, but less than 30 hours per week. This includes “in-kind” or “barter income” in exchanges for property or services.

A. Countable Hours:

The countable hours will be based on the number of verified hours a recipient is employed. When calculating countable hours toward the TANF participation rate, employment hours will be projected up to six months, based on documented actual wages and hours, if those are representative of continuing circumstances.

To determine countable hours, we will use recent representative pay stubs. Pay stubs not considered representative include pay dates in which the recipient received income that is significantly higher or lower than usual. Such a break or difference in hours might be due to illness, a death, vacation, emergency, overtime, etc. If the pay or non-receipt of pay for one or more of these weeks is not representative, that week’s pay stub will be entered as actual hours. In lieu of pay stubs, a wage form signed by the work supervisor will be accepted.

We will add the weeks of representative hours and divide the total hours by the number of representative pay dates to obtain the average number of hours per pay week.

B. Verification of hours:

The State will use pay stubs, employer reports, or other employer-issued documentation from Work Eligible Individuals or employers to verify actual hours of participation. Documentation and verification of hours worked are retained in the participant’s case file.

Recipient’s pay stubs will be the primary source of verification of hours.

Verification of hours is determined as follows:

The State will use available representative pay stubs or contact the employer to verify the number of hours the recipient is expected to work each week.

Acceptable forms of documentation will be:

1. Request for Wage Information (DSS Form 1245)
2. Wage Stubs
3. Employment/Employer Records (e.g. time sheets)
4. Copy of check, money order, or other payment form

Once verification is determined, documented hours may continue to be counted for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy.

C. Countable Hours-Self Employment:

In the case of self-employed individuals, the gross income (less business expenses) divided by minimum wage, is a reasonable mechanism for imputing countable hours of employment. The hours for self-employment are countable when the participant income records substantiate proof of gross income minus business expenses.

For self-employed individuals, the State will use the most recent State/Federal income tax records, current business receipts/records/books, or a signed and dated statement from the recipient may be used when it is not practical to verify the hours using other means. The case file will be documented with the reason for the need for self-declaration. All documentation and verifications will be retained in participant files.

Once verification is determined, documented hours may continue to be counted for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy.

To calculate hours, add the weeks of representative hours and divide the total hours by the number of representative pay dates to obtain the average number of hours per pay week and divide by minimum wage.

1. Verification of hours:

If a participant enters the TANF program and states he/she is self-employed and has been self-employed for less than a year, the participant must provide the above documentation including copies of receipts, appointment books or any other documentation that will show the participant is engaging in a legitimate business.

If the participant states he/she has been self-employed for a year or more, a copy of the previous year's income tax return will suffice to show that the participant is engaged in a legitimate business.

2. Acceptable forms of documentation will be:

- a. State/Federal Income Tax Records
- b. Employment/employer records
- c. Signed and Dated Statement from the Recipient

Once verification is determined, documented hours may continue to be counted for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy.

2. Subsidized Private Sector Employment

Subsidized Private Sector Employment is employment in a private company or organization that receives a subsidy from TANF or other funds.

Subsidized employment will generally be limited to six to twelve months, unless a longer period is identified as beneficial in a needs assessment.

An example of subsidized private sector employment is a temporary staffing agency, serving as

employer of record and paid a fee by DSS to cover salary, expenses and success in placing employees.

Contact with employers will be made to determine if they are receiving monies from any public program in order to determine if they meet the description of subsidized employment.

A. Countable hours

When calculating countable hours toward the TANF participation rate, the State will project hours based on recent representative pay stubs, or when a new job is reported, countable hours will be based on the number of hours the employer expects the recipient to work.

To determine countable hours, we will use recent representative pay stubs. Pay stubs not considered representative include pay dates in which the recipient received income that is significantly higher or lower than usual.

Such a break or difference in hours might be due to illness, a death, vacation, emergency, overtime, etc. If the pay or non-receipt of pay for one or more of these weeks is not representative, that week's pay stub will be counted as actual hours. In lieu of pay stubs, a wage form signed by the work supervisor will be accepted.

B. Projection of Hours

We will add the weeks of representative hours and divide the total hours by the number of representative pay dates to obtain the average number of hours per pay week.

C. Verification of hours

Recipient's pay stubs will be the primary source of verification of hours. Verification of hours is determined as follows:

SC will use available representative pay stubs or contact the employer to verify the number of hours the recipient is expected to work each week.

1. Acceptable forms of documentation will be:
 - a. Request for Wage Information (DSS Form 1245)
 - b. Wages Stubs
 - c. Employment/Employer Records (e.g. time sheets)
 - d. Copy of check, money order, or other payment form

Once verification is determined, documented hours may continue to be counted for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy.

Subsidized employment will be supervised at the worksite according to the requirements of the employer.

3. Subsidized Public Sector Employment

Subsidized Public Sector Employment is employment in a public company or organization when the employer receives a grant or allotment to pay all or a portion of the employee's wage. Subsidized

employment will generally be limited to six to twelve months, unless a longer period is identified in a needs assessment as beneficial.

An example of subsidized public sector employment is supported work for individuals with disabilities in an integrated setting, sponsored by Vocational Rehabilitation.

Contact with employers will be made to determine if they are receiving monies from other public programs in order to determine if they meet the description of subsidized employment.

A. Countable Hours

When calculating countable hours toward the TANF participation rate, the State will determine hours based on recent representative pay stubs, or when a new job is reported based on what hours the employer expects the recipient to work.

To determine countable hours, we will use recent representative pay stubs. Pay stubs not considered representative include pay dates in which the recipient received income that is significantly higher or lower than usual. Such a break or difference in hours might be due to illness, a death, vacation, emergency, overtime, etc.

If the pay or non-receipt of pay for one or more of these weeks is not representative, that week's pay stub will be counted as actual hours. In lieu of pay stubs, a wage form signed by the work supervisor will be accepted.

We will add the weeks of representative hours and divide the total hours by the number of representative pay dates to obtain the average number of hours per pay week.

B. Verification of Hours

Recipient's pay stubs will be the primary source of verification of hours.

Verification of hours is determined as follows:

Use available representative pay stubs or contact the employer to verify the number of hours the recipient is expected to work each week.

Acceptable forms of documentation will be:

1. Request for Wage Information (DSS Form 1245)
2. Wages Stubs
3. Employment/Employer Records(e.g. time sheets)
4. Copy of check, money order, or other payment

Once verification is determined, documented hours may continue to be counted for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy.

C. Method of Supervision

Subsidized employment will be supervised according to the requirements of the employer.

4. Work Experience

Work Experience is a work activity, performed in return for benefit payments, that provides an individual with an opportunity to acquire the general skills, training, knowledge and work habits necessary to obtain employment.

Placements in unpaid positions are for the express purpose of providing participants with the experience of work so they may acquire the general skills, training, knowledge, and work habits necessary to obtain employment.

A Work Experience Program placement is daily supervised training that is based on a participant's vocational objective. Work Experience assignments can be at public, private non-profit and private for-profit agencies, businesses or institutions.

Although Work Experience Programs are unsalaried, the federal Fair Labor Standards Act (FLSA) requires that welfare recipients who are required to participate in a Work Experience Program be compensated for the hours of participation. FLSA allows compensation to be provided in the form of certain needs-based benefits.

Work Experience Program participants will be paid a Work Experience Training Allowance (WTA) if the number of monthly hours of Work Experience participation multiplied by the federal minimum wage exceeds the combined dollar value of Supplemental Nutrition Assistance Program (SNAP) and TANF benefits for the month of Work Experience Program participation. South Carolina implemented a simplified Supplemental Nutrition Assistance Program (SNAP) Program effective October 1, 2006. Work Experience Program participants who sustain an injury at a work site are subject to established workers' compensation guidelines.

A. Countable Hours

Actual hours of participation in work experience will be countable. Hours will be documented biweekly by the work experience supervisor. Work experience participants may also be eligible for unpaid holidays or excused absences as determined by DSS policy.

B. Verification of Hours

The Work Experience Program site supervisor will submit a Work Experience Attendance and Performance Record to DSS bi-weekly. This document will serve as verification of hours worked. Acceptable forms of documentation are:

1. Work Experience Attendance and Performance Record
2. Worksite/Supervisor Records

C. Method of Supervision

Participants will be supervised daily by a Work Experience Program site supervisor. Documentation of attendance and performance will be submitted bi-weekly on an individual attendance sheet. The requirement for daily supervision is part of a formal agreement between the DSS and a work experience provider.

The Work Experience provider agrees to notify the DSS immediately if the individual does not perform satisfactorily and/or fails to arrive at the work site at the agreed upon time. In addition, the work experience provider agrees to notify the TANF case manager at any point if barriers to employment, such as problems with child care or the need for accommodations, become apparent.

The TANF case manager will work closely with the individual and the Work Experience provider to ensure that the placement is beneficial to the individual and that all required work hours are performed satisfactorily.

5. On-the-Job Training (OJT)

On-the-Job Training (OJT) is training in the public or private sector that is given to a paid employee engaged in productive work. OJT provides knowledge and skills essential to the full and adequate performance of the job.

Participants are placed in a paid position for the purpose of providing them specific training to learn a specific job skill that provides knowledge and abilities essential to the full and adequate performance of the job.

On-the-Job Training (OJT) is a full-time subsidized employment activity. It is skills training provided by an employer at an employer's place of business, and may be combined with classroom training. On-the-Job-Training contracts should be written for occupations that have a high potential for sustained demand or growth.

The TANF Program authorizes the creation of two kinds of full time OJTs, (1) learning new skills, and (2) wage progression with new job duties.

Participants in DSS/OJT are compensated at the same rate of pay, including benefits and periodic increases, as other employees performing the same job function. DSS/OJT participants must earn at least the Federal Minimum Wage.

In return for providing intensive supervision and training for the participant, the employer will receive a wage subsidy to compensate for the additional employment costs and the trainee's nonproductive time. Fifty percent of the trainee's gross wages for the period of the contract will be reimbursed to the employer. A DSS/OJT contract (DSS Form 3768, On-The-Job Training Employer Agreement) is generally approved for a 6 month period, renewable for additional periods as appropriate.

A. Countable Hours

Hours in which the recipient satisfactorily participated in OJT are countable and will be documented by the work site supervisor using an OJT Attendance and Performance Record.

B. Verification of Hours

The employer will be given a supply of On-The-Job Training Invoice and Attendance/Performance Record (DSS Form 3769) to complete on a monthly basis to document hours. Acceptable forms of documentation will be:

1. On-the-Job Training Attendance and Performance Record
2. Request for Wage Information (DSS Form 1245)
3. Wage Stubs
4. Employment/Employer Records (e.g. time sheets)
5. Copy of check, money order, or other payment form

6. Signed statement by the employer

C. Participation Hours

The countable hours of participation for OJT will be projected forward for six months. The initial projection is based on at least four consecutive weeks of wage statements/pay stubs, if those are representative of continuing circumstances.

We average the reported hours of employment for these weeks; this serves as the basis of the projection of average weekly hours for six months, unless the State becomes aware of a change in circumstances that requires a recalculation. If the wage statements/pay stubs available are not representative of continuing circumstances, we use actual hours and do not project hours forward.

D. Method of supervision:

OJT participation will be supervised according to the requirement of the employer.

6. Job Search and Job Readiness Assistance

Job Search and Job Readiness Assistance is the act of seeking or obtaining employment or preparation to seek or obtain employment, including life skills training, substance abuse treatment, mental health treatment, or rehabilitation activities. The purpose of job readiness training is to prepare the participant for employment or other work activities so that he/she can be competitive and succeed in the labor market. Job readiness training may be offered before, in conjunction with or after the job search assignment.

Job search and job readiness activity is limited by statute to 240 hours or to 360 hours in a 12 month period, which is the equivalent of **20 hours per week for a single-parent with a child under age six and 30 hours per week for all other work-eligible individuals** (no more than four consecutive weeks may count toward the work participations rates). Hours of participation beyond the 240 hours and 360 hours, may be scheduled but will not count toward the participation rate calculation. Participants should be assigned to job readiness and/or job search activities based on their individual need. Any additional hours of job readiness and/or job search allowed in a 12 month period, (240 hours and 360 hours of job search/job readiness total) should be made in conjunction with other program activities, **when appropriate or necessary**, so that both the core work activity requirement and the overall participation requirement are met.

A. Countable Hours

Actual hours of Job Search will be countable toward the TANF participation rate. Job Search hours will include preparation, research and time spent traveling between locations, but does not include the time spent traveling to the first location or time spent returning home after the last location. Each participant must maintain a daily log of all employment contacts. This log must contain information on potential employers visited in person, by internet or by phone, and a daily record of the time spent engaging in such activities. The participant must submit a log of the daily contacts at least weekly. The log is reviewed by a Case Manager and, if approved, filed in the individual's case record. The log provides the date and time of contact, the type of contact, the position that was of interest, and the name of the employer and contact information.

NOTE: *There is no specific number of internet, on-line or phone contacts allowed for job search. However, only the actual time spent on line or on the phone is countable. The time must be documented and verified by way of the daily contact record. The record must indicate the actual time, date, contact information and whether an application was filed.*

Job Readiness Assistance hours will be actual classroom and/or supervised activities that meet the definition of Job Readiness Assistance. For job readiness activities, the service provider maintains individual attendance records and must submit these to DSS at least bi-weekly. The Case Manager reviews the reported information and files it in the individual's case record.

Countable hours for individuals participating in substance abuse, mental health treatment or rehabilitative activities are based on a treatment plan signed by a qualified medical or mental health professional. Authorized treatment providers provide, at least bi-weekly, an individual time sheet or other document specifying the actual hours of attendance. All individual time sheets and other related documents are filed in the individual's case record.

B. Verification of Hours

Verification of hours will be determined by several sources. Job search completed as part of a formal supervised program will have hours verified by the site supervisor. Directed Job Search hours will be verified through the use of the DSS Job Contact Time Sheet Form. Job Readiness Assistance hours will be verified by the site supervisor.

Client attendance at on-site sessions five days a week are verified through vendor time sheets. Other activities are reported by clients to their Case Managers during weekly meetings. Clients submit a job log which includes a signed timesheet. Vendors must provide a notation that a review has been completed for reasonableness and whether the log/timesheet has been accepted. Attendance in job readiness classes will be documented through attendance sheets signed by the trainer and the client. Documentation that contains an original signature is preferred.

The Case Manager or other DSS staff will ensure the accuracy of the reported information by conducting random reviews and follow-up with employers.

The verification review will include contact with the employers to verify the documented information, confirmation of completed job interviews, and other related measures.

When the logs are incomplete or verification does not validate the activity, we will not report the hours for the work participation rate.

Acceptable forms of documentation will be:

1. Supervised Job Search Log/Job Search Verification -DSS Form 1319
2. Attendance Records from Provider

C. Method of Supervision

For job search activities, the Case Manager provides daily supervision, including daily responsibility for oversight of an individual's participation, although this does not necessarily mean that there will be daily contact with the participant. Daily supervision of a job search participant may include access to a case manager or other employment services provider worker for the participant to report on progress or seek additional guidance as needed before the next regularly scheduled contact. *In*

person contact between the Case Manager or other employment service providers and the participant must be no less frequent than weekly.

The Case Manager will guide and advise the participant in the appropriateness of the job contacts and can require additional job contacts, if it is determined that the participant is making inappropriate contacts or not generally performing in a good faith manner. For Job Search, the Case Manager will contact recipients at least once per week to discuss:

1. Employers contacted
2. Employers hiring
3. Recap interviews
4. Prepare for upcoming interviews
5. Identify recurring obstacles to employment
6. Discuss methods to overcome employment barriers
7. Refresh skills learned during job readiness class

For job readiness activities, the instructor or staff person leading a class, workshop or job club, or other program activity maintains a log of daily attendance by participants and provides instruction and guidance to participants and provides daily supervision.

The service (treatment) provider performs daily supervision for individuals participating in substance abuse or mental health treatment programs. TANF case managers will maintain contact with the service provider while the participant is in treatment, as appropriate.

7. Job Readiness in substance abuse treatment, mental health treatment and rehabilitation activities

Employment contractors may determine that an individual has a substance abuse problem. Individuals who may be in need of substance abuse treatment and case management are referred to local agencies affiliated with the South Carolina Department of Alcohol and Other Drug Abuse Services (DAODAS) agencies for assessment.

DAODAS providers have on staff licensed and certified health care professionals who make the decision as to whether treatment is needed. If treatment is warranted, the provider will refer the individual to appropriate licensed and certified service providers, who will be paid by Medicaid. DSS will obtain and report the treatment hours. In addition, individuals may be sent to Alcoholics Anonymous (AA) or Narcotics Anonymous (NA), and time spent with AA and NA will be credited.

Job readiness rehabilitative services are available from SC Department of Vocational Rehabilitation. SCVR provides medical or other rehabilitative services to address clients' physical or mental disability before employment goals can be reached. These services are offered by SCVR based on individual need.

8. Community Service Programs

Structured programs with embedded activities in which TANF recipients perform work for the direct benefit of the community under the auspices of public or nonprofit organizations.

Community service is an activity for participants who cannot otherwise obtain employment and need to increase their employability by improving interpersonal skills, job retention skills, stress management, and job problem solving, and by learning to attain a balance between job and personal responsibilities. South Carolina will take into account, to the extent possible, the prior training, experience, and skills of a recipient in making appropriate community service assignments.

Community Service Programs fall under FLSA guidelines and must be limited to projects that serve a useful community purpose and provide a direct benefit to the community.

South Carolina may use any of the following types of entities for Community Services placements. This is not an all-inclusive list; many other opportunities may exist locally.

1. Health
2. Social service
3. Environmental protection
4. Education
5. Urban and rural redevelopment
6. Welfare, recreation
7. Public facilities
8. Public safety
9. Child Care

Self-initiated Community Services Programs provide a direct community service and improve the recipient's employability. Self-initiated Community Service

Programs that are allowable and meet this definition:

- a. Student teaching
- b. Student nursing
- c. Internship or practicum for participants enrolled in higher education
- d. Court Ordered Community Service Placements

These self-initiated activities are not subject to FLSA, therefore the WTA workbook is not required.

A. Countable hours

Actual hours of participation in a Community Service Program will be countable. Hours will be verified biweekly by an on-site supervisor.

Community service providers and program participants report actual hours of participation on individual time sheets and activity logs that report hours of participation for every day of every week in each month. A participant engaged in a community service program is subject to the Fair Labor

Standards Act (FLSA). Community service participants will be paid a Work Training Allowance (WTA) if the number of monthly hours of Community Service participation multiplied by the federal minimum wage exceeds the combined dollar value of Supplemental Nutrition Assistance Program (SNAP) and TANF benefits for the month of Community Service participation.

The WTA is a supplement to the TANF grant. South Carolina has received approval to operate a mini-Simplified Supplemental Nutrition Assistance Program (SNAP) Program for TANF recipients, which permits it to combine the value of TANF and Supplemental Nutrition Assistance Program (SNAP) benefits in the determination of maximum hours.

B. Verification of Hours

The Community Service Program site supervisor will submit an individual Community Service Attendance and Performance Record to DSS on a regular basis. The community service provider and the participant sign the individual time sheet or activity log attesting to the truthfulness of the information provided. This documentation is submitted to the DSS by either the participant or the community service provider no less frequently than once every two weeks.

The written verification serves as supporting documentation that the hours of participation were actually performed for the hours claimed in the community service activity. The Case Manager monitors the written verification and records the actual participation hours for participation rate purposes. This information is retained in the case file.

Acceptable forms of documentation will be:

1. Community Service Program Attendance and Performance Record
2. Worksite/Supervisor Records

C. Method of Supervision

Community Service providers must provide a structured work setting with daily supervision, evidenced by documentation such as daily timesheets or activity logs. Self-initiated community service positions are governed by the same documentation requirements. Supervision will be conducted by an on-site supervisor who will document attendance and performance on a daily basis.

Participants are assigned a community service provider and receive daily supervision. The requirement for daily supervision is part of a formal agreement between the DSS and the community service provider. The community service provider agrees to notify DSS immediately if the client does not perform satisfactorily and/or fails to arrive at the work site at the agreed upon time. In addition, the community service provider agrees to notify the DSS Case Manager at any point if barriers to employment, such as problems with child care or the need for accommodations, become apparent. The DSS case manager will work closely with the individual and the work experience provider to ensure that the placement is beneficial to the individual and that all required work hours are performed satisfactorily.

9. Vocational Educational Training

Vocational Educational Training is an organized educational program that is directly related to the preparation of individuals for employment in current or emerging occupations requiring training including postsecondary study leading to a baccalaureate degree. Vocational Education may be short or long term. Clients who are in programs longer than 12 months may be counted as participating

in non-core Education directly related to Employment or Job Skills directly related to employment, if they are participating in a core activity for sufficient hours.

Vocational educational training programs are provided by employment and training providers contracted by the South Carolina DSS.

They may also be provided by accredited vocational-technical schools, certificate programs at accredited secondary, proprietary schools, non-profit organizations, secondary schools that offer vocational education, post-secondary educational institutions, colleges and universities, or through distance learning at accredited Internet-based institutions intended to prepare the participant for specific occupations.

A. Countable vocational educational training placements consist of:

Technical College Certificate Programs: Computer Servicing, Accounting, Advanced Computer Programming, Architectural Design Technology, Architectural Drawing, Basic Arts , Basic Automotive, Basic Design Technician, Basic Industrial Systems Technology, Basic Residential Carpentry, Basic Video Production, CAD Drafting Applications, Child Care Management, Civil Design Technician, Commercial Refrigeration, Computer Assisted Design (CAD), Computer Networking Technology, Computer Technology, Correctional Office Administration, Correctional Training, Criminal Justice and Law, Designing HVAC Systems, Early Childhood Development, E-Commerce, General Education, Help Desk Management, Heat Pump, Hospitality Management, Infant/Toddler Care, Law Enforcement Training, Light Construction Management, Massage Therapy, Mechanical Design Technician, Medical Office Assistant, Microcomputer Programming, Multimedia Design, Network Administrator, Network Engineer, Office Applications for Business & Industry, Paralegal Specialist , Pre-Allied Health Studies, Relational Database Administrator, Residential Apprentice Electrician, Residential Foundations Certificate, Residential Plumbing Certificate , Small Business , Webmaster , Word Processing. Associate in Science Degrees in the following categories: Business Administration; Culinary Management; Dental Hygiene; Drafting and Design; Early Childhood Management; Electronics Technology; Interior Design; Legal Assisting; Medical Laboratory Technician; Registered Nurse; Radiography, and Respiratory Care.

Other Vocational Certificates in the following categories: Barbering; Brick Masonry; Carpentry; Child Care Center Operator; Corrections Officer; Cosmetology; Credit Union Service Marketing; Dental Assisting; Electricity; Facials Specialty; Heating and Air Conditioning; Massage Therapy; Medical Secretary; Nails Specialty; Network Support Services; Office Systems Specialist; Paramedic; Plumbing; Practical Nursing; Teller Training; Travel Agency Operations; and Webmaster and Web Development.

NOTE: Basic and remedial education and English as a Second Language will not be counted as Vocational Education Training but may be counted under Education Directly Related to Employment.

B. Countable hours

The actual hours of participation in vocational educational training activities are countable. Expected hours for this and other activities will be shown on the individual's Employment Plan, as will acceptable timeframes for completion.

Actual hours of participation will be reported on individual time sheets and activity logs for every day of every week in each month. Actual hours spent in class as well as time spent performing clinical requirements, lab work or other ancillary activities (e.g. special learning needs, vocational assessment and counseling and barrier removal activities) required for approved vocational educational training programs are considered to be a part of the primary activity for which it is required and is countable.

DSS will obtain a monthly report advising whether the student is regularly attending classes and whether they are performing satisfactorily. These are used to determine class attendance.

Total homework time counted for participation cannot exceed the hours required for or advised by the educational program/institution. A statement must be obtained from the educational program/institution that indicates the amount of homework required for each class. Actual time spent in supervised study halls, monitored study and homework sessions will be counted, if documented and verified by a signed time sheet or record of attendance. Up to one hour of unsupervised homework time can count for each hour of class room time.

NOTE: *Homework can be a combination of supervised and unsupervised time.*

Any distance learning participation must be documented by on-line participation or completion of instructional learning packets or workbooks. Mechanisms for verifying and documenting actual hours of supervised participation may include on-line tracking of time participating in the educational activity, combined with intermittent review of work assigned to and completed by the student or reasonable approximations of the time required to complete work packets as determined by the education provider and approved by DSS. Detailed records of the instruction provided, dates when student packets were sent out and received, performance on the assigned work, as well as, the assignments completed by all students on the roster must be maintained.

Distance learning components must be supported by instructional support and include mechanisms for providing reports that document progress and the time the student is accessing the online training program. Holidays and limited excused absences will also count as hours of participation.

C. Verification of hours

Attendance participation will be recorded on an individual report provided by the institution documenting hours of attendance on a daily basis and verified every two (2) weeks.

Acceptable forms of documentation will be:

1. Log-in and log-out records
2. Time sheets and attendance logs
3. School Records certified by a designated school official

Contractors and educational providers are responsible for daily supervision of assigned clients and must submit documentation of total hours of participation in their program on a bi-weekly basis to DSS. A daily attendance record is used to reflect actual hours of attendance; this form is signed by the client and the contractor or class instructor.

The documentation issued by the distance learning institution to verify the student attended the session will be used as verification in cases where a client is participating in a distance learning program, via internet.

Client attendance records are maintained by DSS. The TANF caseworker provides overall supervision and monitoring of client progress and compliance during the monthly case management visit.

The Agency's work participation computer system Participation and Tracking System (PATs) is programmed to limit the amount of months of countable Vocational Education for an individual. The 12 month period of countable participation is tracked by the recipient's social security number.

D. Method of Supervision

Supervision will be conducted by an instructor at the institution on a daily basis. Records from the institution will document hours of attendance and progress in the activity.

The 12-month limit on vocational educational training is strictly monitored using a counter in South Carolina's automated data processing system, PATs.

Once the counter reaches 12 months, the activity no longer counts toward the Federal participation rates.

Basic and remedial education and ESL can only count if the vocational educational provider submits a statement indicating that a participant in an otherwise approved vocational educational and training activity requires such instruction to participate in the program and that such instruction accounts for no more than ten hours per week.

10. Job Skills Training Directly Related to Employment

Job Skills Training Directly Related to Employment is training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or adapt to the changing demands of the workplace. For the most part, individuals in job skills training directly related to employment will be in short-term skills training programs similar to those utilized by WIOA. In addition to other kinds of job skills training directly related to employment, South Carolina may place individuals in this component if they are participating in a vocational certificate program that lasts more than one year, and they have already used up their one year of Vocational Educational Training eligibility. For example, some nursing certificate programs last two years.

Job Skills Training is generally provided in a work place atmosphere with limited class room activity. These activities may include both customized and general training to prepare an individual for employment, such as literacy and language instruction. Job Skills Training activities would be short term (usually less than 3 months) and may include but are not limited to the following:

1. Business machine operations
2. Fork lift operator
3. Safety/First Aid classes

4. Food preparation
5. Landscaping
6. Auto maintenance

Job Skills Training must be directly related to a specific job. Personal enrichment classes, such as home and garden, money matters, dance and music would not be acceptable for Job Skills Training directly related to employment. Barrier removal activities, such as substance abuse counseling and treatment, may not be included.

A. Countable hours

South Carolina will report actual hours of participation in job skills training directly related to employment activities. Expected hours for this and other activities will be shown on the individual's Employment Plan, as will acceptable timeframes for completion. South Carolina will obtain from the institution a weekly report advising whether the student is regularly attending classes and whether they are performing satisfactorily.

These are used to determine class attendance. Job skills training providers and program participants report actual hours of participation on time sheets and activity logs that report hours of participation for every day of every week in each month. Actual hours spent in class as well as time spent performing clinical requirements, lab work or other ancillary (e.g. special learning needs, vocational assessment and counseling and barrier removal activities) activities required for approved vocational educational training programs are considered to be a part of the primary activity for which it is required and is countable.

Holidays and excused absences will be counted towards participation. In addition only structured, monitored study and home work sessions will be counted if documented and verified.

In some instances, Job Skills training will be completed as part of distance learning. Training hours will count in participation only when the time spent can be monitored by the institution in reported to the case manager.

Only structured and monitored study sessions which can be verified and documented in the case file will be counted.

B. Verification of Hours

The actual hours of clients assigned to job skills training activities must be verified. Documentation will include hours of attendance, participation, and satisfactory progress.

Documentation of attendance and satisfactory progress will be signed by the training agency/work location and the trainee. Activity hours must be entered into automated PATS system.

Participation hours will be recorded on an individual report provided by the institution documenting hours of attendance on a daily basis and verified every two (2) weeks. Acceptable forms of documentation will be:

1. Attendance Records from Provider

C. Supervision

Job Skills Training directly related to employment must be supervised on an ongoing basis no less frequently than daily. The work site supervisor or training instructor provides supervision and appropriate documentation of supervision. Contractors and training providers are responsible for assigned clients and must submit documentation of total hours of participation in their program on a bi-weekly basis to DSS. A daily attendance record is used to reflect actual hours of attendance; this form is signed by the client and the contractor or training provider.

Attendance records are maintained by the contractors/training providers as well as DSS. The contractor or training provider must notify the DSS of client progress and compliance via telephone, meetings, or written communication.

The Case Manager provides overall supervision and monitoring of client progress and compliance.

11. Education Directly Related to Employment

This is education related to a specific occupation, job, or job offer. Education directly related to employment must be supervised on an ongoing basis no less frequently than daily. This component may include adult basic education and English as a second language, where required, as a prerequisite for employment. Education Directly Related to Employment is generally provided in a class room atmosphere, it must be directly related to a specific job and must be short term (usually less than 3 months). Personal enrichment classes, such as home and garden, money matters, dance and music would not be acceptable for Education Directly Related to Employment. Basic remedial education and ESL may be counted under Education Directly Related to Employment.

Participants should make “good or satisfactory progress” as determined by the standard of the institution or program. For a teen parent/adult, 20 hours of participation in this activity meets the TANF requirement. For all other adults, this is considered a non-core activity. Examples of Education Directly Related to Employment may include but are not limited to:

1. Key board
2. Short term computer training
3. Basic child development
4. Graphics
5. Multi-Media presentations
6. Auto maintenance

A. Countable hours

Actual hours will be counted towards participation as will holidays and excused absences. In addition only structured, monitored study and home work sessions will be counted if documented and verified.

In some instances, the Education Directly Related to Employment will be completed as part of distance learning. Participation will count toward vocational educational training hours only when the time spent can be monitored by the institution and reported to the case manager. Only

structured and monitored study sessions which can be verified and documented in the case file will be counted.

B. Verification of hours

The method of verification of actual hours will be dependent upon the activity and the student composition of the class. For instructional activities comprised entirely of TANF students, class attendance sheets will be used to verify attendance.

For activities which include non-TANF students, individual timesheets will be signed by the faculty member, supervisor, or other appropriate individual as well as the student or documented in electronic tracking systems, as appropriate. Attendance records will be documented every two weeks and maintained in the provider's students' files, as well as, with the case file.

Participation hours will be provided by the institution documenting hours of attendance on a daily basis and verified every two (2) weeks. Acceptable forms of documentation will be:

1. Attendance Records from Provider

C. Method of supervision

Faculty, instructors, instructional aides, lab supervisors, study hall supervisors, and supervisors of work-based learning activities provide daily supervision for the hours of education and will document hours of attendance and progress in the activity.

D. Good and Satisfactory Progress

South Carolina defines good or satisfactory progress as a passing grade, or its equivalent according to the standards set by the educational institution. It is documented in the participant's case file at the end of every marking period, by means of a report from the educational institution.

12. Satisfactory Attendance at Secondary School

Satisfactory attendance by a recipient at a secondary school or in a course of study leading to a certificate of general equivalence is regular attendance, in accordance with the requirements of the secondary school or the course of study. This activity must be supervised on an ongoing basis no less frequently than daily.

Participants involved in educational activities must demonstrate satisfactory progress taking into account appropriate accommodations needed by a person with a disability, in order to receive continuing benefits/support services. Satisfactory progress is defined as a standard that includes a qualitative element; this will be determined by the standard of the institution or program.

For Teen Parent/Adults, satisfactory participation in such a program will meet all TANF work requirements. For all other adults, this will count as a non-core activity.

A. Countable hours

Actual hours will be counted towards participation as will holidays and excused absences. Attendance and satisfactory progress in high school education will be determined according to the standards set forth by the school district. In addition, only structured, monitored study and home work sessions will be counted if documented and verified.

In some instances, the educational training will be completed as part of distance learning. Participation will count toward educational hours only when the time spent can be monitored by the institution and reported to the case manager. Only structured and monitored study sessions which can be verified and documented in the case file will be counted.

NOTE: *For teen parent/adults meeting satisfactory progress, continue to count hours of participation during school breaks, including summer when the students intends to return to school the next term.*

B. Verification of hours

The method of verification of actual hours will be dependent upon the activity and the student composition of the class. For instructional activities comprised entirely of TANF students, class attendance sheets will be used to verify attendance.

For activities which include non-TANF students, individual timesheets will be signed by the faculty member, supervisor, or other appropriate individual as well as the student or documented in electronic tracking systems, PATS, as appropriate. Attendance records will be documented every two weeks. Acceptable forms of documentation will be:

1. Attendance Records from Provider

C. Method of supervision

Faculty, instructors, instructional aides, lab supervisors, study hall supervisors, and supervisors of work-based learning activities provide daily supervision for the hours of education.

D. Good and Satisfactory Progress

Good or satisfactory progress is defined as a passing grade, or its equivalent, according to the standards set by the educational institution. It is documented in the participant's case file at the end of every grading period by means of a report from the educational institution.

13. Excused Absences

A maximum of 80 hours of excused absences are allowed in a 12 month period for each individual, with no more than 16 of these hours reported in any month. The excused absence policy applies to unpaid activities only. This includes work experience and community service, where there is an "employer" but no wages.

Absences will be documented and excused up to the first 80 hours, allowing no more than 16 per month. If absences exceed 16 hours in any month, the additional hours will not be excused for purposes of participation, regardless of the reason for the absence. If total absences exceed 80 hours in the 12 month time period, only the first 80 will be considered excused.

Participants in the TANF Program are expected to participate in assigned activities for the number of hours specified in the Individual Employment Plan (IEP) per week. However, participants in unpaid work activities often have appointments, meetings, or family emergencies that may conflict with scheduled activities.

To address this issue, we allow up to 80 hours (no more than 16 hours in a month) of excused absences in a 12- month time period, of excused absences a year in addition to 10 observed state and

federal holidays. Participants in Work Experience and Community Service activities must have absences approved by the site supervisor. Case Managers will determine excused absences on an individual basis. An absence will be considered “excused” if the participant has received permission from his or her Case Manager or site supervisor. For participants in unpaid work activities other than Work Experience or Community Service, an absence is only “excused” if approved by the Case Manager. For example, if an individual is participating in Work Experience and needed to be excused for two hours for a doctor’s appointment, then the Case Manager should key the two hour as excused for work experience.

The Participation and Tracking System (PATS) will be used to track the number of excused absences used by each recipient. The PATS system will not permit absences of more than 16 hours in a month to be counted as “excused”; and no more than 10 days 80 hours will be counted as “excused” in a 12-month period for each participant. Case managers will also track excused absences manually by means of the Excused Absence Log maintained in the case file. If total absences exceed 80 hours in the 12- month time period, only the first 80 will be considered excused.

The following criteria will be used for granting excused absences from scheduled unpaid work activities:

- A. Illness
- B. Medical appointments of the participant or family member
- C. Court-appearance
- D. Attendance at school functions for children, i.e. parent/teacher conferences.
- E. Attendance at required meetings with social service agencies
- F. Required in the home due to illness of another family member
- G. Family emergency, using reasonable standards of an employer
- H. Bad weather, using reasonable standards of an employer
- I. Absent or late due to participant’s or spouse’s job interview, when the hours cannot be counted as job search
- J. Governor-declared “state of emergency” for the county or locality, either where the participant resides, or where assigned to participate

In order to count an excused absence as actual hours of participation, the individual must have been scheduled to participate in an allowable work activity for the period of the absences.

To control the usage of excused absence hours, a DSS system change request has been initiated for the Participation and Tracking System (PATS) that will not permit more than two days in a month to be counted; and no more than 10 days will be used in a 12-month period. Case managers will also track excused absences manually by means of the Excused Absence Log maintained in the case file.

14. Allowable Holidays

Allowable holidays will be considered as participation for unpaid activities.

For recipients who are unable to participate during hours for which they were scheduled, we will excuse scheduled hours with respect to the following 10 official State holidays:

1. New Year's Day
2. Martin Luther King Jr. Day
3. President's Day
4. Memorial Day
5. Independence Day
6. Labor Day
7. Thanksgiving Day
8. Day After Thanksgiving
9. Christmas Day
10. Day After Christmas

When any of the holidays listed fall on a Sunday, the following Monday is observed as a holiday. Saturday holidays are observed on Friday.

Some work sites provide for more than the 10 holidays recognized as excused by SC. For example, some work sites are closed for a period of time, such as a semester break or a week between Christmas and New Year's Day. Case managers will need to ensure the participants meet their hourly work requirements during holidays or breaks not excused by DSS.

Example: *A recipient is scheduled to participate at a work site for 20 hours per week in a Work Experience activity. The work site will be closed for Halloween on October 31. The case manager and work site supervisor can schedule the participant with 1 additional hour each day for the week to meet the 20 hour weekly requirement.*

16.7 Participant Follow-Up for Unsatisfactory Participation

The CM must investigate each occurrence of unsatisfactory participation by determining if the participant had good cause for not participating in the assigned activity.

16.8 Keying Employment Hours

At the time the participant becomes employed, once income verification is determined, documented hours may be entered into PATS. When the actual hours of employment are verified, the hours can continue to be entered for up to six (6) months. Changes in hours will be recalculated based on TANF budgeting policy. An end date must be entered if the employment is terminated.

16.9 Cash Benefit Termination/Closure

There are three reasons cash benefits may terminate relating to TANF Work Requirements. Each case record shall contain documentation regarding the reason for termination of cash benefits, as noted below:

1. Successful Closure

Characteristics of a successful termination of cash benefits include the following:

- A. The participant has become employed.
- B. The participant is no longer economically eligible for a TANF cash benefit.

2. Full Family Sanction

Failure of the adult or teen parent/adult to cooperate with TANF Work Requirements outlined on the IEP results in a full family sanction causing termination of cash benefits, unless one or more adult in the BG meet a “legal cause” reason. [\(See 17.2\)](#)

3. Closure for Other Reasons

Other reasons for termination of cash benefits include, but are not limited to the following:

- A. There is no eligible child(ren) in the BG.
- B. Participant moves to another state.
- C. The State 24-month time limit expires.
- D. Participant voluntarily requests that his/her case be closed.

NOTE: *If a TANF cash benefit is discontinued due to the temporary absence of a child, support services may be continued for up to 90 days so that the parent may continue in TANF Program activities.*

Cases that are no longer eligible should be closed on both CHIP and PATS using the appropriate codes.

16.10 Case Management Only Cases

Families in which the adult(s) in the BG are coded “RH” on EMPR will be considered a case management case prior to and after closure due to employment or time limits.

Families who lose TANF cash benefits and are employed at the time cash benefits are terminated are eligible for case management services for up to 24 months after termination. Families eligible for these services include:

- A. Families eligible for and /or receiving Transitional Support Services
- B. Employed families who lost cash benefits for a reason that does not allow TSS/TCC

Case management services include the following:

- 1. Transitional Support Services
- 2. DSS OJT
- 3. Other work activities as appropriate
- 4. Referrals to other entities for services as needed.

Such services should be offered to eligible families requesting assistance.

Chapter 17

Chapter 17

Failure to Comply with TANF Work Requirements

17.1 Failure to Comply with TANF Work Requirements

Full family or individual sanctions are applied to the BG when a Work Eligible adult recipient or teen parent/adult fails without good cause to:

- A. Cooperate with TANF Work Requirements outlined on the Individual Employment Plan (IEP)
- B. Comply with the employment and training requirement contained in the Employment Plan
- C. Accept an offer of employment once the recipient completes the training requirements according to the Employment Plan

NOTE: *WEI's sanctioned or disqualified for other reasons are subject to full family sanction unless the individual meets Legal Cause criteria.*

The CM must exercise judgment and must make every effort to assist participants in overcoming barriers to successful participation in the program.

17.2 Legal Cause Criteria for TANF Work Program

The SC Family Independence Act allows certain individuals legal cause for not meeting TANF Work Program participation requirements. The following individuals will have legal cause when unable to comply with TANF Work Program requirements listed on the Employment Plan and cannot be sanctioned.

NOTE: *A staffing should be scheduled to discuss participation and time limits when these individuals fail to comply with work program requirements.*

Individual's Status	Legal Cause Criteria
Only Parent in TANF Family with Child under age one	Parent personally providing care for his/her child under age one will be expected to participate, 20 hours per week, but cannot be sanctioned if this is the only parent in the TANF family, as he/she has legal cause if unable to comply with the TANF Work Requirements. The CHIP EMPR registration code will always be "PW" as long as the parent has a child under one, even if the 12-month limit of being excluded from the participation rate has expired (refer to NOTE below). EXCEPTION: A <u>Young Custodial Parent (YCP)</u> with a child under age one is expected to participate 20 hours per week and is subject to sanction for non-cooperation. The CHIP EMPR registration code is "PC". NOTE: "PWs" are required to participate but if hours are less than 20, the hours may be removed from the participation rate on PATS for 12 months in a lifetime. Federal and State Time Limits still count, even when the "PW" is excluded from the All-Family TANF Participation Rate.
Pregnant	Verified pregnancy beginning in the seventh month and continuing until six weeks after the birth of the child.
Incapacitated	Incapacitated or disabled and unable to participate in TANF work activities. The verified incapacity must be total and expected to last 90 days or more.
Required in the home to care for incapacitated family member. (In or out of school)	Parent providing care for a disabled family member living in the home. A medical statement from a physician must verify the need for care.
Unavailable Child Care/Transportation	Individual is unable to participate because child care and/or reasonable transportation cannot be provided as needed. CHIP Coding: The EMPR registration codes are "MC" - if mandatory but child care unavailable; "MT" - if mandatory but transportation unavailable.
A/R is identified as a Victim of Domestic/Family Violence	A signed statement by the A/R that he/she is a victim of domestic family violence is acceptable verification for a temporary deferral from participation in TANF Work Program requirements. NOTE: Documentation will be recorded on DSS Form 3734, TANF Domestic Violence Waiver Assessment. A/R will be referred to the local Domestic Violence Advocate (DVA) for an

	<i>assessment and safety planning. The assessment determines that the A/R cannot participate in Work Program requirements because compliance would put the A/R at risk of further domestic/family violence. A case staffing must be held when determining the extent to which Work Program requirements will be waived.</i> CHIP Coding: "FV" code on EMPR should be used when the A/R is exempt from participation in the TANF Work Program due to domestic/family violence. Also add a "Y" to indicate that a waiver was granted on CHIP screen INRD.
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17.3 Failure to Comply During Extension

A full family or individual sanction cannot be applied to the BG after the 24 months of time limited benefits have expired. [\(See 18.10\)](#)

If the recipient fails to cooperate with the work program in the 24th month or during any month of an extension, a closure notice will be mailed. This will be considered a closure due to the time limit. If the recipient provides information during the 10-day notice of adverse action that good cause exists, and the BG is eligible for an extension, the case should be reverted to open. Good cause may include meeting an exception to the time limit. No conciliation process is required during any extension time period.

17.4 NCP Non-Compliance

If the non-custodial parent (NCP) fails to show for the interview, or if the NCP fails to participate as required, the TANF Case Manager will initiate the good cause/conciliation process.

Affidavit of Non-Compliance

If the conciliation process fails, the TANF Case Manager must complete and forward the Affidavit of Non-Compliance to the address listed on the NCP TANF Program Status Report. This report is an affidavit that is sent to the Child Support Services Division for transmission to Family Court for appropriate legal action.

17.5 Examples of Failure to Comply

Examples of failure to comply with TANF Work Requirements include, but are not limited to the following:

- A. Refusal/failure to comply with any requirement of the IEP without good cause
- B. Failure to attend any scheduled training
- C. Failure to attend a work experience placement
- D. Voluntary reduction in hours of employment
- E. Quitting a job

- F. Failure to attend a scheduled job interview
- G. Repeated tardiness for any scheduled activity

17.6 DAODAS Treatment

Participants referred to and completing an approved drug and alcohol treatment program will be monitored by the Department of Alcohol and Other Drug Abuse Services (DAODAS). DAODAS will use approved methods of assessment, including, but not limited to, random testing.

Failure to pass a random test for illegal drugs constitutes failure to comply with the IEP and results in the CM initiating the good cause and/or conciliation process.

CAUTION: *Failure to pass such a test for alcohol shall not constitute the basis for a sanction, but may be grounds for resumption of treatment.*

17.7 Case Management Procedures during Failure to Comply

Procedures for failure to comply with the Employment Plan are as follows:

- A. The CM determines if good cause exists;
- B. The CM initiates the conciliation process;
- C. Should conciliation fail, a timely notice is sent to the recipient that the cash benefits will be terminated; and
- D. The CM processes the cash benefit closure.

1. Definition/ Good Cause

When a recipient fails to comply with TANF Work Requirements, the CM must determine if good cause exists. Good cause exists if circumstances beyond the participant's control prevent the individual from successfully participating in the component. All situations are different and the CM must use prudent judgment in determining whether or not good cause exists. The CM should staff the case with appropriate personnel.

2. Examples of Good Cause

Good cause situations for refusal or failure to comply include, but are not limited to the following:

- A. The participant lacks child care.
- B. The participant lacks transportation to the job or training site.
- C. The job or training site would require more than one hour of commuting time, or a 60-mile radius one way, and can be documented as a hardship to the participant.
- D. The participant lacks the mental or physical capacity to perform the job or training to which he/she was referred.
- E. The participant is mentally or physically incapacitated (pending results of a comprehensive evaluation by the Department of Vocational Rehabilitation, Department of Mental Health (DMH), or substance abuse program).

- F. The participant is offered unsubsidized employment where the job pays less than the federal minimum wage or results in a net loss of cash income to the participant.
- G. Acceptance of the job or training would expose the participant to undue danger or hazard.
- H. The A/R is a victim of domestic/family violence and compliance would subject the A/R to the risk of further domestic/family violence.
- I. Illness
- J. Illness of another household member requiring the presence of the participant
- K. Household emergency (e.g., severe acts of nature)
- L. Unavailable transportation
- M. Lack of adequate child care for a child(ren) who has reached age one but is under age 12.

3. Quit – Personal Reasons

In determining whether good cause exists for quitting a job, the CM must consider the facts and circumstances, including information submitted by the household member and the employer. Good cause includes circumstances beyond the participant's control, such as, but not limited to; the following personal reasons:

- A. Illness
- B. Illness of another household member requiring the presence of the participant
- C. Household emergency (e.g., severe acts of nature)
- D. Unavailable transportation
- E. Lack of adequate child care for a child(ren) who has reached age one but is under age 12.

4. Quit – Employment Reasons

Good cause for leaving employment shall also include:

A. Discrimination

Discrimination by an employer based on the following when supporting evidence is provided:

- 1. Age
- 2. Race
- 3. Sex
- 4. Color
- 5. Handicap
- 6. Religious beliefs
- 7. National origin
- 8. Political beliefs

B. Work Conditions

Work demands or conditions that render continued employment unreasonable, such as working without being paid on schedule or significant changes in employment that pose a hardship.

C. Retirement

Resignations by persons that are recognized by the employer as retirement, wherein the person receives retirement benefits or severance package benefits.

D. Anticipated Wages

Acceptance of employment that equates to an increase in anticipated wages, but due to uncontrollable circumstances, the job no longer exists or does not equate to the above stated standard.

E. Patterns of the Work Force

Leaving a job in connection with patterns of the work force, e.g., workers that frequently move from one employer to another, such as migrant farm labor or construction workers.

There may be circumstances where households will apply for public assistance benefits between jobs, particularly in cases where work may not yet be available at the new job site. Good cause for quitting a job may be granted even though employment at a new site has not actually begun.

5. Conciliation Definition

Conciliation is a process giving the participant an opportunity to avoid a sanction, and the CM the opportunity to counsel and instruct the participant in progressing toward self-reliance.

6. Initiation of Conciliation Process

The TANF Case Manager will initiate the conciliation process whenever a participant fails to comply or refuses to cooperate with TANF Work Requirements on the Employment Plan.

EXCEPTION: If a participant fails to cooperate without good cause during a time limit extension, the cash benefits must be terminated due to time limits. The conciliation process will not be followed.

The participant may request a conciliation if the participant feels the need to question the propriety of an administrative action or believes the terms stated in the Employment Plan are no longer appropriate for his/her individual situation.

7. Time Period

The conciliation process must not exceed 30 days. The date the TANF Case Manager sends the conciliation appointment notice or the participant requests conciliation, starts the 30-day conciliation period. The TANF Case Manager may terminate the conciliation process before the expiration of the 30th day.

8. Scheduling the Conciliation Appointment

The conciliation appointment is an opportunity for the participant to discuss any problems that might be related to failure to comply with TANF Work Requirements.

The CM should contact the client as soon as he/she becomes aware of the noncompliance by forwarding a Good Cause/Conciliation Appointment notice, CHIP Notice A004, to schedule a conciliation appointment. The referral date and start date for the conciliation component is the date the Case Manager sends the A004.

The CM must enter the Non-cooperation Conciliation Appointment (NONC/CONC) code on the PATS Component/Service Screen when the conciliation appointment notice is sent. The date entered for NONC/CONC should be the same for both referral and beginning dates.

9. Notification

The CM must notify the participant in writing of the conciliation appointment; the notice must include:

- A. The condition of the TANF Work Requirement(s) that was not met
- B. An explanation of the sanction to be applied for failing to conciliate or for not attending the appointment
- C. The appointment time and place, the name and phone number of the CM, so that the participant may reschedule, if necessary. If client needs to reschedule, document in Case Notes in SCOSA and send another A004 Notice.

NOTE: *If a participant without good cause, fails to keep the conciliation appointment, or fails to participate after conciliation, a timely notice is sent and he/she is sanctioned as appropriate.*

10. Good Cause/Conciliation Form

The DSS Form 1264, Good Cause Determination, is used to determine and document good cause as well as the individual's agreement to participate. If Good Cause is established, check yes, document discussion on DSS Form 1264 and Case Notes in SCOSA, and conciliation ends. The client does not sign the DSS Form 1264 if Good Cause exists.

11. Ending the Conciliation

The conciliation process will end:

- A. If the participant establishes good cause for failing to comply with TANF Work Requirements.

NOTE: *The Case Manager will document good cause and sign the top portion of the DSS Form 1264.*

- B. When the Conciliation Process portion of the DSS Form 1264 has been signed by the client.
- C. When the participant terminates the conciliation process by failing to show for the appointment or other noncompliance.

17.8 Actions Following Good Cause/Conciliation Process

Based on the outcome of the good cause/conciliation process, one of the following actions must be taken.

1. Good Cause Exists

If the participant provides CM with evidence of good cause for failure to comply, the CM completes the “good cause section” of the DSS Form 1264, and continues benefits. The CM refers the participant to a comparable component if the one in which he/she failed to participate in is no longer available.

NOTE: *The client does not sign the DSS Form 1264 when good cause exists.*

2. Conciliation Agreement

When good cause does not exist, but the client agrees to comply according to the Employment Plan, the TANF Case Manager completes the DSS Form 1264, and the client signs the conciliation agreement. The circumstances surrounding the violation must be considered and an appropriate remedy must be identified. The responsibilities listed on a new Employment Plan must be fully explained to and signed by the recipient. The CM should enter an end date on PATS for the NONC/CONC action. The CM refers the participant to a comparable component if the one he/she failed to participate in is no longer available. The CM must document the case file and the participant's benefits will continue.

3. No Agreement - Conciliation Failed

When the participant fails to show for conciliation appointment, fails or refuses to comply with TANF Work Requirements, the CM notifies the ES Worker of noncompliance and the ES Worker sends a timely notice and imposes the appropriate sanction.

The CM must add the Non-Cooperation Pending Sanction (NONC/PSAN) code on the PATS component service screen. The date entered for NONC/PSAN is the date that the notice of adverse action is sent.

NOTE 1. *For full family sanction, the end date for NONC/PSAN is the last day of the month that the TANF case is open in CHIP. For individual sanction, an end date will only be entered for NONC/PSAN when the sanction is lifted, cured, or the TANF case is closed.*

NOTE 2. *For full family sanction of a two-parent case, the CM must add the Non-Cooperation Sanctioned Two Parent Family (NONC/SATP) code on the PATS component service screen.*

4. Updating the Individual Employment Plan (IEP)

Prior to completing the conciliation process documentation on the DSS Form 1264, the component activity fulfilling the participant's obligation must be listed on the Individual Employment Plan (IEP). The date on the newly revised IEP must be entered on the DSS Form 1264 prior to signature.

5. Duration of Conciliation

Each conciliation agreement covers up to six months from the date of the DSS Form 1264 for all TANF Work Program activities initiated prior to the date the client signed the agreement.

A contact with the participant is required prior to starting a new activity. The CM is responsible for initiating the contact with clients. The IEP must be updated to reflect start and end dates of component.

NOTE 1: *The participant must always be given an opportunity to demonstrate good cause prior to imposing a sanction.*

NOTE 2: *If a participant fails to participate in the TANF Work Program activity addressed on the conciliation agreement, without good cause, a timely notice is sent and he/she is sanctioned as appropriate. Documentation of no good cause must be made in Case Notes in SCOSA.*

17.9 Sanction Process

An individual or a full family sanction for failure or refusal of an adult or teen parent/adult to comply with TANF Work Requirements without good cause, may affect TANF and SNAP benefits.

If, at the conclusion of the conciliation process, the recipient has not agreed to participate, the Case Manager (CM) must notify the Economic Services Worker (ES Worker) of failed conciliation. The ES Worker must send a Notice of Adverse Action. The WEI must be informed of the termination of cash benefits, curable, when the individual reapplies and demonstrates compliance for 30 days.

NOTE: *Participation in a countable Core Activity is not necessary to demonstrate compliance. Work Experience and Community Service must not be used to satisfy the 30 day compliance requirement. [\(See 17.14\)](#)*

CAUTION: *Under no circumstances should a full family sanction be imposed without prior supervisory approval.*

1. Case Review Prior to Sanction

Prior to imposing a full family sanction, a review of the case must be made to determine the following:

- A. Reasons for failure to comply with Employment Plan.
- B. Involvement with Child Welfare Services
- C. Indication of active alcohol/substance abuse
- D. Prior alcohol/substance abuse.
- E. Indication of domestic/family violence

2. CWS Involvement

Any instance of an open CWS case or active investigation will require a referral to CWS for a home visit within 30 days.

3. Staffing

After reviewing the case, evidence of the following will require that a case staffing be held:

- A. Evidence of active CWS involvement
- B. Prior or active/substance abuse

- C. In the judgment of the CM, there is good reason to believe a minor child(ren) in the household may be subject to abuse or neglect. (DSS Form 1601 should be completed as necessary.)

4. Staffing Participants

The case should be staffed with the TANF supervisor, the CM, WFC and the appropriate Child Welfare Services staff member if there is active CWS involvement.

5. Supervisory Responsibilities

Prior to imposing a sanction, the supervisor must review the circumstances of the proposed sanction to ensure that the participant has been screened for disabilities and that all aspects of the conciliation process have been followed. The supervisor must not approve the sanction if any of these steps have not been taken. The supervisor or designee must sign the TANF Non-Compliance Checklist, DSS Form 1323. The responsibility of the supervisor is to ensure all aspects of the conciliation process have been followed, such as, but not limited to:

- A. Good cause has been considered
- B. Conciliation notice sent
- C. Participant appointment process completed
- D. Results of appointment documented

6. Supervisor Sign-Off

Prior to a sanction, the DSS Form 1323, TANF Non-Compliance Checklist, must be completed and signed/approved by the TANF Case Manager, the Case Manager's Supervisor, and the County Director or Designee.

7. County Director Sign-Off

Once the supervisor agrees that the full family sanction is appropriate and that all circumstances have been explored and addressed, then documentation should be forwarded to the county director or designee for review, approval, and sign-off. Under no circumstance should a full family sanction be implemented without the appropriate approval.

8. Follow-Up Procedures

For cases that show no CWS involvement, counties should develop follow-up procedures to ensure the well-being of the family. For cases in which the participant has been identified as a victim of domestic/family violence, the CM will follow-up with the Domestic Violence Advocate (DVA) to establish that the participant is complying with the requirement to seek counseling.

The follow-up will also be to approve or deny the request for waiver of the Work Program requirement.

CAUTION: No TANF Work Requirement related sanction may be imposed prior to the conciliation process.

9. Individual Sanction Actions

An individual sanction will be imposed on individuals coded "MS" on EMPR. The second adult or teen parent/adult in the home must be coded IN, RH, DC or is a SSI parent. If, at the conclusion of

the conciliation process the recipient has not agreed to participate, a Notice of Adverse Action will be sent. Inform the family of the reduction of cash benefits, curable when the individual coded “MS” demonstrates compliance for 30 days.

10. Individual Sanction Notification

When one parent in a case with two WEI fails/refuses to comply with the terms of TANF Work Requirements and no agreement is reached during the conciliation, a Notice of Adverse Action (timely notice), must be sent informing him/her of the sanction to be imposed. CHIP notice A409, Decrease in FI – FI Individual Sanction, should be used. The notice must include:

The condition of the TANF Work Requirement(s) that was not met.

- A. An explanation of the sanction to be applied
- B. An explanation of how the sanction can be cured, 30 days compliance requirements

11. Notification of Full Family Sanction

When a participant fails/refuses to comply with the terms of TANF Work Requirements and no agreement is reached during the conciliation, the CM must notify the ES Worker that conciliation efforts failed and a Notice of Adverse Action (timely notice) must be sent informing the family of the sanction to be imposed. CHIP Notice A313, FI Work Program Closure, should be used. The notice must include:

- A. The condition of the TANF Work Requirement(s) that was not met
- B. An explanation of the sanction to be applied
- C. An explanation of how the sanction can be cured (reapplication and 30 days compliance with requirements)
- D. An explanation of the circumstances under which the sanction would be lifted

A review and or staffing of the case must occur before a full family sanction if evidence suggests:

- 1. CWS Involvement;
- 2. Prior or active substance abuse; and
- 3. Possibility of neglect or abuse of the minor children in the judgment of the Case Manager.

12. Time Periods

A TANF Work Requirements sanction period must begin with either the first month following the expiration of the timely notice, or the first month subsequent to the date an adverse hearing decision is rendered when the BG appeals, elects to have benefits continued and subsequently loses the appeal.

NOTE: *If the participant contacts the CM after receiving the Notice of Adverse Action, but prior to CHIP closure, the 30-day compliance period must be met before benefits are issued. The TANF case should be reverted to open after the compliance period.*

17.10 Request Hearing and Continued Benefits

When the TANF case is reverted to open (REPT) following a full family sanction due to a fair hearing and a request for continued benefits, the following steps should be taken on the Participation and Tracking System (PATS):

- A. If the current status is "CL" (CLOSED), delete the "CL" status code until the fair hearing decision is reached. If the current status is "RE" (Reverted to Open), leave the "RE" status code.
- B. Reopen the NONC/PSAN (Pending Sanction) component code.
- C. Update PATS as appropriate based on TANF Work Program activity.
- D. If the TANF cash benefits are terminated following the fair hearing determination, enter an end date for the NONC/PSAN component and enter a "CL" status code with a date equal to the last day of the last month of TANF benefits.

NOTE: *The WEI must continue to participate in a work program activity to receive continued benefits. (See 19.7)*

17.11 Exception

In the event an individual is no longer considered a WEI or meets Legal Cause criteria while under full family sanction, the BG must reapply for benefits to become eligible, and the sanction would be lifted upon reapplication.

17.12 TANF Sanction on SNAP Benefits

TANF recipients who receive Supplemental Nutrition Assistance Program (SNAP) may be subject to a sanction in SNAP benefits when they fail to comply with the TANF Work Program.

The ES Worker must determine whether the recipient qualifies for an exemption from SNAP work registration, if not, a sanction is imposed in their Supplemental Nutrition Assistance Program (SNAP). The applicable sanction for failure to comply with work requirements is the removal of the noncompliant individual's needs from the SNAP.

For a full family sanction, CHIP will automatically enter an income type of "SA FI" on UNIN along with the TANF benefit amount received in the last month of eligibility for TANF.

For an individual sanction, the ES Worker must determine the TANF benefit amount to be included in the SNAP budget and code as "RB" on UNIN.

17.13 Reapplication to Cure Sanction

When a WEI reapplies in order to cure a full family sanction, the ES Worker will complete the application and send a referral to the CM. If the individual claims a disability the ES Worker should request a medical statement and notify the CM.

The applicant must demonstrate compliance for 30 days and agree to comply according to the terms of the Employment Plan. The 30-day compliance period should begin with the date of application.

The Employment Plan must be developed or revised, and if an acceptable component is not readily available, the participant must not be penalized. [\(See 17.9\)](#)

1. Compliance Requirements

Compliance begins by cooperating with ES Worker and CM at the time of application as well as participating in a work activity outlined on the Employment Plan. When the 30-day compliance is met, the CM will notify the ES Worker and benefits are to be processed from the date of application. If the appropriate application is being processed after the 30th day, but not later than the 35th day, enter the untimely code of "SC" on CHIP screen AFED to indicate a sanction cure.

NOTE 1: *The full family sanction must be cured even if the family was income ineligible due to earned income at some point during the sanction.*

NOTE 2: *A full family sanction in another state does not follow the family to South Carolina.*

2. Failure to Cure

A sanction continues when an individual fails to cure a TANF sanction. The ES Worker should deny the application using the sanction closure code that was previously used for closure.

3. Full Family Sanctioned Adult Moves into BG

If an adult whose failure to comply with the TANF Work Requirements resulted in a full family sanction moves into a BG and he/she is a mandatory Work Program participant, he/she must cure the sanction prior to being added to the BG.

If he/she cures the sanction, add the adult to the BG effective the month following the month the change in household composition was reported or discovered.

If the adult fails to cure the sanction, a full family sanction must be applied to the BG. A Notice of Adverse Action must be sent.

17.14 Restoration of Benefits

The following steps should be followed by the CM to restore benefits:

- A. Review the Employment Plan with the individual to determine if any changes are necessary to overcome barriers to self-reliance.
- B. Revise the Employment Plan or develop a new agreement.
- C. Inform the individual that child care services and transportation assistance are available through DSS, if needed.
- D. Schedule the activity that is specified in the agreement or which best suit the participant's needs for self-reliance as soon as possible.
- E. Explain to the participant that all assignments required under the new agreement must be met during the 30-day period or the application will be denied.

1. Procedure to Restore Benefits

When the 30-day compliance is met, benefits are to be processed from the date of application. If the appropriate application is being processed after the 30th day, but not later than the 35th day, enter the untimely code of "SC" on CHIP screen AFED to indicate a sanction cure.

2. Removing "RB" or "SA FI" income from Supplemental Nutrition Assistance Program (SNAP)

The "RB" or "SA FI" income amount continues to be budgeted in the SNAP benefit calculation until one of the following occurs:

- A. The TANF sanction is cured
- B. The sanctioned individual meets legal cause criteria. The sanctioned individual moves out of the BG
- C. One year after TANF closure
- D. The BG is no longer eligible for TANF due to one of the following:
 - 1. Excess income
 - 2. Resources
 - 3. No eligible child(ren)
 - 4. Expiration of time limits
 - 5. Receipt of SSI
 - 6. Disqualification due to ineligible or questionable non-citizen/citizenship status

Lifting of the "RB" or "SA FI" code in SNAP for one of these exceptions does not cure the sanction for TANF purposes. In determining if the family is ineligible for TANF due to excess income, all allowable earned income disregards must be applied.

3. Compliance Begins Prior to Sanction Month

If a participant begins compliance prior to the effective month of the sanction, a new application is not required. The CM will notify the ES Worker and the case may be reverted to open status at the conclusion of the 30-day compliance period.

4. Good Cause

In the event a sanctioned TANF participant wishes to reapply, but claims the 30-day compliance cannot be met, the good cause criteria must be reviewed to determine if the participant has good cause. If good cause is determined, the case may be reopened effective the date of application, if all other eligibility criteria are met.

17.15 Reapplication to Cure Sanction/Earnings Exceed Limit

A BG member may have obtained new employment or increased his/her earnings during the full family sanction. This increase in earnings may cause the BG to be income ineligible for TANF.

1. CHIP Procedures

If the BG is income ineligible due to new or increased earnings, deny the application using the denial/closure code of "IN" (earned income exceeds limit).

2. Transitional Child Care Referral (TCC)

BGs who are full family sanctioned and become income ineligible due to new employment or increased earnings within 24 months of the sanction are eligible to receive TCC. Eligibility continues for up to 24 months from the effective date of the sanction.

Make a referral using the DSS Form 1269, Request for Support Services, to appropriate staff. Indicate on the referral that the cash benefits originally terminated due to full family sanction and the application to cure was denied due to earnings from new employment or from an increase in earnings. Attach a copy of the CAP2 screen to the DSS Form 1269.

17.16 Change in Circumstances/ Reapplication For TANF

If the TANF family's circumstances change, the family reapplies for TANF and appears to meet all other eligibility criteria, the adult must demonstrate compliance for 30 days in order to cure the sanction. If the individual meets the criteria for legal cause, the case should be approved by lifting the sanction.

Chapter 18

Chapter 18

State and Federal Time Limits

18.1 State Time Limit

The Family Independence Act limits certain BGs (those not meeting the State time limit exception criteria) receiving benefits from the TANF Program to 24-months in a 10-year period. These BGs may be eligible for a time limit extension. However, the Family Independence Act allows that, in certain situations, benefits may be extended beyond the 24-month time limit. The decision to extend benefits will be made through a two-step staffing process, which will begin, in the 21st month of eligibility.

1. Twenty Second Month Staffing

A two-step staffing must be completed by the end of the twenty-second (22nd) month of eligibility to determine if the recipient meets the criteria for an extension of benefits.

The two-step staffing process involves:

Step 1 - A case review in the 21st month involving the completion of the DSS Form 3707, TANF Staffing Summary, including the 21st month review section.

Step 2 - A face-to-face interview in the twenty-second (22nd) month to review extension criteria and ongoing eligibility requirements, or to review with the recipient his/her plans (including the future well-being of the children) after the TANF benefit ends. Completion of the 22nd month case staffing section on the DSS Form 3707.

2. Second Appointment

If the recipient does not respond to the appointment notice for the 22nd month staffing, a personal contact (telephone call or written correspondence) must be made in an attempt to reschedule the appointment.

If the recipient fails to participate in the twenty-second (22nd) month staffing, an extension cannot be considered and the TANF cash benefits will terminate at the end of the 24th month due to time limits.

NOTE: *If it is determined that the recipient's whereabouts are unknown, the cash benefits should be terminated for that reason, not due to time limits.*

The county director has the authority to insure that the criteria for extension have been met. The Case Manager must complete the Time Limit Extension Summary, DSS Form 3704, and submit to the county director for approval. If the criteria is met, then the extension must be given. The CM is responsible for monitoring the client's participation during the extension period. The CM must also communicate with the ES to ensure that proper action is taken in the CHIP system for individuals that are receiving benefits due to Time Limit Extension.

NOTE: *If an extension is not granted, an individual may appeal the 24-month closure by requesting a Fair Hearing. However, continued benefits while awaiting the Fair Hearing is not provided for in law, and therefore not allowed by policy, as eligibility has technically expired.*

18.2 Meet Exception During Extension

If the BG begins to meet an exception to time limited benefits during an extension, the time limited tracking code should be updated as appropriate on FAIP and benefits should continue as long as the BG meets all other eligibility criteria. The ES must update the CHIP screens based on notification from the CM.

1. County Approved Training Extension

An extension of up to six months is granted when the recipient is involved in a county approved training program that will not be completed by the 24th month. The training program must be listed on the Employability Plan, have a fixed beginning and ending date, and must have a job/vocational goal.

The CM must monitor the attendance and participation hours reported and the recipient must continue to comply with all TANF Work Requirements.

NOTE: *When the recipient completes training, he/she may be granted an additional extension under the Fully Cooperating Extension.*

2. In Training Extension Procedures

The following procedures are required for an In Training Extension:

- A. Staff the case and complete DSS Form 3704, Time Limit Extension Summary.
- B. Develop new Employment Plan with an effective date beginning with the 25th month.
- C. Enter CHIP tracking code of "EP" on screen FAIP.

3. Extensions Beyond Six Months

If the training has not been completed by the sixth month, and the recipient continues to make satisfactory progress, additional months may be given, but only with the county director's approval. The DSS Form 3704 must be updated and the CHIP tracking code changed to "D1".

4. In Training Completed

When a recipient completes the approved training, the case should be reviewed to determine if an additional extension for Fully Cooperating should be given.

5. Fully Cooperating Extension

If the recipient does not meet the criteria for an In Training Extension of benefits, the case will be reviewed to determine if the recipient meets the criteria for a Fully Cooperating Extension (12 month maximum). For this extension to be granted, it must be documented in the case record that the recipient has fully complied with all TANF Work Program requirements including:

- A. Complying with the goals established and documented on the Employment Plan.
- B. Demonstrating a willingness to relocate.
- C. Cooperating fully with referrals to all state agencies as required, and which are documented on the Employment Plan.

NOTE: Conciliations or sanction cures within the 24-month TANF eligibility period shall not be held against an individual when determining if he/she is fully cooperating.

6. Declaration of Cooperation

The recipient will be asked to sign a Declaration of Cooperation, DSS Form 3703, during a face-to-face contact at the twenty-two (22nd) month staffing which acknowledges the conditions of the extension. If the recipient refuses or fails to sign this form, the fully cooperating extension must not be approved.

7. Fully Cooperating Procedures

The following procedures are required for a Fully Cooperating Extension:

- A. Staff the case and complete the DSS Form 3707, TANF Staffing Summary, and DSS Form 3704, Time Limit Extension Summary
- B. Develop a new Employment Plan that will be effective beginning with the 25th month
- C. Enter CHIP tracking code of "CO" on FAIP

NOTE: If the case is receiving an extension and domestic violence is the reason the recipient has not attained financial independence; the CHIP tracking code of "FV" should be entered on FAIP.

18.3 New Employment Individual Employment Plan

As part of the staffing process, a new Employment Plan will be developed to ensure that the recipient is actively involved in education, training, or other employment related activities and working toward an achievable vocational goal within the extension period. This Individual Employment Plan (IEP) is effective beginning in the 25th month of TANF.

1. Child Under Age One

A single parent with a child under age one who has not been participating in the work program must sign the (IEP) at the twenty-two (22nd) month staffing and begin participation prior to the 24th month in order to receive the extension.

2. Cooperation During Pregnancy

A pregnant woman, who has not been participating in the work program because she is in the seventh month or later of her pregnancy, must sign an Employment Plan at the 22nd month staffing and begin participating in the 25th month or at the end of the six-week postpartum in order to receive an extension of benefits.

3. Deauthorization

When a family has been granted an extension, the case will de-authorize at 12 months and must be reviewed to determine that all participation requirements are being met and that the recipient continues to fully cooperate. This should coincide with the Annual Redetermination.

18.4 County Director Extension

The criteria for consideration by the county director for an extension beyond six or 12 months is as follows:

When an "In Training" extension has been granted, the total TANF eligibility period may not exceed 30 months without the county director's permission. The recipient must be currently enrolled in a county approved training/educational program, and making satisfactory progress toward completion of a training/educational program for an extension beyond the 30th month.

18.5 Extension Beyond 36 Months

When the Fully Cooperating Extension ends, the recipient may be granted an additional extension. Before an additional extension is granted, it must be established that the recipient is satisfactorily participating in education, training or other employment-related activities. The future of the minor child(ren) should also be considered. An extension beyond 36 months requires the county director's approval and signature.

1. Monthly Review

The CM must review monthly all cases receiving benefits beyond 36 total months. The recipient may not receive assistance beyond the five-year limit allowed by federal law.

2. CHIP Code

Use CHIP code "D1" on the FAIP screen for any county director approved extension.

18.6 Reapplication Due to Time Limit Exceptions

Individuals who reapply for benefits after a termination of cash benefits due to the 24-month limit may be eligible to receive TANF cash benefits again by meeting and verifying one of the following exception reasons:

- A. An adult TANF Family member is determined to be mentally or physically disabled, and the disability is expected to last 90 days or more (FAIP code DI). This exception is effective at the point in time the disability was diagnosed. (If more than one-adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household- on FAIP unless he/she meets another exception reason). This also applies to a two-parent family with one SSI parent.
- B. An adult TANF Family member is providing full-time care for a disabled individual whose disability and need for care have been verified by a physician or other health professional. (FAIP code RH. If more than one adult is in the TANF Family, code the other adult(s) AE-Adult in Exempt Household unless he/she meets another exception reason).
- C. The caretaker relative is not the parent of the dependent child and is not included in the TANF cash benefits.

NOTE 1: *If the caretaker relative who is included in the BG reaches the time limit and is not eligible for an extension remove the caretaker relative from the BG and continue benefits for the child(ren).*

NOTE 2: *Adults caring for children who have been abandoned may be eligible for TANF regardless of the adult in the BG meeting another exception reason.*

CHIP Coding

Use the appropriate exemption code (DI, RH, MM, AE, AF, CC, LT) on CHIP screen FAIP.

18.7 Action When Exception to Time Limit Ends

The recipient may be given an opportunity to participate at the end of an exception period to qualify for an extension. The DSS Form 3704, Time Limit Extension Summary, should be signed and an IEP developed which is effective the month after the exception ends.

18.8 Domestic/Family Violence Waiver Criteria

Individuals who are victims of domestic/family violence who reapply for benefits after a termination of cash benefits due to the 24-month time limit may be eligible to receive TANF again if all of the following conditions are met:

- A. The domestic/family violence situation is verified in one of the following ways:
 - 1. Proof of services from or referral by a domestic/family violence agency

2. A temporary protective order
3. A law enforcement report of domestic/family violence
4. Documentation of domestic/family violence from an agency, professional, friend, or relative from whom the individual has sought assistance in dealing with domestic/family violence.

NOTE: In the absence of documentary evidence it is acceptable to obtain the applicant's signed statement that he/she is a victim of domestic/family violence.

- B. At least one TANF program requirement is being waived due to a current domestic/family violence situation in the applicant's life.
- C. An IEP is developed which includes the requirement that the individual must cooperate with the DVA agency.
- D. DSS Form 3734, TANF Domestic Violence Waiver Assessment, is completed.

NOTE: In the event an applicant meets one of the time limit exceptions and meets criteria to receive a DV waiver, the 24-month time limit exception policy takes precedence.

CHIP Code

Use CHIP Code FV, "Family Violence" on FAIP for reapplications that occur after the expiration of the 24-month time limit.

18.9 Relocation as Condition for Extension

Agreement to relocate may be required as a condition of approval for an extension request. Individuals unable to obtain employment may be required to relocate, with state assistance, to another area to accept a bona fide job offer for a position that is not temporary or seasonal. Relocation may be within the same county.

1. Conditions of Relocation

Relocation must have the potential to lead to self-reliance and the recipient should have secured (with the CM's assistance), adequate housing, child care and transportation in the area being considered for relocation before he/she is required to move.

2. Relocation to Escape Domestic/Family Violence

Relocation assistance may be provided to a TANF recipient who has been identified as a victim of domestic/family violence to relocate to a safe place, away from the abuse.

3. State Assistance

State assistance may include, but is not limited to:

- A. Moving expenses
- B. Assistance in locating a place to live
- C. Finding child care
- D. Security and utility deposits

- E. The first 30 days rent.

4. Good Cause Exemptions/Relocation

Good cause exemptions from the relocation requirement include:

- A. Individuals who receive a TANF benefit in excess of the federal hourly minimum wage multiplied by 30 hours multiplied by 4.3 and reduced by \$100.00.
- B. Individuals who receive in-kind assistance (from a government entity or other source) such as subsidized housing or child care, and the value of this in-kind benefit exceeds 50% of the federal hourly minimum wage multiplied by 30 hours multiplied by 4.3 and such in-kind assistance will not be available to the family at a new location.
- C. The recipient's personal and family circumstances such as:
 - 1. Work experience
 - 2. Family and community support
 - 3. Child's schooling
 - 4. Child custody and visitation arrangements

CAUTION: *Other good cause exemptions due to relocation will be decided on a case-by-case basis.*

18.10 Failure to Cooperate After 24th Month

If the recipient fails to cooperate with the work program in the 24th month or during any month of an extension, a closure notice will be mailed. This will be considered a closure due to the time limit. If the recipient provides information during the 10-day notice of adverse action that good cause exists, and the BG is eligible for an extension, the case should be reverted to open. Good cause may include meeting an exception to the time limit. No conciliation process is required during an extension time period.

NOTE: *A full family sanction cannot be applied to the BG after the 24 months of time-limited benefits have expired.*

18.11 Code Changes

If the client's status changes during an extension period from being eligible for an extension to meeting an exception to the time limit, it will be necessary to change the extension tracking code from "EP" or "CO" on FAIP to the correct exception code.

18.12 Ineligible after 24th Month for Other Reasons

If the BG is eligible for a time limit extension and becomes ineligible for TANF cash benefits for a reason other than time limits or failure to cooperate with the work requirements, close the case on CHIP using the closure code which best reflects the closure reason. The closure notice should indicate that the BG's time limit for TANF cash benefits has expired.

18.13 BG Requests Closure after 24th Month

If the BG requests termination of TANF benefits after the 24th month of time-limited benefits has expired, use the "TL" (State Time Limit) closure code.

18.14 Assessment Time Frame

Beginning 60 and no later than 90 days after a TANF recipient's cash benefits are terminated under the time limit for receipt of benefits, the CM will make an assessment of and make recommendations, as appropriate, for the health and well-being of the child(ren) in the care and custody of the former TANF cash benefit recipient. The assessment is also a way to determine the impact of the loss of the TANF cash benefit on the family.

Follow-up Assessment

The TANF recipient should be informed of the assessment process at the 22nd month staffing held before the cash benefits case closes due to the time limit.

The reason an assessment is not completed will be documented on the TANF Time Limit Closure Follow-Up Assessment, DSS Form 3764.

18.15 Case Record Review

The CM will become familiar with the client's situation by reviewing the case record, CHIP and other sources for the following information:

- A. Amount of SNAP received
- B. Names of those included in SNAP
- C. Amount of child support received.

The CM must also:

- 1. Determine if there is an open CWS case and notify HS of joint cases via DSS Form 1600, providing date when staffing will occur.
- 2. Review the client's situation as presented at the 22nd month staffing.

1. Joint TANF /HS Cases

The county director may choose one of the following options when deciding how the 60-90 day assessment will be conducted when the client has an active Child Welfare Services' case:

- A. TANF conducts the assessment and completes the documentation; or
- B. TANF staffs the case with HS. HS conducts the visit and TANF completes the documentation.

2. CWS Referral

At any point the CM suspects that a child in the home has been harmed or is threatened with harm from child abuse and/or neglect, the CM will make an immediate report (by phone or in person) to Child Welfare Services (CWS). The report to CWS will be confirmed in writing using DSS Form 1601, Referral to Human Services.

3. Supervisory Review

A supervisory review must be conducted on all assessments completed. Any questions or concerns should be resolved through a case staffing, if necessary, prior to completion of the FI Time Limit Closure Follow-Up Assessment, DSS Form 3764.

4. Communication With HS

A copy of the completed DSS Form 3764 shall be forwarded to the HS worker on all open HS cases.

5. Retention of Forms

Upon completion of the Time Limit Closure Follow-Up Assessment, the DSS Form 3764 will be scanned into the SCOSA case record.

18.16 Reapplication after 10-year time Period

Family Independence Act limits certain BGs (those not meeting the State time limit exception criteria) receiving benefits from the TANF Program to 24 months in a 10-year period, beginning in October 1996. In order to determine if a family is eligible to reapply at the end of the 10 year period, the ES Worker must count backwards from the current month in considering the 10 year period. If the BG has already received 24 months of benefits in the previous 119 months, the family is not eligible for benefits in the current (120th) month.

The first potential month of eligibility will be shown on CHIP CAP2 screen for cases that are in a closed status with a TL (time limit) closure code.

1. Federal 60-Month Time Limit

TANF limits the number of months assistance is paid out of TANF funds to any BG which contains an adult to 60 months in a lifetime. This is a nationwide time limit, which began on October 1, 1996.

2. TANF Assistance

TANF assistance includes any month for which:

- A. A TANF benefit was received
- B. A family cap voucher was received
- C. A Work Experience Training Allowance is received
- D. Other forms of benefits (from a TANF funded agency) designed to meet a family's ongoing needs are received
- E. Support Services to an unemployed family is received.

18.17 Federal Time Limit

The following list details issues concerning the federal time limit:

- A. Child only cases are the primary exception to the TANF time limit.

- B. The law allows for 20% of the caseload to be extended due to hardship beginning in the year 2001. If one or more of the following criteria are met, an extension beyond the 60th month should be given due to hardship:
1. A family member is a victim of family/domestic violence. In order to be eligible for this extension, a TANF family member must be in a program supervised by a recognized domestic violence advocate. (CHIP extension code "HV")
 2. The family has an open case with Child Welfare Services. (CHIP extension code "HA")
 3. As a result of the Family Plan, an adult BG member is active in a recognized substance abuse treatment program. (CHIP extension code "HA")
 4. The family has reached the federal time limit, but has not reached the State 24-month time limit due to months benefits were received in another state. Benefits may be extended to allow DSS to continue to work with the family in the Work Program until the State time limit is reached. (CHIP extension code "HA")
- NOTE: This is an extension reason only. If an applicant is ineligible in another state due to a federal time limit, he/she must meet a SC time limit exemption to become eligible for TANF.***
5. An adult in the BG is working a full-time job (30 or more hours a week) but is still eligible for a TANF cash benefit. (CHIP extension code "HA")
- C. Any TANF assistance paid in another state must be counted towards the TANF time limit.
- D. Months counted towards the family's limit will be based on the adult or minor parent head-of-household.
- E. A minor parent, under the age of 18, in an adult's case may apply for benefits independently even though the adult's cash benefits terminated due to time limits. (The time limit starts when the minor begins receiving his/her own check, turns 18 or graduates from high school, whichever comes first.)
- F. Unless meeting a time limit exception, months in which the recipient is disqualified due to non-citizen status, fleeing felon, drug conviction, or misrepresenting residence policy, does not count toward the federal time limits, but do count toward the State time limit. Sanctioned individuals in an open case count toward both time limits.
- G. Months received as a dependent child do not count against the state or federal time limit if the individual applies as an adult.
- H. Individuals or BGs may be under one or both time limits simultaneously, and may lose eligibility based on either state or federal time limits, whichever occurs first.
- I. Any month in which a family cap voucher or transportation is paid to an unemployed TANF family not receiving a TANF check due to less than 10 dollars, counts toward the federal time limit only. The following tracking codes must be used:

1. Use tracking code "TO" on CHIP screen FTTL when the case is open but zero benefits were issued and transportation assistance was provided.
2. Use tracking code "FC" on CHIP screen FTTL when the case was open but zero benefits were issued and a family cap voucher was provided.

Case Manager Review

When a family reaches cut-off in the 59th month of TANF Federal time limits, the case will be de-authorized and a CHIP alert will notify the ES Worker that the case is due to close due to the Federal time limit. A review of the case must be conducted to determine that the months have been coded correctly on FAIP and if any of the hardship criteria exists.

If an individual's time limit tracking code was coded incorrectly, CHIP screen FTTL must be corrected to add months back to the appropriate Federal/State time limit column and the case reauthorized. If the case was coded correctly and if one of the hardship criteria does exist, the extension code of "HV" or "HA" must be entered on FAIP and the case reauthorized. Benefits must be extended if any of the hardship criteria are met. The case must be reviewed, at a minimum, every six months.

If the case was coded correctly and the hardship extension criteria does not exist, close the case using CHIP code "FL" and send Closure Notice A319.

Chapter 19

Chapter 19 Fair Hearings

19.1 Definition/Fair Hearings

The fair hearing (appeal) is the administrative mechanism to protect the applicant's/recipient's (A/R's) rights to due process of law when an adverse action is proposed or when DSS fails to take action on a change or application.

19.2 CM/ES Worker Responsibilities

The Case Manager/Economic Services (ES) Worker has the following responsibilities regarding the fair hearing process:

1. Inform the A/R of fair hearing rights at application, recertification or redetermination.
2. Send the timely notice or adequate notice to the A/R.
3. Conduct a pre-hearing conference with the A/R, to discuss the proposed action once a fair hearing has been requested either verbally or in writing. Any action deemed necessary as a result of this conference must be taken immediately. A fair hearing must still be held unless the A/R withdraws the hearing request in writing as a result of the conference.
4. Inform the A/R of free legal services including the name, address and phone number of the office.
5. Explain continued benefits.
6. Forward appeal request and case summary, including documentation and evidence to support the action taken, to the Appeals Unit within two working days.
7. Make the case file available for inspection by the A/R or his/her representative provided that confidential information is protected from release. If essential to the hearing, this information may be subpoenaed. Provide a free copy to the A/R of the portions of the case file that are relevant to the hearing.
8. Request the Appeals Unit to subpoena documents or witnesses, if necessary, at least 14 days in advance of the hearing.

9. Call the Appeals Unit at the appropriate time to accommodate the scheduled conference call, if the A/R requested a telephone hearing.
10. Represent DSS at the hearing.

NOTE: CSSD must represent DSS when a fair hearing request is based on action taken in a TANF case based on information provided by CSSD.

11. Implement the hearing results within 10 days of the final decision and notify the A/R or his/her representative and the Appeals Unit in writing of the action taken.

19.3 TANF Supervisor Responsibilities

The TANF supervisor has the following responsibilities regarding procedures for fair hearings:

1. Review proposed case action when the A/R requests a fair hearing to ensure that the issue cannot be resolved without an appeal.
2. Review and sign DSS Form 2633, Request for Fair Hearing.
3. Participate in the pre-hearing conference with the A/R and resolve the appealed issue if possible.
4. Attend the fair hearing and participate to ensure that relevant evidence and testimony are presented
5. Ensure that appropriate action is taken timely to implement the decision.

19.4 A/R Responsibilities

The A/R has the following responsibilities relating to the fair hearing process:

1. File the appeal request. (The Appeals Unit can request that the claimant be more specific about the case.) The A/R or his/her representative may request a fair hearing either orally or in writing. The request must indicate that the A/R is dissatisfied
2. Decide if he/she wants to receive continued benefits
3. Decide between a telephone hearing and a face-to-face hearing

CAUTION: The A/R who elects to use a pay telephone for a telephone hearing must first establish that the telephone can receive the call.

4. Present his/her case or appoint a representative to present the case
5. Request the Appeals Unit to subpoena any necessary documents or witnesses at least seven days in advance of the hearing

CAUTION: The requester automatically accepts responsibility for all subpoena fees charged when this request is made.

19.5 Fair Hearing Forms

When the request is received, the A/R should complete a DSS Form 2633, Request for Fair Hearing, if possible. If the request is made orally, the CM must complete the DSS Form 2633 as completely as possible.

1. Types of Hearings

The A/R may choose between a face-to-face hearing and a telephone hearing. If neither option is chosen, a telephone hearing will be scheduled. If the hearing official decides that a face-to-face hearing is necessary, one will be scheduled.

2. Submitting Request to Appeals Unit

When the action the A/R wishes to appeal is not clear, the CM/ES Worker must ask the A/R to clarify the request; however, forwarding the request to the Appeals Unit must not be delayed beyond two working days after receipt of the request.

19.6 Fair Hearing Time Frames

The A/R must request a fair hearing within 60 days from the date the written notification is sent, giving the decision with which the A/R is dissatisfied. A hearing request may also be made within 60 days in the following instances:

1. Failure to act on an application;
2. Change in benefits or method of payment; or
3. Failure to consider a request for adjustment in benefit amount.

19.7 Continued Benefits

In order to receive continued cash benefits for TANF, the BG must request a fair hearing within the timely notice period and specifically request that benefits be continued at the level authorized immediately prior to the timely notice. If the individual is a WEI for the Work Program, the WEI must continue to participate in a work program activity to receive continued benefits.

NOTE: *Continued benefits do not apply to cases where the client is disputing a 24-month case closure.*

1. Other Changes

If a different change occurs, and the recipient fails to request a hearing with continued benefits after notice of the adverse action, cash benefits may be reduced or terminated pending the hearing decision.

2. Recovery of Ineligible Benefits

The CM/ES Worker must explain to the BG at the time the fair hearing request is made that any benefits received ineligibly pending a decision adverse to the BG will be subject to recovery.

19.8 Denial Situations

The CM/ES Worker cannot deny or dismiss a hearing request; however, the hearing officer may do so if any of the following situations occur:

1. The request is not received in the specified time period.
2. The request is withdrawn in writing and signed by the A/R or his/her representative; the request must also be acknowledged as withdrawn by the Appeals Unit.
3. The A/R or his/her representative fails without good cause to appear at the scheduled hearing.

Preferred Methods of Withdrawal from a Fair Hearing

To ensure that Fair Hearings are being withdrawn consistently, the acceptable methods of withdrawal are listed below in the preferred order:

1. A county may call Office of Administrative Hearings (OAH) to withdraw from a fair hearing with the client on the phone;
2. A county may transfer the client to OAH to withdraw from a fair hearing. Typically, the county will stay on the line long enough to identify the county and state and to inform them that there is a client on the phone who wishes to withdraw and then transfer the call;
3. A county may call and withdraw on the client's behalf;
4. A client may call on his/her own and withdraw from a fair hearing; or
5. A client or worker may write to OAH to withdraw from a fair hearing. Please note that there are time constraints when using this option.

19.9 Description of Fair Hearing Events/Basic Information

The CM/ES Worker must use the DSS Form 2633, with any supporting documentation attached, to describe the events leading to and including the action that is in question. The following basic information must be included in the summary:

1. Case name
2. Case number
3. Benefit type
4. Name of the CM/ES Worker
5. Date of the timely or adequate notice
6. Dates of the questioned eligibility period
7. Amount of over issuance or under issuance
8. Date of application
9. A logical, concise explanation of the county action
10. Request and/or authorization of continued benefits
11. Supporting documentation substantiating case action

(e.g., notice, CHIP budget screens, etc.).

19.10 Applicable Evidence in a Fair Hearing

The burden of proof in a fair hearing generally falls on the CM/ES Worker.

The following chart describes the types of evidence, which may be presented in a fair hearing:

Type Evidence	Definition
Best	Original or primary evidence (i.e., eye witness, receipts, wage stubs, canceled checks, etc.)
Substantial	Evidence that creates more than a mere suspicion and imply a conclusion that is attainable by any reasonable person.
Hearsay	Second hand information, Hearsay evidence is generally not admissible. EXCEPTIONS: 1. Prior statements made by a party to the hearing are admissible if they are against the party's interest. 2. Records kept in the course of a regular activity may be admissible.
Irrelevant	Evidence, which does not have a direct bearing on the issue.

19.11 Scheduling the Fair Hearing

Within 10 days after receiving a request for a fair hearing, the Appeals Unit will schedule an appointment by letter to the A/R, and send a copy of the letter to the CM/ES Worker:

1. The date, time and place for a face-to-face hearing
2. The date and time for a telephone hearing.

Rescheduling

If the A/R is unable to participate at the scheduled time, alternate arrangements may be made.

19.12 Rights and Responsibilities Notice

No less than 10 days prior to the hearing date, the Appeals Unit will inform the A/R of his/her rights and responsibilities relating to the hearing. The BG may request less advance notice if an earlier hearing date is desired.

19.13 Hearing Officer Responsibilities/Telephone Hearing

The hearing officer's responsibilities relating to a telephone hearing are:

1. Conference the CM/ES Worker call with the A/R.
2. Decide during the telephone hearing, if necessary, to continue the hearing and require a face-to-face hearing

3. Conduct the telephone hearing according to face-to-face hearing responsibilities

19.14 The CM/ES Worker's Responsibilities Relating to a Telephone Hearing

The CM/ES Worker's responsibilities relating to a telephone hearing are:

1. Arrange for any witnesses to be present at the scheduled time;
2. Notify and arrange for additional staff to be available to testify when the hearing involves other issues;
3. Call the Appeals Unit at the scheduled time; and
4. Follow face-to-face hearing responsibilities.

19.15 A/R Responsibilities/Telephone Hearing

The A/R's responsibilities relating to a telephone hearing are:

1. Be available at the scheduled time at the telephone number given for the hearing;
2. Arrange for any witnesses to be present at the scheduled time; and
3. Follow face-to-face hearing responsibilities

19.16 Hearing Officer Responsibilities/Face-to-Face Hearing

The hearing officer's responsibilities relating to a face-to-face hearing are:

1. Administer oaths of affirmation
2. Accept testimony of the CM/ES Worker and A/R and written evidence
3. Rule on objections
4. Question witnesses
5. Rule whether the issue is a question of judgment or regulation
6. Allow the A/R to question or refute any testimony or evidence
7. Allow the A/R to submit evidence to establish facts and circumstances in the case
8. Allow additional time, if necessary, for the A/R to obtain more information bearing on issues
9. Be impartial

19.17 CM/ES Worker Responsibilities/Face-to-Face Hearing

The CM/ES Worker responsibilities relating to a face-to-face hearing are:

1. Arrange for any witnesses to be present at the hearing;
2. Notify and arrange for staff to testify when the hearing involves other issues;
3. Read prepared summary of circumstances leading up to the hearing.
4. Testify and present evidence to substantiate the action taken adversely against the A/R;
5. Question the A/R and/or witnesses; and
6. Refute any evidence or testimony presented by A/R.

19.18 The A/R's Responsibilities/Face-to-face Hearing

1. Present his/her case or appoint a representative to present the case.
2. Testify and present evidence to substantiate the case.
3. Question CM/ES Worker.
4. Examine all evidence relied upon by the county in reaching its adverse action decision; and
5. Refute any evidence or testimony presented by the CM, which appears to be incorrect.

19.19 Responsibility of Fair Hearing Committee

The Fair Hearing Committee has the final decision making power in fair hearings. The committee has the responsibility of reviewing the hearing record provided by the hearing officer before making the final decision.

1. Fair Hearing Retention

Decisions of the Fair Hearing Committee must comply with federal law and regulations and must be based on the hearing record. The decision is binding on the county office and must be retained in the case file for three years.

2. Notification of Results

The A/R and the CM/ES Worker must each be notified in writing of:

1. Fair Hearing Committee's decision
2. Reasons for the decision
3. Available appeal rights
4. Appropriate status of the A/R's benefits

3. Notification Time Frames

The A/R must be informed of the decision by the Fair Hearing Committee within 90 days of the initial request by the A/R for a hearing. The CM/ES Worker must effect any change in benefits

within 10 days of receipt of the decision or by the next possible effective date, whichever comes first. Recoupment policy must be applied if appropriate.

19.20 Case Action

If the appeal was conducted as a result of a denial and the decision reverses the CM/ES Worker action, the CM/ES Worker must take immediate action to approve benefits in accordance with the time frame set by the hearing decision.

19.21 Motion for Reconsideration

Any party aggrieved by a final fair hearing decision may, within 10 days of the service of the order, file a written Motion for Reconsideration, which shall specify in detail the grounds for relief sought and supporting authorities. The Office of Administrative Hearings (OAH) may order reconsideration on its own motion within 10 days after the service of the final order.

The filing of a motion for reconsideration shall not suspend or delay the effective date of the order, and the order shall take effect on the date fixed by the Office of Administrative Hearings and shall continue in effect unless the motion is granted or until the order is superseded, modified, or set aside as provided by law.

A Motion for Reconsideration will only be granted on the basis of:

1. A material error of law
2. A material error of fact
3. The discovery of new evidence sufficiently strong to reverse or modify the order, which could not have been previously discovered by due diligence.

The Office of Administrative Hearings may order a rehearing or enter an order with reference to the motion without ordering a hearing, and shall dispose of the motion within 30 days after it is filed. If the Office of Administrative Hearings determines, in its discretion, that a rehearing is necessary, the matter shall be set for further proceedings as soon as practicable.

If after such rehearing, it appears that the original decision, order, or determination is in any respect unlawful or unreasonable, the hearing officer/committee may reverse, change, modify, or suspend the same accordingly. Any decision, order, or determination made after such reconsideration, reversal, change, modification, or suspension of the original determination shall have the same force and effect as the original decision, order, or determination.

19.22 Appeals to Administrative Law Judges

The A/R has the right to appeal an adverse decision of the Fair Hearing Committee to the Administrative Law Judges for judicial review. This must be initiated within 30 days of the decision of the Fair Hearing Committee.

Chapter 20

Chapter 20 Recipient Claims

20.1 DSS Responsibility

DSS is required to recover overpayments and to correct underpayments. It is the ES Worker's/CM's responsibility to refer possible claims and the Benefit Integrity Claims Specialist's (BICS') responsibility to act on these referrals.

20.2 Detailed Information on Claims

Additional policy and procedures for establishing claims can be found in the SNAP/TANF Benefit Integrity Manual.

20.3 Claims Referral Procedure

Any referral made to the Benefit Integrity Unit must be made on a DSS Form 1680, Possible Claim Referral Form.

Any time an overpayment is detected by an Economic Services Worker (ES Worker)/Case Manager (CM), a claim referral should be submitted. If a case is transferred from one region to another, coordination between regions on possible claims should be resolved no later than 60 days after the case is transferred to a new region.

20.4 Underpayments

An underpayment may occur due to:

- A. Agency error (AG)
- B. Client error (CL)
- C. Accrual rights of added BG member(s)

An underpayment is corrected for active cases by the ES Worker.

If an underpayment occurred in a previous eligibility period, it can be corrected by Economic Services (ES) Workers when the case is reopened.

An underpayment and an overpayment may be offset in arriving at the final claim in the calculation.

A current underpayment may be used to offset a previously established overpayment.

CAUTION: *The TANF supervisor must authorize correction of an underpayment.*

20.5 Overpayments

An overpayment may occur due to:

- A. Agency error
- B. Client error
- C. Fraud

The overpayment situation must be evaluated to determine if fraud is suspected.

20.6 Budgeting of Earned Income Disregards

Underpayments or overpayments due to incorrect months being given the 50% or \$100 disregard will not be processed. The 50% disregard will be given the first four months earned income is budgeted in CHIP, regardless of when earnings were received or reported.

20.7 Establishment of Claim

Federal and state law determines the amount of assistance a BG is eligible to receive. A claim shall be established whenever a BG receives benefits in excess of the amount it was entitled to receive, including overpayments resulting from benefits pending hearing decisions.

1. Amount of Claim

Investigating the case and determining the correct amount of issuance determine the amount of the claim. The difference between the amount actually received and the amount that should have been received is the amount of the claim.

2. Time Frame

Claims must be calculated according to the policies and procedures of the TANF Program at the time the over issuance occurred.

20.8 Substantiated as Possible Claims

1. ES Worker/CM Responsibilities for Possible Claims

The ES Worker/CM has the following responsibilities regarding procedures for possible claims referral:

- A. Complete a DSS Form 1680. All referrals must contain complete information in Section 1. The ES Worker/CM will indicate if the case is active or inactive and Proposed Type (claim classification). The ES Worker/CM also assigns a potential classification to each claim based on the reasons for the over issuance. A

comprehensive summary of the details must be included in the Description of Possible Claim, Sect. 1 of the DSS Form 1680 or attached to the form.

- B. The DSS Form 1680 should be scanned in the Benefit Integrity Folder; Possible Claim (1680) Sub-folder; no later than 10 days from the date of detection.
- C. Correct the current or future benefit issuance when it is determined that a case is improperly certified.

The ES Worker shall verify as much information as possible about previous certification periods when verifying information for the current period of eligibility.

CAUTION: *Economic Services (ES) Workers should not work overpayments in correction mode on CHIP in order to avoid problems for claims staff at a later date. Overpayment determinations can be calculated using mini budget screen AFMB.*

2. Benefit Integrity Claims Specialist (BICS) Responsibilities for Possible Claims

The BICS has the following responsibilities regarding procedures for possible claims referrals:

- A. Review the case file in SCOSA, copy appropriate information, evidence, documentation, etc., necessary to establish the claim from the eligibility folder into the appropriate Benefit Integrity folder
- B. Determine classification of claim, period of over issuance and over issuance amount
- C. Follow other BIC duties as outlined in the Online SNAP/TANF Benefit Integrity Manual.

20.9 Classification of Recipient Claims

The ES Worker must assign a potential classification to possible claims based on the reasons for the over issuance. Claims may be assigned the following classifications:

1. Definition/Agency Error

Agency error (AG) claims, also known as administrative error claims, are generally the result of errors made by DSS personnel, which result in the improper issuance of benefits.

2. AG Claim Instances

Instances, which may result in an AG claim, include, but are not limited to DSS:

- A. Failure to take prompt action on a reported change
- B. Incorrect computation of the amount of benefits
- C. Issuance of benefits due to computer system error

3. Definition/Client Error

An inadvertent household error (CL) claim is any claim resulting from a misunderstanding or unintended error on part of a household who otherwise complies with program requirements.

4. Definition of Suspected Fraud

Fraud is defined as a false representation of facts by words or conduct, by false misleading allegations or by concealment of that which should have been disclosed, which deceives and is intended to deceive another in order to obtain assistance illegally. A person who commits fraud violates state and federal laws.

A. Elements of Fraud

As generally accepted in South Carolina courts, the necessary elements of fraud are as follows:

1. Misrepresentation of a fact with intent to deceive, including positive assertion of falsehood, concealment of the truth, suppression of the truth, and/or establishment of a false impression by words, actions or trickery;
2. Knowledge of the falsity of the representation by the maker
3. Materiality of the fact misrepresented
4. Reliance on the misrepresentation by the person deceived; and
5. Damage to the person deceived (benefit to the wrongdoer is normally immaterial)

B. Determination of Fraud

A determination of fraud for TANF can only be made through judicial proceedings in a criminal court. Fraud must be proven by evidence which is beyond a reasonable doubt. No disqualification exists in the TANF Program.

20.10 Liability for Recipient Claims

For claims, automated recoupment (reduction of the TANF benefit), administrative actions to obtain voluntary payments, or in some cases, civil action to collect an overpayment shall be directed toward:

- A. Each person who was an adult member of the BG when the overpayment occurred
- B. A sponsor of a non-citizen BG if the sponsor is at fault
- C. A person connected to the BG, such as a caretaker relative or an authorized representative, who causes an overpayment

20.11 Requesting Fair Hearing

The ES Worker should be aware that the recipient has a right to a Fair Hearing if he/she does not agree with the amount of claim or its classification. The recipient may request a Fair Hearing by

contacting the Benefit Integrity Unit. The Benefit Integrity Unit is responsible for representing DSS in the Fair Hearing.

1. Continued Benefits

The period to request a Fair Hearing begins when the recipient receives written notification of the claim. The recipient may request continued benefits within 10 days of notification that benefits will be reduced. In order to be eligible for continued benefits the recipient must be cooperating with the work component, if mandatory.

NOTE: *Continued benefits do not apply to cases where the client is disputing a 24-month case closure.*

2. Fair Hearing Time Frame

The BG may request a fair hearing to challenge any aspect of the claim. The period to request a fair hearing is 60 days from the date of the first notification.

20.12 Occurrence of Offsetting

An offset occurs any time a BG is entitled to receive a restoration of lost benefits and there is an outstanding claim. On active cases, claims are collected by automated recoupment.

Calculation

The amount of restoration the BG is entitled to receive must be applied toward repayment of the claim. The BG may receive the balance of the benefits after the claim has been paid in full. The automated offset occurs at the point the restoration is entered into the computer by the TANF supervisor. An automated offset will not occur for the current month.

NOTE: *This procedure is handled by CHIP.*

Actions must be taken to recoup an overpayment by the end of the quarter following the quarter in which the overpayment is identified.

EXCEPTION: *Any overpayment of less than \$35 is suspended for 36 months for a non-recipient unless fraud is suspected. If the individual reapplies and is approved during the 36 months, recoupment must be initiated.*

20.13 Recognizing Overpayments on CHIP

The BICS will initiate collection of overpayments on CHIP in the case. This is indicated on CHIP screen AFBH in the RECOUP column.

Recoupment Method

The recoupment method depends on whether the overpaid individual is a current recipient or a non-recipient.

A. Current Recipient

The overpayment is automatically recouped.

Case situation reflecting changes is entered into CHIP, which calculates the overpayment and recoupment. When a recoupment case has been taken to court, the court ordered amount is entered into CHIP and the court ordered amount reduces benefits. If the cash benefit case is closed, automated recoupment is activated each time it is reopened until full repayment is made.

B. Non-Recipient

ES Worker initiates collection of the overpayment as follows:

1. Sends CHIP Notice C500, Overpayment Demand Letter, or C501, Overpayment Demand Letter - DEW Data to the non-recipient.
2. Completes DSS Form 2627A, Repayment Agreement and Acknowledgment of Debt, when the non-recipient responds.
3. An acceptable method of payment is made to the county claims receivable clerk, who gives the individual a receipt. This may include cash, check, or money order.

20.14 Delinquent Claims

The definition of a delinquent claim is one in which the responsible party has not agreed to repayment, or has agreed to repayment and has not made restitution as agreed.

1. Tax Intercept

When any established claim becomes 90 days delinquent, the claim is referred automatically for SC income tax refund intercept, unless the case has been referred to Division of Investigation (DOI) for investigation/prosecution. Cases at DOI are not considered delinquent and will not be transferred for interception.

2. Obtaining a Judgment

When DSS has exhausted administrative means to collect a claim, DSS may collect the claim in civil court (Court of Common Pleas). After judgment is obtained, a lien can be placed on the real or personal property of the responsible party.

After the lien is placed on the property, DSS may have the county sheriff sell the property at auction in order to obtain payment of the claim.

3. Probate Court

A claim shall be filed in the county Probate Court whenever a person owing a claim dies. If the ES Worker becomes aware of the death of a recipient and a claim exists, the ES Worker will need to contact the Benefit Integrity Unit.

4. Bankruptcy

Whenever a person owing a claim files for bankruptcy, the General Counsel will petition the bankruptcy court on behalf of DSS. When written notification that a person has filed for bankruptcy is received by DSS, all collection actions, including automated recoupment, will cease.

A. Notification of Benefit Integrity Unit Fair Hearings on Automated Recoupments.

- B. If the ES Worker becomes aware of a bankruptcy petition, he/she will need to contact the Benefit Integrity Unit. Upon notification of decreased benefits due to automated recoupment of an overpayment, the recipient has the right to request a fair hearing. If continued benefits are requested within the 10-day notification period, benefits will be continued in the same amount without recoupment.
- C. Notification
The recipient must be notified that if the Fair Hearing Committee favors the recoupment; the recoupment will begin immediately after receipt of the decision.

Chapter 21

Chapter 21 Refugee Cash Assistance (RCA)

21.1 Refugee Cash Assistance (RCA)

Refugees are entitled to apply for the same benefits and service programs that are available to U.S. citizens. If they meet the financial and non-financial requirements of those programs, they are eligible for Temporary Assistance for Needy Families (TANF), Medicaid, Supplemental Nutritional Assistance Program (SNAP), Energy Assistance Program, and any other benefit program that is offered through the Department of Social Services.

The Refugee Cash Assistance (RCA) provides time limited cash assistance to eligible populations that meet the financial criteria of the TANF program, but do not meet a non-financial criterion. For example, adults with no dependent children may receive RCA. Families with minor children that meet TANF eligibility guidelines may be approved for TANF benefits and are not eligible for RCA.

The application for RCA must be filed within the four-month time requirement as outlined in the “**RCA Time Limits**” section of this chapter.

1. The process to determine a refugee’s eligibility for any of the public assistance programs begins when the refugee applies for benefits at the local Department of Social Services (DSS). Refugee Cash Assistance (RCA) eligibility determination and any changes, after approval, are made at the county office.

2. The refugee completes the DSS Form 3800 “Temporary Assistance for Needy Families (TANF) Application; Supplemental Nutrition Assistance Program (SNAP) Application; Refugee Cash Assistance (RCA) Application” or the online Application for Assistance at:
<https://benefitsportal.dss.sc.gov>.

3. Refugees who do not meet TANF requirements, may be eligible for time limited Refugee Cash Assistance.

4. When a refugee obtains legal permanent residency status, their eligibility for TANF and SNAP does not change. If otherwise eligible, they remain eligible based on the original status given by U. S. Citizens and Immigration Service (USCIS).

NOTE: *For convenience, the term “refugee” will be used throughout the chapter to encompass all persons who are eligible to receive refugee program services.*

21.2 Population Eligible for Refugee Cash Assistance

Individuals with the following status may be eligible for services in the RCA based on their time in the U.S.:

- A. **Refugee** is any person who is outside any country of such person's nationality or, in the case of a person having no nationality, is outside any country in which such person last habitually resided, and who is unable or unwilling to return to, and is unable or unwilling to avail himself or herself of the protection of, that country because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion.
- B. **Asylees** are individuals, who, on their own, travel to the United States, apply for and receive a grant of asylum. These individuals do not enter the United States as refugees. They may enter as students, tourists, businessmen or without papers.
Once they are in the United States, or at a land border or port of entry, they apply to the U. S. Citizens and Immigration Service (USCIS) for asylum, a status that will acknowledge that they meet the definition of a refugee and that will allow them to remain in the United States.
- C. **Cuban and Haitian Entrants** are a national of Cuba or Haiti that has applied for asylum may be eligible to receive assistance and services as a Cuban and Haitian entrant. USCIS defines Cuban and Haitian entrants as:
 - (a) Any individual granted parole status as a Cuban/Haitian Entrant (Status Pending) or granted any other special status subsequently established under the immigration laws for nationals of Cuba or Haiti, regardless of the status of the individual at the time assistance or services are provided; and
 - (b) Any other national of Cuba or Haiti,
 - (1) Who:
 - (i) Was paroled into the United States and has not acquired any other status under the Immigration and Nationality Act;
 - (ii) Is the subject of exclusion or deportation proceedings under the Immigration and Nationality Act; or
 - (iii) Has an application for asylum pending with the Immigration and Naturalization Service; and
 - (2) With respect to whom a final, non-appealable, and legally enforceable order of deportation or exclusion has not been entered.

- D. **Amerasian** is a non-citizen who was born in Vietnam after January 1962 and before January 1, 1976 and who was fathered by a citizen of the U.S. Other individuals who will be granted Amerasian classification by USCIS include mothers of Amerasian children and other close family members.
- E. **Victim of a Severe Form of Trafficking Adult** victim is an individual 18 years of age or older who has been subjected to a severe form of trafficking and has been certified by U.S. Department of Health and Human Services (HHS) Office of Refugee Resettlement (ORR). To receive a certification, an adult must be willing to assist with a trafficking case AND must have made a bona fide application for a T visa or be an individual who has received Continued Presence (CP) from the Department of Homeland Security (DHS) in order to contribute to the prosecution of traffickers in persons. Continued Presence (CP) is a type of immigration status available to a non US citizen enabling the person to temporarily remain in the United States and not be subject to removal. CP is currently granted to non-citizens who are the victims of human trafficking.

Severe forms of trafficking:

- (a) Sex trafficking in which a commercial sex act is induced by force, fraud, or coercion, or in which the person induced to perform such act has not attained 18 years of age; or
- (b) The recruitment, harboring, transportation, provision, or obtaining of a person for labor or services, through the use of force, fraud, or coercion for the purpose of subjection to involuntary servitude, peonage, debt bondage, or slavery.

Child victims of severe forms of trafficking who are under 18 years of age are also eligible for benefits to the same extent as refugees, but do not need to be certified.

- F. **Iraqis and Afghans with Special Immigrant Status:** Iraqi and Afghan non-citizens granted special immigrant status under section 101(a) (27) of the Immigration and Nationality Act (INA) are eligible for the same benefits available to refugees admitted under section 207 to the same extent, and for the same periods of time, as such refugees.
- G. **Afghan Humanitarian Parolee:** Afghanistan citizen or national who assisted the U.S. government overseas, was relocated in the U.S. under emergency evacuation, was paroled into the U.S. under section 212(d)(5) of the INA (8 USC 1182(d)(5)) and is eligible to receive benefits available to refugees until March 31, 2023 or the term of parole (whichever is longer).
- H. **Ukrainian Humanitarian Parolee:** Ukrainian citizen or national who has been paroled into the United States under section 212(d)(5) of the INA (8 USC 1182(d)(5)) and is eligible to receive benefits available to refugees until September 30, 2023 or the term of parole (whichever is longer).

NOTE: Families with minor children may apply for TANF benefits; only adults without dependent children may apply for Refugee Cash Assistance.

21.3 Refugee Cash Assistance – Qualifying Documents

An individual applying for RCA must meet an eligible status and have qualifying documents as listed in the following chart:

Category	Documentation
Refugee	I-94 indicates “Refugee” per Section 207 or Section 212(d)(5) of the Immigration and Nationality Act (INA)
Asylee	I-94 stamped with “Asylee” per Section 208 of the INA.
Cuban and Haitian Entrants Parole/Conditional Entrant	I-94 indicates parole status as a Cuban/Haitian Entrant/Conditional Entrant status under Section 203(a)(7) of the INA
Victim of a Severe Form of Trafficking in Persons	Certificate issued by ORR, U.S. DHHS
Amerasian	I-94 is stamped: “Processed for I-551” with codes AM1, AM2 or AM3, or I-551 is stamped with codes AM6, AM7 or M8
Special Immigrant Applicant Principal Applicant, Spouse, or unmarried Child Under 21 Years of Age, Iraqi or Afghan Special Immigrant	Iraqi or Afghan passport with an immigrant visa stamp noting that the individual has been admitted under IV (Immigrant Visa) Category SI1 and DHS stamp or notation on passport or I-94 showing date of entry
Principal Applicant, Spouse, or unmarried Child Under 21 Years of Age of Iraqi or Afghan Special Immigrant in P6 Category Iraqi or Afghan Special Immigrant Principal Adjusting Status in the U.S.	DHS Form I-551 (“green card”) showing Iraqi or Afghan nationality (or Iraqi or Afghan passport), with an IV (immigrant visa) code of SI6
Afghan Humanitarian Parolees (Non-SI Parolees)	Form I-94 with COA codes – “OAR”, “OAW”, “PAR”, “DT”, “PAROLED” or Humanitarian Parole (per INA section 212(d)(5)(A)) Foreign passport with DHS/CBP admission stamp with COA codes “OAR”, “OAW”, “PAR”, “DT”, “PAROLED” or Humanitarian Parole (per INA section 212(d)(5)(A)) Interim Notice Authorizing Parole (INAP), noting parole under INA 212(d)(5)(A)

	Form I-765 Employment Authorization Document (EAD) receipt notice with code C11 Form I-766 Employment Authorization Document (EAD) with the code C11
Ukrainian Humanitarian Parolees	Form I-94 noting humanitarian parole (per INA section 212(d)(5) or 8 U.S.C. § 1182(d)(5)) Foreign passport with DHS/CBP admission stamp noting “DT” Foreign passport with DHS/CBP admission stamp noting Uniting for Ukraine or “U4U” Foreign passport with DHS/CBP admission stamp noting Ukrainian Humanitarian Parolee or “UHP” Form I-765 Employment Authorization Document (EAD) receipt notice with code C11 Form I-766 Employment Authorization Document (EAD) with the code C11

21.4 RCA/TANF Relationship

The RCA Program mirrors the TANF Program in that the cash payment amount is the same; the right to appeal is the same; the collection of overpayment and repayment of underpayment is the same; the first month of assistance is prorated from the date of application. RCA applications have the same timeliness standard as TANF cases. RCA benefits should be authorized no later than 30 days after the application date.

The refugee cash assistance program must be consistent with the provisions of the TANF program in regard to:

- 1) The determination of initial and on-going eligibility (treatment of income and resources, budgeting methods, need standard);
- 2) The determination of benefit amounts (payment levels based on size of the assistance unit, income disregards);

Both RCA and TANF have a requirement to participate in employment activities to secure a job. For RCA applicants, the work program requirement is met through registration and participation in the Refugee Employment Services Program at an approved Refugee Employment provider.

Refugees that meet the following criteria are exempt from work registration and should be referred to Social Security Administration (SSA) to apply for Supplemental Security Income (SSI) when applying for RCA:

- Age 65 or older
- Blind
- Disabled

After RCA approval, the individuals may continue to receive benefits until approved for SSI, but not beyond the 8-month eligibility period. The RCA case must be closed when the refugee is approved for SSI. The DSS Form 1326, Notification of Eligibility Determination for Refugee Resettlement Program, must be sent at least 10 days before action is taken to close the case.

1. Required Verification

Verification requirements for the RCA are the same as the TANF Program for the following elements:

- a) Qualified Non-citizen status/SAVE verification
- b) Income

There is no federal requirement that RCA recipients must have a social security number or show proof of application for a social security number at the time of application.

Individuals that receive RCA are not considered in the TANF caseload and are not entered on the CHIP system for case processing.

1. Financial Requirements that are Unique to RCA

- A. Only income available on the date of application is considered for RCA eligibility.
- B. Any assets that refugees may hold in their land of origin are not considered.
- C. The income of a volunteer assisting a refugee or the resettlement office is not used in determining eligibility for the RCA program.
- D. Shelter or in-kind resources provided to the refugee by the refugee resettlement office is excluded.
- E. Cash payments made to the refugee under the Department of State Reception and Placement program are not counted as income or assets.

2. RCA Time Limits

There is an four-month time limit on the period that refugees are eligible to receive RCA benefits. The actual number of months RCA benefits will be available depends on the date of application for benefits.

The start date for the four-month eligibility period depends on the status of each applicant. Once eligibility is determined, RCA recipients who continue to meet financial requirements are eligible for RCA for up to four months.

The four-month eligibility period will begin as described below:

- a) Refugees, and Afghans and Iraqis with special immigrant visas; eligibility period begins the date of arrival indicated on the I-94.
- b) Cuban/Haitian entrants; eligibility period begins the date of approval stamped on the I-94 or passport.
- c) Asylees; eligibility period begins the date asylum is granted.
- d) Victims of human trafficking; eligibility period begins the date indicated on the certification letter.

The four-month eligibility period may differ from the RCA benefit period. Benefits may only be issued from the date the application is received by DSS. Once the four-month eligibility period is established, and the refugee is determined eligible for RCA, the first month cash benefit is prorated from the date the application was filed.

3. RCA Payment Level

The (RCA) benefit is based on the refugee family composition. The family size for RCA will be considered at the same level as the eligible filing unit for the TANF program. RCA is only available to **adults without dependent children**; therefore, the RCA benefit group will only consist of a family with one (1) or two (2) adults. A refugee family with dependent children must apply for TANF.

The RCA family size and current monthly benefit amount effective federal fiscal year 2026:

RCA Payments	
Number in Benefit Group	Payment
1	\$263
2	\$356

NOTE: This benefit amount will change when the TANF payment amount changes.

4. Assignment of RCA Case Numbers

The county is responsible for the assignment of RCA case numbers prior to submitting the application to Refugee Resettlement Program (RRP) for processing. If the refugee applies for SNAP benefits as well as RCA, the SNAP case number should be used for the RCA case. When the SNAP household consists of several adults, some who may apply for separate RCA benefits, the same CHIP case number should be used by adding a numbered suffix for each RCA recipient.

If the Refugee applies for RCA only, and no CHIP number is available, the county should establish a numbering system that consists of the county number as a prefix followed by the first seven (7) digits of the refugee's social security number or use the client's non-citizen number.

5. RCA Eligibility Process and Forms

The county staff must use appropriate forms in the eligibility process for Refugees applying for benefits. A copy of all applicant forms must be made available to the Refugee Resettlement Program at the State Office for processing RCA payments.

NOTE: *If the refugee applied for SNAP benefits, scan the documents in SCOSA and notify State Office Refugee staff at:*

refugeeresettlement@dss.sc.gov.

The following forms should be used by the county staff Economic Services (ES) Workers:

1. The **DSS Form 3800**, Temporary Assistance for Needy Families (TANF) Application; Supplemental Nutrition Assistance Program (SNAP Application; Refugee Cash Assistance (RCA) Application, or online application is used for refugees applying for RCA.
2. The **DSS Form 1324**, Refugee Employment Services Registration/Participation Status, is used for each person required to register for employment.

All refugees who do not meet an exemption from work registration must be referred to the Refugee Employment Service Provider. When referring Cuban and Haitian Entrants or Asylees for work registration, a copy of the Department of Homeland Security or USCIS document verifying the parole or Asylum status must be sent with the DSS Form 1324 to the Refugee Employment Service Provider, Lutheran Services, or World Relief.

The DSS Form 1324 must be signed by the contracted employment service provider prior to approving RCA benefits.

The refugee must report to the Refugee Employment Service Provider each month for job search activities while receiving RCA. The Refugee Employment Service Provider and the SC Refugee Resettlement Program will monitor the work activity requirement and notify the county if the refugee fails to participate as required.

3. The **DSS Form 1325**, Authorization of Refugee Cash Assistance Payment, is used for case approvals, reviews, re-budgets, closures and denials.
4. The **DSS Form 1326** is used to notify refugees of their eligibility status. The refugee should be notified of eligibility as soon as possible but no later than 15 days after application.

The county Economic Services (ES) Workers should complete all sections of the **DSS Form 1326**, prior to notifying Refugee Resettlement staff of the case approval.

Instructions for use of DSS Form 1324, DSS Form 1325 and DSS Form 1326 are written on the back of the forms.

RCA Benefits should be authorized within 30 days after eligibility determination. RCA benefits are issued by the State Treasurer's office, which requires a ten (10) day processing time once the State office is notified of case approval.

If the RCA applicant is in the CHIP system, all documents must be scanned into the Refugee Cash Assistance Folder in SCOSA and notify State Office Refugee Staff at: refugeeresettlement@dss.sc.gov.

Once eligibility is determined, the State Office Refugee Staff will monitor the case and authorize benefits each month of the eligibility period.

21.5 Overpayment of Refugee Cash Assistance (RCA)

DSS is required to recover any overpayment that occurs in Refugee Cash Assistance payments. Recoupment of this type of overpayment is handled in the same manner that overpayments and underpayments are handled.

1. Detection and Establishment of RCA Claim

A claim may be detected by Refugee Resettlement staff at the State Office or by county staff that handle RCA cases. A claim shall be established whenever a Refugee receives RCA benefits in excess of the amount the individual was entitled to receive. If the overpayment is detected at the State level, county staff will be notified of the circumstance and the overpayment amount in order for the county to establish the claim.

2. Amount of Claim

The difference between the amount actually received and the amount that should have been received is the amount of the claim. For RCA, this will usually be the full monthly payment received by the refugee.

3. Economic Services Worker/Regional Benefit Integrity Staff Responsibilities for RCA Claims

- A. The Eligibility Worker has the following responsibilities regarding procedures for RCA claims:
 1. Complete a DSS Form 1680 with a summary of the details surrounding the claim.
 2. Attach appropriate information, evidence, documentation, etc., necessary to establish the claim for county supervisory review.
- B. The Regional Benefit Integrity Claims Specialist (BICS) has the following responsibilities regarding procedures for RCA claims:
 1. Contact the refugee to discuss the overpayment and to obtain a signed repayment agreement, DSS Form 2627A, Repayment Agreement and Acknowledgement of Debt.

2. Send a copy of the summary and documentation and a copy of the signed DSS Form 2627A, to the Refugee Services Unit at the State Office.
3. Inform the refugee and/or the sponsor that the RCA repayments must be sent to the Financial Services Unit at State Office.

4. Repayment of RCA Overpayment

The repayment agreement must contain due dates or time frames for the periodic submission of payments. The full amount of the overpayment should be repaid within twelve (12) months.

21.6 Fair Hearing Rights

All applicants and recipients of refugee cash assistance must be provided an opportunity for a fair hearing to contest adverse determinations. The fair hearing (appeal) is the administrative mechanism to protect the rights to due process of law when an adverse action is proposed.

A written notice in English and a written translated notice, or a verbal translation of the notice, must be sent or provided to a refugee at least ten (10) days before the date upon which the action is to become effective.

Upon notification of a proposed adverse action, the applicant or recipient has the right to request a fair hearing to contest the proposed action.

When the request is received, the individual should complete a DSS Form 2633, Request for Fair Hearing, if possible. If the request is made orally, the worker must complete the DSS Form 2633 as completely as possible.

The request for fair hearing is sent to the Office of Individual & Provider Rights within two (2) working days of the request.

21.7 Refugee Cash Assistance Case Closure

Cash benefits must be terminated for any refugee recipient who has been in the U.S. for four months, as determined by the month and year of entry into the U.S. or eligibility date indicated on the USCIS document. The timely (10 day) notice must be sent for all closures.

Case Closure may occur for the following reasons:

1. Recipient moves out of the state
2. Recipient is eligible for SSI benefits
3. Recipient secures employment and income is over the limit
4. Recipient is determined ineligible for other reasons

RCA Case Closure Procedure

- A. County staff completes the DSS Form 1325, Authorization of Refugee Cash Assistance Payment, showing the effective date of closure. The form may be scanned into SCOSA or sent via email to the State Office Refugee Staff at refugeeresettlement@dss.sc.gov to notify them of the case closure.

- B. County staff sends the DSS Form 1326 to the client at least 10 days before action is taken to close the case unless being closed due to the end of the eligibility period.

21.8 County Office Contact

Due to the limited number of refugees that enter the State, each county should designate staff to process the RCA application or ensure that the application and accompanying documents are completed properly and scanned into SCOSA. State Office Refugee Staff are notified that the RCA application has been approved. Each county must notify State Office Refugee Staff that the RCA application has been approved.

21.9 State Office RCA Program Support

When necessary, counties should contact the State Office Refugee Resettlement Program for guidance and assistance. The State Office RRP Staff may be reached at:

- 1-800-922-1548;
- 803-898-9004; or
- 803-898-7303.

Chapter 22

Chapter 22 Civil Rights

22.1 Civil Rights

All TANF applicants and recipients are entitled to information about their civil rights. They are also entitled to information about how to file a complaint if they believe they have been subjected to discriminatory treatment by a human services provider. The civil rights protections that clients have depend on applicable state and federal civil rights laws. The ES Worker must provide the A/R with a DSS Form 2416, Know Your Rights, at each application and redetermination.

Filing Discrimination Complaints:

Any individual or his/her representative may file a discrimination complaint with the County, District, or State Office of the Department of Social Services, or with the U. S. Department of Health and Human Services. Complaints may also be filed with the South Carolina Human Affairs Commission. A complaint may be filed at both the state and the federal levels, separately or concurrently, at any time during the process. The complaint may concern discriminatory practices or actions on the part of DSS. The complaint may also involve practices or actions by other agency related institutions, organizations, contractors, or practitioners that participate in the TANF program by providing aid, care, or services. DSS will investigate each complaint promptly to determine whether or not it is justified and, if justified, what corrective action is appropriate.

1. Rights and Responsibilities

The employment discrimination statutes prohibit discrimination on the basis of race, color, religion, national origin, citizenship status and unfair documentary practices regarding employment verification, sex, age, and disability in private and public-sector employment. Depending on the circumstances, the Department may be subject to coverage under both the nondiscrimination statutes and the employment discrimination statutes.

These laws apply to:

1. State agencies that receive federal money through a block grant to conduct welfare programs
2. County and city agencies that assist in job training as part of a welfare program

3. Private contractors and service providers that help welfare participants find jobs or training
4. County offices that determine eligibility for Supplemental Nutrition Assistance Program (SNAP)
5. Offices that operate federally funded child nutrition programs (for example, National School Lunch Program and the Women, Infants and Children program)
6. State agencies that refer welfare recipients to businesses or public agencies for employment
7. Private contractors and businesses that contract with the State to provide job referral services for welfare participants

22.2 TANF Accommodations Requirements

DSS is required to provide reasonable accommodations to applicants/recipients to ensure that they have equal access to benefits and services. “Reasonable accommodation” includes, but is not limited to:

1. modifying existing facilities to make them accessible;
2. acquiring or modifying equipment;
3. providing readers or sign language interpreters; and/or
4. offering modified work plans for TANF clients

Accommodations are designed and granted on a case-by-case basis to address special needs and to guarantee that every applicant/recipient has full access to TANF Programs.

At each client contact, ensure that the individual has all of the information and assistance from DSS that is needed to complete the application, interview or other action, prior to ending the conversation. If an accommodation is requested but it is questionable whether or not the request can or should be fulfilled, contact the Economic Services Division for a final decision.

Accommodations should be offered when the:

1. Client requests accommodations based on a disability or impairment that will prevent access to services
2. DSS staff member (counselor, front desk staff, contractor, etc.) is concerned that the individual may not understand the application, verification or recertification instructions
3. DSS staff member is concerned that the individual may not complete the application or recertification review without these accommodations
4. Program’s policies dictate that a waiver from the office interview is appropriate; or other circumstances or information lead DSS staff to think that accommodations are needed.

All clients must have access to standard services. While accommodations must be offered to those in need of them, these specialized services are a client option, not a requirement.

County Office Accommodations Procedures

The Client Special Service Coordinator should have written procedures in place to ensure that all staff who directly serves clients is aware of how to arrange for accommodations and know who must be consulted to make these arrangements.

Accommodations Procedures

Waiver of office interview for TANF applicants/recipients:

If the client has named an authorized representative, the representative can come to the office in lieu of the client. The authorized representative may answer basic questions and provide child support information needed for eligibility determination but may not negotiate a Family Plan. The Family Plan discussion must be with the A/R.

The office interview must be waived upon request by any A/R who is unable to appoint an authorized representative and:

- A. has no BG members able to come to the county office because they are 60 years of age or older or are handicapped/disabled;
- B. lives in an extremely remote location;
- C. has no BG members able to come to the county office because of transportation difficulties or similar hardships which the county determines, on a case-by-case basis, warrants a waiver of the office interview

These hardship conditions include, but are not limited to:

- 1. illness
- 2. care of a household member
- 3. prolonged severe weather
- 4. hardship associated with living in a rural area
- 5. employment or training hours that prevent an applicant/recipient from participating in a face-to-face interview

NOTE: *If needed, the county office should try to accommodate working/training hours by scheduling appointments outside of traditional business hours.*

Telephone Interviews

The county DSS office may offer a telephone interview in lieu of a face-to-face interview for an Applicant for whom the face-to-face interview has been waived.

Out-of-office interviews

For those clients who are unable to come to the office or participate in a phone interview, interviews may be held in a mutually agreed-upon site (e.g. Community Mental Health Center, client's workplace, DSS satellite offices, community agencies, or other locations).

Alternate interview examples

When a client is hospitalized, a telephone interview or an authorized representative interview should be offered.

1. A home-bound disabled client or his/her authorized representative should be offered a telephone interview.

22.3 Title VI Prohibition against National Origin Discrimination As It Affects Persons with Limited English Proficiency (LEP)

In order to ensure compliance with Title VI, DSS must take steps to ensure that LEP persons who apply for or receive TANF and related programs have meaningful access to those programs. The most important step in meeting this obligation is to provide the language assistance necessary to ensure such access, at no cost to the LEP person.

Agency policy for LEP services is set forth in the Civil Rights Toolkit available with the Office of Individual and Provider Rights.

The type of language assistance provided depends on a variety of factors, including the:

1. size of the organization providing the service;
2. size of the LEP population it serves;
3. nature of the program or service;
4. objectives of the program;
5. total resources available to the organization providing the service;
6. frequency with which particular languages are encountered; and
7. frequency with which LEP persons come into contact with the program.

The key to providing meaningful access for LEP persons is to ensure that DSS and the LEP person can communicate effectively. The steps taken must ensure that the LEP person is:

1. given adequate information
2. able to understand the services and benefits available
3. able to receive those benefits and services for which he/she is eligible
4. able to effectively communicate the relevant circumstances of his/her situation to DSS
5. In order to ensure that persons are not excluded from equal program participation due to limited English proficiency (LEP), DSS must provide trained and competent interpreters and other oral language assistance services to accommodate LEP clients.

DSS may use any of the following services:

1. hire bilingual staff
2. hire staff interpreters
3. use volunteer staff interpreters
4. use volunteer community interpreters
5. contract with an outside interpreter service
6. use a telephone interpreter service

The LEP customer's declination of the offer of free interpreter services must be documented.

Also suggest that a trained interpreter (in addition to the friend/family member) sit in during the interview to ensure reliable and correct interpretation of information. Minor children cannot be used as interpreters.

Written materials that are routinely provided in English to applicants, recipients, and the public must be made available in regularly encountered languages other than English. DSS must ensure that communication tools are provided to LEP customers. The following is a list of the minimum requirements for written documents that should be in the language of the customer:

1. any documents that have to be signed
2. documents that describe the eligibility requirements to participate in a program
3. notifications of changes in status
4. documents informing customers of rights
5. communications informing customers of meetings and reviews for the purpose of recertification

The Office for Civil Rights (OCR) will consider DSS to be in compliance with its Title VI obligation to provide written materials in non-English languages if for:

1. LEP language groups that constitute ten percent or 3,000 (whichever is smaller) of a service area, DSS provides translated written materials, including vital documents, for each eligible person to be served or likely to be directly affected by the TANF program;
2. LEP language groups that constitute five percent or 1,000 (whichever is smaller) of a service area, DSS ensures that, at a minimum, vital documents are translated into the appropriate non-English languages for each eligible person to be served or likely to be directly affected by the federally funded program;
3. LEP language groups that constitute fewer than 100 persons in a service area, DSS does not translate written materials but provides written notice in the primary language of the LEP language group of the right to receive competent oral translation of written materials for each eligible person to be served or likely to be directly affected by the TANF program.

The "service area" is defined as the county served by each DSS office. The LEP population in each county would determine how individual offices apply the Title VI directives.

22.4 Title VI Prohibition on Discriminatory Conduct in Federally Funded Programs and Activities

DSS may not discriminate against people on the basis of race, color, national origin, disability, or age in how we administer our programs or activities.

DSS may not indirectly discriminate on these bases through contractors or by means of any other arrangement. DSS is responsible for ensuring that our contractors administer their programs in a nondiscriminatory manner.

Public entities and private contractors that contract with the State to administer welfare programs are subject to the nondiscrimination statutes because they act as agents of DSS in carrying out the program or activity, not because they are recipients of federal assistance.

DSS may not exclude or deny welfare benefits to persons based on their race, color, national origin, disability, or age, or on the basis of sex in education programs.

Examples:

DSS caseworkers may not reject an applicant for benefits because he/she is or appears to be an African-American, Hispanic, Asian, American Indian, Alaskan Native, or a member of another racial or ethnic group. If an applicant declares that he/she is a U.S. citizen, no further verification is required unless there is reason to question the statement. Caseworkers may not reject an application based on the assumption that a person with a foreign-sounding last name is not a citizen and therefore not eligible. Neither DSS caseworkers nor the employees of a TANF contractor may deny benefits to persons who are not fluent in English because they assume persons who are, or appear to be, from other countries and are not English proficient, are not eligible for such benefits.

DSS may not impose different standards or procedures to determine who may receive benefits on the basis of race, color, national origin, disability, or age, or on the basis of sex in education programs.

Examples:

A TANF ES Worker may not accept a self-declaration of qualified immigration status requiring verification from applicants who appear to be of African origin, yet require all immigrants from Spanish speaking nations to submit USCIS documentation because of an assumption that these applicants are illegal non-citizens. TANF personnel may not report suspected illegal non-citizens to the USCIS on the basis of race, color, or national origin. Independent evidence supporting illegal non-citizen status is necessary. An employee of a contractor hired by the State may not delay a review of referrals from older individuals until after she evaluates referrals from younger persons.

DSS may not provide different benefits to persons on the basis of their race, color, national origin, disability, age, or on the basis of gender in education programs.

Examples:

Do not reject applicants for job training programs because they are or appear to be Hispanic. Do not assume that a single mother with four children would be unable to complete a rigorous training course because of her family responsibilities.

A DSS office located in an area consisting of Hispanic immigrants with limited English proficiency must provide written materials or other communication services in both English and Spanish that describe all of the benefits and services offered to applicants and participants.

22.5 Type of Conduct Prohibited in Employment Settings

Employment discrimination laws protect workers and prospective workers from discrimination based on race, color, national origin, citizenship status and unfair documentary practices related to employment eligibility, religion, sex, age, or disability.

These laws cover both individual employers and employment agencies, including DSS and contractors that provide job placement services for our program participants. The laws prohibit discrimination in all aspects of the employment process: hiring and discharge, compensation, assignments, and all other terms, conditions, and privileges of employment.

Examples:

Employers or those referring welfare participants to employers may not discriminate on the basis that a person looks “foreign” or has an accent.

Employers must accommodate an employee’s or welfare participant’s religious practices unless doing so would create an undue hardship. For example, people must normally be permitted to wear religious attire unless doing so would create a safety hazard. Furthermore, a welfare agency may not refuse to refer an individual for employment because of his or her need for religious accommodation. Employers may not place female TANF participants in office positions while male TANF participants are placed in manual labor positions based on assumptions of the individual’s skills and strengths.

22.6 Discriminatory Conduct on the Basis of Handicap/Disability That Is Prohibited in Programs and Services

DSS may not discriminate against any qualified individual with a disability in providing services or administering any program or activity, whether or not the program receives federal financial assistance. In general, an individual with a disability is “qualified” if that person meets the essential eligibility requirements for receipt of services or participation in the program or activity. DSS may not refuse to allow a person with a disability to participate because the person has a disability. We must eliminate unnecessary eligibility standards or rules that deny an individual with a disability an equal opportunity to participate. DSS may not harass a program participant or applicant based on a disability.

Examples:

The director of a day care program which includes children of TANF participants who are attending employment training programs may not refuse to accept children who have emotional problems or who take medication for a disability.

TANF recipients with disabilities may not be prohibited from work activities, education, or training opportunities based on assumptions that such individuals are not qualified to participate in training or work.

A technical college offering job-training for TANF participants may not require students with disabilities to provide medical histories if such histories are not required of all students.

DSS is required to make reasonable modifications in policies, practices, and procedures that deny equal access to individuals with disabilities, unless a fundamental alteration in the program would result.

Examples:

A job-training course for TANF participants must extend testing time when a person with a learning disability requests extra time to complete the test because of his/her disability. The course provider may ask the individual who is seeking extra time to provide reasonable documentation of the learning disability and the additional time that is required.

A TANF applicant with a mental disability who is unable to complete the application must be assisted. If an individual with a disability, with or without reasonable accommodation, is unable to perform the essential functions of any available job, a state welfare agency should seek alternatives to the work participation requirement.

DSS must ensure that programs and services are provided in an integrated setting, unless separate or different measures are necessary to ensure equal opportunity for individuals with disabilities. Programs that provide special benefits to people with disabilities are permitted, but people with disabilities cannot be compelled to participate in those programs.

Examples:

A county DSS office may offer an alternate site for an eligibility interview at the Community Mental Health Center for those with mental disabilities. However, the office may not require people with mental disabilities to go to an alternate site for an interview.

A county DSS office may not require people with HIV to be served in a separate room from the other participants.

A vocational training program may offer special training opportunities for people with vision impairments. However, it may not require people with impairments to participate in the special program or refuse to permit them to participate in courses open to other program participants.

DSS must ensure effective communication with individuals who have hearing, speech, or vision impairments. Programs must provide auxiliary aids and services when necessary to ensure effective communication. However, they are not required to provide auxiliary aids that will result in undue financial and administrative burdens.

Examples of auxiliary aids are Braille material, sign language interpreters, readers, or text telephones (TTYs).

Examples:

A job placement program that makes information about job openings available by telephone must ensure that the information is available to users of TTYs.

Printed information for applicants/participants about welfare eligibility requirements must also be provided on audiotape or in Braille for people who have vision impairments, or materials must be read to them.

Job training programs for TANF participants must provide sign language interpreters for deaf students when it is necessary to ensure effective communication for those students.

DSS may not exclude individuals with disabilities from programs and activities because buildings are inaccessible. However, the providers are not required to take any action that would result in a fundamental alteration in the nature of the program or activity, or in undue financial and

administrative burdens. This means that providers need not remove physical barriers such as stairs in existing buildings as long as the programs are made accessible to individuals with disabilities in other locations or through other methods.

Examples:

A DSS office that is located on the second floor of a building that has no elevator may make its services available to an applicant who uses a wheelchair by meeting with that applicant in an accessible ground floor office.

A job-training program that usually offers classes in an inaccessible second-floor classroom may make its program accessible by relocating the class to an accessible classroom in another building. An applicant with a physical disability who cannot be accommodated at the county office must be offered an alternative to the office interview that will accommodate his/her needs and, at the same time, satisfy program requirements.

22.7 Conduct on the Basis of Disability That Is Prohibited in Employment

Employers and those referring TANF participants to employers may not impose qualification standards that screen out any individual with a disability or a class of individuals with disabilities unless such standards are shown to be job related and consistent with business necessity.

Example:

An employer may want to require that all job applicants have a driver's license. If driving were an essential function of the position, for example, a bus driver's job, no change in policy would be required. If the job could be done with accommodation (a personal driver, for instance), then the policy would have to include this accommodation.

However, if an applicant were seeking a position for which having a driver's license is merely convenient (such as a secretarial position); the employer would be prohibited from applying this requirement to an applicant who does not have a driver's license because of a disability.

The ADA limits an employer's ability to ask questions of applicants and employees regarding the existence, nature, or severity of a disability and to require medical examinations. Employers may not ask disability related questions of applicants or require medical examinations before an offer of employment is made. If an applicant has a known disability that may prevent the individual from performing the essential functions of the job, the employer may ask how, with or without reasonable accommodation, the applicant would perform the specific tasks required.

Example:

A TANF recipient has just applied for a job as a data entry clerk. As she is filling out a personnel form, she mentions this is the first job she has had since she developed Carpal Tunnel Syndrome. The personnel manager cannot ask her for the name of her doctor so he can determine if she is currently under treatment. However, the personnel manager may ask her to demonstrate or describe how she would perform her job-related duties.

Employers are required to provide reasonable accommodations to employees to enable them to perform the essential functions of the job unless the employers can demonstrate that providing a

reasonable accommodation would cause an undue hardship to the employer. “Reasonable accommodation” includes, but is not limited to:

- A. modifying existing facilities to make them accessible;
- B. acquiring or modifying equipment;
- C. providing readers or sign language interpreters;
- D. offering part-time or modified work schedules; and/or
- E. restructuring the duties of the job

In determining whether an accommodation would impose an “undue hardship” on an employer’s business or program, the following factors should be considered:

- the overall size of the business or program with respect to the number of
- employees, number and type of facilities, and size of the budget;
- the type of the employer’s operation, including the composition; and
- structure of the workforce; and the nature and cost of the accommodation needed.

Examples:

A TANF recipient who uses a wheelchair obtains a job on the clerical staff of an employer whose offices are in a building that has two steps at the entrance. The employer may be required to provide reasonable accommodation for the employee by providing a ramp at the building entrance. A job training program offered by an employer may be required to provide sign language interpreters for deaf employees when it is necessary to enable them to participate in the training.

DSS hires an accountant with vision impairment. The Agency may be required to provide reasonable accommodation for the accountant by obtaining computer equipment to enable the accountant to read printed material.

Chapter 23

Chapter 23 State Programs

23.1 State Programs

The TANF program is increasingly faced with the challenge of meeting the needs of “hard to serve” clients with multiple barriers to employment. A number of these clients have significant mental and/or physical disabilities that prevent them from fulfilling the mandated work requirements of the Temporary Assistance for Needy Families (TANF) program. The severity of personal and/or family problems effect the chances of employment for individuals in the program.

South Carolina will operate a State Program, outside of the TANF program, for Two-Parent families and individuals who are physically or mentally disabled. Operating a program with total state expenditures allows the flexibility needed to tailor employment-related services to the circumstances of recipients, rather than simply pursuing strategies that count toward the federal participation rate.

The DSS CARES, *Challenging Adults through Rehabilitation, Education and Services* Program is designed to serve TANF eligible individuals who face a health-related problem expected to last 90 days or more that prevents their ability to participate in the TANF work program. The incapacity may be physical or mental, and must be verified by a physician or other health professional.

The Two-Parent Program serves TANF families that contain two or more parents in the TANF benefit group, as well as cases when parents are sanctioned or disqualified. The participation requirements are designed to meet the needs of recipients and to assist in achieving self-sufficiency.

Although the following households may contain two parents in the family, they will be excluded from the Two-Parent program:

- A. A benefit group that contains an SSI parent
- B. A benefit group that contains an ineligible non-citizen parent

At approval for TANF, the Economic Services (ES) Worker will determine when individuals meet the criteria for either of the State Programs and make a referral for case management services. The ES Worker should notify the Case Manager (CM) when a family is approved for TANF benefits and make the appropriate referral for development of the WRA.

1. CHIP EMPR Coding for State Programs

The appropriate EMPR code must be entered on CHIP by the ES Worker in order for the case to be listed in the Participation and Tracking System (PATS).

The EMPR code may be changed when necessary, but after case approval, the code should remain the same for the entire month. If the individual no longer meets the EMPR code, it must be changed effective the following month.

MA	Applies to participants in the State Two-Parent Program.
MS	The second parent in the Two-Parent case when the other parent is coded, “RH”; “IN” or “DC
IN	Applies to individuals who are determined to be incapacitated and unable to participate in work activities based on medical documentation. The incapacity must be expected to last 90 days or more. Single disabled parent in CARES Program or second parent in the Two-Parent Program
RH	Applies to an individual providing care for a disabled family member not in school, living in the home; that prevents the individual from participating in TANF work activities. The disability of the person in need of care must be for a minimum of ninety (90) days. A medical statement from a physician must support the need for care.
DC	Applies to a parent in a Two-Parent family that is providing care for a disabled child attending school. The need for care must be supported by medical documentation.

2. Benefit Time Limits for State Programs

All TANF families included in either CARES or the Two-Parent Program are exempt from the Federal 60-month time limit. All families included in CARES are also exempt from the State 24-month time limit.

Two-Parent families with both adults coded “MA” on EMPR are subject to the State 24-month time limit. However, in Two-Parent cases where one adult is coded, “IN”, “RH”, or “DC” on EMPR, the family is exempt from State time limits.

NOTE: *Months counted towards the family's 24-month time limit will be based on the adult, minor parent head-of-household, or parent who has received the most countable months in a two-parent household.*

3. Benefits Received in Another State

TANF assistance received by Two-Parent families in another state does not count toward the State 24-month time limit. If the family has not used 60 federal TANF months, they may apply for assistance in SC and if eligible, they may receive benefits for up to 24 months.

4. Reapplication after Time Limit Closure

Individuals may reapply for benefits after termination of cash benefits due to the 24-month limit if the family qualifies for the State CARES program.

5. Time Limit Extensions

The Family Independence Act allows that benefits be extended beyond the 24-month time limit in certain situations. ([See 18.2](#))

6. State Program TL Tracking Codes

The following tracking codes will be used on CHIP for the CARES or Two-Parent programs:

- A. “DI” code used on FAIP for an incapacitated individual (90 days or more).
- B. “DC” code (Two-Parent case) used on FAIP for an individual required in the home to care for a disabled child.
- C. “A3” code (Two-Parent case) used on FAIP for an individual required in the home to care for a disabled family member.
- D. “AE” code (Two-Parent case) used on FAIP for a mandatory adult when the other adult is disabled, or required in the home.
- E. “A2” code (Two-Parent case) used on FAIP for a mandatory adult when the other adult is also mandatory.

23.2 State CARES Program

Adult individuals diagnosed with a physical or mental disability expected to last 90 days or more, are eligible for the CARES program.

Adult individuals accepted for treatment by Vocational Rehabilitation, DDSN, or Mental Health, are also eligible for the CARES Program. Adult individuals accepted by VR for treatment due to a criminal record or drug addictions are not eligible for the CARES program.

NOTE: *Recipients who are permanently and totally disabled will be included in CARES regardless of their ability to work or participate full-time. You may have an individual who works full time despite the fact that they are totally and permanently disabled. In this situation, the case would continue in the CARES Program (i.e., paraplegia or an intellectual disability does not always prohibit work activities, but these clients should remain in CARES for specialized services.)*

1. Verification of Disability

A disability may be physical or mental, and must be verified by a physician or other health professional which includes:

- A. Physician Assistants
- B. Nurse Practitioners
- C. Psychologists
- D. Psychiatrists
- E. Physical Therapists
- F. Other professionals qualified to make a clinical diagnosis

The medical incapacity is subject to reevaluation at intervals that are specific to each recipient's circumstances, at a minimum, at annual redetermination. This interval is dependent on what has been determined by the doctor or other health professional and what is documented on the DSS Form 1247, Medical Release/Physician's Statement, or other verification which is completed and signed by a physician or other health professional.

NOTE: Support services funds can be used to pay to have medical forms completed for participants in the State program once they have been determined eligible and have been participating in the CARES Program.

2. CARES Assessment Process

The Family Plan will be completed for the families in the CARES Program. It will be an overall picture of the strengths, barriers and needs within a family unit.

The Family Plan includes:

- 1. DSS Form 1257, TANF Family Success Assessment (TFSA); and
- 2. DSS Form 1022, Individual Employment Plan (IEP) (May not be mandatory for all CARES participants)

The client assessment process is the first step for the client after case approval because it is needed to gather information necessary for the development of the Family Plan. This process should be completed within 30 days after case approval. [\(See 23.2.7\)](#)

The client assessment will involve gathering and analyzing information on external and internal factors that affect the client to determine the client's current level of employability and assess the needs of the family.

The assessment process is used to:

- A. Evaluate the strengths and weaknesses of the participant
- B. Identify needed services
- C. Develop an appropriate Family Plan for the participant and other family members.

3. Elements of Assessment

The assessment consists of the following:

- A. An orientation of the CARES Program;
- B. DSS Form 1257, TANF Family Success Assessment (TFSA); and

C. Referral for services

4. CARES Evaluation

The screening process is a vital part of the family evaluation. The Case Manager should begin an evaluation of the family upon receipt of the referral from the ES Worker.

The assessment is used to identify potential barriers that may affect the clients' ability to participate in activities. The results captured during the assessment will be used to refer individuals for additional assessments when indicated. In addition to the DSS Form 1257 and the CARES evaluation should include the following screenings:

A. DSS Form 1247B - Self Evaluation Activities of Daily Living

The CM must determine the functioning level of the disabled individual based on information obtained from qualified medical professionals and the DSS Form 1247B. Individuals may have an incapacity that limits their ability to work, but still are capable of performing in other training activities.

B. Domestic/Family Violence Assessment

The DSS Form 3733, TANF Domestic Violence Information Notice, will be completed by the interviewer at application. However, the CM must discuss domestic/family violence issues with the participant when developing the Family Plan.

When a recipient requests that certain program requirements be waived because compliance would put the recipient at risk of domestic/family violence, the recipient will be referred to the local Domestic Violence Advocate (DVA) for an assessment which includes completing a safety plan.

NOTE: *The safety plan will be maintained by the DVA.*

The assessment will evaluate the domestic/family violence situation and determine the extent of counseling and support services needed to safeguard the recipient.

The DVA will make a recommendation to the CM regarding consideration of a good cause domestic violence waiver of a program requirement(s). The DSS Form 3734, TANF Domestic Violence Waiver Assessment, must be completed by the CM.

C. Optional screenings should be completed by the TANF case manager when the client displays problems with hearing or vision.

1. Basic Hearing - DSS Form 1321, TANF Hearing Questionnaire
2. Basic Vision - The individual's ability to read the application (DSS Form 3800) and other DSS forms without difficulty.

A Basic Learning Disability (LD) screening, DSS Form 1320, is done for TANF applicants by the ES Worker.

NOTE: Do not tell a client they have a learning disability and do not refer to a client as having a learning disability. Only a qualified psychologist can diagnose a learning disability.

5. CARES Family Assessment

The family assessment will focus on other conditions of the family that impact the individual's ability to participate in program activities and or seek other needed services. During the family assessment, areas to consider may include but are not limited to the following:

- Demographics
- Employment (e.g. skills, history, legal barriers, career interests, language)
- Education (e.g. highest grade level, learning disabilities, other diploma)
- Housing and transportation
- General health
- Mental health
- Substance abuse
- Domestic violence – safety
- Child Care and child well-being

6. CARES Family Plan

The Family Plan will be completed for the family of CARES participants. It will be an overall picture of the strengths and growth areas within a family unit.

The evaluation will include a summary of observations and information gathered by the CM concerning each household member. The CM will document the findings on the CARES Mutual Responsibility Agreement (DSS Form 1231). This portion of the Family Plan may be completed in the office.

The Family Plan includes:

1. DSS Form 1257, TANF Family Success Assessment (TFSA); and
2. DSS Form 1022, Individual Employment Plan (IEP) (May not be mandatory for all CARES participants)

Based on medical or physical needs, goals will be developed for each household member with specific outcomes relating to health, safety, enrichment, etc. All CARES participants must have a Mutual Responsibility Agreement while some may need an Employment Plan.

The Family Plan is a working document that must be updated as changes occur. It may be necessary to adjust time frames, activities, support services, vocational goals, etc., as necessary. Document only in the area where the change occurred. It will not be necessary to complete the entire TFSA in order to update changes.

7. CARES Case Plans - Development

When developing the CARES Mutual Responsibility Agreement, it is the intent of the CARES program to evaluate the role of the disabled adult not only in a work setting, but also, the ability to

function within the family unit. With this in mind, a comprehensive plan of action should be developed with the client to encompass the needs of the household. The case situation may warrant the Case Manager not only to assist the client or other family members in attending appointments, but also to accompany them.

NOTE: *The TANF case of CARES recipients cannot be closed if they fail to cooperate in developing case plans.*

NOTE: *The CARES Mutual Responsibility Agreement should be completed within (30) thirty days of case approval.*

8. CARES Reassessment

Assessment is an on-going process and the CM should determine when additional testing is needed. Vocational tests, inventories or surveys may be used when needed to determine the client's skills, ability and the need for additional services. The CM may also acquire additional information from observation and data provided by the participant.

The CM should have a monthly contact with each participant in the CARES Program. These contacts may be made in person or by phone. This responsibility should rest with the CM and should not be transferred as a responsibility to the client.

Documentation of all activities is an essential element of this program. The DSS Form 1230D or case notes in SCOSA can be used to document all activities by the Case Manager.

9. CARES Case Management

A major advantage of the CARES Program is the ability of the CM to assist the client by allowing participation in work activities without the constraints of TANF work program requirements and/or time limited benefits.

The CARES Case Manager should reference local county resource books that should be maintained and updated as part of the TANF and SNAP. This should be useful in identifying available services and opportunities in the county for disabled individuals. The CM must determine whether the disabled individual is capable of participating in TANF work activities and the level of participation. This should be based on information obtained from qualified medical professionals and the Self-Evaluation Activities of Daily Living, DSS Form 1247B.

10. CARES Non-Discrimination

Depending on the abilities of the CARES participant, the Case Manager may provide the recipient with the same work activity opportunities as those clients participating in the TANF Work Program, even though special accommodations may have to be made.

Accommodations may include, but are not limited to: part-time or flexible hours for activities; providing the individual with activities in a specific environment that enables the individual to participate; providing particular types of jobs or work activities that are consistent with the person's limitations; scheduling activities so they do not conflict with ongoing medical or mental health treatment; additional notice of program appointments; additional explanation of program rules; additional time to complete requirements and additional intervention to enable the individual to comply with CARES activities.

See the Job Accommodation Network site for an extensive list of accommodations by disability
<http://www.jan.wvu.edu/media/atoz.htm>

NOTE: *Any support services payments offered to participants in the TANF Work Program must also be offered to CARES participants when needed to participate in any activity.*

11. CARES Tracks

The determination of a participant's disability must be made and documented through a physician statement or other acceptable means of verification from a licensed health care professional. The statement must clearly lead to the conclusion that the participant will be unable to fully participate in the TANF Work activities for a period of 90 days or more. This documentation is the driving force for the CARES program and will determine the path of services the Case Manager offers the participant.

There are two tracks of participation in the CARES Program. Each track will be clearly defined based on the medical information provided by the participant's doctor or licensed health care professional.

These tracks will help determine the services offered by the Case Manager. The Case Manager will be responsible for updating the PATS system with the CARES track code once the appropriate track is determined.

The following codes will be used to identify CARES Tracks:

TRACK 1 - T1 – Disabled for 90 days or more but able to participate in some activities.

TRACK 2 - T2 – Disabled for 90 days or more, unable to participate, must apply for SSI or RSDI benefits when appropriate.

A. CARES Track 1 Characteristics

The following characteristics will identify those participants who will be placed in track 1 case management activities:

- a. Track 1 participants experience a disability severe enough to prevent full-time participation in the TANF Work Program, but not to the extent that all work and training activities are prevented.
- b. Track 1 participants may show an indication of a learning disability on the, TANF Family Success Assessment (TFSA), and diagnosed as Learning Disabled (LD) by a licensed psychologist **and** the learning disability prevents full-time TANF participation for a period of 90 days or more.
- c. Track 1 recipients may participate in any TANF Work Program activities for which they qualify even though special accommodations may be needed. Again, the participant's disability must prevent **full participation** in these TANF Work Activities for 90 days or more.

NOTE: *If the disability of a Track 1 participant were to become more severe and an updated determination by a licensed health care professional verifies that the disability is permanent and total, the participant should be moved to Track 2.*

B. CARES Track 2 Characteristics

The CARES CM should be aware of the following characteristics for Track 2 participants:

1. A Track 2 recipient is one who experiences a permanent and total disability severe enough to prevent full/part-time employment or participation in training activities and is expected to last more than 90 days. Our primary goal in working with Track 2 recipients would be to assist them in applying for and ultimately receiving disability benefits under the SSI or RSDI programs.

NOTE: *CARES Case Managers must work with these recipients to assist them in the SSI or RSDI (social security disability) application process.*

2. The CARES CM will monitor referral and participation through the application process and offer assistance and encouragement as necessary. It will be the CM's responsibility to ensure that the application is filed and to assist the client in the SSI/SSA interview process. Additionally, the CM will follow up with the client **at least monthly** to determine if a decision has been rendered in regards to the application.

Once a decision is rendered, if it is adverse to the client, the CM must assist the client in following the steps necessary to file an appeal. It will be the CM's responsibility to ensure deadlines are met in getting the appeal initiated. Additionally, follow ups will be done at least monthly with the client to determine if a decision has been reached.

NOTE: *The Case Manager is responsible for setting up the initial appointment and making sure transportation is available. The case manager will assist the client through this process from beginning to end.*

NOTE: *Any and all Support Services provided to TANF Work Program participants must also be made available to Track 2 recipients when needed to assist in activities.*

12. SSA Criteria for Permanent Disability

When making the disability determination for Track 2 participants, or to determine total and permanent disability, the CM should use the criteria for permanent disability established by the Social Security Act.

Documentation in the case file should also include that the disability prevents full participation in the work program for a durational period of 90 days or more. Those criteria are:

- A. Permanent loss of use of two limbs or amputation of:

1. Leg at hip
 2. Leg or foot due to diabetes or poor circulation
 3. Limb of an individual aged 55 or older.
- B. Spinal cord or nerve root lesions resulting in paraplegia or quadriplegia
- C. Multiple Sclerosis
- D. Muscular Dystrophy
- E. Impaired renal function due to chronic renal disease
- F. Chronic liver disease resulting in massive hemorrhage or requiring a shunt operation
- G. Total deafness, not correctable
- H. Statutory blindness, except if due to cataracts or detached retina
- I. Markedly reduced vision not correctable by surgery or glasses
- J. IQ of 59 or less, established after attaining age 16
- K. Psychiatric impairments which have required institutionalization in a licensed mental hospital for the past two years without release that would indicate improvement
- L. Age 59 and over with any condition (physical) and/or mental) listed below:
1. Amyotrophic lateral sclerosis
 2. Anterior poliomyelitis
 3. Arteriosclerosis obliterans or thromboangitis
 4. Arthritis of major weight-bearing joint
 5. Arthritis of one major joint in each of the upper extremities
 6. Central nervous system vascular accident
 7. Cerebral palsy
 8. Chronic obstruction airway disease
 9. Chronic venous insufficiency
 10. Degenerative disease
 11. Diabetes mellitus

12. Diffuse pulmonary fibrosis
13. Disorders of the spine
14. Organic loss of speech
15. Other restrictive ventilatory disorders
16. Parkinson Syndrome
17. Scleroderma or progressive systemic sclerosis
18. Subacute combined cord degeneration
19. Syringomyelia
20. Tabes dorsalis

13. Application for Social Security Disability/SSI

The following information regarding the application process for SSI is provided for informational purposes to assist the Case Manager:

A. Sequence of Events:

1. Call the Social Security Administration (SSA) Monday thru Friday, toll-free at 1-800-772-1213, 7:00 AM - 7:00 PM.
2. Automated System (Dial "0" when it picks up and wait - a real person will come onto the line).
3. Ask to schedule an appointment with a local field office.
NOTE: *If going to a field office, the client should bring appropriate medical verification.*
4. At this point, SSA sends a Disability Report to be completed by the client.
5. After the appointment, the disability case is transferred to the Disability Determination Services (DDS) office for determination and they will advise of status.

B. Initial Evaluation by SSA:

1. Is the claimant working (engaging in substantial gainful activity)?
2. Does the claimant have a severe impairment?
3. Does the claimant's impairment meet or equal the Listing of Impairments? Can the claimant do his or her past relevant work?
4. Can the claimant do other work that exists in significant numbers in the national economy, taking into account age, education, work experience, and residual functional capacity?

C. What is needed for application?

It will be the responsibility of the CARES Case Manager to assist the client in obtaining information necessary to complete the application process.

1. Social Security Number and Birth Certificate
2. Names, addresses, and phone numbers of hospitals, doctors, clinics and institutions that treated the client, and dates of treatment
3. Names of medications client is taking
4. A summary of where the client worked and type of work performed
5. A copy of most recent tax return or W-2 form

14. CARES Activities

The State CARES Program has a greater flexibility than the TANF work program. Because of this flexibility, activities that would not be countable as a TANF component due to the restrictive nature of legislation may be appropriate for CARES participants. Hours of participation in any activity may be appropriate for CARES participants and must be keyed in PATS. When an individual is determined to be disabled by a DSS Form 1247, Medical Release/Physician's Statement, the individual should be referred to Vocational Rehabilitation (VR), unless the physician clearly documents on the statement that the disability causes current and future employment potential to be nonexistent and referral to VR to be futile. Most of Track 1 participants should be referred to VR.

A. Types of services available at SC Vocational Rehabilitation**1. Restoration Services**

SCVRD may provide medical or other services to help clients meet physical or mental disability needs that require attention before employment goals can be reached. These services are based on individual need.

2. Job Readiness Classes

Job readiness classes help clients prepare for employment which include:
Classes that address how specific disabilities affect work ability.

Pre-employment classes on how to fill out job applications, develop interview skills and develop an understanding of an employer's expectations.

Employment classes for "job ready" clients include job-seeking groups, advanced interview skills and other topics.

3. Job Readiness Training

Job-readiness training helps develop positive work behaviors and the physical stamina needed for successful adjustment to a new job. This training involves working on outsource contracts at an SCVRD work training center. Individuals are

paid for work performed. Services vary at each SCVRD work training center. Local staff must contact the SCVRD training center to determine the type of service provided.

4. VR On-the-Job Training

On-the-job training can be provided by a prospective employer. A “job ready” client works for an hourly rate of at least minimum wage while learning the skills of the job. If the training is successful, the client is expected to be employed in the same or a comparable position.

5. Post-Secondary Training

Assistance with post-secondary training leading to an associate or baccalaureate degree may be provided if it is in an area of study leading to an appropriate career field.

Below is a listing of various examples of work and training activities that may be appropriate for use in the CARES Program. In addition to the list below, any activity allowable in the TANF Work Program would also be allowable under CARES. This is not an all-inclusive list; counties may know of other activities that may also be appropriate for CARES participants:

- A. Community Service Placements
- B. Vocational Rehabilitation Sheltered Workshop
- C. Any program or seminar that provides directly or facilitates the provision of vocational rehabilitation to individuals with disabilities and that enables an individual with a disability to maximize opportunities for employment
- D. Volunteer Activities such as Habitat for Humanity, Palmetto Pride, Red Cross and AARP volunteer programs
- E. DAODAS evaluation, detoxification, assessment and treatment program
- F. Mental health-activities, as prescribed by other appropriate health care professionals
- G. Counseling or physical rehabilitation activities
- H. Court ordered activities
- I. Activities related to obtaining shelter or retaining safety in a domestic abuse situation and other activities needed to stabilize the family
- J. Short-term workshops, community seminars and sessions at faith-based organizations

- K. School activities that will provide educational support for children if the parent is required or asked to attend (i.e. PTO meetings, school conferences, seminars, etc.)
- L. Other activities that the agency determines are consistent with the capabilities of the participant
- M. Participation in drug or alcohol "12 step" programs
- N. Educational Activities

NOTE: For all dependent children in the household, the Responsibility Plan should include satisfactory attendance and progress. The CM will be responsible for verifying this at each school reporting period and documenting the case file. If problems are noted in these areas, appropriate referrals for tutoring, conferences, etc. should be arranged.

- O. EPP Classes
- P. Other services that may be offered in an individual or group setting such as:
 1. Personal Improvement: goal setting, problem-solving, character development, coping skills, relationship-building, communication skills
 2. Family Life: child development, parenting, family management
 3. Practical Life Skills: money and time management, healthy home, nutrition

15. CARES Activities - PATS Coding

The DSS CARES program does not have a specific participation requirement; however, Case Managers must schedule and record all appropriate activities for CARES in the PATS system. The CARES program allows flexibility and leniency for adults dealing with disability issues, therefore participation in any activity should be entered in PATS.

When coding the appropriate CARES activities in PATS, use the code that most closely reflects the activity of the participant. If the activity does not meet one of the codes listed in PATS, the CM should code the activity "WANC" and document the case accordingly. The PATS (WANC) code for "other work activities" or "non-countable" hours are acceptable for CARES activity.

Any activity that the Case Manager believes may assist the client and/or his or her family may be counted in CARES.

EXAMPLE: The hours spent completing the application process for RSDI or SSI could be considered "other work activities" in CARES.

16. CARES Policy on Sanctions

In the CARES Program, the DSS Form 1257, TANF Family Success Assessment (TFSA), is completed for all families. The DSS Form 1022, Individual Employment Plan (IEP), may be required for some individuals. Punitive action should not be taken against the recipient if they

refuse to cooperate in completion of the Family Plan. The record should be documented accordingly, and efforts should continue by the Case Manager to work with this client.

Because the CM is working with a specialized caseload in the CARES Program, these recipients tend to have larger obstacles to overcome in order to fully cooperate with work and training expectations. CARES does not allow sanctions; however, the CM should coach and counsel the client in resolving issues that may be interfering with cooperation.

17. CARES Conversion

Conversion from the CARES Program may occur at the following times:

- A. When the family continues to meet eligibility requirements, but fails to meet the disability policy stated in this chapter, then transfer the case to the TANF Program.
- B. If a second parent is added to the BG and the family continues to meet eligibility requirements, then transfer the case to the Two-Parent Program.

NOTE: A full staffing of the case should be done reviewing eligibility criteria including months remaining on the program. The client would also have to cooperate in developing an updated Employment Plan for work activities. The staffing should also include any possibility for extensions. (Refer to TANF Manual, Chapter 18).

23.3 State Two-Parent Program

In order to be included in the Two-Parent program there must be two or more parents in the TANF family. Legally married same-sex spouses receiving TANF benefits will be included in the Two-Parent program. The goal of the Two-Parent program is to assist the family in obtaining employment that will lead to self-sufficiency. In order to obtain full time employment, participants should be placed in activities that will lead to employment. Some participants may be ready to participate in activities designed for job placement while others need additional services and/or training before becoming job ready.

Case management of Two-Parent cases begins with an evaluation and assessment of the adults in the family. The evaluation will be an overall picture of the strengths and growth areas within a family unit. Based on educational needs and assessment results, goals will be developed for each household member with specific outcomes relating to protection, health, safety, enrichment, etc. It will contain an IEP for each WEI.

The assessment will include a summary of observations and information gathered by the CM concerning each household member.

The information gathered during the assessment is documented. This portion will be completed in the office.

1. Two-Parent Program Requirements

Participants in the Two-Parent program must meet one of the following criteria:

- A. When both parents are required to participate (both are coded “MA” on EMPR), each parent will be required to participate 30 hours per week. A minimum of 20 hours per

week must come from participation in CORE activities. A listing of Core and Non-Core activities can be found in Chapter 16. Scheduled hours must be listed on the Employment Plan.

EXCEPTION: *If both adults are teen parent/adults, each must participate in education or training activities as required by the school or be satisfactorily attending secondary school or its equivalent.*

- B. When one parent is coded “MS” and the other parent is coded “IN”, “RH”, or “DC” on EMPR, a minimum of 30 hours per week is required for the mandatory parent. A minimum of 20 hours per week must come from participation in CORE activities. The parent coded “IN” should participate in appropriate CARES activities based on a CARES Track for the disabled parent.

NOTE: *Any individual coded “IN” on EMPR is subject to participation in CARES activities.*

- C. If one mandatory parent fails to participate in an activity for the hours on the Employment Plan, he/she is subject to sanction and the other parent must then meet a minimum 40 hour requirement for the Two Parent family. A minimum of 30 hours per week must come from participation in CORE activities.

2. Two-Parent Evaluation

The screening process is a vital part of the family evaluation. The Case Manager should begin an evaluation of the family upon receipt of the referral from the ES Worker.

The assessment is used to identify potential barriers that may affect the clients’ ability to participate in activities. The results captured during the assessment will be used to refer individuals for additional assessments when indicated. In addition to the DSS Form 1257, the Two-Parent Evaluation should include the following screenings:

A. Domestic/Family Violence Assessment

The DSS Form 3733, TANF Domestic Violence Information Notice, will be completed by the ES Worker at application. However, the CM must discuss domestic/family violence issues with the participant when developing the Family Plan. When a recipient requests that certain program requirements be waived because compliance would put the recipient at risk of domestic/family violence, the recipient will be referred to the local Domestic Violence Advocate (DVA) for an assessment which includes completing a safety plan.

NOTE: *The safety plan will be maintained by the DVA.*

The assessment will evaluate the domestic/family violence situation and determine the extent of counseling and support services needed to safeguard the recipient.

The DVA will make a recommendation to the CM regarding consideration of a good cause domestic violence waiver of a program requirement(s). DSS Form 3734, TANF

Domestic Violence Waiver Assessment, must be completed by the CM.

- B. Optional screenings should be completed by the TANF Case Manager when the client displays problems with hearing or vision.
 1. Basic Hearing - DSS Form 1321, TANF Hearing Questionnaire
 2. Basic Vision - The individual's ability to read the DSS Form 3800 Application and other DSS forms without difficulty

A Basic Learning Disability (LD) screening, DSS Form 1320, is done for TANF applicants by the ES Worker.

NOTE: Do not tell a client they have a learning disability and do not refer to a client as having a learning disability. Only a qualified psychologist can diagnose a learning disability.

3. Two-Parent Family Assessment

The family assessment will focus on other conditions of the family that impact the individual's ability to participate in program activities and or seek other needed services. During the family assessment, areas to consider include, but are not limited to the following:

- Demographics
- Employment (e.g. skills, history, legal barriers, career interests, language)
- Education (e.g. highest grade level, learning disabilities, other diploma)
- Housing and transportation
- General health
- Mental health
- Substance abuse
- Domestic violence – safety
- Child Care and child well-being

4. Two-Parent Family Plans

The Family Plan will be completed for the family. It will be an overall picture of the strengths and growth areas within a family unit.

The evaluation will include a summary of observations and information gathered by the CM concerning each household member. This portion of the Family Plan will be completed in the office.

The Family Plan includes:

1. DSS Form 1257, TANF Family Success Assessment (TFSA); and
2. DSS Form 1022, Individual Employment Plan (IEP)

Based on assessments and evaluations, goals will be developed for each household member with specific outcomes.

5. Two-Parent Case Plans

After completing the assessment, the DSS Form 1257, the DSS Form 1230 Family Plan, and the DSS Form 1022 will be developed for each parent as appropriate.

The Family Plan should be completed within (30) thirty days of case approval.

It is the intent of the Two-Parent program to evaluate the role of each adult not only in a work setting, but also, the ability to perform in various activities that will benefit the family unit.

The Employment Plan for each mandatory parent must be comprehensive with established activities, scheduled hours and goals that lead towards self-sufficiency.

6. Two-Parent Reassessment

Assessment is an on-going process and the CM should determine when additional testing is needed. Vocational tests, inventories or surveys may be used when needed to determine the client's skills, ability and the need for additional services. The CM may also acquire additional information from observation and data provided by the participant.

The CM must have monthly contacts with each adult participant in the family. These contacts may be made in person or by phone. This responsibility should rest with the CM and should not be transferred as a responsibility to the client.

The CM is responsible for verifying and recording client participation in activities, and their progress on an ongoing basis, while providing encouragement to those demonstrating good progress and counseling to those showing deficiencies.

The Family Plan is a working document that must be updated as changes occur. It may be necessary to adjust time frames, work activities, support services, vocational goals, etc., as necessary. Document only in the area where the change occurred. It will not be necessary to complete the entire TFSA in order to update changes.

7. Two-Parent Case Management

At the time the Employment Plan is developed, activities are identified and discussed with the participant that will lead to full-time employment.

The activities and/or services are designed to meet the individual needs with time frames for completion. The CM will monitor the participant's attendance and progress in the assigned component, and ensure that the time frame established is reasonable.

Documentation of all activities is an essential element of case management for Two-Parent families. All actions performed to assist the family and client progress will be documented in SCOSA Case Notes.

8. Two-Parent Non-Discrimination

Depending on the abilities of the participant, the Case Manager will provide the recipient with the same work activity opportunities as those clients participating in the TANF Work Program.

Accommodations may include, but are not limited to: part-time or flexible hours for activities; providing the individual with activities in a specific environment that enables the individual to participate; providing particular types of jobs or work activities that are consistent with the person's limitations. Activities should be scheduled so they do not conflict with each other. Any support services payments offered to participants in the TANF Work Program must also be offered to participants that meet the criteria for inclusion in the Two-Parent program.

9. Two-Parent Program Activities

The following is a list of work and training activities that are available for participants in the Two-Parent program. Participation in one or more of these activities will more likely lead to full-time employment and self-sufficiency:

CORE	NON-CORE
Employment	Education Directly Related To Employment
Work Experience	Job Skills
On-The-Job-Training	Satisfactory School Attendance
Job Readiness	
Community Services	
Vocational Education	
Education Directly Related To Employment (Teen Parent/Adults)	
Satisfactory School Attendance (Teen Parent/Adults)	

Two-Parent program participants must be involved in CORE components/activities a minimum of twenty (20) hours per week and maintain a thirty (30) hour per week participation rate overall. They may increase hours and improve chances of employment by participating in any work and training activities needed to overcome obstacles to employment. No more than ten (10) hours per week will be countable toward an individual's participation requirement from this listing:

- A. Vocational Rehabilitation Sheltered Workshop
- B. Any program or seminar that provides directly or facilitates the provision of vocational rehabilitation to individuals with disabilities and that enables an individual with a disability to maximize opportunities for employment
- C. Volunteer with Non-profit organizations and community organizations such as Habitat for Humanity, Palmetto Pride, Red Cross and AARP volunteer programs
- D. DAODAS evaluation, detoxification, assessment and treatment program
- E. Mental health-activities, as prescribed by other appropriate health care professionals
- F. Counseling or physical rehabilitation activities

- G. Court ordered activities
- H. Activities related to obtaining shelter or retaining safety in a domestic abuse situation and other activities needed to stabilize the family
- I. Short-term workshops, community seminars and sessions at faith-based organizations
- J. Participation in drug or alcohol “12 step” programs

10. Two-Parent Case Sanctions

Full family or individual sanctions are applied to the Two-Parent case when a mandatory parent or teen parent/adult fails without good cause to comply with the Two-Parent participation requirements. Conciliation must take place before a sanction is imposed. The sanction is imposed on the adult member that fails to comply with one of the following:

- A. Sign or cooperate in the development of the Family Plan.

NOTE: TANF case closure will not occur if an individual refuses to sign or cooperate in the development of the family plan while participating in the Two-Parent Program. The individual will be subject to conciliation and sanction.

The TANF case will close “IS”, if both parents fail/refuse, after the initial approval, to sign or cooperate with the development of the Family Plan.

- B. Comply with the employment and training requirement contained in the Employment Plan
- C. Accept an offer of bona fide employment
- D. Cooperate with Two-Parent Program Requirements

The CM must exercise judgment and must make every effort to assist participants in overcoming barriers to successful participation in the program prior to imposing a sanction. All issues that may affect participation must be discussed and resolved during conciliation.

1. Full Family Sanctions

When both parents in a Two-Parent case fail/refuse to comply with the terms of Two-Parent work requirements and no agreement is reached during the conciliation, the family must be sent a Notice of Adverse Action (timely notice) informing them of the sanction to be imposed and of the termination of cash benefits. The sanction is curable when both individuals demonstrate compliance for 30 days.

If one parent meets compliance and the other parent fails to cure, the case should be approved, but the sanctioned individual is not included.

NOTE: Sanctioned individuals continue to be considered BG members for all purposes other than money payment.

2. Individual Sanctions

When one parent in a Two-Parent case fails/refuses to comply with the terms of Two-Parent work requirements and no agreement is reached during the conciliation, the participant must be sent a Notice of Adverse Action (timely notice) informing him/her of the sanction to be imposed and of the reduction in cash benefits. The sanction is curable when the individual demonstrates compliance for 30 days.

NOTE: If one parent is sanctioned for failing to participate in an activity, case staffing must occur and the other parent must be informed that he/she is required to meet a minimum of 40 hours for the Two-Parent family. The non-sanctioned parent must participate in CORE activities a minimum of thirty (30) hours per week. Employment Plan would also need to be updated to reflect the increased hours.

11. Individual TANF Sanction/ SNAP Benefits

The ES Worker must determine the amount by which the TANF benefit has been reduced due to removal of the individual. The benefit amount prior to sanction minus new benefit amount = "RB" income. Enter the "RB" code and amount on CHIP screen UNIN and reauthorize SNAP case.

NOTE: When changes occur after an individual sanction has been imposed and "RB" income has been budgeted, the ES Worker must determine what the TANF benefit amount would be based on the reported change without the sanction to determine the benefit amount prior to sanction.

12. Two-Parent PATS Coding

Case Managers must schedule and record all appropriate activities for cases included in this program in the PATS system to meet the State Two-Parent participation requirement.

Case Managers should use the same coding in PATS that is used for TANF cases. If component hours cannot be identified by a PATS code, use the "WANC" code to enter the hours.

Case records should be clearly documented to validate the hours keyed in PATS and verification from the participation source should be filed in the case record to substantiate the actual hours of participation. Any activity that may assist the client and his or her family may be counted as allowable activity hours under the Two-Parent program.

13. Two-Parent Program Conversion

If one parent leaves the home, the determination must be made to transfer the case to either the CARES Program or TANF Program.

This determination is made based on the following family circumstances:

If the parent is disabled; transfer the case to CARES.

If the parent is not disabled; transfer the case to the TANF program. The family is then subject to Federal TANF participation requirements and time limits. The Family Plan must be updated with the individual to include new participation requirement.

Reference Guides

CHIP Combination Codes for Work Eligible Individuals

CHIP Combination Codes for Work Eligible Individuals										
		EMPR								
SEPA	FIAF	MA	DC	FV	IN	MC	MS	MT	PC	PW
IN	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI CS	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI DC	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI DS	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
DI FF	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI RE	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI SS	CR	X	X	X	X	X	X	X	X	
	TA	X	X	X	X	X	X	X	X	X
	PA	X	X	X	X	X	X	X	X	X
DI WP	CR						X			

	TA		X	
	PA		X	

Characteristics of Adults with Learning Disabilities

NOTE: *These are general characteristics that might be seen in people who have learning disabilities. No person will exhibit all of these characteristics. These characteristics may also be seen, to some degree, in people who do not have learning disabilities. Some characteristics are more prevalent than others.*

Reading Characteristics	What It Looks Like in an Adult
Does not read for pleasure.	Engages in leisure activities other than reading magazines or books; prefers more active pursuits. Doesn't read stories to his/her children.
Does not use reading to gather information.	Cannot easily use materials like newspapers and classified ads to obtain information.
Has problems identifying individual sounds in spoken words.	Does not attempt to sound out words in reading or does so incorrectly.
Often needs many repetitions to learn to recognize a new or unused word.	May encounter a newly learned word in a text and not recognize it when it appears later in that text.
Oral reading contains many errors, repetitions and pauses.	Reads slowly and laboriously, if attempts at all. May refuse to read orally.
Efforts in reading are so focused on word recognition that it detracts from reading comprehension.	Loses the meaning of text, but understands the same material when it is read aloud.
Has problems with comprehension that go beyond word recognition. May have limited language skills that affect comprehension.	Does not understand the text when it is read to him/her.
Has limited use of reading strategies. Is an inactive reader; not previewing text, monitoring comprehension, or summarizing what is read.	When prompted to do so, does not describe strategies used to assist with decoding and comprehension of text.
Rarely practices reading, which may compound reading difficulties. Lacks complex language and word knowledge.	Recognizes and uses few words, expressions, and sentence structures than peers.

Writing Characteristics	What It Looks Like in an Adult
Has difficulty communicating through writing.	Rarely writes letters or notes. Needs help completing forms such as job applications.
Written output is severely limited.	Struggles to produce a written product.

	• Produces short sentences and text with limited vocabulary.
Lacks a clear purpose for writing.	• Does not communicate a clear message. • Expresses thoughts that don't contribute to the main idea.
Does not use the appropriate text structures.	• Uses sentences that contain errors in syntax or word choice. • Fails to clearly indicate the referent of a pronoun.
Shows persistent problems in spelling.	• Spells phonetically. Leaves out letters. • Refrains from writing words that are difficult to spell.
Has difficulties with mechanics of written expression.	• Omits or misuses sentence markers such as capitals and end punctuation, making it difficult for the reader to understand the text.
Handwriting is sloppy and difficult to read.	• Has awkward writing grip or position. • Letters, words, and lines are misaligned or not spaced appropriately.
Demonstrates difficulties in revising.	• Is reluctant to proofread or does not catch errors. • Focuses primarily on the mechanics of writing, not on style and content.

Listening Characteristics	What It Looks Like in an Adult
Has problems perceiving slight distinctions in words.	• Misunderstands a message with a word mistaken for a similar word. • Might say, "Pick of the grass," instead of, "Pick up the glass."
Has a limited vocabulary.	• Recognizes and uses fewer words than peers when engaged in conversation or when gathering information by listening.
Finds abstract words or concepts difficult to understand.	• Requests repetitions or more concrete explanations of ideas. • Frequently asks for examples.
Has difficulty with non-literal or figurative language such as metaphors, idioms, and sarcasm.	• Does not understand jokes or comic strips.

Has difficulty with verbal memory.	Doesn't remember directions, phone numbers, jokes, stories, etc.
Has difficulty processing large amounts of spoken language.	Gets lost listening in classroom or large group presentations, complaining that people talk too fast.

Speaking Characteristics	What It Looks Like in an Adult
Mispronounces words.	Adds, substitutes, or rearranges sounds in words, as in <i>phenomenon</i> for <i>phenomenon</i> or <i>Pacific</i> for <i>specific</i>.
Uses wrong word, usually with similar sounds.	Uses a similar-sounding word, like <i>generic</i> instead of <i>genetic</i>
Confuses the morphology, or structure, of words.	Uses the wrong form of a word, such as calling the <i>Declaration of Independence</i> the <i>Declaring of Independence</i>.
Has a limited vocabulary.	- Uses the same words over and over in giving information and explaining ideas. - Has difficulty in conveying ideas.
Makes grammatical errors.	Omits or uses grammatical markers incorrectly, such as tense, number, possession, and negation.
Speaks with a limited repertoire of phrase and sentence structure.	- Uses mostly simple sentence construction. - Overuses <i>and</i> to connect thoughts.
Has difficulty organizing what to say.	Has problems giving directions or explaining a recipe; talks around the topic (circumlocutes), but doesn't get to the point.
Has trouble maintaining a topic.	- Interjects irrelevant information into story. - Starts out discussing one thing and then goes off in another direction without making the connection
Has difficulty with word retrieval.	Can't call forth a known word when it is needed and may use fillers, such as "ummm," and "You know."

	• May substitute a word related in meaning or sound, as in <i>boat</i> for <i>submarine</i> or <i>selfish</i> for <i>bashful</i>.
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Mathematics Characteristics	What It Looks Like in an Adult
Doesn't remember and/or retrieve math facts.	• Uses a calculator or counts on fingers for answers to simple problems; e.g., 2 x 5.
Doesn't use visual imagery effectively.	• Can't do math in his/her head and writes down even simple problems. • Has difficulty making change.
Has visual-spatial deficits.	• Confuses math symbols. • Misreads numbers. • Doesn't interpret graphs or tables accurately. • Has trouble maintaining a checkbook.
Becomes confused with math operations, especially multi-step processes.	• Leaves out steps in math problem solving and does them in the wrong order. • Can't do long division except with a calculator. • Has trouble budgeting.
Has difficulties in language processing that affect the ability to do math problem solving.	• Doesn't translate real-life problems into the appropriate mathematical processes. • Avoids employment situations that involve this set of skills.

Thinking Characteristics	What It Looks Like in an Adult
Has problems with abstract reasoning.	• Asks to see ideas on paper. • Prefers hands-on ways of learning new ideas.
Shows marked rigidity in thinking.	• Resists new ideas or ways of doing things and may have difficulty adjusting to changes on the job.
Thinking is random as opposed to orderly, either in logic or chronology.	• May have good ideas that seem disjointed, unrelated, or out of sequence.
Has difficulty synthesizing ideas.	• Pays too much attention to detail and misses the big picture or idea when

	encountering specific situations at home or at work.
Makes impulsive decisions and judgments.	• “Shoots from the hip” when arriving at conclusions or decisions. Doesn’t use a structured approach to weigh options.
Has difficulty generating strategies to acquire/use information and solve problems.	• Approaches situations without a game plan, acting without a guiding set of principles.

“Other Difficulties” Characteristics	What It Looks Like in an Adult
Has problems with attention, which may be accompanied by hyperactivity, distractibility, or passivity.	• Doesn’t focus on a task for an appropriate length of time. • Can’t seem to get things done. • Does better with short tasks.
Displays poor organization skills. Doesn’t know where to begin tasks or how to proceed.	• Doesn’t work within time limits, failing to meet deadlines. • Workspace and personal space are messy.
Has eye-hand coordination problems.	• Omits or substitutes elements when copying information from one place to another, as in invoices or schedules.
Demonstrates poor fine motor control, usually accompanied by poor handwriting.	• Avoids jobs requiring manipulation of small items. • Becomes frustrated when putting together toys for children.
Lacks social perception.	• Stands too close to people when conversing. • Doesn’t perceive situations accurately. • May laugh when something serious is happening or slap an unreceptive boss on the back in an attempt to be friendly.
Has problems establishing social relationships. Problems may be related to spoken language disorders.	• Does not seem to know how to act and what to say to people in specific social situations and may withdraw from socializing.
Lacks “executive functions” including self-motivation, self-reliance, self-advocacy, and goal setting.	• Demonstrates over reliance on others for assistance or fails to ask for help when appropriate. • Blames external factors on lack of success. • Doesn’t set personal goals and work

	deliberately to achieve them. • Expresses helplessness.
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Glossary

Abandoned	This occurs when the parents or caretaker relative of a dependent child(ren) are:
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	1. No longer caring for the child(ren) because of Child Welfare Services involvement and the child has been placed with a caretaker relative (Kinship Care) 2. No longer residing with or caring for the child(ren) and have not made adequate arrangements for financial support of the child(ren) 3. Institutionalized 4. Incarcerated 5. Deceased
Absent Parent	The individual(s) named by the applicant as the parent(s) of the TANF dependent child and who does not live in the same home.
Accrual Rights	Applicant/Recipient's right to benefits based on the date of application or change in situation.
Adequate Notice	A written notice that includes a statement of what action the Agency intends to take, the reasons for the intended departmental action, explanation of the individual's right to request a fair hearing, the circumstances under which assistance is continued if a hearing is requested, and if the agency action is upheld, that such assistance must be repaid.
Adoption Subsidy	Federal or State funds provided to assist an adoptive family in meeting some of the financial needs of the adopted child who has been identified as a special need.
Adoptive Parent	An individual who becomes a parent to a child through the process of adoption. The individual legally takes on all the responsibilities and rights of being a parent to a child who is not biologically related to the individual.
Adult	Individual who is age 18 or older; or an individual who is not a minor child.
Adverse Action	Any action to reduce or terminate a Benefit Group's TANF benefits within the certification period.
All Family Participation Rate	The minimum required participation in the TANF Work Program for Benefit Groups (BGs) containing a Work Eligible Individual (WEI) is an average of 30 hours per week.
Alleged Father	An individual who has been named as the father of a child born out of wedlock, but for whom paternity has not been legally determined.

Appeal	Any clear expression, oral or written, on the part of the Applicant/Recipient (A/R), or an individual with authority to act in the A/R's behalf, to the effect that he/she wishes to go beyond the usual procedure for addressing complaints, and wants an opportunity to present his/her case to DSS.
Applicant	A person who has, directly, or through his authorized representative, made application for TANF benefits and whose application has not been terminated or disposed of by the Agency.
Applicant Child Care (ACC)	Child Care Assistance provided for applicants to conduct the initial job search, obtain employment, or maintain employment. Payments for applicant child care cannot exceed the 30-day application period.
Application Form	A form which is completed by a benefit group member or authorized representative to apply for TANF benefits.
Appropriate Child Care	Appropriate child care must be determined by parental choice, to ensure that the developmental nurturing needs of a child(ren) are met. Child Care facilities must comply with the SC Code of Laws addressing regulatory requirements and procedures. Informal arrangements are not subject to child care statutory and regulatory requirements; however, parents are required to complete a Self-Arranged Child Care Certification form ensuring that certain health and safety requirements are being met.
Approval	Case action taken to authorize TANF benefits when all eligibility criteria are met.
Assessment	A formal appraisal or evaluation which is completed using a specific tool to obtain needed information.
Authorized Representative (AR)	A person who is authorized to act on behalf of a benefit group, with their knowledge and consent, and who has knowledge of the benefit group's circumstances.
Benefit Group (BG) Composition	The group of individuals whose income, resources, and/or needs impact the eligibility and the amount of TANF cash benefits. BG members include sanctioned and disqualified individuals as well as Family Cap children.
Benefit Month	The month in which TANF benefits are issued.
Biological Father	The natural male parent of a child. This individual is also known as the natural father.

Boarder	An individual residing in a household and paying a reasonable payment to a BG for meals or lodging and meals.
Bona fide	An action which is made in good faith, or a sincere effort.
Caretaker Relative	An individual, other than a parent, who is related to, lives with and cares for a dependent child.
Case Record (or Case File)	The electronic folders in the South Carolina Office Scanning Application (SCOSA) in which all pertinent verification and documentation for TANF Cases are maintained.
Cash Value	The funds an individual can receive if a resource, such as life insurance, is liquidated prior to maturity.
Case Consolidation	The process of consolidating cases when an individual in a BG is required to be in two or more BGs.
Certificate of Completion	A certificate issued by the South Carolina Department of Education (SCDE) to students that complete the prescribed minimum 24 units.
Challenging Adults through Rehabilitation, Education and Services (CARES)	A State Program designed to serve TANF eligible individuals who face a health-related problem expected to last 90 days or more that prevents their ability to participate in the TANF work program.
Change	The modification of the BG's circumstances.
Child Care Scholarship Program	Method of payment administered through the SC Department of Social Services, by which child care providers are paid.
Child Support	Payments made (court-ordered or voluntarily) to the BG from the absent parent or noncustodial parent in order to support the minor child(ren) who are included in the BG.
Child Support Services Division (CSSD)	IV-D Agency which enforces the support obligation of absent parents.
Claim	An amount owed by a TANF recipient because of benefits that are overpaid.
Client	An applicant for or recipient of TANF benefits.
Client History and Information Profile (CHIP)	An eligibility information system used for TANF cash assistance determination.

Client Special Services Coordinator (CSSC)	A SCDSS employee who secures interpreter services and other services to assist limited English proficient (LEP) or special needs individuals.
Collateral Contact	An oral confirmation of a TANF BG's circumstances by a person outside of the BG.
Commercial Boarding Home	A licensed/unlicensed establishment offering meals and lodging.
Common-Law Marriage	An agreement between two people free to marry who represent themselves to the community as a married couple. Common-law marriage was abolished in South Carolina on July 24, 2019 and is not a valid relationship for TANF purposes.
Community Service Program (CSP)	A structured program and embedded activities in which TANF recipients perform work for the direct benefit of the community under the auspices of public or nonprofit organizations.
Conciliation	A process involving the Case Manager (CM) and participant prior to implementing TANF Work Program related sanctions.
Confidential Information	Information that the Agency must protect against unauthorized disclosure.
Core Work Activity	An activity in which a client must participate for a minimum of 20 hours weekly prior to any additional assignments so that the participant's total hours of participation can be counted in the federal participation rate calculation.
Custodial Parent (CP)	The parent with whom a dependent child lives and who provides maintenance, physical care and guidance to the child.
Date of Entry	The date a non-citizen enters the United States (U.S.)
Deed to Child	A document recording the transfer of custody of a child; it is not an adoption and does not establish relationship.
Delinquent Claim	A claim in which the responsible party has not agreed to repayment or has agreed to repayment but has not made restitution as agreed.

Denial	Case action taken to deny TANF benefits when all eligibility criteria are not met.
Deemed	Income and/or resources of non-BG members considered for BG members.
Deemed Parent	A major parent living in the home with an unmarried minor parent, when a portion of the income of the major parent is deemed to the minor parent.
Department of Alcohol and Other Drug Abuse Services (DAODAS)	South Carolina government agency charged with ensuring quality services to prevent or reduce the negative consequences of substance use and addictions through a statewide system of local substance abuse agencies that provide prevention, treatment, and recovery services.
Dependent Child	An unmarried child under age 18 or under age 19 if a full-time student in secondary school or equivalent vocational/technical training, included in a specified relative's BG.
Disability	A physical, developmental, cognitive or mental health condition or learning disability that limits the ability of the individual perform in work or training. "Life activities" include, but are not limited to: walking, talking, sitting, standing, lifting, seeing, hearing, speaking, learning, understanding, sleeping, eating, taking care of oneself, functioning independently, concentrating, and working.
Diploma	A document awarded by an educational institution testifying the recipient has graduated by successfully completing their courses of studies.
Disqualification	Ineligible to have needs included in the BG's benefit determination due to a penalty for failing to meet a requirement set forth in law. A disqualification is not curable.
Disqualified Individual	A BG member who has his/her needs removed due to a penalty for failing to meet a requirement set forth in law.
Distance Education or Distance Learning	Self-study classes where the instructor and the students are in separate physically locations. Instructor and students communicate at times of their own choosing by exchanging printed (correspondence) or electronic (internet) media.
Documentary Evidence	A written confirmation of a BG's circumstances.

Documentation	Written specification that provides official information to substantiate the case action taken.
Domestic/Family Violence	Battering or subjecting a victim to extreme cruelty by: (1) physical acts that resulted in, or threatened to result in physical injury to the individual; (2) sexual abuse; (3) sexual activity involving a dependent child; (4) threats of, or attempts at, physical or sexual abuse; or (5) mental abuse; neglect or deprivation of medical care.
Domestic Violence Advocate (DVA)	An agency or safe home whose primary services are directed toward providing counseling and support services to victims of domestic violence.
Early and Periodic Screening, Diagnostics and Treatment (EPSDT)	A program providing comprehensive and preventive health care services to Medicaid eligible recipients under 21 years of age. EPSDT is provided through the South Carolina Department of Health and Human Services (DHHS).
Earned Income	All money earned by a BG member(s) through receipt of wages, salary, tips or commissions as an employee.
Earned Income Credit (EIC)	A tax credit for workers with low to moderate income. Eligibility for the tax credit is based on various factors including family size, filing status and income.
Economic Services Worker	Any SCDSS personnel who has access to any Economic Services system, database or web platform used in the determination of eligibility for public assistance programs.
Education Directly Related to Employment	Education related to a specific occupation, job or job offer.
Eligible	The ability to receive TANF benefits due to the BG meeting the eligibility requirements.
Eligibility Determination	The disposition of a TANF application by a finding of eligible or ineligible.
Employment	An agreement between an employer and an employee that the employee will provide certain services. In return, the employee is paid a salary or hourly wage.
Employment Preparation Program (EPP)	Classes that include activities such as preparing a resume or job application, Job club, training in interviewing skills, instructions in work place expectations and training in effective job seeking, as well as life skills training.

English as a Second Language (ESL)	The use or study of the English language by non-native speakers in an English-speaking environment.
Enumeration	The procedure established by SSA to assign SSNs.
ePAY	A debit account where TANF benefits are electronically deposited monthly for eligible recipients
Equity Value	Fair market value of a resource minus any indebtedness.
Evidence	Material submitted at the fair hearing to substantiate an advocated position by the claimant or by the representative of the county office.
Excluded	Not counted; disregarded.
Excused Absences	For participants actively engaged in unpaid allowable work activities, allow and count holidays and reasonable short-term, excused absences. A maximum of 10 additional days of excused absences in any 12-month period, no more than two of which may occur in a month.
Fair Hearing	An orderly proceeding before an impartial Agency employee or committee of employees in which a client (petitioner) may challenge an adverse action of the Agency (respondent) which effects the benefit group's participation in TANF and in which both parties may present evidence to defend their positions. It is also known as an Appeal. The petitioner is the party who has requested a fair hearing. The respondent is the party responding to the fair hearing request. The party is each person or agency named or admitted as a party, or properly seeking and entitled as of right to be admitted as a party.
Fair Hearing Committee	The appointed committee which has the authority and responsibility to make final decisions on the issues raised in a fair hearing.
Fair Hearing Process	The procedures beginning with the initial notification to a BG regarding the right to a fair hearing and ending with the execution of the hearing decision.
Fair Market Value	The amount a resource is worth if it is for sale on the current market.
Family Cap Child	A child born into a BG 10 or more months after a month in which the BG received TANF cash benefits.

Family Eligibility	An eligible family which must contain a dependent child(ren) related to a caretaker within a specified degree of relationship.
Family Evaluation	The first step in the Family Plan where information on the family is gathered to determine the needs of all family members and to identify the barriers to family self-reliance which need to be overcome.
Family Plan	The process of evaluating a family's needs and strengths, identifying the responsibilities of each family member and establishing an Employment Plan, all of which are geared toward family self-reliance.
Family Self-Sufficiency (FSS) Program	A program that enables HUD-assisted families to increase their earned income and reduce their dependency on welfare assistance and rental subsidies. This term applies to escrow accounts established by Housing and Urban Development (HUD).
Federal Fiscal Year	A period of 12 calendar months beginning each October 1 and ending with September 30 of the following calendar year.
Federal Minimum Wage	The minimum hourly wage rate allowed by federal law; which is currently \$7.25 per hour.
Federal Time Limit	TANF benefits that are limited to no more than five years (sixty months) in a recipient's lifetime for benefit groups containing adult parent/caretaker relatives who are receiving benefits for themselves and minor children.
Filing an Application	The action taken by a benefit group or their authorized representative by signing a completed application form requesting financial assistance (TANF benefits).
Filing Date	The date an application is received by the Agency.
Fleeing Felon	An individual fleeing to avoid prosecution, or custody or confinement after conviction of a felony.
Foster Care	Individuals placed in the home of relatives or other individuals or families by the Agency's foster care program.
Full Week	A complete Sunday through Saturday week to determine hours of participation for the TANF Work Program.

Gap Payment	The payment originally designed to equalize spendable income for TANF recipients who received child support directly before the establishment of the Title IV-D Child Support legislation and who after the legislation had to give it to the CSSD. The GAP payment is computed by multiplying the current month's child support collection by (1.00- TANF ratable reduction %) e.g., \$200 child support collection X (1.00 - .281) = \$200 x .281 = \$143 rounded down = Gap payment.
Garnished Income	Money due to a BG member which is diverted under court proceeding or by provision of law to a third party as payment on a debt.
General Educational Development	A group of four academic subject tests certifying academic knowledge equivalent for a high school diploma.
Good Cause	An acceptable justification for failure to comply with eligibility or TANF Work Program requirements.
Good Faith Effort	Agreeing to sell at the current market value and putting property up for sale in the area where it commands a market.
Guardianship Subsidy	Payment option that provides an ongoing financial subsidy to eligible children who exit the child welfare system into the permanent care of a legal guardian, often a grandparent or other relative. This subsidy is not currently issued in South Carolina.
Higher Education	Any public or private educational institution which normally requires a high school diploma or equivalency certificate for enrollment, or admits individuals who are beyond the age of compulsory school attendance in the state in which the school is located, provided that the institution is legally authorized or recognized by the state to provide an educational program beyond secondary education in the state, or provides a program of training to prepare students for gainful employment.
Homestead Property	The home and surrounding property which is not separated from the home by intervening property owned by others.
Illegal/Non-Citizen	A non-citizen without authorization or valid documentation which allows entry in the United States.
Inaccessible Resources	Resources that are not available to the BG.

Income and Eligibility Verification System (IEVS)	A system of information acquisition and exchange for purposes of income and eligibility verification which meets the requirements of section 1137 of the Social Security Act.
Income Producing Property	Property which annually produces income consistent with the prevailing rate of return for similar property in the area.
Individual Development Account (IDA)	An account established by, or for, an individual who is eligible for assistance under the TANF program, to allow the individual to accumulate funds for specific purposes (i.e. buying a home, starting a business, education, or job training). The funds in an IDA account must be disregarded in determining eligibility for, or the amount of, assistance in any Federal means-tested programs.
Individual Employment Plan (IEP)	An agreement signed by the recipient and Case Manager (CM) detailing the actions required of both parties to achieve self-reliance.
Individual Retirement Account (IRA)	A personally established retirement account considered a liquid resource; the total cash value less the amount of any penalty for early withdrawal of the entire account.
Ineligible	The inability to receive TANF benefits due to the BG not meeting the eligibility requirements.
Ineligible Non-citizen	A non-citizen who does not meet the citizenship or non-citizen status requirements to be included in the TANF BG.
Initial Job Search	A requirement that all Work Eligible Individuals (WEIs) not meeting the legal cause criteria make at least five employer contacts during the application process.
In-Kind Income/Benefits	Any gain or benefit not in the form of money given to a BG member, such as meals, clothing, home produce, public housing, etc.
Inquiry	A request for information about eligibility requirements for TANF assistance.
Interview	An official and confidential discussion between Agency staff and the BG or its authorized representative of the TANF BG's circumstances in order to determine TANF eligibility. An interview is necessary to identify verification that may be needed and to advise the TANF BG of the deadline for returning the verification to the Agency.

Intestate	An individual who dies without a will.
Irrevocable Trust	A trust from which funds cannot be withdrawn without restriction or approval from a court or other entity.
Job Readiness Activity	The act of seeking or obtaining employment, preparation to seek or obtain employment, including life skills training, and substance abuse treatment, mental health treatment, or rehabilitation activities for those who are otherwise employable. Such treatment or therapy will be determined to be necessary and certified by a medical or mental health professional.
Job Ready	A participant who has been employed 12 out of the previous 24 months, or has graduated high school or achieved a GED.
Job Skills Training Directly Related to Employment	Training or education for job skills required by an employer to provide an individual with the ability to obtain employment or to advance or to adapt to the changing demands of the workplace.
Jointly Owned	A resource that is owned by more than one individual.
Judicial Review	The claimant's right to pursue a review through the court system if he/she is dissatisfied with the results of the fair hearing.
Kinship Care	Payments from another state made to a caretaker relative. These payments are similar to foster care but are paid in a relative placement situation.
Leased vehicle	A vehicle lease that allows a person to drive a vehicle from a dealership for an agreed upon amount of time and miles; and pay for its usage rather than for the full purchase price of the vehicle.
Legal Cause	The prevention of a TANF recipient from being subjected to sanctioning due to failure to comply with the TANF Work Program requirements.
Legal Father	A man recognized by law as the male parent of a child. A man is considered the legal father of a child if: • he was married to the child's natural mother when the child was born • he has recognized or acknowledged the child; or

	• he has been declared the child's natural father in a paternity action.
Legally Married	A marriage uniting two individuals according to the statutes of the State where the marriage occurred.
Lifetime Rights	Rights entitling the holder to occupy the property for the remainder of his/her life and to collect all rents from the property.
Limited English Proficiency (LEP)	An individual whose native language is other than English and who is unable to communicate effectively in the English language.
Liquid Resources	Assets that can be readily converted to cash.
Local County Office	An office located in any of the 46 counties in the State of South Carolina.
Lump Sum	A non-recurring or infrequently occurring payment.
Major Parent	A parent in the home of a minor parent.
Minor Child	An individual who has not attained 18 years of age; or has not attained 19 years of age and is a full-time student in a secondary school (or in the equivalent level of vocational or technical training).
Minor Parent	An individual under 18 years old who has parented and is not married. This individual is head-of-household of the TANF BG and typically lives in the household of his/her parent, legal guardian, other adult relative or in a supervised supportive living arrangement.
National Voter Registration Act (NVRA)	Federal legislation (commonly referred to as "Motor Voter Law") sets forth certain voter registration requirements with respect to elections for federal office. It requires DSS to perform voter registration services for all applicants and recipients of services.
Ninety (90) Days	Due to periods of time that cannot be evenly divided by each other, 90 days can be interpreted in TANF policy as either 90 calendar days, 13 weeks, or three calendar months, whichever is simplest for a given situation.
Noncompliance	Failure to comply with specific eligibility criteria.

Non-BG Member	An individual residing with a BG who is not considered a member of that BG in determining eligibility and benefit level.
Non-Citizen	An individual residing in this country who is not a citizen of the U.S.
Non-Core Activity	One of the activities which can be included in the federal participation rate calculation once a minimum 20-hour assignment to a core activity has been made if the total hours equal the federal requirement.
Non-Custodial Parent (NCP)	The individual(s) identified by CSSD as the parent of a TANF dependent child with whom the child does not reside.
Non-Homestead Property	Property owned by the BG other than their residence.
Non-Liquid (Resources)	Assets not readily converted to cash, such as land.
Notice of Adverse Action	A notice which informs the recipient of a reduction or termination of TANF benefits.
Notification Requirements	The requirement that applicants and recipients are given prompt written notification of any decision pertaining to their TANF benefits.
On-the-Job Training (OJT)	Training through DSS WIOA or Vocational Rehabilitation (VR) when the individual is paid at least minimum wage for hours worked.
Outbuilding	Any building on homestead property that could be construed to be an extension of the primary residence, e.g., tool sheds, barns or free-standing garages.
Parent	Biological, legal or adoptive father or mother.
Participant	A TANF recipient who has signed the Family Plan as an agreement to participate in the TANF Work Program.
Participation and Tracking System (PATS)	The computer system designed to track TANF participation requirements.
Probation or Parole Violator	An individual who is violating a condition of probation or parole under a Federal or State law.

Personal Property	Property owned by an individual such as boats, vehicles or livestock.
Personal Responsibility Work Opportunity Reconciliation Act (PRWORA)	An act that was established to set uniform and restrictive eligibility criteria for a broad array of federal benefits and to place restrictions on non-citizen eligibility for state and local benefits.
Post-Secondary	The pursuit of a two-year (Associate) or four-year (Bachelor's) degree after the completion of high school or equivalent. These degrees are generally offered through area technical colleges, community colleges, state colleges, and universities.
Primary Informant (PI)	An applicant or TANF BG member who applies for TANF benefits by filing an application form.
Pro rata Share	An individual's proportionate or equal share of income and/or resources.
Prohibited	Unauthorized or not allowed.
Prospective Budgeting	Calculating the BG's benefits based on past income and circumstances which are expected to continue in current and future months.
Prospective Eligibility	The use of anticipated and/or actual income and circumstances to determine eligibility for the benefit month.
Protective Payee	An individual who assumes the responsibility to assure the TANF benefits are spent in the best interest of the family.
Public Housing	Low-income housing owned by the federal, state, or local government and operated by the local housing authority.
Public Information	Any information, regardless of form or format, that the Agency discloses, disseminates, or makes available to the public.
Real Property	Property, such as land, buildings and any natural resources existing on the property, which is owned by an individual.
Recent Work History	Earned income received in either the month of application or the month prior to application.
Recipient	An individual who receives TANF benefits

Redetermination	A review of factors affecting continuous TANF eligibility and payment amount.
Referral	A request for information, services or aid on behalf of an individual by an agency, institution or another individual.
Reinstatement	Case action taken to restore TANF benefits.
Report Month	The month and year for which hours of participation in a TANF Work Program activity are collected and recorded. A report month will always include four or five full weeks. The report month will include any weeks in which four or more days fall into the calendar month.
Representative Payee	Income received by one person for the needs of another person who is the beneficiary of the benefits.
Resources	Cash or other assets that are owned by an individual(s) and can usually be converted to cash.
Responsibility Plan	The second step of the Family Plan where parental/caretaker relative responsibilities and DSS responsibilities are identified and documented.
Restoration of Benefits	The process of restoring a BG's TANF benefits after the full family sanction has been cured.
Revocable Trust	A trust in which funds can be withdrawn without restriction or approval from a court or other entity.
Roomer	An individual to whom the TANF BG furnishes lodging, but not meals, for compensation.
Sanction	Individual or BG ineligible for cash assistance due to a penalty for failing to meet a TANF program requirement. A sanction is curable.
Satisfactory Participation	Participation in a program activity equal to the hours assigned to the activity for a stated time period.
School Dropout	A BG member under age 18 who has not graduated from high school or received a GED and is not registered in school, withdraws from school, or fails to attend school as required by South Carolina Department of Education (SCDE).
Screening	A system of preliminary examination and/or evaluation of information to determine a course of action.

Self-Employment	Employment earned directly from one's own business, trade or profession rather than from a salary or wage paid by an employer.
Self-Employment Income	Income earned directly from one's own business, trade or profession.
Severance Pay	A lump sum payment received by an individual upon termination of employment.
Social Security Administration (SSA)	A U.S. Federal Government Agency that assigns Social Security numbers and administers Social Security retirement, survivors, and disability insurance programs.
Specified Relative	Individual related to a dependent child within the degree required to receive TANF benefits.
Sponsor	Any person, or public/private agency or organization that executed an affidavit(s) of support or similar agreement on behalf of a non-citizen (who is not the child of the sponsor or the sponsor's spouse) as a condition of the non-citizen's entry into the U.S.
Spouse	An individual who is legally married to another individual.
State Office	The central office of the South Carolina Department of Social Services.
State Time Limit	TANF benefits that are limited to no more than twenty-four months in a one hundred twenty-month period for benefit groups containing adult parent/caretaker relatives who are receiving benefits for themselves and minor children.
Stepparent	A person living in the home who is ceremonially married to the parent of the children in the TANF benefit group.
Striker	Anyone involved in a strike or concerted work stoppage by employees (including a stoppage by reason of the expiration of a collective bargaining agreement) and any concerted slowdown or other concerted interruption of operations by employees.
Subpoena	A written order to compel an individual/witness to give testimony on a particular subject.

Subsidized Adoption Payments	Federal or State funds provided to assist an adoptive family in meeting some of the financial needs of the adopted child who has been identified as a special need.
Subsidized Private Sector Employment	Employment in the private sector in which the employer receives a subsidy from TANF or other public funds to offset some or all of the wages or costs of employing a TANF recipient.
Subsidized Public Sector Employment	Employment in the public sector in which the employer receives a subsidy from TANF or other public funds to offset some or all of the wages or costs of employing a TANF recipient.
Subsidized Guardianship Payment	Payment option that provides an ongoing financial subsidy to eligible children who exit the child welfare system into the permanent care of a legal guardian, often a grandparent or other relative. Not currently in South Carolina.
Subsidy	A grant by a government (public agency) to a private person or company to assist a project or undertaking deemed advantageous to the public.
Supervised Job Search	An organized and supervised job-seeking activity. There is an initial orientation with the recipient to provide an overview of available job search resources followed by frequent check-ins (no less than weekly requiring evidence of contacts).
Supplemental Security Income (SSI)	Monthly cash payments administered by the Social Security Administration and paid to the aged, blind and disabled.
Support Services	Types of assistance, such as but not limited to, childcare and transportation, which are provided to promote self-reliance.
Systematic Alien Verification for Entitlement (SAVE)	The USCIS program whereby State agencies may verify the validity of documents provided by non-citizens applying for TANF benefits by obtaining information from a central data file.
TANF Assistance	Benefits paid from TANF funds which includes TANF cash benefits, family cap vouchers, support services, Work Training Allowances (WTA) and other forms of benefits designed to meet a family's ongoing basic needs.
TANF Case Manager	An individual designated by the county to provide case management services to TANF families containing Work eligible Individuals and adults coded "RH" on EMPR.

TANF Cash Benefits	The value of cash assistance provided to a TANF benefit group by means of an ePay debit card or paper check
TANF Family	The group of individuals living in the home which includes dependent child(ren), parent(s), deemed parent(s), caretaker relative(s), and sibling(s) of a dependent child under age 18 not included in the BG (i.e. SSI recipients).
Teen Parent	An individual under the age of 20 who has parented or is pregnant.
Teen Parent Adult	An individual 18 or 19 years old who has parented.
Teen Parent/Adult	An individual identified in CHIP who is under the age of 20 whose primary role in the TANF Family is parent.
Temporary Absence	An individual out of the home on a short-term basis without establishing a new residence.
Temporary Assistance for Needy Families (TANF)	A program of family assistance operated by an eligible State under its State TANF plan.
Timeliness Standards	The amount of time in which an application or change must be acted on.
Timely Notice	A written notice that is mailed at least 10 days before the date upon which the action would become effective.
Trafficking	The act of forcing an individual into prostitution, slavery, and/or forced labor through coercion, threats of physical violence, psychological abuse, torture, and imprisonment.
Transfer of Resources	The act of transferring the possession or legal title of a countable resource from one person to another person(s).
Two Parent Family	A Benefit Group (BG) in which two or more Parents are included in the Family.
Unearned Income	All income that is not earned from one's job or profession or money that an individual makes from sources other than employment.
Unemployment Compensation Benefits (UCB)	Unearned income paid from Department of Employment and Workforce to those eligible individuals because of a job loss or layoff.
Unsubsidized Employment	Full or part-time employment in the public or private sector that is not subsidized by TANF or any other public program.

Validity	The state of being acceptable
Vendor Payments	Payments made to a third party by a non-BG member on behalf of the BG.
Verification	The use of documentation or a contact with a third party to confirm the accuracy of statements or information.
Victim of Domestic Violence	An individual who is battered or subject to extreme cruelty.
Vocational Educational Training	An organized educational program that is directly related to the preparation of individuals for employment in current or emerging occupations requiring training including post-secondary study leading to a baccalaureate degree. This training cannot exceed 12 months with respect to any participant.
Vocational Rehabilitation	Rehabilitative services for individuals who experience a physical or mental incapacity that interferes with employment.
Volunteers	Non-DSS employees used in non-certification related activities.
Wages	Earned income received by a BG member in return for work.
Witness	An individual who gives evidence or testifies to a matter of which he/she has personal knowledge.
Work Eligible Individual (WEI)	An adult or minor parent head-of-household receiving TANF assistance, or a disqualified or sanctioned individual receiving assistance for a child. WEI's are subject to TANF Work Requirements and included in the TANF participation rate.
Work Experience Program (WEP)	A component which involves placement in a training that is clearly defined, based on a participant's vocational objective or work normally identified as EPP or volunteer work.
Work Readiness Assessment (WRA)	A tool used by the TANF Case Manager to ask questions and gather information on the benefit group and other household members for the development of the Family Plan.
Work Training Allowance (WTA)	An allowance paid to a DSS Work Experience or Community Service Program participant if the number of monthly hours of WEP or CSP participation multiplied by

	the federal minimum wage exceeds the combined dollar value of SNAP and TANF cash benefits.
Workers' Compensation	Insurance that reimburses an employer for damages that must be paid an employee for injury occurring in the course of his/her employment.
Workforce Consultant (WFC)	Individual responsible for the development of employment opportunities for TANF participants.
Workforce Innovation and Opportunity Act (WIOA)	The Workforce Investment Act of 1998 provides the framework for a unique national workforce development system designed to meet the needs of both the nation's businesses and the needs of job seekers or those who want to further their careers. WIOA focuses on meeting the needs of businesses for skilled workers and the training, education, and employment needs of individuals. Key components of the Act enable customers to easily access the information and services they need through the "One-Stop" system; empower adults to obtain the training they find most appropriate through Individual Training Accounts, and ensure that all State and local programs meet customer expectations.
Young Custodial Parent	A custodial parent, under age 25, who has not completed high school, obtained a GED or Certificate of Completion.

What's New?

Revisions to the TANF Policy Manual

Volume 2 | 09.01.2007

[Chapter 2.5](#) has been revised to include an additional exclusion from initial job search.

[Chapter 12.5](#) has been revised to delete notes regarding EMPR codes.

[Chapter 16.1 # 6](#) has been revised to clarify OJT available through SC Vocational Rehabilitation is a countable activity.

[Chapter 16.4](#) now includes a statement that other types of vocational education training may be available to FI recipients.

[Chapter 17.6 #12](#) has been changed to clarify when to count hours of participation for TA's during school breaks.

[Chapter 19.11 #3](#) has been revised to clarify the use of support service payments for vehicle expenses and repairs.

[Chapter 21.5 # 3](#) has been revised to correct policy regarding how to count hours for self-employed individuals.

[Chapter 23.15](#) has been revised to clarify policy for establishing and referring Support Service Claims to the state office and also to remove the term "one time" in reference to work related expenses.

Volume 3 | 10.01.2007

[Chapter 8.22](#) and [Chapter 19.19](#) being revised to change the new need standard chart effective for 10-01-07.

[Chapter 12.3](#) being revised to include the DSS Form # for Required in the Home (DSS 1247-A).

[Chapter 14.1](#) being revised to include additional form numbers: DSS 1360, DSS 3733.

[Chapter 16.1](#) adding DSS Forms 3767 (OJT Training Agreement) and DSS 3769 (Attendance and Performance Record for OJT).

[Chapter 17.1](#) the "note" is being revised for clarity.

Volume 3 | 10.01.2007 (Cont'd)

[Chapter 17.5](#) revised to correct the projection of OJT income. It should be four consecutive weeks. Also, correction is being made to show that Supervised Job Search contacts should be reviewed weekly.

[Chapter 18.7](#) revised to add a “note” to expand on the examples of good cause.

[Chapter 18.8](#) revised to add a second “note” to explain the PATS code for two-parent sanctioning.

[Chapter 21.7](#) revised to add responsibilities of employer for OJT contracts.

[Chapter 21.8](#) revised to include DSS forms for agreements for Work Experience and Community Service.

Volume 4 | 11.01.2007

[Chapter 14.8 #2](#) & [Chapter 15.1 #5](#) revised to clarify acceptable on-line or correspondence courses for High School diploma or GED.

[Chapter 17.4](#) revising rounding procedures for Units of service.

[Chapter 19.7 #5](#) revised to clarify when support services can be provided for individuals who are curing a sanction.

Glossary Expanding the definition of Young Custodial Parent (to add certificate of completion).

Glossary New definition for Disqualified Individual

Volume 5 | 12.01.2007

[Chapter 2.7](#) has been revised to clarify the disposition of an application for Supplemental Nutrition Assistance Program (SNAP) when the FI application is withdrawn.

[Chapter 5.5 #1](#) is being revised to clarify that the 25% child support reduction is automatically calculated when the sanction is imposed.

[Chapter 7.7](#) is being revised to clarify the treatment of EIC in the income chart.

[Chapter 10.6](#) is being revised to include new contact numbers for the state of Florida.

[Chapter 16.9 #2](#) is being revised to clarify additional activities that may be counted as Education Directly Related to Employment.

Volume 5 | 12.01.2007 (Cont'd)

[Chapter 17.3](#) is being revised to clarify who should participate in the case staffings.

[Chapter 17.6](#) is revised to add a note clarifying the usage of basic remedial education and ESL under “Directly Related to Employment”.

[Chapter 19.5](#) is being revised to add a note to clarify that all support service expenses of \$5000 or more must be approved by State Office Procurement.

[Chapter 19.11 #3](#) is being revised to include the requirement for securing estimates and documenting the need for vehicle repairs.

[Chapter 19.11 #5](#) is being revised to add a limit for rental home repairs.

Volume 6 | 01.01.2008

[Chapter 4.4 #3](#) is being revised to include a chart that lists the criteria for Qualified Alien Eligibility.

[Chapter 10.1 #4](#) is being revised to clarify the treatment of cases after they have reached the Federal 60 month time limit but still have State months remaining.

[Chapter 16.7 #3](#) is revised to add a “Note” to explain that WTA benefits received by Work Experience and Community Service participants are not taxable.

Volume 7 | 02.01.2008

Several changes have been made throughout this manual revision due to the impact of the two new state programs, C.A.R.E.S and Two-Parent. Several sections have been removed or deleted and placed in Chapter 27 – State Programs.

[Chapter 3.9](#) The note concerning full family sanction of two parent households is being deleted and will be addressed in the new Two Parent policy. [See manual Chapter 27.3.13](#)

[Chapter 4.4](#) is being revised to include treatment of Iraqi and Afghan aliens granted special immigrant status. A chart regarding documentation needed by Iraqi and Afghan applicants is also added.

[Chapter 5.5 #1](#) is being revised to correspond with the Two Parent program.

Volume 7 | 02.01.2008 (Cont'd)

[Chapter 7.4](#) has been revised for clarity.

[Chapter 10.6](#) is being revised to reflect the new contact person, phone number and fax number for out of state inquires to the Colorado Dept. of Health and Human Services.

[Chapter 12.3](#) is being revised to identify additional individuals that may be excluded from the TANF Work Program requirements.

[Chapter 12.5](#) is being revised to include the EMPR codes for the work programs in the state funded C.A.R.E.S and Two Parent Program.

[Chapter 13.2](#) is being revised to add the responsibility of the CM to move the participant to the C.A.R.E.S program if the evaluation indicates a disability more than 90 days.

[Chapter 14.3 #2](#) is being revised to include the requirement for home visits.

[Chapter 14.10 and 14.11](#) Have been renumbered due to changes throughout the manual.

[Chapter 17.6 #6](#) is being revised to include policy for the use of internet, on-line and phone contacts during job search.

[Chapter 21.7 #1](#) is changed to correct a typing error regarding the wage standard for OJT.

[Chapter 27](#) Added as a new chapter for the State Program C.A.R.E.S and Two Parent.

Glossary - New definition for C.A.R.E.S program.

Glossary - Revised definition for Two Parent Family

Glossary - Definition for the Two Parent Participation Rate has been deleted.

Volume 8 | 03.01.2008

[Chapter 14.8 # 1](#) has been revised for clarity.

[Chapter 18.15# 2](#) is being revised to add an additional reason for Removing "RB" or "SA FI" income from Supplemental Nutrition Assistance Program (SNAP).

Volume 9 | 04.01.2008

[Chapter 2.5 # 1](#) has been revised to clarify that Young Custodial Parents (YCP's) over age 18 must complete an initial job search.

[Chapter 2.24](#) verification and documentation requirements for non- applicants and ineligible BG members has been revised to comply with Civil Rights regulations.

[Chapter 4.3 # 1](#) contains a new document source that is acceptable as identity verification.

[Chapter 4.5](#) has been revised to comply with Civil Rights regulations when using the Systematic Alien Verification Entitlement (SAVE) Program for non-applicants or ineligible BG members.

[Chapter 4.5 # 5](#) has been revised to change the term “legal resident” to “qualified alien”.

[Chapter 4.6 # 2](#) has been revised to clarify verification requirements for non-applicants or ineligible BG members in compliance with Civil Rights regulations.

[Chapter 4.6 # 3](#) contains a new source of verification to verify citizenship and alien status.

[Chapter 4.14](#) has been revised to add additional policy regarding basic education requirements for dependent children and teen adults that have not completed high school.

[Chapter 7.7](#) has been revised to remove “American Association of Retired Persons” from the Sources of Income Table as income received under the Federal Older Americans Act.

[Chapter 10.1 # 3](#) has been revised to clarify issues associated with Federal TANF time limits.

[Chapter 13.2](#) has been revised to remove the requirement to print CHIP screens for case management.

[Chapter 14.1](#) The note in this section has been revised to clarify that no additional screenings are required for teen adults when the DSS 3622, Young Parent Program Assessment is completed.

[Chapter 14.2](#) has been revised to add a note to clarify that the DSS 3626, YISSP will serve as the Family Plan for teen adults without a HS diploma, GED or certificate.

[Chapter 14.8](#) has been revised to clarify educational requirements for teen adults under age 20.

[Chapter 27.1](#) has been revised to remove the requirement to print CHIP screens for case management.

[Chapter 27.3.12](#) has been revised to clarify that any individual in the BG coded “IN” on EMPR is subject to participation in CARES activities.

Volume 10 | 05.01.2008

[Chapter 4.13](#) has been revised to clarify the use of the “IS” closure code for failure to develop the Family Plan. This code can only be used for new FI approval or reapplication.

[Chapter 7.7](#) has been revised to indicate that Alimony (spousal support) does count in the budget as unearned income.

[Chapter 12.1](#) is revised to clarify that the conciliation process must be followed before closing an ongoing FI case after the Family Plan has been signed by the participant.

[Chapter 13.2](#) has been revised to clarify that closure for failure to develop the Family Plan only applies to newly approved FI cases or reapplications.

[Chapter 14.1 #2](#) has been revised to clarify when screenings are to be completed by the Case Manager.

[Chapter 14.1 #3](#) has been revised to clarify the Case Manager’s role in the Domestic / Family Violence assessment process.

[Chapter 14.5 #5](#) has been revised to clarify that after the Employability Plan is signed any failure to cooperate in the work program or work program activities are subject to sanctioning.

[Chapter 16.5](#) has been revised to clarify when extensions may be allowed for Work Experience.

[Chapter 17.5 #1](#) has been revised to clarify entering data into the PATS system.

[Chapter 21.8](#) has been revised to clarify when an additional (4) weeks may be allowed in Work Experience.

[Chapter 27.1.#6](#) has been revised to add the new time limit tracking code for the State Program.

Volume 11 | 07.01.2008

[Chapter 2.22](#) is being revised to add a note to clarify that non-applicants and ineligible BG members are not required to provide citizenship, SSNs or immigration status information as part of the verification needed for new applicants.

[Chapter 4.4 #2](#) is being revised to include PRWORA eligibility information regarding eligible aliens.

[Chapter 4.4#3](#) including the chart, is being revised to clarify policy for qualified aliens according to PRWORA regulations. A note has been added to explain that non-qualified aliens are not required to provide information about citizenship, SSNs or immigration status.

Volume 11 | 07.01.2008 (Cont'd)

[Chapter 4.5](#) is being revised to add a note to clarify that non-applicants and ineligible BG members are not required to provide citizenship or immigration status information.

[Chapter 7.5](#) is being revised to add a Teen Parent Adult section to the chart, and to clarify that all earned and unearned income of the teen parent adult is counted unless specifically excluded.

[Chapter 7.7](#) Sources of Income chart is being revised to clarify that ABC payments for providing child care are counted as income.

[Chapter 8.16](#) is being revised to add a note which clarifies that all earned and unearned income of the teen parent adult is counted unless specifically excluded.

[Chapter 14.1#2](#) is being revised to clarify that the Basic Vision screening is the individual's ability to read the DSS 3800 Application and other DSS forms without difficulty.

[Chapter 17.4#8](#) A new section is being added to cover the purpose of the Supervisory Review Guide and what should be included when reviewing cases.

A note is included to state that Supervisory Case Reviews must be completed on all cases prior to imposing a sanction and all cases before the 22 month time limit staffing.

[Chapter 17.4#9](#) A new section is being added to cover how to record and monitor the Supervisory Review Guide on cases.

[Chapter 27.1](#) The note in this section is being revised to add the phrase "until cases are imaged."

Glossary - Is being revised to clarify the definition of **minor**; that is in addition to being an individual under the age of 18 or 19 if still in high school or equivalent, the individual must also be included in a specified relative's BG.

Volume 12 | 09.01.2008

[Chapter 1.5#4](#) is being revised to add SLED Checks to the list of confidential information that may be disclosed, and to state that SLED checks can be shared with the employing individual's worksite.

[Chapter 4.4#3](#) The chart is being revised to delete the section "Veterans of the U.S. Armed Forces." Also, this section is being revised to delete items 1-7 under Section 4.4#3, B.

[Chapter 16.1 #2](#) is being revised to add a note stating that college work study is part-time employment, although the income may be excluded from the budget.

Volume 12 | 09.02.2008 (Cont'd)

[Chapter 19.16](#) is being revised to add (EX or DX closure code) at the end of Part A, and to add (CX closure code) at the end of Part B. This section is also being revised to add a note regarding completing a mini-budget to determine if excluded earned income or refusal of disregards would cause the FI case to close.

[Chapter 20.14.9](#) The title is being changed to “Retention of Forms” rather than “Submission to State Office.” This section is being changed to show that the original DSS 3764 (FI Time Limit Closure Follow-Up Assessment), will be filed in the client’s record. The DSS 3765 (60-Day Assessment Tally) and the canary copy of the DSS 3764 will be retained by the county for no less than two years following the FI report month. It will no longer be required to submit these forms to State Office, so this address is also being deleted from this section.

[Chapter 20.16](#) The title is being revised to “Federal Time Limits,” rather than “Federal Time Limit Extension.”

Volume 13 | 10.01.2008

[Chapters 8.22](#) and [19.19](#) are being revised to reflect the new Need Standards for FI effective October 1, 2008.

[Chapter 13.4](#) has a note being added which allows participation in job search or job readiness activities to be measured on an hourly, rather than weekly, basis, in a 12-month period. It is no longer based on Federal Fiscal Year, but on a 12-month period.

[Chapter 16.1#2](#) is being revised to state that a participant working part-time must be assigned to a concurrent program activity in order to meet the 20 or 30 hour participation requirement.

[Chapter 16.2](#) is being revised to allow participation in job search or job readiness activities to be measured by hours (240 hours for 20hr/wk requirement, and 360 hours for the 30 hr/wk requirement.) The four “consecutive” week limitation will be measured on a weekly basis. Note that the hours are not counted in a federal fiscal year, but in a 12-month period, depending on when the client started the activity. In addition, this section removes the daily documentation of participation in job search requirements.

[Chapter 16.2#3A](#) is being revised to remove the words “state licensed” in front of health care provider, in reference to completing the 1247-C.

[Chapter 16.3](#) is being revised to state the recommended schedule for EPP class is 30, rather than 35 hours per week.

Volume 13 | 10.01.2008 (Cont'd)

[Chapter 16.4](#) is being revised to allow participation in a bachelor's degree or advanced degree program (as well as two-year degree programs and vocational certificate programs) to count as vocational training. This section also removes the 10 hour per week limit on distance learning.

[Chapter 17.6#6](#) allows participation in job search or job readiness activities to be measured on an hourly, rather than weekly basis, in a 12-month period. (240 hours for the 20 hr/wk requirement, and 360 hours for the 30 hr/wk requirement.)

[Chapter 17.6#6A](#) is revising the note which addresses how to count internet, on-line, or phone contacts made for job search. It also removes the 10-hour limit.

[Chapter 17.6.#6B](#) is removing the Units of Service Report (DSS 1243) as an acceptable means of documenting job search.

[Chapter 17.6#7](#) is being revised to remove the words "state licensed" in front of health care provider, in regards to completing the 1247-C.

[Chapter 17.6#7](#) removes the requirement that individuals be "otherwise employable" in order for participation in treatment and other barrier removal activities to count toward the participation rate.

[Chapter 17.6#9](#) is being revised to add a bachelor's degree or an advanced degree program (as well as two-year degree programs and vocational certificate programs) to count as vocational educational training.

[Chapter 17.6#9B](#) has an addition which states that homework (both supervised and unsupervised) can be counted, and explains how to count it. This section also changes from weekly to monthly report to verify school attendance.

[Chapter 17.6#9C](#) has removed Units of Service Report as an acceptable form of documenting hours in Vocational Education, and has added log-in and log-out sheets.

[Chapter 17.6#9D](#) lists "Records from the Institution" rather than Units of Service Reports as the method of supervision for Vocational Education.

[Chapter 17.6#10A](#) clarifies that in some instances, Job Skills Training will be completed as part of distance learning.

[Chapter 17.6#10B](#) changes Units of Service Report to Attendance Records from Provider.

[Chapter 17.6#11](#) has added a statement saying that Education Directly Related to Employment can be completed as part of distance learning.

[Chapter 17.6#11B](#) has removed Units of Service Report as an acceptable documentation of hours.

Volume 13 | 10.01.2008 (Cont'd)

[Chapter 17.6.#12A](#) has added the statement that some educational training may be completed as distance learning.

[Chapter 17.6#12B](#) removes Units of Service Report as an acceptable form of documentation.

[Chapter 17.6#13](#) has been revised to count hours, rather than days as excused absences. 80 hours of excused absences are allowed over the course of a year—with no more than 16 in any given month—to count as hours of participation in unpaid activities. It further explains that the PATS system will be used to track the number of excused absences used by each recipient.

[Chapter 21.3](#) allows participation in job search or job readiness activities to be measured against the 12 week limitation on an hourly, rather than weekly, basis (240 hours for 20/hr wk requirement, and 360 hours for the 30 hr/wk requirement).

[Chapter 21.4](#) allows participation in job search or job readiness activities to be measured against the 12 week limitation on an hourly, rather than weekly, basis (240 hours for the 20 hr/wk requirement, and 360 hours for the 30 hr/wk requirement).

[Chapter 24](#) has been replaced.

Glossary - has been revised to change the definition of Supervised Job Search to state that frequent check-ins (no less than weekly) are required, rather than daily check-ins.

Glossary - has been revised to add post-secondary study leading to a baccalaureate degree.

Volume 14 | 11.01.2008

[Chapter 6.9.5](#) is being revised to state that the A/R with a valid driver's license from another state will be given 90 days to obtain a S.C. driver's license, and 45 days to transfer their out of state vehicle registration to S.C.

[Chapter 12.3.a](#) is being revised to remove “spouse of head of household.”

[Chapter 12.3c](#) is being revised to state that a parent providing care for a disabled family member living in the home is excluded from TANF work program requirements. It removed the phrase “not in school living in the home.” With new policy changes, even if a disabled child is in school, the parent is still excluded from TANF work program requirements.

[Chapter 19.6.1B](#) is adding a link to See Section [19.7](#) for Child Care Guidelines.

In the FI Manual Glossary, definition of “Work-Eligible Individual” is being revised. It is removing spouse of head-of-household as an individual exempt from TANF work program requirements.

Volume 14 | 11.01.2008 (Cont'd)

Chapter 12.3c has been removed due to the change in policy that a parent with a disabled child is excluded from TANF work program requirements whether the child is in school full time or not.

Volume 15 | 01.01.2009

[Chapter 14.5#5](#) is being revised to add that the “IS” denial/closure code on CHIP should be used when the A/R fails to sign or cooperate in the development of the Employability Plan. The use of this code applies only to new approvals or reapplications for work eligible individuals.

[Chapter 14.5#5](#) a link is being added (See Section [18.7](#)) at the end of the first paragraph.

[Chapter 14.5#5](#) a link (See Section [18.2](#)) is being added at the end of the Caution Note in this section.

[Chapter 17.4#2](#) is being revised to delete the sentence stating that the DSS 1243, Units of Service, documents the progress of a participant involved in a formal educational or training activity. This form is now obsolete and should no longer be used. It should be off the Master Forms Index by no later than 1-1-09.

Changes have been made in the FI Manual to change the program name, Food Stamps, to Supplemental Nutrition Assistance Program, (SNAP), wherever Food Stamps is found.

Volume 16 | 02.01.2009

[Chapter 18.11](#) a link (See Section [22.7](#)) is being added at the end of Note in this section.

[Chapter 22.7](#) has been revised for clarity.

Volume 17 | 03.01.09

[Chapter 7.7](#) Sources of income chart has been revised to remove the second caution note from the Wages, salaries, commissions and tips section which states that ABC payments are excluded. ABC payments for providing child care are counted as income.

[Chapter 8.21.2](#) is being revised to include an example of Manual Proration Calculation.

Volume 17 | 03.01.09 (Cont'd)

[Chapter 15](#) the reference table for Report Month Dates by Week is being removed. It can be found in the FI Manual Attachments: PATS Full Weeks Calendar.

[Chapter 24.7.5](#) has been changed to add a new policy section, “RCA Benefits,” and the subsequent manual sections have been renumbered. This section explains how RCA benefits are calculated and also how to manually calculate the proration for the initial month.

Volume 18 | 04.01.2009

[Chapter 8.16](#), a link to the section that indicates which teen parent(s) may file his/her own application is being added

[Chapter 14.8](#), the last sentence has been removed, as distance education is no longer limited to 10 hours per week.

[Chapter 27.2.8](#) and [Chapter 27.2.9](#) are being revised to change “Responsibility Plan” to the

Volume 19 | 05.01.2009

[Manual Section 3.2A](#), the **note** has been removed and added to the section A. The section has been revised to state: “The parent may be the biological, legal, or adoptive parent.”

[Manual Section 3.2C](#), the **note** has been changed to section D. The section has been revised to state: “Adoptive siblings and half-siblings of the dependent child that are required to be in the same BG. This does not include step-siblings when a caretaker relative applies for benefits.”

[Manual Section 3.2](#), a link has been added to refer to section 3.6 (Multiple Households).

[Manual Section 3.2.2](#), the **note** has been removed and the sentence added to the section.

[Manual Section 3.2.4C](#), the participation code has been changed from “OU” to “SS”. The exception has been removed.

[Manual Section 3.2.4D](#), the exception has been changed to read, “Child(ren) receiving SSI payments, Participation code=SS. A link has been added refer to 5.1.4 the caution in this section.

In [Manual Section 3.2.4F](#), the link has been changed from 4.16 to 4.15.

Volume 19 | 05.01.2009 (Cont'd)

[Manual Section 3.2.4G](#), the participation code has been changed from “OU” to “SS”. The exception has been removed.

In [Manual Section 3.2.4H \(c\)](#), the link has been changed from 4.14 to 4.13.

In [Manual Section 3.2.4I](#), the link has been changed from 4.15 to 4.14.

In [Manual Section 3.2, section L](#) has been added to state: “The biological parent, whose parental rights have been terminated through the adoption process, cannot apply for benefits for that child.” Links to Manual Sections 3.4 and 3.6 have been added to this section.

[Manual Section 3.6 C](#), “Child (ren) and both biological and adoptive parents”, has been removed. The statement which was previously a note in Manual Section 3.6 is now Section 3.6E.

The following changes have been made to the chart in [Manual Section 3.6.2](#) (Special BG Situations):

1. The block on the chart (Living Arrangement) has been deleted: “Both parents live in the home—only child(ren) in common not living in the home.” The corresponding block (Treatment) has also been deleted, which states: “Second parent is optional BG member. This includes second parent when the only in common child is deceased.”
2. The block on the chart has been added: (Living Arrangement) “Multiple parents living in the same household—child(ren) in common.” The (Treatment Block) added states: “When the household consists of more than one group of children, the determination of which child(ren) will comprise one benefit group is based on legal responsibility. Child(ren) for whom the applicant has legal responsibility will make up one benefit group. All other children living in the household will make up the second benefit group.”
3. A link (8.16, Treatment of Teen Parent Cases), has been added to the (Living Arrangement) block: “Teen parent, under the age of 18, has a child(ren) born out of wedlock.”
4. A link (11.3, Definition/Protective Payee) has been added to the treatment block which states “Appoint a Protective Payee”.
5. A change has been made to the (Living Arrangement) block entitled “Adoptive child(ren) returns to the home of the biological parent.” The (Treatment block) now states:
“The biological parent is not eligible for benefits for the child(ren). The biological parent’s parental rights have been terminated through the adoption process.”
6. A change has been made to the (Living Arrangement) block entitled “Child(ren) lives in the home with the biological parent(s) and the adoptive parent(s).” The (Treatment block) now states: “The biological parent(s) is a **non-BG member**. The adoptive parent(s) is the mandatory BG member and the biological parent cannot be included.”

Volume 19 | 05.01.2009 (Cont'd)

7. A link (10.1.5, Time Limit Exceptions) has been added to the (Living Arrangement) block entitled “Children whose cash benefits were terminated due to time limits in the

parents’ BG, has been abandoned, and is living with another caretaker relative who makes application for FI.”

8. In the (Living Arrangement) block – “Parent incapable of money management”, the link to the Protective Payee manual section has changed from 11.1 to 11.3.

The title of [Manual Section 3.9](#) has **changed** from “Sanctioned Due to Work Requirement” to “Sanctions and Disqualifications”. Sections 1-8 have been renumbered.

[Manual Section 3.9.5](#) has been changed to remove “Individual other than parent, (natural or adoptive)” and add “Caretaker relative, who is included in the budget, participating in a strike.”

[Manual Section 3.9.8](#), the **note**, stating that “Disqualifications are not curable”, has been removed.

In [Manual Section 3.11.2](#), in paragraph 3, “caretaker relative”, replaces “individual other than the natural or adoptive parent.”

In [Manual Section 11.1](#), the title is being changed to “**Benefit Issuance.**”

A link has been added after the first sentence of **Manual Section 11.2** to reflect the changes as a result of ePAY.

[Manual Section 11.1.1](#) (**Definition/Protective Payee**) has been changed to Manual Section 11.3, and subsequent sections have been renumbered.

Manual Section 11.2 (Endorsement of Checks) is now [Manual Section 11.4](#).

Manual Section 11.3 (Returned Benefits/Undeliverable) is now [Manual Section 11.5](#).

The first sentence in [Manual Section 17.1.7](#) has been changed from “the **CM** will obtain verification of hours and income from the employer” to “**a county designee** will obtain verification of hours and income from the employer.”

The following sentence has been added: “The county designee may be the case manager or the job developer.”

Manual Section 21.7.7C has been revised to state DSS-3767 instead of DSS-3769, for the OJT Training Agreement.

Manual Section 21.7.7K has been revised to state: “Collects biweekly attendance forms from providers (DSS 3769), **as designated by the county.**”

Volume 19 | 05.01.2009 (Cont'd)

In **Manual Section 24.12**, a sentence has been added at the end to reflect that the RCA case must be closed when the refugee is approved for SSI, and that the DSS 1326, Notification of Eligibility Determination for Refugee Resettlement Program, must be sent at least 10 days before action is taken to close the case.

In **Manual Section 24.16**, a sentence is being added at the end to reflect that the DSS 1326, Notification of Eligibility Determination for Refugee Resettlement Program, must also be sent when the RCA case is closed for other reasons.

In **Manual Section 27.2.10**, the last sentence has been changed to include case notes in SCOSA as an acceptable place to document case activities.

Glossary

The term “ePAY” and its definition have been added to the glossary.

Volume 20 | 06.01.2009

[Manual Section 2.2](#), a link (11.3, Definition/Protective Payee) has been added to the Incompetent or incapacitated individual chart section under “Special Treatment”.

[Manual Section 2.9](#), the link has been changed to [11.3](#), (Definition/Protective Payee).

[Manual Section 4.2.1](#) has been revised to add that verification of residence at redetermination is not required unless a change has occurred.

[Manual Section 4.2.2D](#) has been revised to add the rent/mortgage receipt should show the residence address.

[Manual Section 4.4.5](#) has been revised to clarify that Afghan aliens granted Special Immigration Status are eligible for benefits for a period not to exceed 8 months.

[Manual Section 4.5](#), the first sentence has been revised to clarify when alien status must be verified.

[Manual Section 4.7.2](#) has been moved to section 4.7.1C. Subsequent sections have been renumbered.

[Manual Section 4.14.1](#) has been revised to state “felony” drug related conviction.

Volume 20 | 06.01.2009 (Cont'd)

[Manual Section 4.14.3](#): The first sentence has been revised to state: If the A/R is convicted of a felony drug related offense which occurred after August 22, 1996, the ES will take the following actions: (This is made to clarify that a misdemeanor drug conviction would not disqualify the individual.)

[Manual Section 4.14.3B](#), a link ([11.3](#), Definition/Protective Payee) has been added.

[Manual Section 4.15.1B](#), a link ([11.3](#), Definition/Protective Payee) has been added.

[Manual Section 5.1.2](#) has been revised to state “FI benefit” instead of “FI check”, due to the new electronic payment option.

[Manual Section 5.2.1](#) has been revised to remove “and providing the Good Cause Pamphlet”, as this pamphlet is now obsolete.

[Manual Section 5.3.1](#) has been moved to 5.3.2 ES Responsibility (Good Cause Child Support). [Section 5.3](#) has been renumbered.

In [Manual Section 5.4.1](#) “Both parents are absent” situation, a link ([5.1.4](#), Exception) has been added to the Required Action block.

The first sentence is [Manual Section 5.5](#) has been revised to state: “Child support sanction reasons include the following:”

A link ([5.1.4](#), Exception) has been added to [Manual Section 5.5A](#).

A link ([5.1.6](#), Third Party Liability Requirements) has been added to [Manual Section 5.5.2](#).

The title of [Manual Section 5.5.3](#) has been changed to “ES Determination of Non-Cooperation.”

[Manual Section 5.5.7](#) has been revised. ES replaces CM in the note section.

[Manual Section 5.5.8](#) has been revised to remove the note appearing at the end of this section.

A link ([9.2.1](#), ES Annual Redetermination Actions) has been added to [Manual Section 9.3A](#).

[Manual Section 17.3.1](#) has been revised to reflect changes in completing the new DSS-3707, FI Staffing Summary.

[Manual Section 20.1.1](#) has been revised to reflect changes in completing the new DSS-3707, FI Staffing Summary.

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[Manual Section 4.4.5](#) has been revised to clarify that Afghan aliens granted Special Immigration Status are eligible for benefits for a period not to exceed 8 months.

Sections 5.6A and 5.6C have been removed. Also, references to MAO cases have been removed.

Sections 5.5(A) and 5.7(G) have been removed.

Volume 21 | 07.01.2009

No Revisions

Volume 22 | 08.01.2009

[Manual Section 7.7](#) source of income chart has been revised to add a link ([See 8.8.8](#) Self Employment income for boarders/roomers) to the Board payment section.

[Manual Section 7.7](#) source of income chart has been revised to add a link (See 6.7 Liquid Resources) to the Lump sum payments section.

[Manual sections 8.1.6F](#) and [8.1.6G](#) have been revised to add a link ([See 8.8](#) Earned Income/Self-Employment).

[Manual Section 8.3](#) (Application/Reapplication) has been added to [Manual Section 8.2](#) (Change in Income) as a subsection. Subsequent subsections have been renumbered.

[Manual Sections 8.4](#) (Verification) and [8.5](#) (Added Individual Treated as Applicant) have been renumbered to [Manual Sections 8.3](#) and [8.4](#).

[Manual Section 8.6, 8.7, 8.8,](#) and [8.9](#) have been added to [Manual Section 8.4](#) as subsections.

[Manual Section 8.10](#) has been changed to [Manual Section 8.5](#).

[Manual Section 8.11](#) has been changed to [Manual Section 8.6](#).

[Manual Section 8.13](#) has been changed to [Manual Section 8.7](#).

[Manual Section 8.14](#) has been changed to [Manual Section 8.8](#). [Manual Section 8.15](#) (Definition of Boarder/Roomer) has been added to [Manual Section 8.8](#) (Earned Income/Self Employment) as a subsection.

Volume 22 | 08.01.2009

[Manual Section 8.16](#) has been changed to [Manual Section 8.9](#). A link (see 3.6.2) has been added to [Manual Section 8.9.2](#) to clarify special benefit situations.

[Manual Section 8.17](#) has been changed to [Manual Section 8.10](#), the link in the Note section has been changed to 8.15 (Gross Income and Need Standard Table) due to the chapter renumbering.

[Manual Section 8.18](#) has been changed to [Manual Section 8.11](#).

[Manual Section 8.19](#) has been changed to [Manual Section 8.12](#).

[Manual Section 8.20](#) has been changed to [Manual Section 8.13](#).

[Manual Section 8.21](#) has been changed to [Manual Section 8.14](#).

[Manual Section 8.22](#) has been changed to [Manual Section 8.15](#).

Section 8.12 has been removed due to the reference to Medicaid eligibility for FI recipients if all eligible children are removed by CWS.

Manual Section 8.15#1 has been changed to [Manual Section 8.16](#).

The title of [Manual Section 9.4](#) has been changed to “Transferring Cases”, and sections have been renumbered.

[Manual Section 9.4.1A #2](#) has been revised to clarify the communication between the sending and receiving county should be by email.

[Manual Section 9.4.1B](#) has been revised to add that all case files must be imaged by the sending county prior to transferring the case in the CHIP system.

Manual Section 9.4.4 has been deleted because counties will no longer be required to maintain a dummy file on transferred cases due to imaging.

[Manual Section 19.11.10](#) has been revised to remove the instructions in the second paragraph regarding setting up an individual billing account through the internet and completing a SLED NET application. The revision will state that counties must access the SLED Website and follow the on-line instructions. Counties will be able to pay for the SLED checks by using a State Procurement Credit Card. This change is a result of SLED policy that eliminated billing accounts as an acceptable form of payment by DSS.

In [Manual Section 24.7.3](#), in the second paragraph, the term, “Iraqis”, has been changed to “SIV refugees.”

Volume 22 | 08.01.2009

[Manual Sections 24.17](#) (Fair Hearing Rights) and [24.18](#) (RRP State Office Program Support) have been changed to [Manual Sections 24.18](#) and [24.19](#).

A new manual section, Overpayment of Refugee Cash Assistance (RCA), will be inserted as [Manual Section 24.17](#).

[Manual Section 21.7.1.c](#) has been revised to state “minimum of \$7.25 an hour” to reflect the new federal minimum wage.

The WTA budget sheet has been revised to reflect the new federal minimum wage for July 2009 and added to the FI policy manual as an attachment (WTA Budget Sheet July 09). The WTA budget sheet dated July 08 will be removed from the FI policy manual attachments on 8-31-09.

Volume 23 | 09.01.2009

[Manual Section 9.2](#) has been revised to add that at least one face-to-face interview must be conducted for each BG once every 12 months.

The chart in [Manual Section 9.2.1](#) has been revised; under Actions Required #1, “Other DSS Assistance” has been changed to “Refugee Assistance.”

The link in the note of [Manual Section 9.3.D](#) has been changed to [11.4](#). A sentence has been added: “Contact the Division of Finance for additional procedures when benefits are issued through ePAY.” A link has been added to this sentence ([11.2.6](#)).

[Manual Section 9.4.1 B](#) has been changed to state FI eligibility, FI Case Management and SNAP cases must be imaged prior to transfer.

The information in Manual Section 9.6 has been moved to [Manual Section 9.2](#) and subsequent Manual Sections have been renumbered.

A sentence has been added to [Manual Section 9.6](#) (Authorized Representative), which states that “The A/R cannot update or change the Family Plan.

[Manual Section 9.9.2 C](#) has been changed to clarify employment status. [Manual Section 9.9.2 D](#), “New Source of Income”, has been added.

In [Manual Section 9.9.5](#), the sentence, “State wage match must be verified through IEVS”, has been changed to state “Eligibility worker must verify all information on IEVS”.

[Manual Section 9.10 #2-7](#) has been renumbered/re-lettered.

Volume 23 | 09.01.2009 (Cont'd)

[Manual Section 9.12.1](#), Additional Reinstatement Reason, has been changed to [Manual Section 9.11 G](#).

[Manual Section 9.12.2](#), New Application Exception, has been deleted.

[Manual Section 19.11.10](#) has been changed to state that counties will no longer be required to process reimbursements through FIFN.

Volume 24 | 11.20.2009

In [Manual Sections 3.9.4](#) and [3.9.5](#), the numbering has been reversed.

[Manual Section 4.4.2](#) has been revised to add Veteran of the US Armed Services or person on active duty and their spouse and their unmarried children are included in the category of aliens who may be eligible for benefits if all other requirement are met.

[Manual Section 14.3.1](#) has been revised to state that a home visit is required within the first 60 days after case approval, and that if it is not done during the assessment/evaluation, it should be done to develop the Family Plan.

In [Manual Section 14.3.2](#) the note has been moved to [Manual Section 14.3.1](#)

The title of [Manual Section 14.8.2](#) has been changed to “Educational Goals Age 20-25.

[Manual Section 16.7.4.B](#) has been revised to add that excused absences and holiday hours cannot be used in the WTA calculation.

[A link \(18.10\)](#) has been added to the Note section of [Manual Section 18.14](#).

[A link \(18.14\)](#) has been added to [Manual Section 18.10](#).

In [Manual Section 24.16.1](#), the sentence regarding sending a letter asking the refugee to visit the county office to be screened for possible benefits under one of the other benefit programs has been deleted.

In [Manual Section 24.16.2](#), the part of the sentence regarding terminating the RCA effective the ninth month/seventh month the refugee has been in the U. S. has been deleted.

Volume 25 | 01.01.2010

[Manual Section 2.4](#) has been revised to state “employer contacts” instead of “face-to-face contacts” for initial job search.

[Manual Section 8.15](#) has been revised to update the Need Standard Chart.

[Manual Sections 9.3](#) through [9.9](#) have been revised to change the order of these sections.

[Manual Section 19.19](#) has been revised to update the Need Standard Chart.

[Manual Section 23.10.A](#) has been revised to change the term “BG” to “household.”

[Manual Section 23.10.B](#) has been revised to change the term “BG” to “household.”

[Manual Section 23.10.C](#) has been revised to state: “A person connected to the household, such as a caretaker relative, protective payee, or an authorized representative when the overpayment occurred.”

Volume 26 | 04.01.2010

[Manual Section 5.5, #5](#) has been revised to show a change in procedure when a blood test excludes paternity. If a blood test excludes one father, and a new AP is named, CSED will e-mail the ES the basic information and new AP’s name, and the ES will meet with the recipient to obtain the required information for the new AP and get the client to sign a 3816C. The ES will input the new AP data into CHIP, instead of CSED inputting the new information into CHIP.

[Manual Section 5.5, #7](#) has been revised to remove the note since the procedure in [Manual Section 5.5, #5](#) has been revised.

[Manual Section 8.1, #6](#) has been revised to agree with the new budgeting methods for SNAP. Budgeting procedures have been changed from using the last four week period prior to the interview of an application or redetermination, to any four consecutive weeks within a budget month or month prior to the budget month. The “Exception” has also been removed in order to follow the new policy.

[Manual Section 8.1, #6C](#) has been revised in the way countable income is determined. It has changed from the last 4 consecutive weeks of income to four consecutive weeks of income within a budget month or prior to the budget month.

[Manual Section 19.14](#) has been revised to remove the letters A-D, and to state in the first sentence that transportation assistance can be provided to mandatory FI work eligible individuals who

Volume 26 | 04.01.2010 (Cont'd)

participate in the FI program and must comply with the Family Plan, to include Two Parent BG members or CARES participants. CM's must determine if the client has need for transportation and explore the most cost effective method.

[Manual Section 19.14, #1A](#) has been revised to change who should complete the DSS 1269.

[Manual Section 19.14, #1B](#) has been revised to remove #2, which refers to contract providers, as contract providers are no longer being used for transportation. Consequently, #1 now just becomes a sentence under this section.

[Manual Section 19.14, #1C](#) has been revised/ added to state that a monthly stipend of no more than \$75.00 will be provided to approved participants who have no other means of transportation to and from a work activity.

[Manual Section 19.14, #1C](#) has been changed to [Manual Section 19.14, #1D](#).

[Manual Section 19.14, #4](#), has been revised to change the title from "General Transportation Guidelines" to "Transportation Assistance". Also, in this section, the "Transportation Stipend" has been added to the list of transportation providers.

[Manual Section 19.14, #5](#) has been revised to add that the monthly reimbursement amount for Privately Owned Vehicles should not exceed \$75.00 per month.

The introductory paragraph in [Manual Section 19.14, #6](#) **has been** revised to add that the monthly reimbursement amount for a gas voucher should not exceed \$75.00 per month.

The title of [Manual Section 19.14, #8](#) has been changed from "Individual Transportation Providers (ITP's)" to "Transportation Stipend". The section on Individual Transportation Providers has been deleted. This section states that a monthly stipend in the amount of \$75.00 will be provided to WEI's who comply with the FI Work Program. This section also includes instructions as to how to key this stipend in the FIFN system.

The title for [Manual Section 19.14, #9](#) is being changed to "Exception to Monthly CAP". As a result, the rest of the section is renumbered. This section states that if the monthly cap of \$75.00 is not sufficient to pay the cost of a client's transportation, the worker may authorize one additional stipend to cover the cost of travel. Prior to ePAY automation, the stipend can be increased to the amount that would meet the transportation needs of the client, not to exceed \$75.00. The automated ePAY stipends must be increased in \$75.00 increments only, with no recipient receiving a stipend of more than \$150.00.

Volume 27 | 06.01.2010

[Manual Section 4.4.5](#) has been revised to remove the limit of eight months for Iraqi and Afghan immigrants to receive benefits. As of December 21, 2009, Iraqi and Afghan aliens granted Special Immigrant Status are eligible for the same benefits available to refugees admitted under section 207, and to the same extent, and for the same periods of time as such refugees. It further states that an Iraqi or Afghan Special Immigrant is eligible for benefits for up to 5 years from the date of admission to the U.S.

[Manual Section 4.4.5](#) has been revised to add a second example.

[Manual Section 10.1.5E](#) has been inserted to add a BG who is a victim of family/domestic violence as an exception. To be eligible for this exception, the BG member must be in a program supervised by a recognized Domestic Violence Advocate. Subsequent sections have been re-lettered.

[Under Manual Section 10.1.6D](#), the note has been revised to state SC time limit “exception”, rather than “exemption”.

[Manual Section 10.2](#) has been revised to change the title to “Adjusting Time Limit Tracking Codes”.

[Manual Section 10.3 has been revised to remove the title “Returned Checks”, and this section becomes 10.2.C.](#) Subsequent sections have therefore been renumbered.

[The chart in Manual Section 10.4 \(now section 10.3\)](#) has been revised to add the phrase “receiving as a dependent child” after “Teen parents under the age of 18”.

[Manual Section 10.5 \(now 10.4\)](#) has been revised to change the title of this section to “Verification of TANF Benefits From Another State”.

[Manual Section 10.5.1C \(now 10.4.1C\)](#) has been revised with directions to send the DSS-1262 or contact the appropriate agency for verification of benefits. Do not delay case approval beyond 30 days while awaiting a response.

[Manual Section 10.5.2B \(now 10.4.2B\)](#) has been revised to add directions to send the DSS-1262.

[Manual Section 10.7 \(now 10.6\)](#) has been revised to add two sections: “Required in the Home” and “Caretaker Relative”. Sections have subsequently been renumbered.

[Manual Section 10.9 \(now 10.8\)](#) has been revised to add that the ES must review the FITC screen in order to determine if a family is eligible to reapply at the end of the 10 year period.

[Manual Section 19.1A](#) has been revised to specify that support services should be limited to “work related” expenses.

Volume 27 | 06.01.2010 (Cont'd)

[Manual Section 19.2](#) has been revised to add that support services must be work related or needed to meet a work-related expense. **Also, this section has added that transitional services will be limited to transitional child care only.**

[Manual Section 19.4.B, #1](#) has been revised to state that gas vouchers must be limited to \$40.00 per voucher, and if more than one voucher is needed in a month, the total amount must not exceed \$75.00

[Manual Section 19.4.B, #2](#) has been revised to state that the monthly reimbursement amount for Privately Owned Vehicles must not exceed \$75.00.

[Manual Section 19.4.B, #3](#) has been revised to limit the total amount of Car Repairs/Car Insurance/Car Taxes to \$750.00 per state fiscal year, per licensed vehicle. The limited amount was previously \$1500.00 per state fiscal year. **Also, in this section, a sentence has been added to state that the individual must be employed or in an approved work activity prior to authorizing this expense payment.**

[Manual Section 19.4.C](#) has been revised to change the limit on work related expenses from \$500.00 to \$200.00 per state fiscal year, per employed individual.

[Manual Section 19.4.D](#) has been revised to change the limit on educational expenses from \$500.00 to \$200.00 per state fiscal year. Furthermore, it limits this expense to FI adults or FI teen parent adults. A child recipient in an FI or TSS case has now been excluded from this expense.

[Manual Section 19.4.E](#) has been revised to state that DSS may only assist with household expenses if the individual is currently employed or attending an approved work related activity. **Also, under this section:** the limit on **utilities** has been changed from \$1000.00 to \$500.00 per state fiscal year; and the limit on **rent/mortgage** has been changed from \$1000.00 to \$750.00 per state fiscal year.

[Section 19.16](#) has been renamed “Transitional Child Care (TCC) Eligibility”. Transitional Support Services has been removed from the title since there will no longer be transitional support services **except** for child care.

[Manual Section 19.6](#) is being revised to remove transportation as an allowable expense for Applicant Services.

A link has been added at the end of the above Manual Section (19.6). The link is [19.4.E](#).

[Manual Sections 19.16, #1, 19.16, #1A, and 19.16, #1C](#) have been revised to remove any reference to Transitional Support Services(TSS), as transitional clients will now only be eligible for Transitional Child Care.

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[Manual Section 19.16, #3](#) has been revised to remove any reference to Transitional Support Services (TSS), as transitional clients will now only be eligible for Transitional Child Care.

[Manual Section 19.16, #4](#) has been revised to remove the reference to transitional support services (TSS) and add transitional child care (TCC).

[Manual Section 19.16, #7](#) has been revised to remove the term “TSS”, as transitional clients will no longer be eligible for Transitional Services, with the exception of Transitional Child Care.

[Manual Section 19.16, #8](#) has been revised to remove the term “TSS”, as transitional clients will no longer be eligible for Transitional Services, with the exception of Transitional Child Care.

[Manual Section 19.16, #9](#) has been revised to remove the term “TSS”, as transitional clients will no longer be eligible for Transitional Services, with the exception of Transitional Child Care.

[Manual Section 24.5.H](#) has been revised to state that Iraqi and Afghan aliens granted Special Immigrant Status are eligible for the same benefits available to refugees under section 207, and to the same extent and for the same period of time as such refugees. The eight-month limit for these immigrants has been removed.

[Manual Section 24.7.3](#) has been revised to remove the eight month limit for Iraqi and Afghan aliens granted Special Immigrant Status.

A workbook has been added to the FI Manual to calculate the prorated amount of Refugee Cash Assistance for the initial month of application, per [Manual Section 24.7#5](#).

[Section 19.2](#) has been removed. An FI/TSS child recipient will no longer be eligible for assistance with educational expenses, which allow him/her to complete their education.

Section 19.3.D has been removed as “Other support services” will no longer be allowed, but support services will be confined to child care, transportation, or work-related expenses.

Section 19.6, #3A, has been removed as transportation funds may no longer be used for applicant services. Since #3A has been removed, B, C, and D, have subsequently been re-lettered.

Section 19.6, #3E has been removed as support services cannot now exceed the new limits as discussed in 19.4 above.

Section 19.13, Support Services for FI Child Recipient has been deleted. Subsequent manual sections have been renumbered.

Volume 28

No Revisions

Volume 29 | 12.01.2010

[Manual Section 2.3.1A](#) has been revised to add telephone interviews.

[Manual Section 2.3.2V](#) has been revised to add the form number (DSS 1320) for the Basic Learning Disability screening.

[Manual Section 2.4.4](#) has been revised to change references to ESC (Employment Security Commission) to DEW (Department of Employment and Workforce).

[Manual Section 3.6.2](#) has been revised in the chart section regarding adoptive children returning to the home of the biological parent, to add a Caution Note that once a child has been adopted, relationships to all blood relatives are severed, along with the birth parents.

[Manual Sections 7.3, 7.3.4, and 7.7](#) have been revised to change ESC to DEW, and Employment Security Commission to Department of Employment and Workforce.

[Manual Section 7.2.2B](#) has been revised to remove “face-to-face”.

The chart in [Manual Section 8.15 and 19.18 \(Need Standard Table\)](#) has been revised to change the effective date to October 2010. The benefit amounts have not changed.

[Manual Section 9.4](#) has been revised to remove the term “face to face”.

[Manual Sections 10.1.5, 10.6.2, 12.3, and 15.2](#) have all been changed to add that the medical incapacity is subject to reevaluation at intervals that are specific to each recipient’s circumstances, at a minimum at annual redetermination.

[Manual Section 10.5](#) has been changed to change the contact information for Louisiana Department of Social Services and North Carolina Department of Health and Human Services, Division of Social Services.

[Manual Section 16.2](#) has been revised to replace SCESC with SCDEW.

[Manual Sections 19.15.4 and 19.15.5](#) have been changed to state that if the former FI recipient becomes employed after case closure due to time limits, the TCC eligibility period begins the month the FI closes due to time limits, rather than the month the client becomes employed.

[Manual Section 19.16.1](#) has been revised to delete and add some changes which must be reported for support services. This has subsequently led to a re-lettering of the changes listed.

Volume 29 | 12.01.2010 (Cont'd)

The Glossary and the following manual sections have all been revised to change S.C. Employment Security Commission (SCESC) to S.C Department of Employment and Workforce (SCDEW): [Manual Sections 21.2.5.3, 21.2.6, 21.3.1, 21.3.5, 21.6.6, 24.8, 24.8.1, 24.8.5, 24.11.5.](#) [Manual Section 27.2](#) has been revised to add the statement that in order to be considered a CARES client, the acceptance for treatment by Vocational Rehabilitation, DDSN, or Mental Health must not be for drug addiction or due to a criminal record, but for a disability only.

Volume 30 | 02.01.2011

[Manual Sections 8.15 and 19.18](#) are being revised to change the Need Standard Tables. The change is due to the 20% reduction in FI monthly benefits which is effective 2-1-11.

Volume 31 | 07.1.2011

[Manual Section 2.4](#) has been revised to reduce the number of initial job searches that applicants are required to complete from 10 to 5. The change in section 2.4 (Effective 12/01/10) should not have appeared in the FI manual. This change regarding REAP, presented at the FI Supervisor's Training held in November 2010, was never implemented.

[Manual Section 24.7](#) has been revised to add that if the refugee applied for SNAP benefits, copies of forms DSS 3800, DSS 1324, and DSS 1325, along with documentation should be scanned in SCOSA, and the county should email State Office Refugee staff that documents have been scanned at: refugeeresettlement@dss.sc.gov.

[Manual Section 24.7.5, #1](#) has been revised to add a note, stating that if application and other documents have been scanned in SCOSA, to notify the State Refugee Office by e-mail at: refugeeresettlement@dss.sc.gov that the documents are in SCOSA.

[Manual Section 24.7.5, #2](#) has been revised to add that county staff should use the RCA Calculation Workbook attached to the FI Manual to prorate benefits for the initial month.

[Manual Section 24.8.1](#) has been revised to remove children under age 16 and children in school from the table under "Criteria for Exemption".

[Manual Section 24.8.2B](#) has been revised to change Employment Security Commission to Department of Employment and Workforce (DEW).

Volume 31 | 07.1.2011(Cont'd)

[Manual Section 24.14](#) has been revised to add a note that if the refugee applied for SNAP benefits, that the worker should scan documents in SCOSA and e-mail the State Office Refugee staff at: refugeeresettlement@dss.sc.gov.

[Manual Section 24.14, #4a](#) has been revised to state if the I-94 cards have been scanned into SCOSA, then copies of these cards do not have to be sent to the Office of Refugee Resettlement Program at State Office.

[Manual Section 24.16.1](#) has been revised to instruct workers to complete the DSS 1325 with effective date of closure, and then send to the State Office RRP, **or** to scan form in SCOSA if appropriate.

Volume 32 | 10.1.2011

[Manual Section 4.4.1](#) has been revised to clarify the definition of a U.S. citizen.

[Manual Section 4.4.3](#) the chart has been revised to move the qualified alien description to the left and leave the documents used to verify the status on the right.

Changes made to Chapter 27 in the Family Independence Manual have caused sections to be removed and subsequently re-numbered. Please make note of the new manual sections when you review the changes.

[Manual Section 27.3](#) has been revised to state the goal of the Two-Parent program and that participants should be referred to activities which will lead to employment.

[Manual Section 27.3.1](#) has been revised to state the Two-Parent program requirements have changed to include each mandatory parent in a household must participate a minimum of 30 hours per week. A minimum of 20 hours per week must come from participation in a CORE activity.

[Manual Section 27.3.8](#) has been changed to [Manual Section 27.3.9](#), Two-Parent Case Management. The section has been revised to stress the importance of Case Managers developing Employability plans with activities which will lead to employment. The documentation method has changed from the DSS 1230D to SCOSA case notes.

[Manual Section 27.3.9](#) has been changed to [Manual Section 27.3.10](#), Two-Parent Non-Discrimination. The information concerning the special accommodation has been removed. The word, "Note" has been removed. The information is now a part of this manual section. A link to section 19.1 has been added.

Volume 32 | 10.1.2011 (Cont'd)

[Manual Section 27.3.10](#) has been changed to [Manual Section 27.3.11](#), Two-Parent Program Activities. This section now has a chart that lists activities available to participants as either Core or Non-Core.

[Manual Section 27.3.11](#), Two-Parent Flexible Activities, this title has been deleted. The information has been revised and added to the new [Manual Section 27.3.11](#), Two-Parent Program Activities. This section has been revised to state the number of participation hours required for the Two-Parent program. Flexible activities listed in section 27.3.11 I, J, and K have been removed and are no longer allowed as countable activities in the Two-Parent program.

The information contained in [Manual Section 27.3.12](#), Two-Parent Participation Requirements has been moved to [Manual Section 27.3.1](#).

[Manual Section 27.3.13](#) has been changed to [Manual Section 27.3.12](#). The note has been changed to clarify that conciliation must take place prior to imposing an individual sanction for failure to sign or cooperate in the development of the Family Plan. Workers should use the “IS” closure code if both parents fail/refuse, after the initial approval, to sign/develop the Family Plan.

[Manual Section 27.3.12 #2](#), Individual Sanctions. The note has been revised to state that if a household contains a parent with an individual sanction, the non-sanctioned parent must participate 40 hours per week and 30 hours must come from participation in a Core activity.

[Manual Section 27.3.15](#) has been changed to [Manual Section 27.3.14](#). The statement concerning allowable activity hours has been removed.

[Manual Sections 8.15 and 19.18](#), Need Standard Table has been updated.

Volume 33 | 10.01.2012

[Manual Section 1.5.6](#) has been revised to clarify that workers should not take action on cases where there may be a conflict of interest.

[Manual Section 2.1.2](#) has been revised to delete the DSS 3800A and DSS 3800B as forms that make up a required FI application. It has been changed to state that applicants must complete the DSS 3800, which includes Rights and Responsibilities and Confidential Information Policy.

[Manual Section 2.1.7](#) has been revised to add fax and electronic submission (completing on-line application) as ways to submit an application to a county.

Volume 33 | 10.01.2012

[Manual Section 2.1.14](#) has been revised to delete the sentence about scheduling the interview appointment within five calendar days of the filing date. This change is being made due to RSW procedures, where clients receive a notice and call in for their interviews.

[Manual Section 2.3](#) has been revised to remove the face-to-face requirement for the interview and has been changed to state: “The interview may be conducted by telephone, at the local DSS office, or a mutually agreed upon location. The interview should be a confidential discussion of the household circumstance.”

[Manual Section 9.2](#) has been changed to remove the words “face-to-face” for interviews, since interviews for redeterminations, as well as applications, may be done by phone.

[Manual Section 10.5](#) has been revised to add contact information for Florida DSS ACCESS e-mail, and to change the contact information for Virginia DSS and North Carolina DSS. These contacts are for verifying out of state benefits.

[Manual Section 24.8](#) has been revised to remove Department of Employment and Workforce (DEW) from this paragraph.

Sections 2.11(1), 2.11(2), 2.11(3), and 2.11(4) have been removed.

Sections 2.12(1) and 2.12(2) have been removed, as the 3800-B is no longer a required form for the FI application.

Volume 34 | 03.01.2013

[Manual Section 24.8, #2B](#) has been revised to change the agency where the worker must send the DSS 1324 from the Department of Employment and Workforce (DEW) to Lutheran Family Services, 1118 Union Street, Columbia, SC 29201, fax # 803-750-9920.

[Manual Section 24.8.5](#) has been revised to remove “DEW” from the paragraph.

[Manual Section 24.11.5](#) has been revised to remove “DEW” as the agency to refer refugees. Glossary Section “Gap Payment”- the FI Ratable Reduction % has been revised in computing the GAP payment.

[Manual Section 10.5](#) has been revised to update phone numbers, emails, and addresses for out of state verifications.

[Manual Section 10.6.2](#) has been revised to add that the individual must be a family member living in the home.

Volume 34 | 03.01.2013

[Manual Section 12.5](#) (The Chart) has been revised to add that PW's must participate 20 hours per week.

[Manual Section 18.2](#), first item in the chart has been revised to clarify that the only parent in FI family with child under one is required to participate 20 hours per week.

[Manual Section 24.8](#) has been changed to add the word "adult" in the first sentence ("All adult refugee BG members...").

[Manual Section 24.8.1](#)—The chart has been revised to remove the last two criteria from "Criteria for Work Exemption": (1) A single parent of a child(ren) under 6; and (2) Parent is caretaker of child(ren), and non-exempt adult in the home is registered.

[Manual Section 28 Federal Tax Information](#) has been added to explain policies and procedures regarding the handling of federal tax information.

Volume 35 | 10.01.2013

[Manual Section 8.15, Need Standard Table](#) has been revised to change the Need Standard Table to show the increase in FI benefits effective October 2013. The change is based on the increase to the Annual Federal Poverty Guidelines for 2013.

[Manual Section 19.18, Reference Need Standard Table](#) has been revised to change the Need Standard Table to show the increase in FI benefits effective October 2013. The change is based on the increase to the Annual Federal Poverty Guidelines for 2013.

[Manual Section 19.14, Childcare Services](#) has been revised to inform Case Managers that they must inform single custodial parents that they will not be sanctioned if unable to secure child care for a child under six.

[Manual Section 24.16, Closure Due to Eligibility Time Limit](#) has been revised and renamed [Refugee Cash Assistance Case Closure](#). This section has been changed to [Manual Section 24.13, Refugee Cash Assistance Case Closure](#). Subsequent pages have been renumbered. This section has been revised to explain that cash benefits for any refugee recipient who has been in the U.S. for eight months must be terminated and why case closure may occur. Closure Procedures were also explained.

[Manual Section 28.4, Reporting Unauthorized Disclosures](#) has been revised to remove information regarding an employee who detects any incidence of Unauthorized Access to report to CHIP Helpdesk Monitors. This information was replaced with the appropriate contact information

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address, telephone number, and email address and indicates what information should be documented.

Section 24.3, Documentation of Financial/Medical Need, has been removed.

Section 24.4, Determining Level of Support of Individual, has been removed.

Section 24.7.4 e, Refugee Cash (RCA) Eligibility Requirements, has been removed. The “EXCEPTION” has also been removed.

Section 24.15, Case Transfer Procedures, has been removed.

Section 24.15(1), CM Actions, has been removed.

Volume 36 | 12.11.2013

[Manual Section 1.5 #6, Actions on Cases of Relatives](#) has been revised to explain the process for handling cases involving relatives and/or conflicts of interest.

[Manual Section 2.11, Voter Registration](#) has been revised to include additional voter registration services which are provided to all A/R's at application. The South Carolina Election Commission's Website was also updated. An entire section entitled “Procedures” was added.

[Manual Section 11.2 #3, Electronic Benefit Issuance](#) Section 3 has been revised to add Section 3, entitled ePay Debit Card Access. Language added to this section lists the federal restrictions of TANF use in certain locations.

[Manual Section 4.4.3, Qualified Alien Eligibility](#) has been revised to add in the sentence, that the following groups of aliens may receive benefits if all other requirements are met, for up to five years from “either the date of entry or the date the status is granted”.

Manual Section 19.12.3, Guidelines, Family Cap Vouchers has been revised to show the increase of the appropriate amount of the voucher from \$40.00 to \$57.00.

Volume 37 | 09.30.14

[Manual Section 3.9.3, Sanctions and Disqualifications](#) has been revised to add “JF” as a full family sanction denial/closure reason.

[Manual Section 5.3, Good Cause Claim for Child Support](#) has been revised to add that a photocopy of the signed DSS-3816C, Child Support Referral or Section 3 of the DSS 3800, Absent Parent Information, with proof of the good cause verification attached, will be completed and sent to CSED within two working days of approval.

[Manual Section 8.15, Need Standard Table](#) has been revised to change the Need Standard Table to show the increase in FI benefits effective October 2014. The change is based on the increase to the Annual Federal Poverty Guidelines for 2014.

[Manual Section, 11.2 #3, Electronic Benefit Issuance](#) has been revised to add action taken if the ePAY Debit Card is used in restricted locations.

[Manual Section 19.13.8, #3, Transportation Stipend](#) has been revised to add #3 which explains the need to have secondary verification documentation attached to the DSS 3713.

Volume 37 | 09.30.14 (Cont'd)

[Manual Section 19.16, #6C, Use of the Gas Voucher](#) has been revised to explain the need to have secondary verification documentation attached to the DSS 3713.

[Manual Section 19.18, Reference Need Standard](#) has been revised to change the Need Standard Table to show the increase in FI benefits effective October 2014. The change is based on the increase to the Annual Federal Poverty Guidelines for 2014.

[Manual Section 23.1, DSS Responsibility](#), has been revised to rename Recipient Claims workers (RCW's) to Benefit Integrity Claims Specialists (BICS).

[Manual Section 23.2, Detailed Information on Claims](#) has been revised to state that policies and procedures for establishing claims can be found in the SNAP/TANF Benefit Integrity Manual.

[Manual Section 23.3, Claims Referral Procedure](#) has been revised to change Recipient Claims Unit (RCU) to the Benefit Integrity Unit and it has been revised to explain the process for submitting a claim for an overpayment.

[Manual Section 23.4, Underpayments](#), has been revised to add that an underpayment is corrected for active cases by the EW. A statement was also added that an underpayment can be corrected by eligibility staff when the case is reopened.

[Manual Section 23.8](#) has been revised. It has been revised to explain the process for submitting claims.

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[Manual Section 23.8, #2](#) has been deleted and replaced with new information regarding the BICS Responsibilities for Possible Claims.

[Manual Section 23.9, #2D, AG Claims](#) has been revised to add that the Agency's access to IEVS information does not relieve the household of its responsibility to report changes accurately.

[Manual Section 23.11, Requesting Fair Hearing](#) has been revised. Benefit Integrity Unit replaces RCU as the point of contact for a Fair Hearing.

[Manual Section 23.11, #1, Continued Benefits](#) has been revised to include, "In order to be eligible for continued benefits, the recipient must be cooperating with the work component, if mandatory." It has also been revised to include the **"NOTE"** section.

[Manual Section 23.13, Recognizing Overpayments on CHIP](#), has been revised to state the BICS will initiate collection of overpayments. This is indicated on CHIP screen AFBH in the RECOUP column.

[Manual Section 23.13, B #1B3](#) has been revised to state that "an acceptable method of payment" replaces "repayment". The sentence, "This may include cash, check, or money order" was added.

[Manual Section 25](#) The title of this chapter has been revised to Non-Emergency Repatriate Program Services.

[Manual Section 25.1, Definition](#) has been revised to rephrase the definition of repatriate.

[Manual Section 25.3](#) has been revised to include **"NOTE:** Policy for Mass Emergency Repatriation is not covered in this chapter".

[Manual Section 25.4](#) has been revised to advise that determinations for citizens and dependents will be forwarded to the State Refugee Resettlement Office. In this same section, "non-emergency" has been added under qualifications.

[Manual Section 25.5, #2, Process Flow](#) replaces #2, Extensions. It has been revised to explain that information will be forwarded to the Refugee Resettlement Unit through the Office of Refugee Resettlement (ORR) service provider, International Social Services, (ISS). Also added is that the State Refugee Resettlement Office (SRR) will be the point of contact between ISS and the county office.

[Manual Section 25.6, Eligible Services](#) has been revised to add that individuals eligible under the RP receive the following services "at a reasonable cost" and "cost" has been defined. Also added in this chapter are expenses that are included under "Direct Expenses."

[Manual Section 25.7](#) BG Composition has been deleted.

Volume 37 | 09.30.14 (Cont'd)

[Manual Section 25.8](#) was renumbered to **Manual Section 25.7, repayments Requirement**. #1 was deleted. It includes a new subtitle, **“Possible Repayment Waiver”**. Information located under subtitle, **“Waiver Conditions”**, explain how a waiver and/or deferral of repayment must be requested. Acceptable conditions for waiver is now listed under letter (A) which was listed originally as (C). Information located under letters D & E and the **“Exception”** was deleted.

[Manual Section 25.9](#) was renumbered to **Manual Section 25.8, Repatriate Referral**. It now states that State RR will notify the appropriate county office when information is received than an eligible repatriate is expected to arrive.

[Manual Section 25.10, Funding](#) was renumbered to [Manual Section 25.9](#). “By the ORR contractor” was added. The **“Note”** information was deleted.

[Manual Section 25.11, CM Actions](#) was renumbered [Manual Section 25.10](#). It was renamed [Case Management/State Responsibilities](#). Entire information was deleted and replaced with information [“a through l”](#).

Manual Section 25.11, Reimbursement Procedures has been added.

Volume 38 | 01.07.2015

[Manual Sections 3.1, Benefit Group Definition, 3.2 Required BG Members, 3.6A, Possible Benefit Groups, 3.12C, FI Family Definition](#) have been revised to include Same Sex Marriage. This information was also added in a Note section in [3.12, #2, FI Family Definition](#).

[Manual Section 3.9, Sanctions and Disqualifications and Manual Section 18.9](#) has been revised to remove the information regarding sanctions and Medicaid eligibility.

[Manual Section 10.5, State Social Service Agencies](#) has been revised to reflect updated contact information.

[Manual Section 11.2.1, ePAY Debit Cards](#) has been revised to state that debit cards will be mailed to recipients within 7-10 business days and the return address for ePAY debit card was updated.

[Manual Section 19.8](#) The “NOTE” section has been deleted.

[Manual Section 19.7.3, 19.13, Childcare Services and the Glossary](#) has been revised to reflect name change from ABC Voucher System to SC Voucher Program.

[Manual Sections 19.15.7-9](#) has been revised to explain the process for requesting transitional child care.

Volume 38 | 01.07.2015 (Cont'd)

Section 19.9 [Low Income Applicant Childcare: This section](#) has been removed.

Volume 39 | 04.14.2015

[Manual Section 1.4.6, Case Record Documentation](#) has been revised to update the process for documenting case records using the Documentation Tool.

[Manual Section 2.8.1, Ineligible First Month](#) has been revised to clarify the appropriate notices to send when an applicant is ineligible the first month, but eligible in subsequent months.

[Manual Section 2.8.2, Eligible First Month-Ineligible Subsequent Months](#) has been revised to clarify the appropriate notices to send when an applicant is eligible the first month, but ineligible in subsequent months.

[Manual Section 9.2.1, Annual Redetermination Actions](#) has been revised to describe the actions required by eligibility specialists on redeterminations selected by CHIP.

[Manual Section 10.5 State Social Service Agencies](#) has been revised to update Virginia Department of Social Service's email address.

[Manual Section 11.3.1, Protective Payee Situations](#) has been revised to add "parent" under General Policies next to the Protective Payee Reason, Drug Related Conviction, as someone who if [disqualified due to drug related conviction, must have a protective payee.](#)

[Manual Section 19.14, Transitional Childcare \(TCC\)](#) section has been revised to add Section F which gives an additional closure reason (VE), whereby clients could be eligible for TCC.

Volume 40 | 07.30.15

The new forms, DSS 1015 A, Work Readiness Assessment (WRA), DSS 1015 B, Assessment Summary and the DSS 1022, Individual Employment Plan (IEP) will replace the DSS 1230, Parts A, B, and C Family Plan and DSS 3626 (YISSP) as well as some of the assessment/screening forms previously used in the FI, CARES and Two-Parent programs. We will continue to use some screenings currently listed in the FI manual. Please review each chapter to determine the appropriate screenings/assessments/evaluations to use for each program.

Volume 40 | 07.30.15 (Cont'd)

[Manual Section 12.1, Introduction and Purpose of the FI Work Requirement](#), has been revised to give the names and DSS numbers of the forms included in the FI Family Plan.

[Manual Section 12.4, Work Program Compliance](#), has been revised to change the referral procedures from the ES Worker to the Case Manager.

[Manual Section 12.6, Non-Custodial Parent Requirements, Section #3 E](#), the Employment Plan has been changed from DSS 1230C to DSS 1022.

[Manual Section 13.2, FI Case Plan Process](#), has been revised to delete the case file set up information and add that the Case Manager will send the Family Plan appointment notice. Case notes in SCOSA was also added as an appropriate place for case management documentation.

[Manual Section 13.3, FI Case Assessment Process](#), the NOTE has been removed.

[Manual Section 14.1, Assessment Process](#) - in letter B #3, the statement “and other family members” and the NOTE have been deleted. Letter C has been added which lists the forms necessary for a work eligible individual.

[Manual Section 14.1 Section 1, Screenings, Evaluation and Assessment](#) has been updated to remove the obsolete assessment/screening tools; T-ACE, CAGE, Zung, Beck, DSS 1232, and AAPI. Section 2, Assessment Elements, now lists information included in the new assessment form. Sections 4, Learning Disabled Screening Tool and Section 5, Family Assessment have been removed and subsequent sections have been renumbered.

[Manual Section 14.2, Family Plan](#) has been updated to include the names and form numbers of the forms included in the Family plan.

[Manual Section 14.3, Family Evaluation](#) has been revised to replace the DSS 1230 with the DSS 1015 A as the form used for assessment.

[Manual Section 14.4, Responsibility Plan has been replaced with Manual Section 14.4, Individual Employment Plan \(IEP\)](#). Section 3, Documentation, has been removed. Section 6, Vocational Objective, has been revised to add that a short-term vocational objective must be identified for each work eligible individual. Subsequent manual sections in Chapter 14 have been renumbered.

[Chapter 24, Refugee Programs](#), has been replaced with a new Chapter 24, Refugee Cash Assistance. Chapter 24 provides information on eligibility for Refugee Cash Assistance including the necessary documents, financial requirements, time limits, payment levels, fair hearing rights, and case closure.

Volume 40 | 07.30.15 (Cont'd)

[Chapter 25, Non-Emergency Repatriate Program Services](#), has been removed. Updated and expanded policy about the Non-Emergency Repatriate Program is now included in the new Refugee Resettlement Program and Non-Emergency Repatriation Program Policy Manual. Removing this section has caused subsequent chapters/pages to be renumbered.

Refugee program information will be included in the Refugee Resettlement Manual.

[Manual Section 27.1, State Programs](#), has been revised to delete the case file set up information and add that the Case Manager will send the Family Plan appointment notice.

[Manual Section 27.2, State CARES Program](#)- Sections 2 and 3 have been updated to include the names and form numbers of the forms included in the Family plan. Section 4 has been updated to remove the obsolete assessment/screening tools; T-ACE, CAGE, Zung, Beck, DSS 1232, DSS 3733, Washington State Screening tool and AAPI. Section 5, CARES Family Assessment, now lists information included in the new assessment form. Section 13, CARES Tracks, the Washington State Screening Tool has been replaced with the Work Readiness Assessment (WRA) in Letter A, CARES Track 1 Characteristics.

[Manual Section 27.3, State Two-Parent Program](#), has been revised to give the names and DSS numbers of the forms included in the FI Family Plan. Section 2, Two-Parent Evaluation, has been updated to remove the obsolete assessment/screening tools; T-ACE, CAGE, Zung, Beck, DSS 1232, DSS 3733, Washington State Screening tool and AAPI. Section 3, Two-Parent Family Assessment, now lists information included in the new assessment form. Section 7, Two-Parent Case Plans, the NOTE regarding responsibility plans has been removed.

Volume 41 | 10.01.15

[Manual Section 8.14 #2](#) has been revised to update the example in the manual proration calculation.

Manual Sections 8.15 and 19.17 have been revised to change the Need Standard Table to show the increase in FI benefits effective October 2015. The change is based on the increase to the Annual Federal Poverty Guidelines for 2015.

[Manual Section 2.4.1, Individuals not required to complete Initial Job Search:](#) This section has been updated to reflect that Refugees are not required to complete the initial job search.

Volume 41 | 10.01.15 (Cont'd)

Manual Section 4.12.1, Initial Job Search Requirement: This section has been updated to reflect that an applicant must make and document a minimum of five employer contacts during the application process.

Volume 42 | 10.01.16

Manual Section 7.7, Sources of Income Chart: This section has been updated to delete the sentence, “any duplication of funds that must be counted as unearned income”.

Manual Section 8.14 #2, CHIP Calculation: This section has been revised to update the example in the manual proration calculation.

Manual Section 8.15, Need Standard Table: This has been revised to show the increase in TANF benefits effective October 2016. The change is based on the increase to the Annual Federal Poverty Guidelines for 2016.

Manual Section 19.17, Reference Need Standard Table: This section has been revised to show the increase in TANF benefits effective October 2016. The change is based on the increase to the Annual Federal Poverty Guidelines for 2016.

Manual Section 24.3, Refugee Cash Assistance – Qualifying Documents: This section has been updated to add ‘Cuban and Haitian Entrants Parole’ as an eligible status when applying for Refugee Cash Assistance (RCA). In addition, this section has been updated to reflect that an ‘I-94 indicates parole status as a Cuban/Haitian Entrant, and is a qualifying document under documentation.

Manual Section 24.4.3, RCA Payment Level: This section has been revised to change the monthly benefit amount based on the 2016 Need Standard Payment.

Chapter 27, Federal Tax Information: This chapter has been deleted to comply with safeguard audit requirements.

Child Support Enforcement Division and the acronym ‘CSED’ have been replaced throughout the TANF Manual to Child Support Services Division and ‘CSSD’.

Workforce Investment Act and the acronym ‘WIA’ have been replaced throughout the TANF Manual to Workforce Innovation and Opportunity Act and ‘WIOA’.

Family Independence and the acronym ‘FI’ have been replaced throughout the TANF Manual to Temporary Assistance for Needy Families and ‘TANF’.

Volume 43 | 04.01.17

2.5.6, Required Action: This section has been revised to clarify that denial code “FP” is the only code in which the benefit group receives a second 30-day period to comply and receive prorated benefits. An interview is part of the application process, but the benefit group **does not** receive a second 30-day period to complete an interview (denial code “FC”).

2.8, Accrual Rights: This section has been revised to clarify that denial code “FP” is the **only** denial code in which the benefit group receives a second 30-day period to comply and receive prorated benefits.

2.21, General Verification and Documentation Criteria: This section has been revised to state that as a last resort, after all other means of verification have been exhausted, a client’s statement may be used. This section has been subsequently renumbered.

4.4.3, Qualified Alien Eligibility: This section has been updated to state that an I-94 has to indicate “Refugee”, but does not have to be stamped with ‘Refugee’, per section 207 or Section 212(d)(5) of the Immigration and Nationality Act (INA).

5.1.4, Minimum Parent/Caretaker Relative Requirements: This section has been reworded to clarify that the minimum information is required for **each** absent parent (AP) and **each** putative father named.

5.2.1, Good Cause: This section has been updated to provide additional clarification regarding claiming good cause relating to child support requirements.

5.3.1, EW Responsibility (Good Cause Child Support): This section has been updated to clarify that a determination of good cause must be made by the Agency within forty-five days from the date the good cause claim is made.

7.7, Sources of Income: This section has been updated to add a note to ensure that staff is aware that refugees cannot receive TANF and the Matching Grant simultaneously.

11.3.1, Protective Payee Situations: This section has been revised to add that when the parent or caretaker is a fleeing felon, the benefit must be paid in the form of a protective payee.

22.2, CM EW Responsibilities: This section has been revised for clarity.

22.3, TANF Supervisor Responsibilities: This section has been revised to state that TANF Supervisors must attend and participate in fair hearings.

22.8, Denial Situations: This section has been updated to add the preferred methods of withdrawal from a Fair Hearing.

Volume 43 | 04.01.17 (Cont'd)

24.3, Refugee Cash Assistance – Qualifying Documents: This section has been updated to state that an I-94 has to indicate “Refugee”, but does not have to be stamped with ‘Refugee’, per section 207 or Section 212(d)(5) of the Immigration and Nationality Act (INA).

24.4.5 (2), RCA Eligibility Process and Forms: This section has been updated to state that a copy of the Department of Homeland Security or USCIS document verifying the parole or Asylum status must be sent with the DSS 1324 to the Refugee Employment Service Provider, Lutheran Services, or World Relief when referring Cuban and Haitian Entrants or Asylees for Work registration.

Per directive from Executive Management, **Home Visits are no longer required.** Therefore, all references to Home Visits have been removed throughout the TANF Manual.

Section 10.5, State Social Service Agencies (The National Directory of Contacts), has been removed from the TANF Manual. It is now located on the Intranet and can be accessed by clicking on the Program Area heading, the County Operations tab and the Contact List tab or click on the link below:

<https://unite/CountyOperations/Shared%20Documents/Contact%20Lists/National%20Directory%20of%20Contact.pdf>

Telephone and Face-to-Face Interviews have been replaced throughout the TANF Manual to Telephone Hearing.

SNAP2Work and FSE&T have been replaced throughout the TANF Manual to SNAP E&T.

TANF Manual Attachments (Case Review Guide; Determining Participation Weeks for PATS; Family Independence, Employment, Component & Activity Codes; WTA Budget Sheet; Calculation of RCA Benefit Amount for Initial Month) have been updated and can be found on Page 1 of the Manual.

Volume 44 | 09.01.17

3.4, Living with Relatives: This section has been updated to clarify that in order to receive TANF, a child must live with a “first” cousin or first cousin once removed, and to remove, “This list is not all inclusive”.

4.1, Residency Requirement: This section has been updated to remove information that in order to receive benefits, the benefit group (BG) must be certified by the county in which it resides.

Volume 44 | 09.01.17 (Cont'd)

4.4.3, Qualified Alien Eligibility (Lawful Permanent Resident (LPR)): This section has been updated to remove the I-151, Alien Registration Receipt Card from the chart as it is no longer valid. Older versions of the I-551, Resident Alien cards do not have expiration dates and may still be valid. The I-551 is now known as the Permanent Resident Card and contain 2 year or 10 year expiration dates.

4.6.3, Verification Document Sources (N) and (O): Section “N” has been updated to delete the I-151, Alien Registration Receipt Card as a verification **document** source and section “O” has been updated from Resident Alien Card to Permanent Resident Card.

9.8 2 D, Changes Which Must be Reported: This section has been updated to clarify that the BG is required to report a change in unearned income (amount or source).

19.10.11, Support Services (Fingerprint Review): This section has been updated to explain the new process for fingerprint reviews for prospective child care applicants. This section has also been updated to reflect the Division of Investigation’s name change to the Office of Inspector General, and updated contact information has been provided.

The word “Alien” has been replaced throughout the TANF Manual to “Non-Citizen”.

The word “Recertification” has been replaced throughout the TANF Manual to “Renewal”.

Volume 45 | 10.01.17

2.6 Disposition of Application (2) D Denial: This section has been revised to remove information regarding it not being necessary to send written notification of a withdrawal of a TANF application if the application was withdrawn prior to registration.

8.15 Need Standard Table: This section has been revised to change the Need Standard Table to show the increase in TANF benefits effective October 2017. The change is based on the increase to the Annual Federal Poverty Guidelines for 2017.

19.17 Reference Need Standard Table: This section has been revised to change the Need Standard Table to show the increase in TANF benefits effective October 2017. The change is based on the increase to the Annual Federal Poverty Guidelines for 2017.

Volume 46 | 01.01.18

[1.5 Confidentiality and Program Compliance \(4\) \(G\) Disclosing Confidential Information:](#)

This section has been revised to update the disclosure language pertaining to the third-party rule.

[7.6 State Director of New Hires:](#) This section has been revised to update the Child Support New Hire (CSNH) screen to New Hires Inquiry Screen (NEHI).

[7.7 Sources of Income:](#) This section has been updated to clarify that Veterans Benefits are excluded when used for educational purposes to cover the costs of tuition and mandatory fees. In addition, the lists of verification associated with Educational Income has been removed from the Sources of Income chart.

[16.1 Employment \(EMPL\) \(4\) Subsidized Employment – Sponsored Employment Program \(SEP\):](#) This section has been removed since SCDSS does not have a contract to offer the Sponsored Employment Program (SEP). Manual Sections and Pages have been renumbered subsequently.

[24.4 RCA/TANF Relationship:](#) This section has been updated to include information that the Refugee Cash Program (RCA) must be consistent with TANF Program when determining initial and ongoing eligibility and benefit amounts.

[26.2 State CARES Program:](#) This section has been updated to replace the term mental retardation to intellectual disability to reflect the widespread adoption of this term by Congress, government agencies, and various public and private organizations.

Section 21.6 Subsidized Employment, Sponsored Employment Program (SEP): This section has been removed since SCDSS does not have a contract to offer the Sponsored Employment Program (SEP).

Volume 47 | 08.01.18

[1.5 \(6\) Confidentiality and Program Compliance \(Conflict of Interest\):](#) This section has been updated to change the title from Actions on Cases of Relatives to Conflicts of Interest, and to clarify that an Economic Services worker cannot take action on his/her own case and the cases of relatives, friends, co-workers, known associates and people in which the worker has a conflict of interest.

[2.1 \(14\) General Application Process \(ES Interview\):](#) This section has been revised to reflect that the applicant or recipient may be represented at the interview by an individual of his/her choice.

[3.1 Benefit Group Definition:](#) This section has been updated to reflect that same sex marriages are now legal in all 50 states, based on the U.S. Supreme Court ruling of June, 2015.

Volume 47 | 08.01.18 (Cont'd)

3.2 (4) Required BG Members (Prohibited BG Members): This section has been revised to include children receiving subsidized guardianship payments.

3.6 (D) Possible Benefit Groups: This section has been revised to include parent/caretaker relative(s) only cases when the child receives subsidized guardianship payments.

3.6 (2) Special BG Situation: This section has been revised to show how the living arrangement that contains a child receiving subsidized guardianship payments should be treated.

4.4 (2) Citizenship Requirement (Eligible Non-Citizens): This section has been updated to reflect the citizenship requirement prior to PRWORA.

4.7 Enumeration Requirement: This section has been updated to explain the reasons for the Enumeration Requirement.

4.7 (1) Methods of Application: This section has been revised to provide the updated process for assisting the client with completion of SS-5 at the county office.

4.7 (1) (A) Completion of SS-5 in county office: This section has been updated to add a link to the SS-5.

4.7 (1) (B) Application in the SSA office: This section has been revised to provide information regarding when a client should be referred to the SSA office for completion of the SS-5.

4.7 (4) ES Worker Responsibilities: This section has been revised to provide the worker's responsibilities when an SSN Required Alert appears/generates in CHIP.

4.9 (2) SSN Validation Methods: This section has been updated to remove reference to the CR 510, Validation Error Report, since it is no longer used.

4.15 Fleeing Felons and Probation/Parole Violators: This section has been revised to update the process for fleeing felons and probation/parole violators. Information in subsections 3-6 have been removed and re-numbered subsequently.

6.9 (8) Entering Vehicles on CHIP: This section has been updated to clarify the process for keying a Vehicle Use Code of "FC" on CHIP VEHI screen if a vehicle is countable for TANF.

7.6 State Directory of New Hires: This section has been updated to remove reference to the New Hire alert since this alert is no longer being generated in CHIP.

Volume 47 | August 01, 2018 (Cont'd)

7.7 Sources of Income: This section has been updated to clarify that Guardianship Subsidy is excluded. In addition, Subsidized Federal, state or local payments have been expanded to include guardianship payments.

9.2 Type of Reviews: This section has been updated to change SCCHIP to SCWINS.

9.4 Failure to Comply with the Interview: This section has been updated to clarify that the CHIP system will automatically close the TANF case at the end of the month and generate a Fail to Complete Interview notice when a BG fails to complete the interview process.

17.6 (7) Methods of Verification and Documentation: This section has been updated to remove reference to CAGE since it is no longer being used.

19.4 Priority List for Support Services: This section has been updated to list the Employment Services Division's email address.

19.14 (7-9) Transitional Child Care (TCC): This section has been updated to reflect that mail should not be sent via email to request child care services but should be sent to the ABC mailbox via SCOSA as mail.

Revisions have been made throughout Chapter 21 to reflect edits made by the Employment Services Division to clarify the Work Force Consultant's role and job development functions due to the implementation of Striving to Achieve Rapid Success (STARS) program, effective July 1, 2018.

Job Developer and the acronym "JD" have been replaced throughout the TANF Manual to Workforce Consultant and the acronym "WFC".

Revisions of the Work Program form numbers for the Employment Services Division have been updated throughout the manual.

The DSS Form 12117, FI Change Report Form, has been changed to DSS Form 1620, Combined Change Form throughout the manual.

The Index has been removed from the TANF Manual since there is a search feature in the manual.

Revisions have been made in the Glossary to define terms now being used in the TANF Manual to include Guardianship Subsidy, Subsidized Adoption Payment, and Subsidized Guardianship Payment.

Economic Services Worker (EW) and Eligibility Specialist (ES) have been changed to Economic Services (ES) Worker throughout the manual.

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[2.1.7 General Application Process \(Application Submission\)](#): This section has been revised to include “other electronic submission” to the list of ways TANF applications may be filed.

[3.2 Required BG Members](#): This section has been revised to clarify which individuals are required BG members with respect to the dependent child living in the home.

[3.4 Living with Relatives](#): This section has been revised to clarify that the dependent child must be living with relatives within the specified degree in order to be eligible for TANF.

[8.15 Need Standard Table](#): This section has been revised to change the Need Standard for the TANF Program and to show the increase in TANF benefits effective October 2018.

[10.4 Verification of TANF Benefits from Another State](#): This section has been updated to provide additional information for clarity.

19.17 Reference Need Standard Table: This section has been revised to change the Need Standard for the TANF Program and to show the increase in TANF benefits effective October 2018.

9.9 Transferring Cases: This section has been removed from the manual since it does not reflect the current procedures.

The DSS Form 1209, Statement of Paternity, has been removed throughout the manual since it is now obsolete.

Titles of forms have been updated throughout the manual to reflect the current titles.

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[1.5 \(4\) \(G\) Confidentiality and Program Compliance \(Disclosing Confidential Information\)](#): This section has been revised under the “Exception” to clarify the Third-Party information that may not be made available to the Benefit Group.

[2.1 \(11\) General Application Process \(Application Not Filed in County of Residence\)](#): This section has been updated to change the title and also to provide the current procedures for registration of application regardless of the county of residence. This subsection has been renumbered from 13 to 11.

[2.1 \(12\) General Application Process \(ES Worker Interview\)](#): This section has been updated to clarify that a household’s residence is no longer a mutually acceptable location to conduct an interview, per Executive Management. This subsection has been renumbered from 14 to 12.

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2.6 Disposition of Application: This section has been updated to provide a link to an exception.

2.8 Accrual Rights: This section has been updated to include the definition of accrual rights, and to clarify how accrual rights apply to BGs in different situations.

2.9 Benefit Use: This section has been updated to include federal restrictions to prevent TANF funds from being used in any electronic benefit transaction in a liquor store, casino or other gambling establishment, and certain adult-oriented entertainment.

4.4 (3) Citizenship Requirement (Qualified Non-Citizen Eligibility): This section has been revised to clarify that Lawful Permanent Residents must have worked 40 qualifying quarters in addition to meeting the 5-year residency requirement from the date of entry.

7.7 Sources of Income: This section has been updated to clarify the amount of Social Security benefits counted regardless if the representative payee lives in or out of the home.

8.8 (6) Earned Income/Self-Employment (Allowable Self-employment costs): This section has been updated to reflect that the lists of allowable and non-allowable self-employment costs are not all inclusive. A link to IRS Business Expenses Publication 535 has been added to allowable expenses.

9.4 (1) Failure to Comply with Interview (Good Cause/Missing Interview): This section has been updated to clarify the reason why a Benefit Group (BG) may be granted good cause for missing a TANF Redetermination interview.

12.5 EMPR Codes for Work Programs: This section has been updated to clarify that a single parent personally responsible for the care of a child under age one ("PW") may be excluded from the TANF Participation Rate for 12 months in a lifetime and cannot be sanctioned for non-participation.

15.1 (1) Federal Participation Rate Requirements (Families Included in the All-Family Participation Rate): This section has been updated to clarify that although a single parent personally responsible for the care of a child under age one ("PW") may be excluded from the TANF Participation Rate for 12 months in a lifetime, he/she is expected to participate in the TANF Work Program for 20 hours per week. However, he/she cannot be sanctioned for non-participation.

15.2 Legal Cause Criteria for TANF Work Program Participation: This section has been updated to clarify that a single parent personally responsible for the care of a child under one may be excluded from the TANF Participation Rate for 12 months in a lifetime and cannot be sanctioned for non-participation.

18.2 Legal Cause Criteria for TANF Work Program: This section has been updated to clarify that a single parent personally responsible for the care of a child under one will always be coded "PW" on the CHIP EMPR screen unless they are a Young Custodial Parent (YCP).

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25.2 TANF Accommodations Requirements: This section has been updated to clarify that although an authorized representative may not negotiate a family plan, he/she may provide child support information.

26.2 State CARES Program: This section has been updated to clarify that the incapacity of an adult recipient must be a physical or mental disability, lasting 90 days or more, regardless if he/she can participate in a TANF work activity or not. Some CARES clients may be able to participate in a TANF work activity even though they have a physical or mental disability lasting 90 days or more.

2.1.11 General Application Process (Prescreening) and 2.1.12 General Application Process (System Registration): These sections have been removed from the manual since they do not reflect the current process/procedures. Subsequent sections have been renumbered accordingly.

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2.14 Child Support Assignment: This section has been revised to clarify that CSSD may pursue support and maintenance from one or both of the child's maternal and paternal grandparents as long as the parent of the child is under 18 years of age and is unmarried (regardless if the grandparent is the caretaker relative with whom the child lives).

2.19 (2) Applicant Reporting Requirements (Method of Report): This section has been updated to state the various ways an A/R may report changes between redeterminations.

4.4 (5) Citizenship Requirement (Eligible Aliens with Special Immigrant Status): The title of this section has been changed to "Iraqi and Afghan Special Immigrants".

5.2(4) Information to Provide to the A/R (Grandparent Information): This section has been revised to clarify that DSS Form 27176, Grandparent Referral Form, is forwarded manually to CSSD and not to the county office of child support.

24.2 (F) Population Eligible for Refugee Cash Assistance (Special Immigrant Status): This section has been updated to change the title to "Iraqis and Afghans with Special Immigrant Status".

2.7(1) Notice Standards (Approval Notice): This section has been updated to remove the Note, since the Change Report Form is no longer provided to clients at interview and approval due to the Agency's call-in process for interviewing. However, the form is made available at a prominent place in the lobby of the local DSS Offices.

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3.10 Student Definition: This section has been removed from the manual as this information is already covered in manual sections 4.11 and 4.13. The note from this section has been moved to section 4.13. The new title for section 3.10 is Striker Definition.

4.1(2) Residency Requirement (Location of Address): This section has been removed since clients are no longer required to provide directions to their homes.

The DSS Form 1207, Vital Statistics Verification, has been removed throughout the manual since it is no longer being used.

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1.1 Legal Basis and Program Purpose: This section has been updated to reflect that the name for the current welfare program in SC is Temporary Assistance for Needy Families (TANF), rather than Family Independence(FI), its former name.

1.2(1) Objectives of the TANF Program (Types of TANF Cases): This section has been updated to remove the acronym “TCC” and to link this section to section 17.10.

1.5(4)(G) Confidentiality and Program Compliance (Disclosing Confidential Information): This section has been revised to update the language pertaining to the disclosure of confidential information.

2.1(16) General Application Process (Possible Benefits): This section has been revised to provide a general overview of the requirement of an applicant/recipient (A/R) to apply for other possible benefits and to link this section to section 7.4.

2.3(2)(L) Requirements of an Interview (Required Explanations During Interview): This section has been updated to clarify that a family cap child may be applicable after any approval for TANF cash benefits.

2.4 Initial Job Search: This section has been updated to clarify that adults who are added to open TANF cases must also complete the initial job search.

2.11 Voter Registration: This section has been updated to provide current information and procedures to ensure compliance with the National Voter Registration Act (NVRA).

3.2(4)(J) Required BG Members (Prohibited BG Members): This section has been updated to clarify that a family cap child may be applicable after any approval for TANF cash benefits.

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3.4(1) Living with Relatives: This section has been updated to provide examples of first cousin and first cousin once removed.

4.3 Identity Verification Requirement: This section has been updated to clarify that only the identity of the applicant or the authorized representative applying on behalf of the BG, must be verified.

4.3(1)(F) Identity Verification Requirement (Acceptable Identity Verification/School Records): This section has been updated to remove school records from documents to verify identity since the verification of identity for children is not a requirement.

4.4 Citizenship Requirement: The “note” in this section has been updated to remove the terms “non-applicants and BG members.” They have been replaced with Ineligible non-citizens.

4.4(3) Citizenship Requirement (Qualified Non-Citizen Eligibility): This section has been updated to clarify the groups of non-citizens that must meet the five-year residency requirement before being eligible for TANF.

4.5 SAVE Program: This section has been updated to clarify the purpose of using SAVE.

4.6 Sponsor Definition: This section has been updated and expanded to clarify the definition, contributions and deeming of income for sponsors.

4.11 Age Requirements: This section has been updated to remove the “note”. Once emancipation has been established, it cannot be reverted back to dependent status due to a change in situation.

4.12 Initial Job Search Requirement: This section has been updated to clarify that adults who are added to open TANF cases must also complete the initial job search.

4.13(5) Education Requirement (Dropout Defined): This section has been renamed to **School Dropouts** and updated to specify that dropouts will not be included in the benefit group.

5.1(4)(A) Child Support (Minimum Parent/Caretaker Relative Requirements): This section has been updated to define putative father.

5.3(1) Good Cause Claim for Child Support (ES Worker Responsibility-Good Cause Child Support): This section has been revised to clarify the responsibility of the ES Worker in determining good cause for child support.

5.5(3) Child Support Sanction (ES Worker Determination of Non-Cooperation): This section has been updated to clarify that the ES Worker should attempt to secure more information about the Absent Parent when the minimum information has not been provided by the client.

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6.7 Treatment of Liquid Resources (IRA/Keogh): This section has been updated to provide additional types of IRA plans and information regarding when an individual would be subjected to the additional tax penalty.

7.4 Requirement to Apply for Possible Benefits: This section has been updated to clarify that applicant and recipient BGs must apply for other benefits and take all actions necessary to obtain the benefits. In addition, it also has been clarified that this is a condition of eligibility that must be met in order to avoid a determination of ineligibility for the entire BG.

7.7 Sources of Income (Foster Care payments & Kinship Care): This section has been updated to specify that the income and resources of children are excluded.

8.4 Added Individual Treated as Applicant: This section has been updated to reflect that adults who are added to open TANF cases must complete the initial job search.

8.5 Definition/Family Cap Child: This section has been updated to clarify that a family cap child may be applicable after any approval for TANF cash benefits.

8.7 Direct Child Support: This section has been revised by adding the phrase “in the TANF case” and the word “payments” for clarity.

8.7(2) Direct Child Support (Prospective Ineligibility/Child Support): This section has been revised by adding the phrases “the BG starts receiving” and “income through CSSD” for clarity.

8.15 Need Standard Table: This section has been updated to show the current gross income limit, need and payment standards for TANF, effective October 2019.

10.7 Reapplication After 10-year Time Period: This section has been updated to add verbiage to clarify the time calculation for tracking the 10-year time period at reapplication.

22.2(7) Fair Hearings (CM/ES Worker Responsibilities): This section has been revised to update the language pertaining to the disclosure of confidential information as it relates to fair hearings.

24.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to show the RCA Payments effective fiscal year October 2019.

26.2 State CARES Program: This section has been revised to add the word “adult” before the word “individuals” for clarity.

4.13(6) Education Requirement (School Dropouts): This section has been removed and the information is now included in section 4.13(5).

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4.4(5) Citizenship Requirement (Iraqi and Afghan Special Immigrants): This section has been removed and the information is now included in section 4.4(3)

19.17 Reference Need Standard Table: This section has been removed because this chart is included in section 8.15.

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[2.5\(2\) Processing Period \(New Resident\)](#): This section has been revised reflect the current procedures and link this section 10.4.

[2.8\(1\) Accrual Rights \(Ineligible First Month\)](#): This section has been updated to notify the ES Worker to send CHIP Notice A113, Eligible 2nd Month-Ineligible 1st Month, instead of two separate notices.

[2.22 Immunization Verification](#): This section has been revised to update the “note” to include “attends a licensed day care center” as proof of having required immunizations.

[2.22\(1\) Immunization Verification \(Immunization Schedule\)](#): This section has been updated to remove the immunization schedule.

[2.23 Verification Responsibility](#): This section has been updated to remove the phrase “believed to be.”

[3.4 Living with Relatives](#): This section has been updated to remove the prefix “great-great-great.”

[3.5 Paternity Situations](#): This section has been renamed “Establishment of Paternity” and updated to clarify that the information is to be used for the purpose of determining the relationship to the child’s alleged biological father and paternal relatives.

[4.7 Enumeration Requirement](#): This section has been renamed “Social Security Number (SSN) Requirement” and updated to reflect current procedures.

[4.9 SSN Validation Methods](#): This section has been updated to provide details on how to verify a SSN.

[4.10 New Number Assignment](#): This section has been renamed “New SSN Assignment” and was updated to reflect current procedures.

[5.1 Child Support](#): This section has been updated to include subtopics: “ES Worker Action on Grandparent Information” and “Legal Paternity.” Subsequent sections have been renumbered.

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5.2 Information to Provide to the A/R: This section has been eliminated and the information there within is included in the applicable sections throughout Chapter 5. Subsequent sections have been renumbered.

5.5 Child Support Sanction: This section has been updated to include the subsection “ES Worker Action on Child Support Sanction.” Subsequent sections have been renumbered.

8.7(5) Direct Child Support (Reinstatement Procedures): This section has been updated to change the word “check” to “payment” and action “C” has been removed to reflect current procedures.

Section 4.8, Participation Pending SSN Application Completion, has been removed because it does not reflect current procedures.

Section 5.7, Child Support Verification Documents, has been removed as it relates to unearned income rather than child support cooperation.

The word “enumeration” has been replaced (where applicable) with “Social Security Number (SSN) Requirement” throughout the manual.

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2.6 Disposition of Application: This section has been updated to clarify that an application must be disposed of as eligible or ineligible.

2.19(1) Applicant Reporting Requirements (Reporting Requirements): This section has been updated to include Unearned income as a change required to be reported and to remove the “Exception” noted in item “D.”

6.7 Treatment of Liquid Resources (Earned Income Credit): This section has been updated to include Earned Income Tax Credit (EITC) and to clarify that the exclusion for rebates or advance payments is for a period of 12 months from receipt date.

7.2(1) Definition of IEVS (Types of Income Matched): This section has been updated to remove IRS record of unearned income.

7.3 IEVS Process (Chart): This section has been updated to remove all references to IRS matches

7.3(4) IEVS Process (IEVS Matches): This section has been updated to remove the following: Beneficiary Earnings Exchange Record (BEERS), IRS Match, and the “NOTE” in reference to the IEVS Interface Guide.

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7.7 Sources of Income (Earned Income Credit): This section has been updated to include Earned Income Tax Credit and to add the inclusion of tax rebates and advance payments of tax credits.

7.7 Sources of Income (Unemployment Compensation Benefits): This section has been updated to include Pandemic Emergency Unemployment Compensation & Pandemic Unemployment Assistance as countable sources of income.

9.8 (2) Reporting Changes (Changes which must be reported): This section has been updated to remove the “Exception” noted in item “A” and to clarify which employment status elements should be reported in item “C”.

11.1 Benefits Issuance: This section has been updated to change the word “individual” to “informant.”

11.1(2) Benefits Issuance (Identifying Benefit Issuance): This section has been updated to define Electronic Payment Card (EPC) and to change the warrant number from “02” to “C” to identify that a debit card was issued.

11.2 Electronic Benefit Issuance: This section has been updated to change “electronic debit account” to “EPC.”

11.3(11) Protective Payee (ES Worker Action to Remove a Protective Payee): This section has been added to explain how to remove a protective payee and change the method of payment for the TANF benefits from a paper check to the ePay card.

Glossary: This section has been updated to redefine Biological Father and Legal Father; and to change Primary (PI) to Primary Informant (PI).

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2.1 General Application Process: This section has been updated to include that being interviewed and verifying required eligibility criteria are a part of the TANF application process.

2.1(14) General Application Process (Assisting Applicant): This section has been updated to clarify that the Agency will provide assistance, as needed, to complete an application.

2.1(15) General application process (Authorized Representative): This section has been updated to define Authorized Representative (AR) and to clarify how an AR may be designated.

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2.11 Voter Registration: This section has been updated to provide current information and procedures to ensure compliance with the National Voter Registration Act (NVRA).

4.1 Residency Requirement: This section has been renamed to “Residency” and content has been updated for clarity.

7.1 Definitions of Income Sources: This section has been updated to identify sources of income as earned, unearned or in-kind income/benefits.

7.2 Definition of IEVS: This section has been renamed to Income and Eligibility Verification System.

7.2(2) Definition of IEVS (IEVS Matching Situations): This section has been updated to clarify that IEVS should be matched during any type of interview.

7.3(4) IEVS Process (IEVS Matches): This section has been updated to revise the BENDEX acronym to Beneficiary and Earnings Data Exchange.

7.7 Sources of Income (Educational Assistance): This section has been updated to identify the specific types of educational assistance that are excluded.

7.7 Sources of Income (Garnished Income): This section has been updated to clarify that garnished income is countable income.

7.7 Sources of Income (Lost Wages Assistance Program): This section has been added to identify and exclude payments from the Lost Wages Assistance Program authorized by the Robert T. Stafford Disaster Relief and Emergency Assistance Act.

8.15 Need Standard Table: This section has been updated to show the current gross income limit, need and payment standards for TANF, effective October 2020.

11.2(1) Electronic Benefit Issuance (ePay Debit Cards): This section has been updated to clarify that exceptions apply to where the ePay Debit Master Card may be used.

11.2(3) Electronic Benefit Issuance (ePAY Access): This section has been updated to clarify that recipients have the right to make their own decisions on how to use the TANF cash benefits. This section also clarifies that restrictions apply to where TANF funds can be accessed by electronic benefit transaction.

24.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to show the RCA Payments effective October 2020.

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1.5(7) Confidentiality and Program Compliance (Lifeline Assistance Program): This section has been updated to reflect current procedures and information.

2.5 Processing Period: This section has been updated to clarify that the processing period begins after a signed application is filed.

2.5(2) Processing Period (New Resident): This section has been updated to clarify that TANF months received in another state must be verified at application, but the processing period should not be delayed in order to do so.

2.5(6) Processing Period (Required Action): This section has been updated to clarify that an applicant caused delay in completing the application process will result in the household losing its entitlement to benefits from the date of application. Also, a new application must be filed after 60 days in order to have eligibility determined.

2.6(3) Disposition of Application (Auto-Denial): This section has been updated to clarify that CHIP will auto deny an application on the 30th day when specific conditions apply.

4.4 Citizenship Requirement: This section has been updated to clarify that the citizenship requirement must be met by the dependent child, the parent and/or caretaker relative.

4.4(3) Citizenship Requirement (Qualified Non-Citizen Eligibility): This section has been updated to define “Qualifying Quarters” as it relates to a Lawful Permanent Resident (LPR).

8.7 Direct Child Support: This section has been renamed “Child Support Income.”

8.7(2) Child Support Income (Prospective Ineligibility/Child Support): This section has been updated for clarity to state that the TANF case may be prospectively ineligible, resulting in a closure, due to the amount of child support collected by CSSD.

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2.19 Reporting Requirements: This section has been reworded for clarity.

2.19(2) Reporting Requirements (Failure to Report): This section has been updated to clarify that required changes should be reported within 10 days. In addition, verbiage has been added to specify that the BG will be responsible for any overpayments as a result of failing to report changes as required.

2.21 General Verification and Documentation Criteria: This section has been updated to clarify that various pieces of information must be verified during the application process. In addition,

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verbiage has been added to specify that the identity of the applicant and the student status of the dependent children must be verified.

3.2(4)G Required BG Members (Prohibited BG Members): This section has been updated to add a note to include children receiving kinship care payments.

3.9(4)D Sanctioned Other than Work Requirements: This section has been updated to change “Caretaker relative” to “A natural or adoptive parent.”

4.14 Fleeing Felons and Probation/Parole Violators: This section has been updated throughout to reflect the name change of the Fugitive Information Offender Surveillance (FIOS) Central Office to the National Crime Information Center (NCIC).

6.7 Treatment of Liquid Resources (Child Tax Credit Payment): This section has been updated to include Child Tax Credit Payment and to clarify that payments received as advance child tax credits are excluded as a resource for a period of 12 months from receipt date.

6.9 (3) Treatment of Vehicles (Determining Fair Market Value): This section has been updated to specify that equivalent publications may be used in lieu of NADA.

7.6 State Directory of New Hires: This section has been updated to reflect the current information identified in CHIP.

7.7 Sources of Income (Child Tax Credit Payment): This section has been updated to include Child Tax Credit Payment and to clarify that payments received as advance child tax credits are excluded as income.

8.15 Need Standard Table: This section has been updated to provide the current gross income limit, need and payment standards for TANF, effective October 2021.

11.2(1) Electronic Benefit Issue (ePay Debit Cards): This section has been updated to include protective payees who have been removed from CHIP.

24.1 Refugee Cash Assistance (RCA): This section has been updated to reflect the change of the agency’s website for online applications from <http://scmapp.sc.gov> to <https://benefitsportal.dss.sc.gov>.

24.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to provide the RCA Payments, effective October 2021.

Section 8.4(3), Added Individual Treated as an Applicant (Technical Factors), has been removed to reflect current policy.

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4.4(3) Citizenship Requirement (Qualified Non-Citizen Eligibility): This section has been updated to include Afghan Humanitarian Parolees and to clarify that this group of individuals may receive benefits from the date of entry or the date the status was granted.

10.2 Tracking Codes: This section has been added to identify all of the tracking codes which can be entered on CHIP screen FAIP. Subsequent sections have been renumbered.

11.2(3) Electronic Benefit Issuance (ePAY Access): This section has been updated to clarify that proposed changes in ePay issuance should be emailed to the Division of Finance.

11.2(4) Electronic Benefit Issuance (ePay Transaction Penalties): This section has been updated to clarify that a copy of a report of access or use of TANF benefits in a prohibited location should be sent to the Division of Finance.

3.4(3) Living with Relatives (Relationship Verification): This section has been updated to remove the statement “Identity of the applicant and dependent child must be verified.”

6.13(1) When to Verify Resources (Sources of Verification): This section has been updated to remove “Request for Financial Investigation, DSS Form 1253” as a source to verify resources.

12.2 Job Placement Goals: This section has been removed. Subsequent sections have been renumbered. Information from this section can be found in the Division of Employment Services TANF Policy and Procedure Manual.

Chapter 13, TANF Case Management, has been removed. Subsequent chapters have been renumbered. Information from this chapter can be found in the Division of Employment Services TANF Policy and Procedure Manual.

Chapter 21, Workforce Consultant Role and Job Development Functions, has been removed. Subsequent chapters have been renumbered. Information from this chapter can be found in the Division of Employment Services TANF Policy and Procedure Manual.

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2.4 Applicant Support Services: This section has been added to provide information on support services available at application. This information was previously included in the former Chapter 18, Support Services. Subsequent sections have been renumbered.

2.5 Applicant Child Care: This section has been added to provide information on child care available at application. This information was previously included in the former Chapter 18, Support Services. Subsequent sections have been renumbered.

3.1 Benefit Group Definition: This section has been updated to add the possible types of BGs. Major parent, minor parent and child(ren) of minor parent has been included as a possible benefit group.

3.6 Possible Benefit Groups: This section has been renamed “Living Arrangements.” The types of possible benefits groups have been removed.

Chapter 18, Support Services, has been removed. Subsequent chapters have been renumbered. Information from this chapter can be found in the Division of Employment Services TANF Policy and Procedure Manual.

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1.4(9) Limited English and Sensory Impaired Individuals (Display of Posters): This section has been updated to provide the titles of posters that must be displayed in each county office.

3.2(4) Required BG Members (Prohibited BG Members): This section has been updated to identify “Unborn Child” as a prohibited BG member.

3.3(1) Right to Choose Other Programs (TANF Recipient Approved for SSI): This section has been updated to clarify that an approval for SSI or TANF may affect the eligibility determination under the other.

3.6(2) Living Arrangements (Special BG Situations): This section has been updated to remove the exceptions for minor parents to live in the home of parents. This information has been moved to 8.9(1) Treatment of Minor Parent Cases.

3.10(2) Striker Definition (Special Striker Policies): This section has been updated to include a “NOTE” to clarify that striker policies do not apply to Caretaker relatives.

4.12 Education Requirement: This section has been updated to clarify that if a minor parent head-of-household is not enrolled or attending school within 30 days from date of application, the application will be denied.

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7.5 Counting Individual's Income: This section has been updated to include “Minor Parent” and to remove “Minor”.

7.7 Sources of Income (Educational Assistance): This section has been updated to revise the “NOTE” to clarify that educational assistance obtained and specifically earmarked for current living expenses are not excluded.

8.1(6) Budgeting Procedures (Prospective Budgeting Procedure): This section has been updated to reflect the current budgeting parameters.

8.9 (1) Treatment of Minor Parent Cases (Living Arrangement of Minor Parent): This section has been updated to identify the exceptions for minor parents to live in the home of parents.

8.12 Earned Income Disregard: This section has been updated to change the title from “Fifty Percent Disregard” to “Earned Income Disregard” as well as to rearrange and add verbiage for clarity.

9.2 (1) Types of Reviews (Annual Redetermination Action): This section has been updated to reflect current procedures.

12.2 WEI-Subject to TANF Work Requirements: This section has been updated to clarify that disqualified and sanctioned adults are considered Work eligible individuals.

3.9(4) Sanctions and Disqualifications (Sanctioned Other than Work Requirements): This section has been updated to remove item “D”: A natural or adoptive parent, who is included in the budget, participating in a strike.

7.7 Sources of Income (Work Study Funds): This section has been updated to remove the entry pertaining to work study funds. Treatment of this income can be found under “Educational Assistance”.

9.4 Failure to Comply with Interview: This section has been updated to remove the entry “Good Cause/Missing Interview”.

10.1(3) Federal Requirement (Federal Time Limit): This section has been updated to remove the statement “or minor married to head of BG, who has received the most countable months”. The federal time limit does not apply to two parent households.

18.17(D) Federal Time Limit: This section has been updated to remove the statement “or minor married to head of BG, who has received the most countable months”. The federal time limit does not apply to two parent households.

The phrase “Teen Parent” has been replaced throughout the manual to “Minor Parent” when referencing a minor parent head-of-household under age 18.

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Titles of forms have been updated throughout the manual to reflect the current titles.

The word “Renewal” has been replaced with “Recertification” throughout the manual.

The “Reference Guides” found in section 12.7 Young Parent Programs and 13.12(8) Referrals/Need for Additional Services (Referrals for Pregnant and Parenting Adolescents) have been moved. They can be found here: [Reference Guides](#)

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[1.4\(3\) Limited English and Sensory Impaired Individuals \(Client History Information Profile \(CHIP\) Coding\)](#): This section has been updated to include the code for languages “AR-Arabic” and “UK-Ukrainian.”

[1.4\(4\) Limited English and Sensory Impaired Individuals \(Use of Interpreters\)](#): This section has been updated to change the “Policy and Procedures Guide for Services to Person with Limited English Proficiency or Sensory Impairment” to “Civil Rights Toolkit.”

[2.2 Special Application Situations \(Limited English Proficiency Applicants\)](#): This section has been updated to include the code for languages “AR-Arabic” and “UK-Ukrainian.”

[3.4 Living with Relatives](#): The section has been renamed “Relationships” and has been updated to clarify that a dependent child must be related by blood, marriage or adoption within the fifth degree of kinship.

[3.7\(1\) Temporary Absence \(Time Frame for Reporting Permanent Absence\)](#): This section has been updated to specify that a recipient must notify DSS within 10 days if a BG member does not return home after temporarily living away.

[3.8\(1\) Temporary Absence Due to Institutionalization \(Youth Services or Correctional Facility\)](#): This section has been renamed “Public Institutions” and has been updated to specify that public institutions include juvenile detention facilities and correctional institutions.

[3.8\(2\) Temporary Absence Due to Institutionalization \(Medical/Residential/Group Home Facilities\)](#): This section has been renamed “Medical or Mental Institutions” and has been updated to provide examples of medical and mental institutions.

[3.8\(3\) Temporary Absence Due to Institutionalization \(Admitted With Child\(ren\)\)](#): This section has been renamed “Drug and Alcohol Treatment Facilities” and has been updated to specify that individuals admitted to alcohol or substance abuse treatment facilities are eligible for TANF the

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month of admittance and the following month. Examples of these types of facilities are also provided.

8.15 Need Standard Table: This section has been updated to provide the current gross income limit, need and payment standards for TANF, effective October 2022.

21.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to provide the RCA Payments, effective October 2022.

22.3 Title VI Prohibition against National Origin Discrimination As It Affects Persons with Limited English Proficiency (LEP): This section has been updated to change the “Policy and Procedures Guide for Services to Person with Limited English Proficiency or Sensory Impairment” to “Civil Rights Toolkit.”

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3.6(2) Living Arrangements (Special BG Situations): This section has been updated with several entries to further clarify how to treat special Benefit Group (BG) situations.

3.7 Temporary Absence: This section has been updated to define temporary absence and provide examples of temporary absences.

3.7(1) Temporary Absence (Time Frame for Reporting Permanent Absence): This section has been renamed “Time Frame for Reporting Temporary Absence” and updated to specify a temporary absence may not exceed 30 days but may be extended to 60 days.

3.7(2) Temporary Absence (Work Related Temporary Absence): This section has been renamed “Employment or Reasons Relating to Work.”

3.7(3) Temporary Absence (Temporary Absence due to Educational/Vocational Training): This section has been renamed “Educational/Vocational Training.”

3.8 Temporary Absence due to Institutionalization: This section has been renamed “Institutionalization” and updated to include a “NOTE” to clarify that a child(ren) admitted into an institution with his/her parent(s) is eligible for TANF the month of admittance and the following month only.

3.9(3) Sanctions and Disqualifications (TANF Case Closed Due to Full Family Sanction): This section has been updated to remove the denial closure “JF” since JUMMP has been discontinued.

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[3.9\(5\) Sanctions and Disqualifications \(Individual Sanction Imposed in TANF Case\)](#): This section has been updated to identify the code “DI WP” used on CHIP screen SEPA to impose an individual sanction.

[4.4\(3\) Citizenship Requirements \(Qualified Non-Citizen Eligibility\)](#): This section has been updated to extend the parole eligibility date for Afghan Humanitarian Parolees to December 16, 2022.

[4.4\(3\) Citizenship Requirement \(Qualified Non-Citizen Eligibility\)](#): This section has been updated to include Ukraine Humanitarian Parolees and to clarify that this group of individuals may receive benefits if they entered the United States between February 24, 2022 and September 30, 2023.

[21.2 Population Eligible for Refugee Cash Assistance](#): This section has been updated to include Afghan Humanitarian Parolees and Ukrainian Humanitarian Parolees.

[21.3 Refugee Cash Assistance – Qualifying Documents](#): This section has been updated to include Afghan Humanitarian Parolees and Ukrainian Humanitarian Parolees.

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[3.2\(4\): Required BG Members \(Prohibited BG Members\)](#): This section has been updated to remove “identity.” Individuals misrepresenting their residence will be disqualified for 10 years.

[3.9\(7\) Sanctions and Disqualifications \(Action Taken on Disqualified or Sanctioned Individuals\)](#): This section has been updated by adding the word “Individuals” to the title of the subsection.

[4.4\(3\) Citizenship Requirements \(Qualified Non-Citizen Eligibility\)](#): This section has been updated to extend the parole eligibility date for Afghan Humanitarian Parolees to September 30, 2023.

[4.6\(2\) Sponsor Definition \(Non-Citizens Exempt from Sponsor Deeming\)](#): The section has been updated to identify the groups of individuals exempt from sponsor deeming.

[4.6\(5\) Sponsor Definition \(Deeming of a Sponsor’s Income\)](#): This section has been updated to identify additional deductions that may be subtracted when computing a sponsor’s income for deeming.

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4.11 (1) Initial Job Search Requirement (Individuals not required to Complete Initial Job Search): This section has been updated to add a subsection identifying the individuals that are not required to complete the initial job search. Subsequent sections have been renumbered.

4.11(2) Initial Job Search Requirement (Minimum Expectations): This section has been updated to clarify that applicants must provide DSS with a listing of businesses contacted as evidence of conducting an initial job search.

4.11(3) Initial Job Search Requirement (Failure to Participate): This section has been updated to rename the subsection “Failure to Complete Initial Job Search.”

4.11(4) Initial Job Search Requirement (Verification): This section has been updated to rename the subsection “Documentation” and to clarify that evidence of the five contacted businesses may be documented on DSS Form 3708 or on a written or typed statement.

4.13 Drug Conviction Policy (Chip Coding): This section has been updated to remove “identity” from the “NOTE.” This field applies to conviction for misrepresenting residency in order to receive duplicate benefits.

8.15 Need Standard Table: This section has been updated to reflect a 20% increase to the current payment standards for TANF.

21.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to reflect a 20% increase to the current RCA Payments.

2.6 Initial Job Search: Subsections 1 and 3 have been moved to section 4.11 Initial Job Search Requirement.

The phrases “SC Voucher Program and SC Voucher System” have been changed to “Child Care Scholarship Program” throughout the manual.

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3.7 Temporary Absence: This section has been updated to identify the time frame for reporting temporary absence.

4.13 (3) Drug Conviction Policy (ES Worker Actions): This section has been updated to specify when to submit a referral to Child Welfare Services if an applicant/recipient has a felony drug conviction which occurred after August 22, 1996.

4.14 Fleeing Felons, Probation and Parole Violators: This section has been updated for clarity.

6.5 Resources to Count: This section has been updated to specify when to consider resources as available to benefit group members (including Family Cap children).

6.6 Treatment of Liquid Resources (Individual Development Account (IDA): This section has been updated to provide clarity on how to identify an Individual Development Account (IDA).

8.15 Need Standard Table: This section has been updated to provide the current gross income limit, need and payment standards for TANF, effective October 2023.

21.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to provide the RCA Payments, effective October 2023.

Titles of forms have been updated throughout the manual to reflect the current titles.

The term “Child Protective Services (CPS)” has been changed to “Child Welfare Services (CWS)” throughout the manual.

Where applicable, the term “Human Services” has been changed to “Child Welfare Services (CWS).”

3.7.2 Temporary Absence (Employment or Reasons Relating to Work): This section has been removed to reflect current policy.

3.7.3 Temporary Absence (Educational/Vocational Training): This section has been removed to reflect current policy.

4.13(2) Drug Conviction Policy (Methods of Determination): This section has been updated to remove item “B”: Upon receipt of the "Report of S.C. Court Administration, A.D. 8333", which shows the recipient listed in the "court admin. name" column.

6.6 Applicant BGs: This section has been removed. Subsequent sections have been renumbered.

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2.1(6) General Application Process (Same Day Filing): This section has been updated to rename the subsection “Filing an Application.”

2.13 Voter Registration: This section has been updated to add verbiage to the procedure for clarity.

5.2 Good Cause Claim for Child Support: This section has been updated to reflect current procedures.

6.6 Treatment of Liquid Resources: This section has been updated to include “Interest earned on a loan” and “Technical items of assistance.”

6.9 Treatment of Excluded Resources (Federal Payments Excluded as Resources): This section has been updated to identify additional resources that are excluded by federal law.

6.10 Types of Inaccessible Resources (Resources in Litigation): This section has been updated to include “Chapter 13” as the type of bankruptcy identified as an inaccessible resource.

7.7 Sources of Income (ABC payments for providing child care): This section has been updated to change the entry to “Child Care Scholarship payments for providing child care.”

7.7 Sources of Income (Community Service Employment Programs): This section has been updated to change the entry to “Senior Community Service Employment Programs” and to reflect that all earned income received through this source is excluded.

7.7 Sources of Income (Work Experience (WEP) training allowance – (DSS): This section has been updated to change the entry to Work Training Allowance (WTA) – (DSS).

Titles of forms have been updated throughout the manual to reflect the current titles.

The Glossary has been updated for clarity.

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1.6 Civil Rights Procedure: This section has been updated to list the Civil Rights Procedure as a stand-alone section. In addition, a link has been added to Chapter 22 Civil Rights.

3.8(3) Institutionalization (Drug or Alcohol Treatment Facilities): This section has been updated to add a note for clarity.

4.6 Sponsor Definition: This section has been updated to add a note for clarity.

4.12 Education Requirement: This section has been updated to add verbiage in order to clarify the circumstances in which a BG member will be sanctioned due to failure to comply with school attendance requirements.

7.1 Definitions of Income Sources: This section has been updated to clarify that in-kind income/benefits are excluded.

8.5 Definition/Family Cap Child: This section has been updated to add verbiage pertaining to DSS Form 1647, Family Cap Child Screening Tool.

8.15 Need Standard Table: This section has been updated to provide the current gross income limit, need and payment standards for TANF, effective October 2024.

9.2 Types of Reviews: This section has been updated to reflect current procedures.

21.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to provide the RCA Payments, effective October 2024.

2.3(2) Requirements of an Interview (Required Explanations During Interview): This section has been updated by removing verbiage pertaining to SNAP and Medicaid.

7.6 State Directory of New Hires: This section has been updated to remove verbiage for clarity.

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2.3(2) Requirements of an Interview (Required Explanations During Interview): This section has been updated to add entry “V,” which specifies that a minor parent must live with a parent/guardian or meet an exception.

3.6(3) Living Arrangements (Living Arrangement of Minor Parent): This section has been added to identify the exceptions to the living arrangement of minor parents. The policy information for this section was previously in Sections 8.9(1) and 8.9(2).

8.1 Budgeting Procedures: This section has been renamed “Prospective Eligibility and Budgeting” and rewritten for clarity.

Section 8.3 Determination of Benefits: This section has been added to provide information on the TANF gross income limit, and to provide definitions for earned and unearned income. Subsequent sections have been renumbered.

8.4(3) Verification (Terminated Income): This section has been revised to update the chart to change the entry from “During participation” to “Changes.”

8.6 Definition/Family Cap Child: This section has been updated to include an “Exception” that specifies how to identify a Family Cap Child who was born prematurely.

8.7(1) Prospective Eligibility – Removing an Individual (Budgeting – No Reduction in Benefits): This section has been updated to specify that a notice must be sent to verify receipt of a change.

8.8(5) Child Support Income (Reinstatement Procedures): This section has been updated to add a “Caution” to specify the action to be taken if a change in income occurs. In addition, entry “D” pertaining to the submission of DSS Form 3816C marked as “change” to CSSD has been removed.

8.9 Earned Income: This section has been renamed “Self-Employment.”

8.15 Need Standard Table: This section has been updated to provide the current gross income limit, need and payment standards for TANF, effective October 2025.

A “**NOTE**” was added to specify that a BG must pass the gross income test to be eligible for TANF.

9.1 Definition/Redetermination: This section has been updated to define “redetermination” and to specify how often TANF BGs must have eligibility reestablished.

9.2 Types of Reviews: This section has been renamed “Redetermination Process” and rewritten for clarity.

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9.4 Failure to Comply with Interview: This section has been updated to specify the actions taken by the CHIP system when a BG fails to file the annual redetermination or fails to complete the interview process after filing the annual redetermination.

This section has also been updated to notify the worker that the applicant may reapply at any time once cash benefits are terminated.

9.5(B) Review of Good Cause Domestic/Family Violence Waiver at Redetermination: This section has been updated to add a “NOTE” to specify that the Economic Services Workflow Unit determines good cause for child support requirements at initial application. In addition, the sentence “ES Worker must reauthorize TANF cash benefits for full month upon completion of the review” has been removed.

21.4(3) RCA/TANF Relationship (RCA Payment Level): This section has been updated to provide the RCA Payments, effective October 2025.

8.6(4) Definition/Family Cap Child (Exceptions to Benefit Cap): Entry “F” pertaining to a child born prematurely has been removed. Information from this entry is now included in Section 8.6.

8.8(3) Child Support Income (Ineligibility Procedure): The “Caution” has been removed.

8.9(1) Treatment of Minor Parent Cases (Living Arrangement of Minor Parent): This section has been removed.

8.9(2) Treatment of Minor Parent Cases (Eligibility Information Requirement): This section has been removed.

8.10 Gross and Need Standards: This section has been removed. Subsequent sections have been renumbered. Information from this section is now listed as a “NOTE in Section 8.15.

9.3 Authorized Representative: This section has been updated to remove the sentence “The AR cannot update or change the family plan.”

9.5 Termination of Cash Benefits: This section has been removed. Subsequent sections have been renumbered. Information from this section is now included in Section 9.4.

9.7(5) Reporting Changes (Verification at Redetermination): This section has been updated to remove the sentence “Unearned income must be verified if the source has changed, increased or decreased by more than \$25.00.”

Revisions have been made throughout Chapter 20 (Recipient Claims) to reflect updates made by the Benefit Integrity Program Manager.

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9.8 Notification Requirements: The section has been updated to add entry “E,” which specifies that a recipient must be notified if there is a change in the manner or form of payment to a protective payment. In addition, the “Caution” has been removed from entry “A.”

9.8(1) Notification Requirements (Timely Notice): This section has been updated to reflect current procedures. In addition, Section B, Timely Notice Exceptions, and Section C, Checks Routed to Office, have been removed.

9.8(2) Notification Requirements (Adequate Notice): This section has been updated to reflect current procedures. Also, entry “11” has been added to Section B “Adequate Notice Situations,” which includes an additional situation where the Benefit Group (BG) must be notified of the reduction or termination of cash benefits.

10.1 Federal Requirement: This section has been renamed “Types of Time Limits” and has been rewritten for clarity. In addition, the “NOTE” previously in section 10.1(4) Federal Requirement (Benefits Received in Another State) pertaining to counting a family’s months has been added as an entry to this section.

10.1(3) Federal Requirement (Federal Time Limit): This section has been changed to section 10.2 Federal Time Limit. Subsequent sections have been renumbered. In addition, the information previously in entry “D” of section 10.1((3) pertaining to months received as a dependent child has been added as a “NOTE in section 10.1.

10.1(4) Federal Requirement (Benefits Received in Another State): This section is now included in section 10.4 Benefits Received in Another State.

10.1(5) Federal Requirement (Time Limit Exceptions): This section has been renamed “State Time Limit Exceptions” and is now included in 10.3 State Time Limit.

10.1(6) Federal Requirement (Federal Hardship Extensions): This section has been renamed “Federal Hardship Exceptions” and is now included in section 10.2 Federal Time Limit.

10.3 State Time Limit: This section has been added to provide information on the State Time Limit. In addition, section 10.1(2) Federal Requirement (State Time Limit) has been removed and information previously in this section is now included in section 10.3.

10.3 State Time Limit (State Time Limit Exceptions): This section has been updated to add entry ‘H,’ which specifies that an adult TANF member involved in an approved training program may receive up to a six-month extension of benefits.

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10.4 Benefits Received in Another State: This section has been added to provide procedures for counting benefits received in another state. Also, information previously in section 10.4 Special Time Limit Situations has been added to section 10.1.

10.5 Verification of TANF Benefits from Another State: This section has been included in section 10.4 Benefits Received in Another State.

10.6 (4) Reapplication Due to Time Limit Exceptions (Domestic/Family Violence Waiver Criteria): Entry “B” has been updated to specify that the ES Workflow Unit determines if there is sufficient evidence to grant good cause for domestic/family violence.

11.1(1) Benefit Issuance (Required Demographic Information for Electronic Payments): This section has been updated to change the vendor from XEROX to Conduent.

11.3 (2) Protective Payee (Review of Protective Payment Cases): This section has been rewritten for clarity.

11.3(10) Protective Payee (Procedures for Assigning Protective Payees): This section has been updated to change county director to ES Worker’s Supervisor.

12.5 Non-Custodial Parent Requirements: This section has been rewritten for clarity.

Chapter 21, Refugee Cash Assistance (RCA): This chapter has been updated to change the RCA time limit from eight to four months throughout.

9.7(1) Reporting Changes (Collect Calls to Report Changes): This section has been removed. Subsequent sections have been renumbered.

10.1(1) Federal Requirement (Time Limit Types): This section has been removed.